

11.5 Options for the future

The conceptualisation above is by no means perfect, partly reflecting the pragmatism and messiness that defines a system that has evolved over time in response to emerging issues, changing values and political possibilities. It is not always obvious which lenses have been laid down first, and which have been left to fill gaps (eg domains and sectors).

However, the idea of layering legislative lenses provides a conceptual starting point for considering future options. Instead of thinking about millions of possible configurations on a piecemeal basis, we can instead ponder how different lenses might be layered, or manage the relationships between lenses differently. These could result in either minor or significant changes.

Refining the boundaries between lenses

A targeted approach to legislative design could involve refining the boundaries between statutes created through different lenses. One option would be to remove any “carve-outs”, where the reason management actions no longer fall within one layer of statutes is that they have been deliberately removed from them. Of particular interest here is the boundary between outcome-based legislation and sectoral frameworks. For example, the boundary between the Maritime Transport Act and EEZ Act (and RMA) could be reconsidered.

The Maritime Transport Act’s “environmental” components relating to discharges from ships could be shifted to the EEZ Act, providing a more consistent normative basis and integrated framework for rules and consenting with respect to discharges. Its provisions concerning marine



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Container ship, Auckland

protection more broadly, such as oil spill preparedness and response, could be shifted as well. After all, spills on land are firmly within the jurisdiction of the RMA and can generally be managed through conditions and bonds. Spills and other environmental measures (eg habitat restoration, protection from other pressures) are intimately related (as seen in the wake of the *MV Rena*), suggesting that synergies could be embraced within the same framework. Even at sea, oil spills are not just about “transport” (they apply equally to installations as ships), so are arguably an odd fit for a statute like the Maritime Transport Act.

However, there are other considerations. Notably, oil spill preparedness and response measures (including complex international agreements

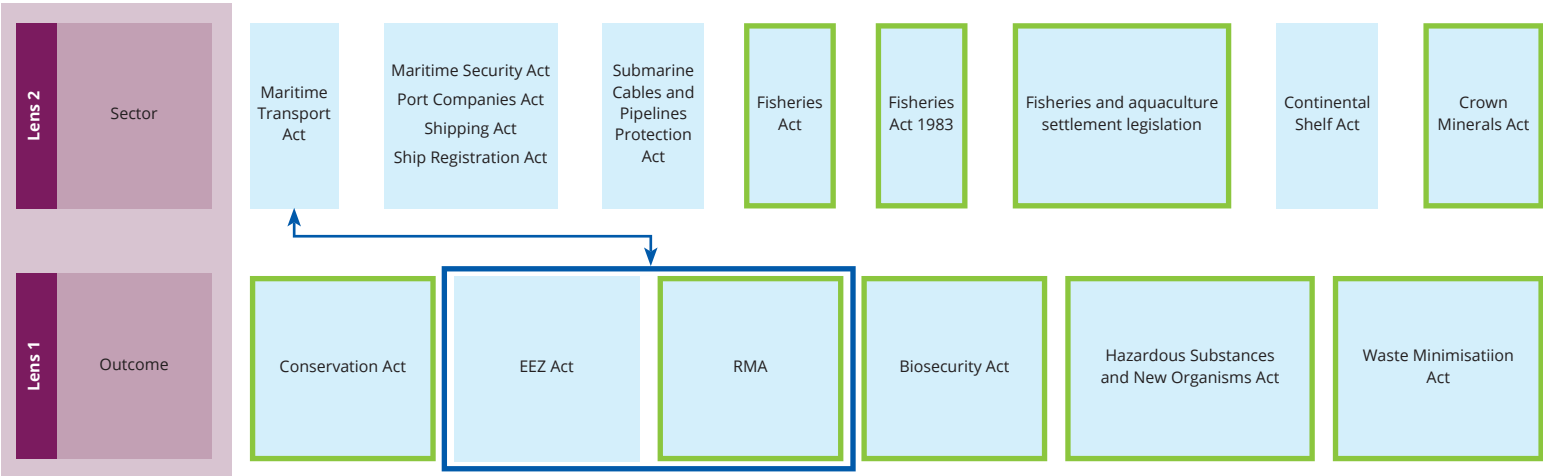


Figure 11.3: Reconsidering the boundary between the Maritime Transport Act and the EEZ Act (and RMA)

around liability) are quite unlike other tools in the RMA and EEZ Act, as are detailed ship design requirements.⁸⁰ The RMA does not regulate the design of cars, so why should it do the equivalent at sea?⁸¹ The boundary between the Maritime Transport Act and EEZ Act was considered closely when many provisions *were* shifted soon after the latter was enacted. It is not a “neat” boundary, but it is arguably a more practical one.

A spotlight on the transfer of functions from the Maritime Transport Act to the EEZ Act⁸²

Although, in 2011, Cabinet approved policy proposals to transfer regulation of discharges from offshore installations and dumping in the EEZ and continental shelf from Maritime New Zealand to the EPA, the EEZ Act did not initially enact this policy proposal.⁸³ The rationale for the transfer, through a subsequent amendment in 2013, was that:⁸⁴

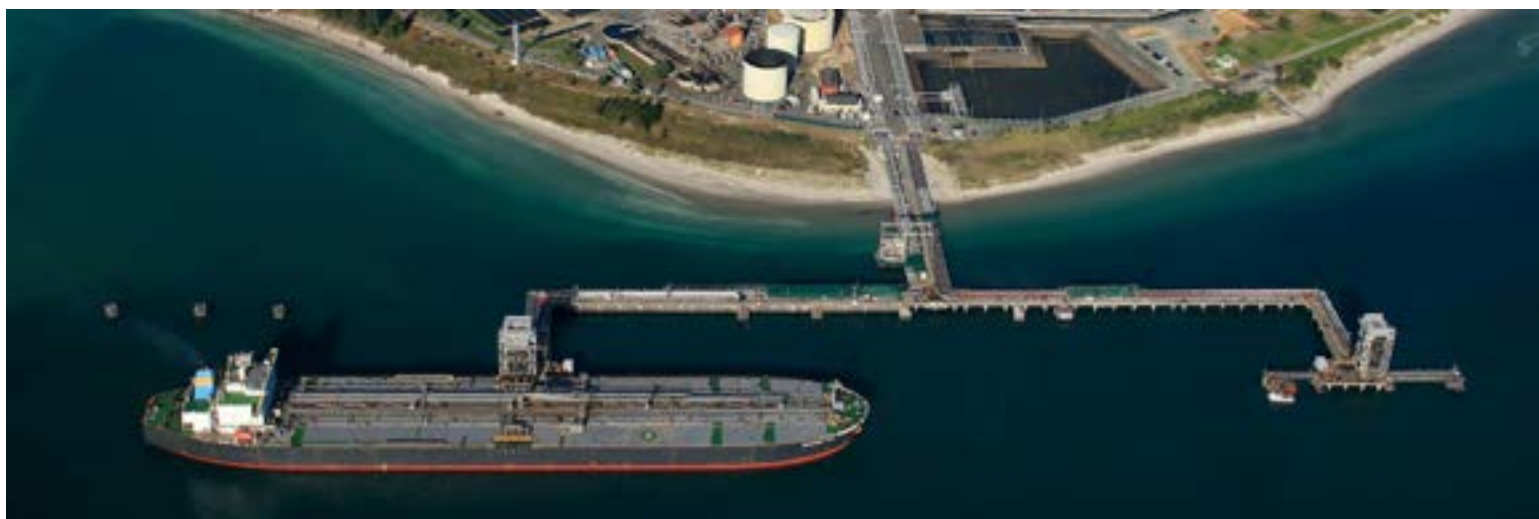
Transferring the regulation of discharges and dumping to the EEZ Act enables discharging and dumping to be assessed within the same consenting regime as other activities relating to the wider operation [of petroleum activities regulated under the Act]. This adjustment provides greater certainty and reduced compliance costs for industry, avoids inefficiencies from duplicating processes, enhances environmental effects management such as consideration of cumulative effects, and provides the opportunity for improved public and iwi participation.

The EEZ Act was duly amended.⁸⁵ Maritime New Zealand and the EPA are now expected to work closely together, and the EPA will provide Maritime New Zealand with any information which may assist in the performance of its functions, and vice versa.⁸⁶ This is particularly important because Maritime New Zealand retains significant functions under the Maritime Transport Act, including spill preparedness and response, regulatory functions relating to the design of ships, and jurisdiction over discharges from ships. The pragmatic logic behind the split jurisdiction is that Maritime New Zealand has specialist knowledge of shipping, and that the environmental, health and safety and international law components are intimately connected and can be discharged most efficiently through a single sector-focused organisation.



The boundary between the Maritime Transport Act and EEZ Act could be refined, so that the latter includes management of discharges from ships. “Environmental” jurisdiction under the Maritime Transport Act for things like oil spills could also be moved to the RMA and EEZ Act.

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Oil tanker, Marsden Point

Revisiting the boundary between the RMA and Fisheries Act

When it comes to refining boundaries between outcome-based and sectoral statutes, more significant is the nature of the boundary between the RMA/EEZ Act and Fisheries Act.

As we said in the working paper:

When we look at the resource management system as a whole (and with some significant exceptions) the basic framing makes some sense.⁸⁷ Broad, outcomes-based statutes like the RMA, Biosecurity Act or Waste Minimisation Act apply to almost all sectors and seek the same outcomes irrespective of the environment or resource in question. Layers are then added *on top* of those to achieve *additional* (not *alternative*) outcomes for particular sectors (eg mining) and spaces....

This is not as obvious when it comes to oceans. A separate Fisheries Act creates a contested boundary with the RMA (and the EEZ Act). The arrangement is unique, because it creates a framework for managing human interaction with a particular living resource that is intimately connected to broader ecosystems, and for a quite different purpose. Not only that, it also seeks to manage the environmental impacts of fishing on the broader marine environment through sustainability measures. This aspect means that all three statutes can do the same or similar things for different reasons, and it is still not clear where one should start and the other should stop.

A spotlight on the Motiti decision⁸⁸

The *Motiti* case illustrates the confusion that can arise when statutory boundaries are defined with reference to subtly different purposes for which tools are used (ie where they are used to do the same or similar things for different reasons). The case focused on whether it was possible for a regional council to spatially protect parts of the marine environment from the impacts of fishing activity through provisions in its regional coastal plan. The impetus for the litigation was the grounding of the *Rena* on the Otāiti/Astrolabe reef in October 2011, and attempts by the Motiti Rohe Moana Trust to retain a fisheries exclusion zone around the reef, once the salvage operation had been completed.

The Court of Appeal stated that the RMA's purpose and the functions of regional councils would be, if not specifically carved-out, enough “to authorise a regional council to control fishing in the coastal marine area”.⁸⁹ The question was whether there had in fact been a legislative “carve-out”. Legislators had turned their mind to the interface between the two pieces of legislation, with section 30(2) of the RMA stating that a regional council must not perform certain functions “to control the taking, allocation or enhancement of fisheries resources for the purpose of managing fishing or fisheries resources controlled under the Fisheries Act 1996.” It was the application of this section that was the focus of legal argument.

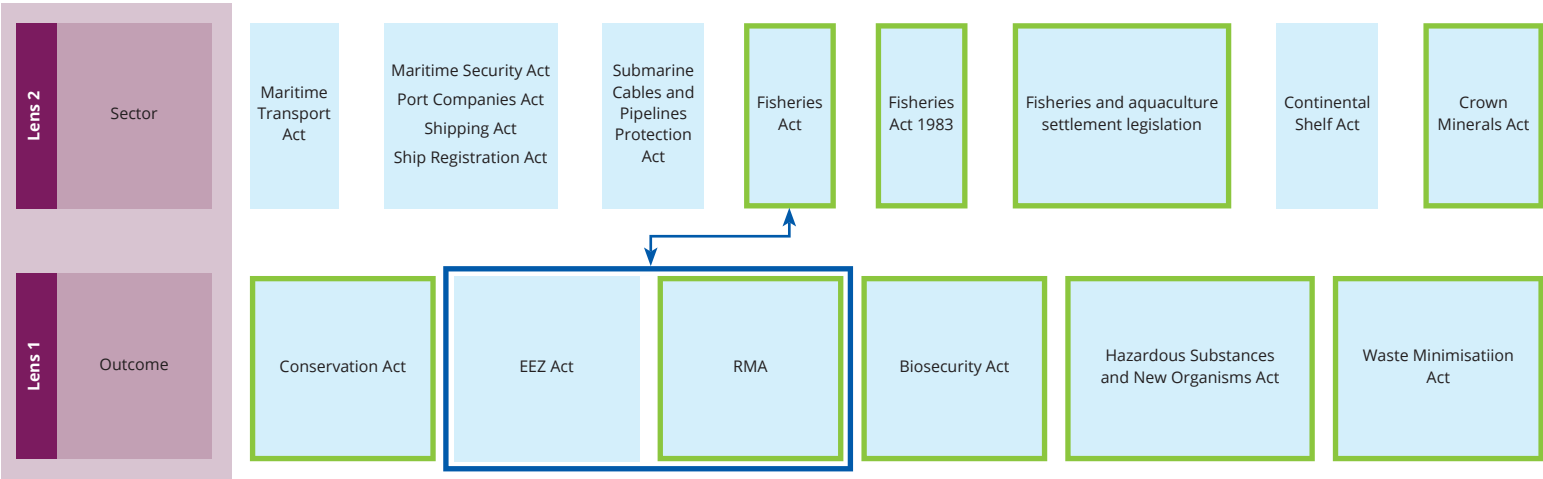


Figure 11.4: Reconsidering the boundary between the RMA and Fisheries Act

The High Court sought to reconcile the two pieces of legislation by concluding that the Fisheries Act was narrower, “focused on biological sustainability of the aquatic environment as a resource for fishing needs” whereas the focus of the RMA was broader, encompassing “ecosystems and their constituent parts (including people and communities), and all natural and physical resources”. Therefore, although the control of fisheries under the Fisheries Act would help achieve the broader purpose of the RMA, it “does not purport to address, let alone control, all the effects of fishing on the wider environment (including people and communities)”.⁹⁰

The Court of Appeal, for the most part, endorsed the reasoning of the High Court. Essentially, regional councils have the jurisdiction to take measures to prohibit or control fishing where it is for the purpose of biodiversity protection rather than fisheries purposes. However, questions remain about the interface. For example, the Court noted that whether an RMA restriction is lawful will depend on the factual setting, and a number of “indicia” will need to be considered:

- a) Necessity: whether the objective of the control is already being met through measures implemented under the Fisheries Act;
- b) Type: the type of control. Controls that set catch limits or allocate fisheries resources among fishing sectors or establish sustainability measures for fish stocks would likely amount to fisheries management;
- c) Scope: a control aimed at indigenous biodiversity is likely not to discriminate among forms or species;
- d) Scale: the larger the scale of the control the more likely it is to amount to fisheries management; and
- e) Location: the more specific the location and the more significant its biodiversity values, the less likely it is that a control will contravene s 30(2).

This leaves the door open for argument on a whole range of fronts. For example, would widespread restrictions on damaging fishing methods (eg dredging or bottom trawling) be lawful due to this “scale” of control? What about the case of a particularly sensitive inshore benthic ecosystem vulnerable to climate change

and land-based stressors – would the imposition of a lower bag limit or commercial catch limit for shellfish (the “type” of control) be lawful if it was needed to protect an ecosystem fundamentally reliant on, for example, densely packed mussels?

What if a restriction targeted a particular species (the “scope” of a control), not to protect that species, but because its protection was the only missing link in the chain to prevent ecosystem collapse (eg in the case of snapper and kina barrens)? And does the law effectively limit the role of councils to highly targeted areas of protection and prevent them from discharging their statutory responsibilities to protect marine biodiversity in its wider coastal marine area? This will be significant in terms of whether the RMA could be used to implement a meaningful network of protected areas. Currently, that ability seems dubious.

Such questions may also be significant in light of the climate change implications of bottom trawling.⁹¹ Councils have now regained jurisdiction in the RMA over the control of greenhouse gas discharges, which are released in significant quantities by trawling the seabed. Would councils have the ability to take action under the RMA for climate, not biodiversity, reasons? What if a council wished to retain the ecosystem services of shellfish in estuaries to filter pollutants coming down catchments? Or to prevent the harvest of seaweed that is useful for mitigating the effects of storm surges (a form of climate change adaptation, which they are specifically tasked with achieving)?

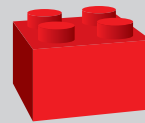
A number of other questions about the statutory interface remain unresolved. For example, the Court of Appeal noted that:⁹²

Some of the submissions before us indicate that in other circumstances conflict could arise between Māori commercial or customary fishing rights and the exercise of a regional council’s power to protect indigenous biodiversity. Notably, the New Zealand Māori Council, which is the fifth respondent, takes the position that s 30(2) would preclude a regional council from banning fishing in a taiāpure fishery. Other intervenors submit that when an area has been declared a taiāpure fishery it is unlikely that a council would find it necessary to ban fishing there in the interests of protecting indigenous biodiversity. We do not need to decide these points and we do not have all the information we might need

to do so. Still less can we decide whether or how s 30(2) would apply when Māori commercial fishing interests are engaged. That would raise Treaty considerations that have not been addressed in argument.

The *Motiti* decision illustrates the complexity of the statutory interface between the Fisheries Act and RMA, and has consequential implications for its interface with the EEZ Act as well. The growing complexity of the system as a whole can also be seen in the uncertain ways in which one could arguably influence another by a roundabout route. For example, the establishment of customary marine title under the MACA Act (which may eventually cover a significant portion of the coastal environment) allows title holders to require permission for certain activities requiring consent under the RMA.⁹³ Because of the *Motiti* decision, regional councils are likely to become more active in controlling certain fishing activities (possibly even requiring consent for some activities), and the extent of such jurisdiction remains unclear. This raises the possibility of rights under the MACA Act being exercised to manage fishing activities, even though there is no direct connection between it and the Fisheries Act.

the RMA (and EEZ Act), and for an active role to be taken by the Minister for the Environment or Conservation in establishing mandatory national direction on the subject. This would be similar to how climate change mitigation is being approached in terms of the interface between the Climate Change Response Act and the RMA (where councils' ability to consider the impact of climate change emissions is being reinstated under the RMA, but their commencement has been delayed so the Ministry for the Environment can put in place national direction on the matter).⁹⁶ Here, the Fisheries Act would essentially become a vehicle for fish stocks to be managed, allocative decisions to be made (eg setting the respective shares of a stock between recreational, customary and commercial fishers), and for the complex mechanics of the QMS.



The boundary between the RMA/EEZ Act and Fisheries Act could be clarified by clearly shifting responsibility for the incidental impacts of fishing activity on the marine environment to the former. The Fisheries Act could be left as a means to allocate and manage fish stocks themselves.

However, this still does not provide a clear line of division. Harvesting fish (not just the externalities created by the method of doing so) can have cascading impacts up and down food chains with consequent broader implications for the marine environment. This is evidenced by the kina barrens on the north-east coast of the North Island. So should catch limits (the TAC) be set under the sectoral Fisheries Act, or could they be brought under the broader umbrella of the RMA?

Catch limits *could* conceivably be imposed within a broader purpose of sustainable management or a more modern formulation like *te ora* ngā *taiao*. This would reflect the importance of assessing fishing pressures in the broader context of ecosystem health, other activities like coastal development and sedimentation, climate change, and values more akin to *te mana o te wai* (eg that the “needs of the ocean come first”). Moreover, allocative decisions (setting the TACC) need not necessarily be made under the same framework as limit setting ones (setting the TAC). For example, coastal tendering processes under the RMA are a separate step to the subsequent consenting process.

This begs the question: should the Fisheries Act become a narrower framework for allocating a resource within environmental limits – including catch limits – rather than a place where those limits are set in

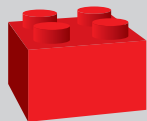
Although many questions remain outstanding, the Fisheries Act's role in managing incidental impacts of fishing on marine biodiversity can be seen as a subset of that undertaken by the RMA and EEZ Act. This does beg the question as to whether the Fisheries Act should play a role in this area at all. If the RMA already provides a regime for managing the impacts of activities on marine biodiversity, why is there a need for sectoral legislation to do the same thing for a specific activity, let alone one that excludes RMA jurisdiction beyond lines that remain unclear and contested?

It is notable that we do not do the same thing elsewhere in the system. For example, the impacts of mining activities on the marine environment are still considered under the RMA and EEZ Act, in addition to a separate consent required to mine under the Crown Minerals Act and Continental Shelf Act.⁹⁴ Should a similar requirement not be placed on bottom trawling, which has effects of a similar nature to some forms of seabed mining?⁹⁵

One possibility could be for the parts of the Fisheries Act concerned with the protection of the marine environment from the incidental impacts of fishing, to be relocated to the planning and consenting framework of

the first place?⁹⁷ Could there even be two distinct limit setting processes – an “ecological catch limit” under the NBA to which a Fisheries Act TAC would be subject?⁹⁸ That may involve excessive duplication of effort, and it is questionable whether a TAC aiming to enhance yield would ever be lower than an ecological catch limit (calling into question the point of having both).

Locating limit setting and other sustainability measures under the RMA (or its replacement) would also bring with it greater participatory rights and potentially both greater local/regional control and the rigour of an Environment Court process.⁹⁹ It might even allow more spatial nuance (to prevent local depletion rather than setting a limit for a whole QMA). We are not saying whether this would be a good idea or not – it is simply a debate to be had.



A sectoral Fisheries Act could remain as a home for the QMS and other allocative mechanisms like a TACC, with all sustainability measures (including the TAC) being set under an expanded NBA (at a central or regional level).

Even if we were to accept that fish stocks should be managed under something more akin to the RMA's purpose (by no means a settled conclusion), there may still be compelling reasons to retain separate legislation for the setting of catch limits and even other sustainability measures.

One reason might be that the nature of the tools are quite different. For instance, a TAC for a stock needs to be agile (set every year) and aligned with changes in stock size which may not align with the extensive timeframes required for plan changes and reviews. Because of the sheer number of fish stocks and operators, it could not easily be achieved through a consenting process either. In setting a TAC, RMA jurisdictional boundaries (regions) also do not coincide with administrative boundaries (QMAs), meaning that a system within a system would need to be created under the RMA.¹⁰⁰ Would it not just be simpler to amend the purpose of the Fisheries Act itself, and revisit the concept of MSY?

Another pragmatic element is the institutional arrangements that surround the use of tools. A central government institution like Fisheries New Zealand can attract a concentration of expertise and has the clear function of administering an act focused on intimately connected fisheries measures that involve complex, lengthy and highly scientific exercises



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Commercial fishing vessel, Nelson

and a deep understanding of fish stock dynamics. A similar choice can be seen in the inclusion of restrictions on discharges from ships under the Maritime Transport Act instead of the EEZ Act, because Maritime New Zealand is practically well positioned to deal with all things “shipping”.

There are practical reasons to suggest that tools for setting catch limits and other mechanisms for managing fish stocks themselves (eg bag limits, seasonal closures) might be better placed under a separate framework like the Fisheries Act.

Refining the boundary between species-based legislation and the Fisheries Act

It is not just the RMA that has a fraught relationship with the Fisheries Act. So too do “domain” based statutes protecting marine species, such as the Wildlife Act and the Marine Mammals Protection Act. A future system could refine the boundaries between these types of statutes as well.

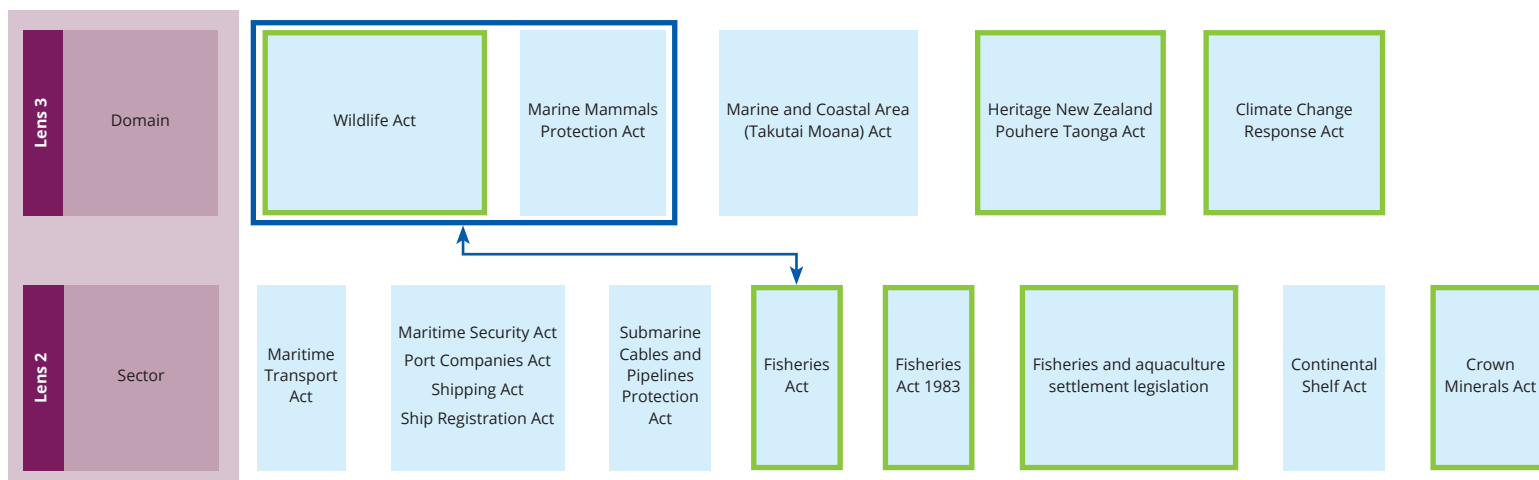


Figure 11.5: Reconsidering the boundary between species-based legislation and the Fisheries Act

A spotlight on the Māui dolphin

The Māui dolphin is facing extinction. The dolphins are found along the west coast of the North Island, and are concentrated in the area between the Kaipara and Aotea harbours, but in the 19th century they were thought to occupy the entire west coast of the North Island as well as the east coast up to the Bay of Plenty.¹⁰¹ The dolphin is between 1.2 to 1.7 metres long, lives for about 20-25 years, and the female reproduces around four to six calves over her lifetime.¹⁰² Māui dolphins are considered “critically endangered” by the International Union for the Conservation of Nature and as “nationally critical” by the Department of Conservation. The most recent estimate of the Māui dolphin’s population is 57 individuals over a year old.¹⁰³

Until recently, set net fishing and trawling were considered the two major threats for the Māui dolphin. Dolphins can become tangled in nets and drown. They can also be hit by boats and their propellers.¹⁰⁴ Seismic surveying and seabed mining are also considered to carry substantial risks due to their loud noise and (for seabed mining) disturbance of the seabed and discharge of sediments.¹⁰⁵ Noise and pollution can displace the dolphins from their habitat and make it harder for them to hunt and produce offspring.¹⁰⁶ The noise may interfere with the sounds Māui dolphins use to communicate and potentially cause hearing damage.¹⁰⁷

As such, the two main measures taken to protect the Māui dolphin are orders prohibiting set netting and trawling in defined spatial areas (made by the Minister of Fisheries under section 15(2) of the Fisheries Act), and the establishment of marine mammal sanctuaries with associated restrictions affecting seismic surveying, seabed mining and some fishing methods (created by the Minister of Conservation under the Marine Mammals Protection Act).

In 2001, the Minister of Fisheries decided to place a prohibition on set net fishing on the west coast of the North Island from Maunganui Bluff to Pariokariwa Point, and offshore to four nautical miles, under the Fisheries Act. This decision was overturned by a successful challenge in the High Court by commercial fishers and remitted back to the Minister for reconsideration.¹⁰⁸ In the week of the case, two Māui dolphins washed up onshore wrapped in fishing nets.¹⁰⁹ In 2003, the Minister remade his decision which confirmed the set net exclusion area and extended it to include the Manukau Harbour. The court proceedings, therefore, did not prevent the protections but delayed them for two years.

In 2008, after the preparation of a non-statutory threat management plan, the existing set net exclusion area under the Fisheries Act was extended out to seven nautical miles, and a further ban on the fishing method was imposed from the Manukau Harbour down to Port Waikato out to four nautical miles.

Additionally, a marine mammal sanctuary which restricted seabed mining and seismic activity, was created from Maunganui Bluff to Oakura Beach along 2164 kilometres of coastline out to 12 nautical miles.

The 2008 measures under the Fisheries Act were also successfully challenged in the High Court by commercial fishers with the matter again sent back to the Minister for reconsideration.¹¹⁰ The Court granted interim relief to the applicants, which had the effect of allowing set netting to continue between four and seven nautical miles.¹¹¹ This relief was to lapse if any Māui dolphins were killed.¹¹² In 2011, the Minister reconsidered his decision and maintained the proposed measures. Again, the court proceedings did not prevent the additional protections, but delayed their application by several years.

In 2012, a fisherman reported that a Māui dolphin had been caught. This prompted the further review scheduled for 2013 to be brought forward. Interim protection measures were put in place.¹¹³ These measures extended the recreational and commercial set net ban south from Pariokariwa Point to Hawera and offshore to two nautical miles. Commercial set netters in this area could only operate between two and seven nautical miles with an observer on board. Additionally, the Minister of Conservation and the Minister of Energy and Resources released the Code of Conduct for Minimising Acoustic Disturbance to Marine Mammals from Seismic Surveys Operations.¹¹⁴ This Code was more protective than the existing marine mammal sanctuary restrictions, and mitigation measures were required across the entire historic range of the dolphin out to the 100 metre depth contour.

In 2013, the threat management plan was updated with the interim measures made permanent. The West Coast North Island marine mammal sanctuary was varied to ban commercial and recreational set netting between two and seven nautical miles, extending the existing ban south from Pariokariwa Point to the Waiwakaiho River. This was notable, as the fishing restrictions were promulgated under the Marine Mammals Protection Act this time, and not the Fisheries Act.

The Crown's actions were challenged in the Waitangi Tribunal in 2016 for allegedly failing to give due regard to the kaitiaki interests of Ngāti Te Wehi and Ngāti Tahinga.¹¹⁵ The claimants

maintained that the 2013 threat management plan “fails to adequately protect Māui’s dolphin from likely extinction and is therefore in breach of the Treaty of Waitangi.”¹¹⁶ The Tribunal accepted that the Māui dolphin is a taonga to Ngāti Te Wehi and Ngāti Tahinga due to its endangered status. The Crown agreed that there was a Treaty duty to take reasonable steps to protect Māui dolphins, but argued that it may choose between different options of protection as long as it is done reasonably and in good faith.¹¹⁷ Ultimately, the Tribunal found that the review of the threat management plan and associated consultation was not in breach of te Tiriti, nor was the substance of the plan itself.

A second review of the threat management plan commenced in 2018. In 2020, the set net ban was once again extended. It now covers the entire west coast of the North Island from Cape Reinga to Wellington.¹¹⁸ Trawling was prohibited within the Māui dolphin habitat from Maunganui Bluff to the Waiwhakaiho River, and drift nets were banned universally in the country's waters. The West Coast marine mammal sanctuary was extended south to Wellington. Seabed mining and seismic drilling were banned in the sanctuary, but with exemptions available including existing permits or nationally significant projects.

A Toxoplasmosis Strategic Science Advisory Group was also established to deal with the emerging threat of disease to the dolphin. Developing a way to test the level of toxoplasma in water will be crucial to assessing the efficacy of management measures.

The emerging recognition of toxoplasmosis as a threat to Māui dolphins (among a wide range of other threats such as habitat loss, climate change,¹¹⁹ chemicals like pesticides¹²⁰ and plastics)¹²¹ indicates the need for an integrated “mountains to sea” and cross-sectoral approach to addressing threats. It is likely measures will be required that are well outside the mandates of the Minister of Fisheries or Minister of Conservation.

Furthermore, the interface between the Fisheries Act and Marine Mammals Protection Act, when it comes to managing the impacts of fishing on marine mammals, is somewhat opaque. Spatial measures to protect the dolphins have been put in place under both acts, at various times, but each piece of legislation has a

very different purpose. Creating set net bans under the Fisheries Act, means that the evaluation of options is subservient to the purpose of that Act, which is sustainable utilisation rather than population recovery (which is required to reduce the chance of extinction).¹²² It is notable that the successful High Court judicial review challenges were both mounted on restrictions placed under the Fisheries Act and not the Marine Mammals Protection Act. However, some have argued that using marine mammal sanctuaries to regulate fishing activity would “lead to duplication in resources and confusion amongst stakeholders about rules and responsibilities”.¹²³



Hector's dolphin, Akaroa harbour



Figure 11.6: Spatial protections for the Māui dolphin Source: Ministry for Primary Industries, July 2020

One way forward might be to more clearly define the boundary between the Fisheries Act and the Marine Mammals Protection Act (and Wildlife Act) so that sectoral legislation is no longer responsible for the impacts of fishing or mining on marine mammals.¹²⁴ That might address concerns about “duplication in resources” and “confusion amongst stakeholders”. Arguably all the tools to protect the Māui dolphin should have been contained within a statute focused on achieving that specific outcome. Instead, multiple authorities have been left to assemble a range of discretionary tools from diverse frameworks with questionable purposes, over an inordinate amount of time. Acts like the Marine Mammals Protection Act may also need to extend their reach to create new tools (or drive the deployment of tools elsewhere, such as bylaws under the Local Government Act).

In terms of legislative design, arguably domain-based acts like the Marine Mammals Protection Act should form a clear and distinct secondary lens. A tertiary lens – focused on sectors like fisheries – could then produce legislation that fills genuine gaps (we would not put the QMS in the Marine Mammals Protection Act, for example), but it would not be expected to perform the core roles of domain-based statutes (the protection of wildlife, eg as bycatch).

In clarifying the order of these lenses, we need to ask who the audience or “customer” of a statute should be. Is it sectoral stakeholders, expecting tailored and non-confusing tools under a fisheries framework? Or is it a Māui dolphin, king shag or oystercatcher, expecting a coherent range of controls spanning several human activities that would enable it to survive the decade? An alternative is that these statutory boundaries remain unchanged, but that there is a stronger link made between population thresholds or conservation status and the tools required to do something about it.

Similar things might be said about other threatened species, such as some seabirds and shorebirds. Here, the Wildlife Act might in the future be

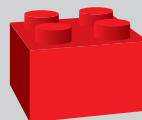
expected to provide a wider range of tools (eg those currently contained in the Fisheries Act concerning bycatch, as well as things like bylaws for vehicles on beaches and orders to protect key habitats on private land) or to be more clear and directive about what triggers their deployment under other statutes.

Legislative design in the context of “emergencies”

It is interesting to compare other legislative design approaches where something is considered to be an “emergency”. Climate change is a recent example, where a dedicated sector-spanning statute is devoted to decarbonisation irrespective of the overall costs of getting there. But there are others. To address the risk of marine oil spills, we have a dedicated agency (Maritime New Zealand) tasked with deploying a clear and integrated toolkit to ensure prevention, cleanup and liability. Similarly, natural disasters invite a swift response from authorities focused solely on the emergency at hand.

Faced with extinction, the plights of nationally critical species are also environmental emergencies. Yet they lack a similar legislative focus, relying instead on the ebbs and flows of political interest and public awareness to drive deployment of tools fragmented across many pieces of legislation. Indeed, the Department of Conservation website proclaims that “in many countries, species listed as threatened automatically receive legislative protection from hunting, habitat destruction and other threats. In Aotearoa New Zealand, there is no direct link between conservation status and legal protection.” That is partly due to protections being contained in many different statutes administered by many different entities.

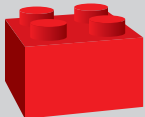
A future system could clarify the relationship between the Fisheries Act and “domain” based legislation like the Wildlife Act and Marine Mammals Protection Act. This could be done by making it clearer that tools under the latter statutes are to be used in an integrated way to achieve domain-based outcomes like the protection of threatened species, rather than relying on tools deployed under sectoral frameworks.



Dolphin watching vessel, Bay of Islands

Marine mammals and seabirds are one thing, as they are not commercially harvested. The relationship with the Fisheries Act is therefore about managing incidental effects (eg bycatch). However, this boundary raises another interesting question about the extent to which “fish” themselves should be managed under domain-based legislation (eg the Wildlife Act) focused on the fish itself, or a sectoral act focused on *fishing*. At the moment, some fish are managed under the former (eg great white sharks and rays) while others (ie harvestable ones) are managed under the latter.

The distinction is both between values (we do not want to fish great whites) and threats (commercial fish species are not generally threatened). However, there is a question as to whether a *collapsed* fish stock should be managed more as a conservation issue rather than a resource/sectoral one. For example, a decline below a soft or hard limit under the Fisheries Act might trigger an automatic switch in management frameworks, reimagining the boundary between sectoral and conservation laws. That would be more akin to how most freshwater fish are managed,¹²⁵ and has the potential advantage of allowing complementary management measures by the Department of Conservation (eg MPAs, sanctuaries) and mana whenua (via the MACA Act)¹²⁶ to be aligned with the rebuilding of a stock. Essentially, this would flip the status quo on its head, and see domain-based laws requiring the concurrence of the Minister of Conservation for (some) fishing activity.



The management of some fish stocks, such as those that have “collapsed” or breached a limit, could switch from the Fisheries Act to a revamped Wildlife Act.

Expanding the scope of some lenses

As well as refining boundaries between *different* lenses, we could expand the *scope* of what some lenses do. For example, this could involve extending the types of things sought by outcome-based legislation like the RMA/NBA, EEZ Act and Conservation Act.

Here, we can ask: is there a broad marine outcome not currently sought by these statutes that applies across all sectors, spaces and domains? If so, it might warrant inclusion in these general acts. For instance, the Randerson Panel has recommended that the NBA be more about proactively seeking positive outcomes and environmental restoration than the RMA (which is arguably more about addressing adverse effects). It even provides an indicative list of what those might be. Yet the list does not have a specific or strong focus on marine restoration, or other outcomes like the synergistic benefits from green infrastructure, sustainable aquaculture, or marine carbon farming. The extent to which the NBA should include even broader outcomes relating to sustainable marine development (eg offshore aquaculture, offshore wind and tidal energy, development of blue highways, tourism, diversification and export opportunities) may depend on what our objectives for the marine environment are and the extent to which the system should have a role in this area at all (see Chapter 6). But if the system does encompass aims for the “blue economy”, then it may make sense to include these in outcome-based statutes, rather than dealing with them piecemeal in separate sectoral acts (as we do for the economic development goals of fishing and mining).

The Randerson Panel has also recommended that the NBA impose a clear category of marine “limits” rather than just providing a framework for making trade-offs (see Chapters 4 and 8). This would potentially reduce the need for firm limits to be imposed on a domain or sectoral basis to fill gaps. While the Panel’s terms of reference did not extent beyond the coastal marine area, the same could be said for the broadly similar EEZ Act.

The outcomes sought by the RMA, EEZ Act and Conservation Act could be expanded in other ways, including by tackling allocative questions in the marine space. While allocation of some things does already *happen* under those acts, it is largely done almost incidentally through the ad hoc granting of consents and concessions, and lacks any real purpose or outcome sought. These acts could provide an overarching set of allocative principles (including those relating to te Tiriti and building on the *Ngai Tai* case) even where the actual mechanism for allocation of some resources remained elsewhere (eg the QMS under the Fisheries Act, mining permits

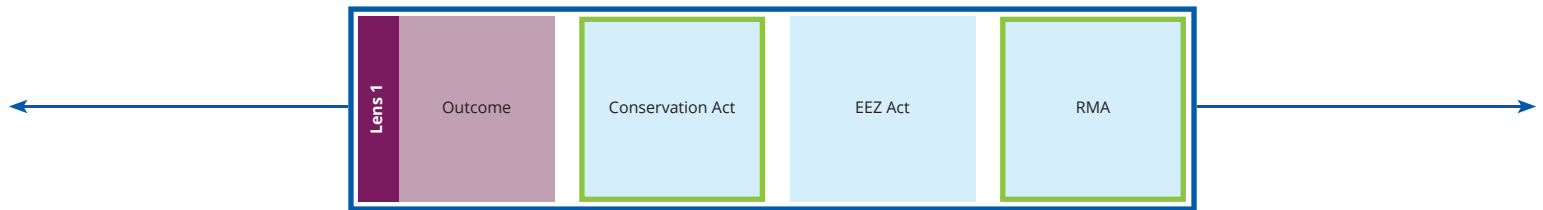
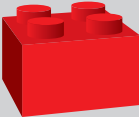


Figure 11.7: Expanding the scope of what some lenses do

under the Crown Minerals Act, and customary rights under the MACA Act). For example, such principles could be a mandatory consideration when a Minister is releasing offshore acreage for minerals exploration, determining whether to buy back and redistribute fishing quota, or setting a TACC to allocate a share fish stock between recreational and commercial harvesters.



The scope (ie the kinds of outcome) sought by statutes like the RMA, EEZ Act and Conservation Act could be expanded to include more specific and proactive objectives for the marine environment, including those relating to a sustainable blue economy, the defence of strict environmental limits, and the allocation of resources (or the distribution of value from their use).

Other layers of legislation could also be expanded. Adding more place-based legislation (see Figure 11.8) could be the mechanism for creating bespoke MPAs (eg for the Hauraki Gulf) or integrating the use of tools under other frameworks (eg fishing controls, wildlife sanctuaries and RMA rules). That may be necessary in practice to accommodate place-based te Tiriti settlement legislation. Alternatively, more tool-based legislation could be used to create new categories of MPAs (eg seabed reserves) that could be deployed across all of the marine space (see Figure 11.8).

Sectoral legislation could be added to as well (see Figure 11.9), if there were considered to be gaps (in that we do not currently regulate all marine sectors). This could, for example, see the Crown Minerals Act expanded to accommodate other potential uses of sub-seabed space like carbon

capture and storage (and to resolve allocative tensions between the sectors). Indeed, this may be a necessary step given that the tools required go well beyond what is contemplated by the RMA.¹²⁷ Marine tourism could get its own statute, reflecting the need to more proactively regulate tourist activities that are not already dealt with in existing statutes (in other words, it could fill gaps).¹²⁸

Although it is not clear whether sectoral legislation would be needed to fill gaps, or whether it would instead facilitate questionable carve-outs, some have floated the idea of bespoke statutes for offshore aquaculture and offshore energy. And an infrastructure focused “sectoral” statute akin to the Land Transport Management Act on land could be enacted to drive the deployment of ecological infrastructure, including funding and delivery mechanisms (resembling a Land Transport Fund) and legal tools to protect it (similar to those preventing interference with submarine cables and pipelines).



Raewyn Peart

Tourism operation, Hahei



Figure 11.8: Expanding place-based legislation

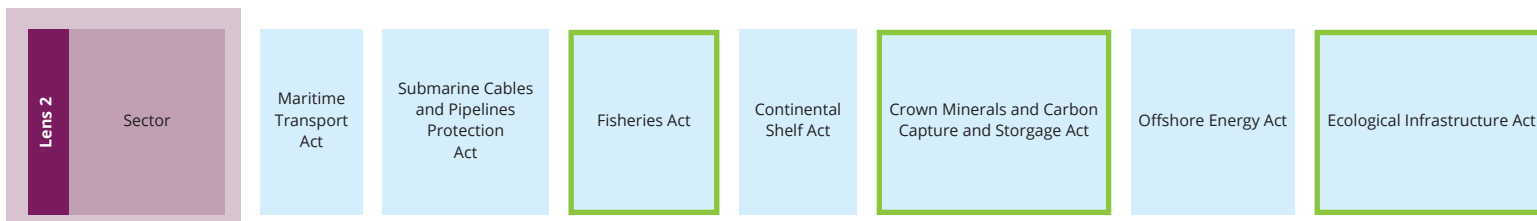


Figure 11.9: Expanding sectoral legislation



Other layers of legislation could be expanded in a future system. This could see the enactment of more place-based legislation to protect particular areas, tool-based acts to create new types of MPAs, or new sectoral statutes for tourism, offshore energy, or ecological infrastructure.

Reshuffling boundaries within lenses

If lenses were to be expanded (eg adding new sectoral acts like an Offshore Wind Energy Act) that begs the question as to whether these should be a series of separate statutes or integrated into existing ones. Going further, we can ask whether existing statutes within any given lens (eg all our existing sectoral legislation) should be split up differently (see Figure 11.10).

Integrating some would not make sense, such as the Fisheries Act with the Crown Minerals Act or Maritime Transport Act. These have quite different purposes (sectors are managed for distinct reasons), and while there are some interfaces (eg exclusion zones around mining operations can impact on access to fishing grounds) these are heavily outweighed by the amount of content having no bearing on other frameworks. Their targeted focus would not justify stitching them together in a “Marine Industries Act”. This would only increase complexity for individual regulated sectors.

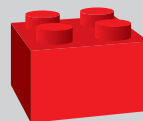
Yet, curiously, we also have a lot of separate legislation that is concerned with the *same* sector. Here, there is an opportunity to tidy up the statute book and reduce complexity in the system. Most obvious would be the integration of any relevant provisions of the Fisheries Act 1983 with the more modern Fisheries Act 1996. Indeed, a recent Cabinet paper proposes: ¹²⁹

to take this opportunity to repeal the Fisheries Act 1983. The Fisheries Act 1983 is the precursor to the Fisheries Act 1996 and its remaining provisions are redundant.

While there are good reasons to keep Te Tiriti settlement legislation for fisheries and aquaculture separate from broader sectoral legislation,¹³⁰

consideration could still be given to integrating some elements. Again, much might depend on who the primary audience or user of the legislation is seen to be (eg mana whenua or the regulated fishing community).

When it comes to mining, it would make a great deal of sense to combine the Continental Shelf Act with an expanded¹³¹ Crown Minerals Act, given that almost all of the former (concerned with mining beyond the territorial sea) is designed to be implemented through the machinery of the latter anyway. The few provisions that are not targeted at oil and gas exploration could be integrated into other frameworks.¹³²



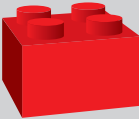
Some legislation within a sectoral layer could be integrated, such as by merging the Continental Shelf Act with the Crown Minerals Act or the Fisheries Act 1996 with the largely redundant Fisheries Act 1983.

It would also not seem beyond the pale for legislation concerning submarine cables and pipelines to be subsumed within a statute like the Maritime Transport Act, given the threat it is managing is largely from ships (eg anchoring and trawling). And several standalone acts concerned primarily with shipping and already administered by Maritime New Zealand, such as the Maritime Security Act and the now largely skeletal Shipping Act, might be candidates for inclusion in the broader Maritime Transport Act.

There is also the potential to provide greater sectoral integration across the transport system by combining *maritime* transport legislation with *land* transport statutes (like the Land Transport Act and Land Transport Management Act). Some things are similar (eg the provision of infrastructure by public authorities, and rules around safety such as speed limits and closure of transport routes). Moreover, we do not make the same distinction between other sectors; we don’t have a separate *Marine* Crown Minerals Act.¹³³ Combining legislation could provide more integrated management of how freight and people are moved around the country.

However, there are important differences too. For instance, the complexity of transport infrastructure funding on land is greater than at sea (where the public purse needs to pay for things like wharves, lighthouses and buoys, and not roads and railways). International legal requirements, which are extensive for shipping, are non-existent on land. And separation of operational institutions (Maritime New Zealand and the New Zealand Transport Agency) reflects the workability of a hard boundary between land and sea, where completely different forms of transport are used. Broader strategic connections within the transport system are managed not at by these operational institutions but within an integrated Ministry of Transport.

Statutes created through an “administrative” lens could also be rationalised. For example, would it not be possible to establish and frame the functions of the EPA in the Environment Act alongside those of the Ministry for the Environment and Parliamentary Commissioner for the Environment? Or for the Territorial Sea, Contiguous Zone and Exclusive Economic Zone Act to be subsumed within another, like the MACA Act, that deals with ownership and jurisdiction in the marine space? Such reforms might be a “nice to have” rather than a driver for reform.



Maritime transport legislation could be integrated into a single Maritime Transport Act. Greater integration between terrestrial and maritime transport legislation might also be possible.

Boundaries arguably matter much more when it comes to how different domain based and outcomes-based statutes are split. For instance, outcome-based acts like the RMA and EEZ Act could be divided in fundamentally different ways in a future system (see Figure 11.11).

One option would be simply to combine them. This would recognise that the 12 nautical mile line between the frameworks is arbitrary when it comes to the environmental focus of the statutes, that cross-boundary management adds complexity, and that the division can create perverse incentives for the location of potentially harmful activities.¹³⁴ Separate statutes doing the same basic things on each side of an artificial line may threaten effective ecosystem-based management. And it is not clear that the statutes need to have fundamentally different purposes and principles (including relating to te Tiriti o Waitangi) when they manage activities that might only be inches apart. Or whether they need a completely different approach to mandatory tools (eg a compulsory NZCPS versus a policy document void in the EEZ).

This would not necessarily require institutional responsibilities to be reconsidered, (eg the roles of the EPA and regional councils) or for the full extent of RMA tools (or principles) to operate in the EEZ. In particular, the law would need to be sensitive to the different nature of sovereign rights and international freedoms beyond the territorial sea.¹³⁵ And there are reasons to have some distinction in the management of the EEZ; for example, it is arguably beyond the capabilities of regions to administer, it may have more of a central than regional government interest in its management, it can get by with a simpler framework due to its low density of people and fewer applications, and it has different arrangements under international law. However, these features can

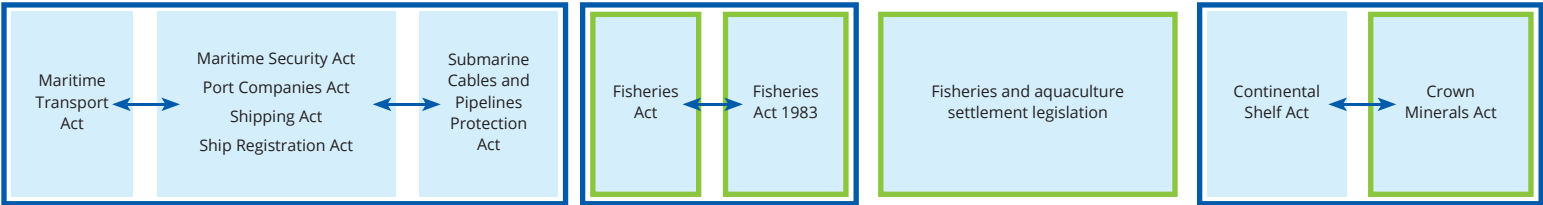


Figure 11.10: Reconsidering the boundaries between sectoral legislation

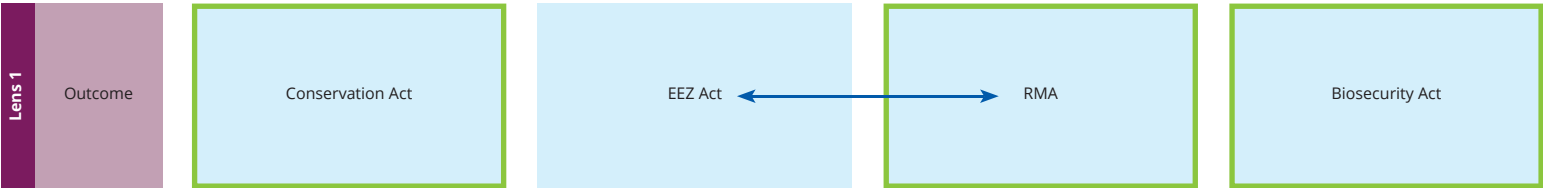


Figure 11.11: Reconsidering the boundaries between outcome-based legislation

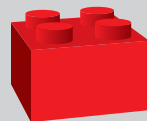
arguably be reflected in different planning, institutional and funding arrangements within a single statute, distinctions which are already made when it comes to land and sea under the RMA.



The EEZ Act could be integrated within an expanded RMA/NBA, so that the latter encompassed all the country's marine jurisdiction.

Alternatively, the RMA and EEZ Act could be split in a different way: with a land and coastal focused piece of legislation extending out to (say) three nautical miles, and an oceans focused statute applying beyond that boundary. This could reflect a more targeted focus for regional councils (the primary marine planners and regulators under the RMA) on the interface between catchments, land and the coastal environment, and an expanded role in the remainder of the coastal marine area for the EPA as a national-level arm's length regulator. In that case, the EEZ Act may need to be strengthened to have more of the rigour of the RMA (including the development of policy statements of at least the same pedigree as the NZCPS). It would also require a rebrand, given that it would no longer be about just the EEZ.

It is not immediately clear that changing marine boundaries in this way would be worthwhile, and we have heard different perspectives on this in workshops. An ecological justification for an arbitrary three nautical mile limit might be as hard to find as a 12 nautical mile limit. Such an approach could also cause difficulties with respect to the relationship between this legislation and the MACA Act, in that the latter extends to the 12 nautical mile mark. The same question about geographical boundaries arises when we consider the potential for an integrated Oceans Act further below.



The boundary between the RMA and EEZ Act could be redrawn at a line that arguably makes more ecological sense. This could make the RMA a statute concerned with the land-sea interface (eg out to around three nautical miles) and the EEZ Act about the deeper sea environment.

Another way of thinking about the split between the RMA and EEZ Act (and other outcome-based acts like the Conservation Act) is whether we should have a separate statute for environmental limits. Currently, it can be unclear whether a provision is a true limit (see Chapter 3), or even if

hard limits are required at all.¹³⁶ However, identifiable limits do exist (eg for marine dumping), even if many rely on international law as their basis.¹³⁷

The Randerson Panel has recommended that limits be set as a discrete category of tool in a new NBA,¹³⁸ which would have their own bespoke purpose (as do water conservation orders). However, a bespoke purpose begs the question whether limits should be found in separate legislation. Instead of sustainable management (or *te mana o te taiao/moana*), a separate statute focused on limit setting in the marine environment could have a more uncompromising outcome at its heart: like ensuring a safe space above ecological collapse. This could even incorporate different types of limits currently contained in other legislation, such as prohibitions on products (eg microbeads and single use plastic bags) under the Waste Minimisation Act and mortality limits under the Marine Mammals Protection Act. As mentioned in Chapter 8, other tools could be regarded as limits and put into a separate Act, such as some fisheries sustainability measures, no-take MPAs, and emergency "orders".¹³⁹ Trade offs could then be made under a separate RMA/NBA as long as they complied with those limits.

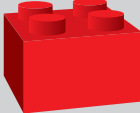
Redefining this boundary based on limits could have tangible environmental benefits, in the same way that strong protections for national parks are not left to be managed through RMA controls. On the other hand, if the RMA and EEZ were not split in this way, it may be important for a strong statutory split to remain between these acts and a more protection oriented Conservation Act.¹⁴⁰



The RMA and EEZ Act could be split into an "Environmental Limits Act" and another act concerned with making trade-offs and allocative decisions through value-based plans.

Conservation legislation is interesting in another sense. Currently, we have a split between a broad outcomes-based act (the Conservation Act) and more focused domain (species) focused legislation (the Marine Mammals Protection Act and Wildlife Act). If we are thinking about rationalising legislation *within* lenses, it might be possible to combine the latter two into a revamped Protected Species Act. That might break down the arbitrary distinction between the protection of different species in the marine area, and rationalise potentially overlapping tools like marine mammal sanctuaries (which have been used in the marine area) and wildlife sanctuaries (which have not). That said, the Wildlife Act is currently very broad – it applies to introduced species that are

not protected in the more modern “conservation” sense of the word. If it were to be combined with the Marine Mammals Protection Act careful thought would need to be given as to whether management of introduced species should be carved off elsewhere, with the legislation instead being about the conservation of protected indigenous species.¹⁴¹



The Wildlife Act and the Marine Mammals Protection Act could be combined.

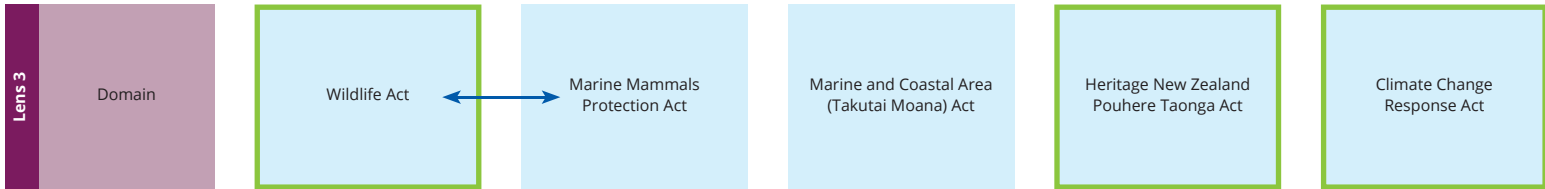


Figure 11.12: Reconsidering the boundaries between domain-based conservation legislation

Raewyn Peart



Variable oyster catchers, Thames

Integration across different lenses

As well as reimagining the boundaries between different outcome-based statutes, we could consider if statutes created through other lenses could be integrated into them. Earlier, we mentioned the possibility of completely merging the sectoral Fisheries Act into the RMA/EEZ Act. That might not be possible if the purposes of those acts remained misaligned, which may be for good reason. Fisheries are managed for quite different (or additional) purposes than broader ecosystems.

There is also a question as to which framework is most appropriate

for addressing the biosecurity risks of the shipping sector. Although regulations made under the Biosecurity Act by the Ministry for Primary Industries are currently used to address things like biofouling (eg *the Craft Risk Management Standard: Biofouling on Vessels Arriving to New Zealand*), that could instead be addressed under the Maritime Transport Act. It may be more of an institutional design question, however, in that some things might be better done within legislation administered by the more technically capable entity.

A more compelling case might be made for greater integration of domain-based, tool-based and place-based conservation legislation (see Figure 11.13).

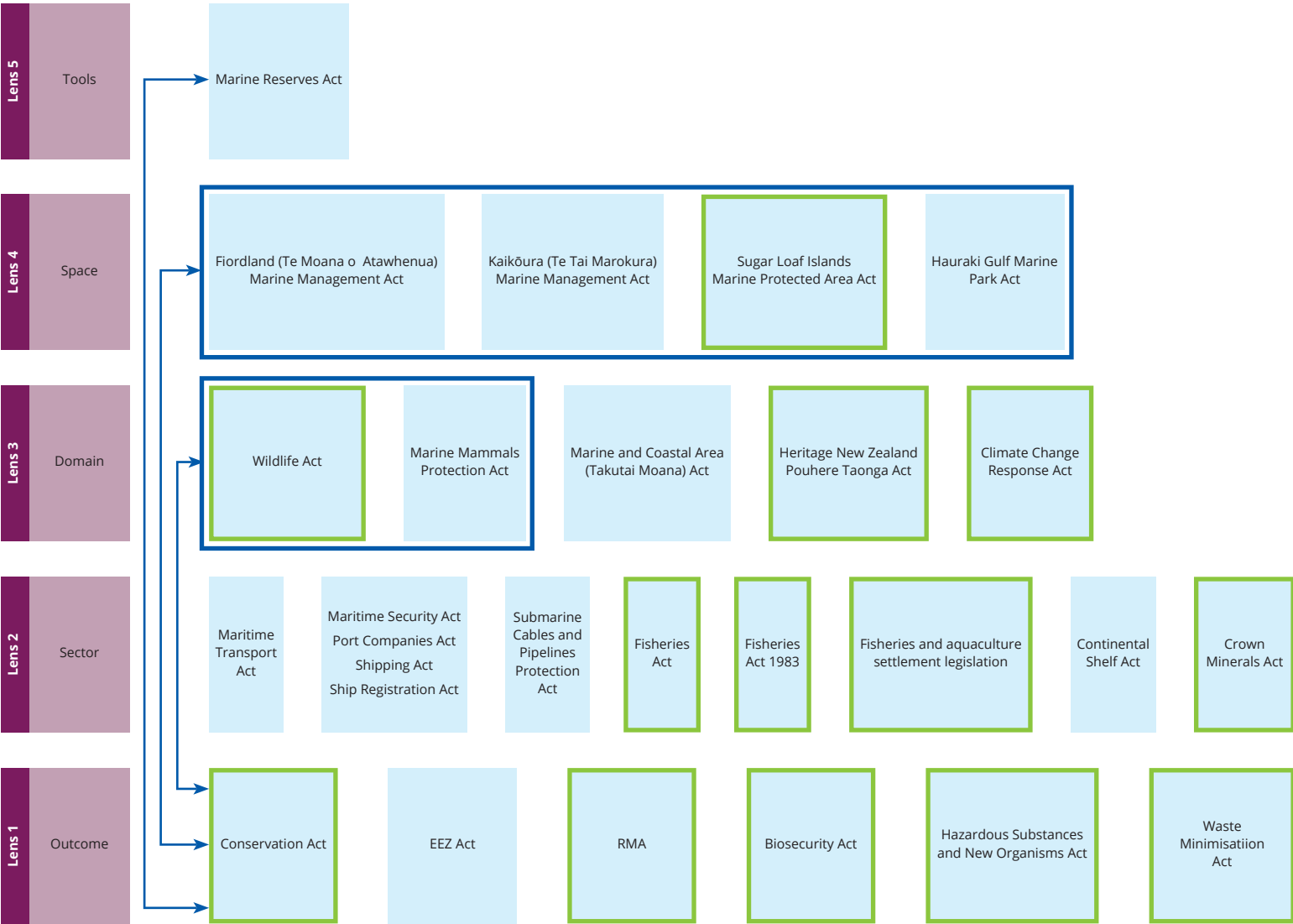


Figure 11.13: Reconsidering the boundaries between domain-based, tool-based and place-based conservation legislation

While the Conservation Act performs a “connecting” role across a galaxy of conservation legislation (not least by coordinating the roles of the Department of Conservation, conservation boards and the Conservation Authority, and applying a single *te Tiriti* clause), one can ponder whether all this should be shifted into a revamped Conservation Act itself. This would recognise the importance of managing both species and protected areas in an integrated way across the land-sea boundary, across which marine mammals, seabirds and other species travel. It would give a more integrated opportunity to consider coastal reserves and other conservation areas in parallel with the creation of inshore MPAs, creating better connectivity across ecosystems (eg feeding and nesting sites).

In the oceans,¹⁴² this would mean moving the Marine Reserves Act, Marine Mammals Protection Act and Wildlife Act into a broader outcomes-based statute concerned with the protection and enhancement of species and places. It would mirror the Department of Conservation's institutional integration with commensurate legislative integration. That could also include a more nuanced range of protected area tools, instead of creating a standalone MPA Act.¹⁴³

A spotlight on an MPA Act

The statutory home for MPAs is an interesting design choice. Although the narrative internationally is generally that the primary purpose of a “proper” MPA is biodiversity related (see Chapter 9), the discourse in Aotearoa New Zealand is sometimes less emphatic on that point. It raises the question: should all spatial protections be located in an MPA Act (including ones that essentially perform an allocative role, like recreational fishing parks or other areas that exclude commercial fishing), or should MPAs be split across different acts with more targeted purposes?

Arguably, the stronger connection needs to be made between spatial and non-spatial tools having the primary purpose of biodiversity protection (eg marine reserves and population management plans) than between spatial tools having different aims (eg marine reserves and *taiāpure*). That might suggest a “gap filling” and tool-based statute like an MPA Act should be dismissed in favour of finding a home for more effective spatial tools across legislation with more targeted normative foundations. Biodiversity focused tools – like “type 1” MPAs, but possibly others as well¹⁴⁴ – could be found in conservation legislation. Others could be distributed elsewhere, including in the RMA. Synergies between those spatial tools could then be achieved through institutional cooperation or a marine spatial planning process.

On the other hand, a bespoke MPA Act might provide a broader toolkit to achieve conservation goals even if some tools have other purposes. Including them elsewhere might put such tools beyond the “reach” of the Department of Conservation, weakening some of the nuance and synergies that might otherwise be possible in conservation planning. For example, the Department could usefully have a role in designing layers of controls emanating outwards from a marine reserve (eg an *ahu moana* that provides a protective cloak around it or a recreational fishing zone that reduces pressures on it and provides for an enhanced fishing or tourism experience), or input into decisions about where to lay cables in light of both their risks (seabed disturbance) and benefits (fishing and mining exclusion) for marine species. An MPA Act might also be better positioned to provide protected area tools that span both land and sea (especially for offshore islands).

Raewyn Peart



Te Awaatu Channel (The Gut) marine reserve

Unlike the sectoral boundary between the RMA and Fisheries Act, there is no real appreciable (or legitimate) difference in outcomes sought across conservation laws; a single “Protected Species and Areas Act” would break down arbitrary distinctions in purposes and reduce confusion as to which interventions should be used in which circumstances. It would provide a toolkit rather than just an assortment of tools. We have previously touched on what integrated conservation law could look like in our resource management reform project,¹⁴⁵ and are exploring that (among other options) in our current conservation law reform work.

Another possibility might be to merge place-based statutes (eg the Hauraki Gulf Marine Park Act, the Fiordland (Te Moana o Atawhenua) Marine Management Act, legislation for the Sugar Loaf Islands, and the Kaikōura (Te Tai o Marokura) Marine Management Act) into the Conservation Act or even a separate MPA Act. However, aspects of these statutes may be more difficult to integrate than others, as they contain elements that go well beyond just the creation of bespoke protected areas (eg the creation of the Hauraki Gulf Forum and the Fiordland Marine Guardians). Alternatively, they could be housed under the umbrella of a more general piece of legislation, which could provide a framework for place-based management, to be implemented through subsidiary regulation.

Another option would be to continue the current approach of creating new layers of place-based legislation, recognising that there is benefit in tailoring a cross-cutting package of measures to the needs of particular parts of the marine area (or across land and sea). For example, bespoke legislation is envisaged to implement the government’s response to the Sea Change Tai Timu Tai Pari initiative, and that could potentially be replicated elsewhere. This approach could have value as the Crown’s relationship with Māori continues to evolve (including to implement elements of settlements), recognising that tikanga differs across different rohe moana.

Some may also argue that bespoke statutes are desirable to reflect the unique circumstances of a place. But they do serve to further complicate an already complex system, as links generally need to be made with a number of other statutes. This can be seen in the case of the proposed Rangitāhua/Kermadec Ocean Sanctuary (see spotlight in Chapter 7). Instead of having its own standalone toolkit, the proposed legislation would amend and utilise the machinery five other pieces of legislation (the Biosecurity Act, Conservation Act, EEZ Act, Environmental Protection Authority Act and Fisheries Act).

The current system has many “conservation” statutes outside the Conservation Act, including ones that apply to the marine space. Some are domain-based (like the Wildlife Act and Marine Mammals Protection Act), others are place-based (eg the Sugar Loaf Islands Marine Protected Area Act) and others are tool-based (eg the Marine Reserves Act).



Marine conservation statutes, along with ones that include land and new MPA legislation, could be integrated into a new Protected Areas and Species Act that spans land and sea.



Raewyn Peart

Tiritiri Matangi



Port Nelson

Adding a new lens: Creating a new integrative piece of legislation

Instead of changing existing statutory boundaries, we could instead add an *additional* lens. This would coordinate all the others. It would be conceptually similar to some place-based legislation, which seeks to coordinate the operation of other frameworks in a particular spatial setting,¹⁴⁶ but could be applied at a much wider scale across all of the moana. In this way, it would not be a “spatial” lens.

This integrative “Oceans Act” (see Figure 11.15) would, essentially, be a new legislative framework that sits above others. It would ensure that better connections were made between multiple “operational” legal frameworks (eg for resource management, fisheries, minerals and so forth). This would not involve extensive legislative redesign (although it would not preclude other statutes from being reshuffled in ways outlined earlier), because it would form an additional layer.

This statute could contain a broad purpose for the whole oceans management system, provide the machinery for developing and changing marine spatial plans and an oceans policy, and establish formal links to other statutory frameworks through which the common purpose would be achieved. This could be through requiring other acts to, for example, “give effect” to it, be “consistent” with it, or have some other relationship with it. This is similar to the approach taken in Canada (see spotlight).

A spotlight on Canadian oceans legislation

Management of Canada’s marine area is shared between federal and provincial governments with shipping, commercial fisheries, and oil and gas exploitation in offshore areas managed at a federal level. Canada was the first country in the world to adopt comprehensive legislation for oceans management. The Oceans Act 1996 declared Canada’s EEZ and put in place a framework for more strategic and integrated management of the country’s oceans. Unlike the United Kingdom legislation, which brought together various oceans-related functions under one piece of legislation and management authority (see further below), the Canada’s Oceans Act overlaid an oceans regime across existing regimes which remained intact, leaving fishing, marine protection and shipping under their own legislation.

As described in Chapter 10 (with respect to oceans policy), the Canadian approach (an additional layer of legislation) has had implementation troubles because it has struggled to meaningfully integrate the many other statutory silos (and supporting institutions) that continue to operate separately. This could be a problem if a similar overlay were applied in Aotearoa New Zealand.

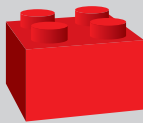
This type of Oceans Act could be a standalone piece of legislation. But, as with all aspects of the oceans management system, policy makers need to grapple with the links between land and sea. Thus an alternative would be for an overarching piece of legislation to cover, not just marine matters, but the broader *resource management* system encompassing both land and sea. It is particularly interesting to consider the possibility of piggybacking on the Randerson Panel’s proposed new legislation for spatial planning (the Strategic Planning Act) to progress marine spatial planning. We explore this in more depth in Appendix 3, but have summarised the key positive and negative elements of such an approach in Figure 11.14.

Benefits	Drawbacks
Existing reform initiative which provides the opportunity to progress marine spatial planning (even if with limitations). It is least disruptive (in that it requires minimal amendment to other frameworks)	Does not extend to EEZ
Integrates spatial planning for land and the sea	Does not apply to key marine-related legislation such as Fisheries Act, Marine Reserves Act, Wildlife Act, Marine Mammals Protection Act, Biosecurity Act
Helps to integrate planning with financial provision for marine management and restoration (through application of the Strategic Planning Act to the Local Government Act)	May embed a terrestrial approach to marine spatial planning (where integration or coordination of activities is prioritised) and downplay ecosystem-based management as the underpinning goal
Provides for iwi to be around the table when formulating the plan	Does not provide for stakeholder-led collaborative plan making
Provides for central, regional and local government to plan together (with iwi) for the marine area in an integrated manner	Does not provide for a regulatory component of marine spatial plans, so could duplicate other processes
Proposed national priorities statement provides a means of setting out national priorities for the marine space and marine spatial planning	A national priorities statement might not be broad enough

Figure 11.14: Some benefits and drawbacks of progressing marine spatial planning under the proposed Strategic Planning Act

Overall, the Randerson Panel proposals for the Strategic Planning Act may not adequately provide for integrated marine spatial planning for a number of reasons. Most notably, the scope of the proposed Act excludes most of the country's marine area (the EEZ) and legislation applying to the marine domain. The scope of the Strategic Planning Act *could* be expanded so that it had legal influence over other marine-related legislation, such as the EEZ Act and Fisheries Act. However, that would create further complexity in a system arguably requiring simplification and rationalisation. It would also raise issues over the direction of influence. For example, should fisheries decisions influence a spatial plan? Or vice versa?

Moreover, the purpose of spatial planning on land and at sea is arguably quite different, as is the approach towards planning for these two areas. Marine spatial planning is more firmly rooted in the concept of ecosystems-based management, whereas terrestrial spatial planning is (at least partly) driven by the need to coordinate land use and public infrastructure funding and supply. That calls into question the appropriateness of undertaking spatial planning for land and sea under the same legislative framework (although dual purposes and processes could be provided for). This is why many countries have included provision for marine spatial planning in oceans-related legislation (such as Massachusetts, Canada, Victoria, Denmark, the United Kingdom and Scotland).¹⁴⁷



Marine spatial planning could be provided for under the proposed Strategic Planning Act, or an umbrella Marine Spatial Planning Act (which could be called an Oceans Act) could be created.



Marsden Cove, Whangarei

Craig Potton

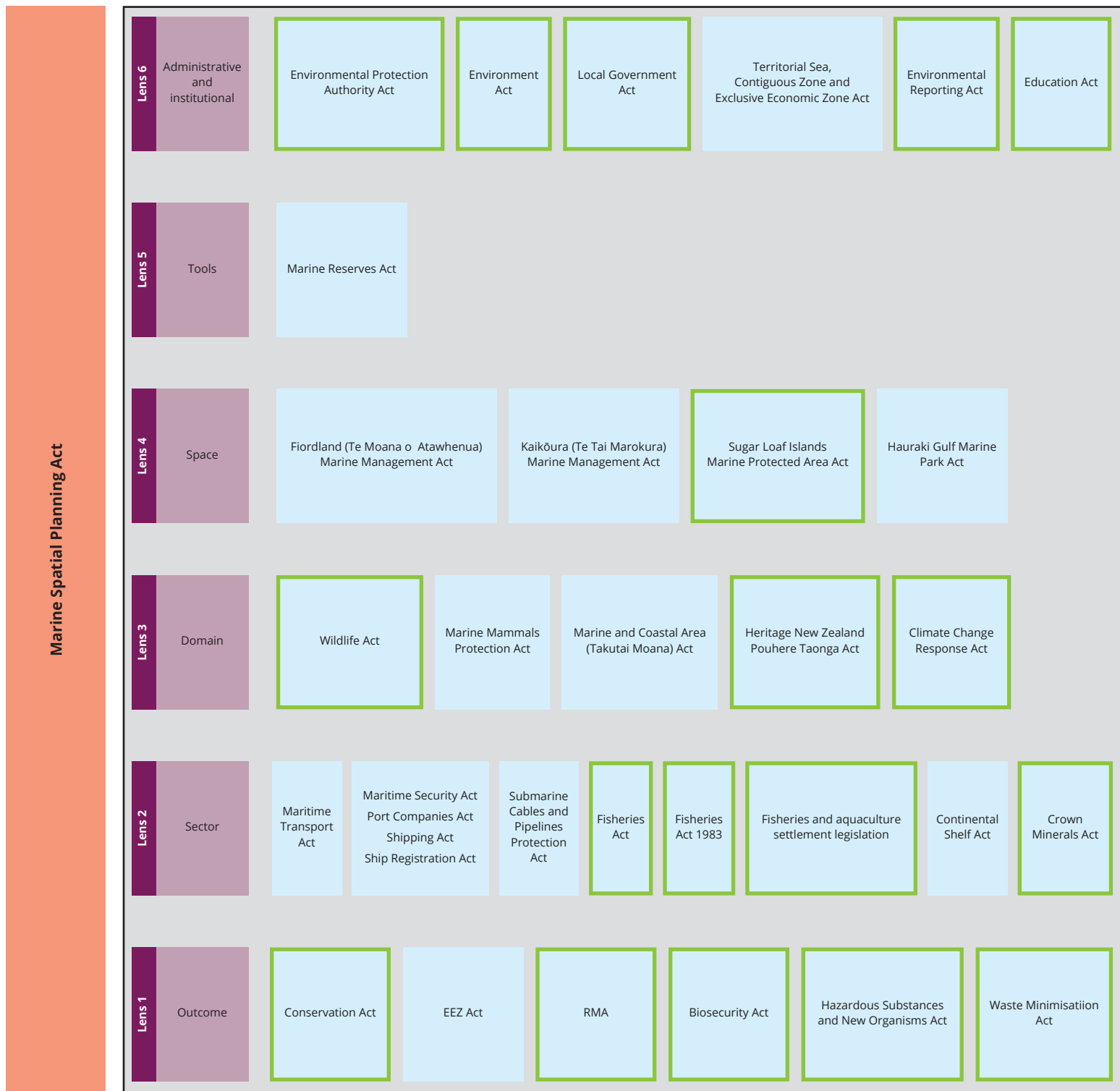


Figure 11.15: An umbrella Marine Spatial Planning Act (or Oceans Act)

Deeper reform options: Changing the order of lenses

The most significant change, from a legislative design perspective, would be if a completely different sequence of lenses was used. Because most of the system's content is found in its primary lens – currently outcome-based acts like the RMA, EEZ Act, Conservation Act and Biosecurity Act – what that primary lens should be is the most important thing to consider.

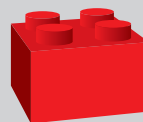
We could consider changing the primary lens to a sectoral one, which would result in the RMA, EEZ Act, Biosecurity Act and other outcome-based legislation being split up on a sectoral basis. The environmental impacts of mining, fishing, shipping, aquaculture, energy, tourism and other activities would be managed under targeted statutes. This would be more integrated in terms of the specific sector involved. For example, it would combine the currently fragmented frameworks under which marine mining is conducted (mining operations require consents and permits under the RMA/EEZ Act and Crown Minerals Act), under which fishing can be controlled (under the Fisheries Act, RMA, Marine Mammals Protection Act and Marine Reserves Act) and under which shipping is regulated (the Maritime Transport Act, the RMA and the Biosecurity Act).

However, it would be fragmented from the perspective that arguably matters much more – an ecosystem one. It would be very difficult to grapple with the cumulative impacts of multiple sectors on the environment if they had separate legal frameworks and decision-makers. It would be even more challenging to align the range of spatial tools needed to establish marine reserves or other protected areas.

Instead, domain-based legislation could be used as a primary lens. At its broadest, this could mean one statute for the “marine” domain (see the discussion of the Oceans Act later in this chapter). However, it could also mean more granular domains are the focus of statutes. For example, we could have a Marine Space Act, a Marine Water Quality Act and a Marine Species Act. But, similar to using a sectoral primary lens, this would make it difficult to address cumulative impacts that occur across these domains.

A spatial lens could even be applied first. Different legislation could, for example, apply to different marine biogeographical regions, with marine activities able to be managed quite differently within each. This is likely to run into serious downsides (not least considerable duplication and difficulties managing shipping and migratory species), but it would provide an interest starting point if ecosystems-based management, localism or jurisdictions based on tribal boundaries were to be embraced more.

While all of these are options, continuing to use outcomes (acts like the RMA) as a primary lens has benefits. For one, it makes it less likely that new sectors or technologies are left in total legal limbo while new laws are created to deal with them. For example, marine carbon capture and storage laws in some Australian jurisdictions have had to piggyback on legislation designed to manage oil and gas activities, despite fundamental differences in the activities (not least their conflicting purposes).¹⁴⁸ Novel uses of the marine environment seem set to expand, and we do not want to be left having to create new legislation for offshore energy, deep sea mining or offshore aquaculture in a reactive way.



The legislative arrangements in a future system could be fundamentally reimagined by changing the primary lens through which statutes are split up. This could be shifted to a sectoral or spatial lens.

An integrated Oceans Act

A more radical option would be not to split up our marine legislation at all. This could result in a single Oceans Act. From the perspective of the broader resource management system, this could be seen as a “spatial” or “domain” based statute (ie one applying only to the oceans).

Like the umbrella Oceans Act/Marine Spatial Planning Act described earlier, a more integrated Oceans Act could also include new tools like marine spatial planning and an oceans strategy/policy. But it would also incorporate the “machinery” from other Acts. This would see much more extensive legislative integration and the dismantling of other acts, not just the creation of another layer over the top.

There is no single conception of what this “Oceans Act” would look like. It is, essentially, a general label to describe a system that is more integrated in a legislative sense than what we have now. It could, for example, see the integration of parts of the RMA (eg management of the coastal marine area beyond, say, a three nautical mile limit) with the EEZ Act, and nothing else. That Oceans Act would essentially be a beefed up EEZ Act that applied closer to shore. Boundaries could be drawn differently, including through giving an Oceans Act jurisdiction over the coastal marine area on the seaward side of mean high water springs.¹⁴⁹

It could involve even more extensive integration, not just spatially but also for sectors and domains, bringing together the RMA (to the extent it applies to the coastal marine area), the EEZ Act, and one or more of the

Fisheries Act, the Marine Reserves Act, the Marine Mammals Protection Act, the Maritime Transport Act, and the marine provisions of the Wildlife Act (seabirds and marine species). It could even subsume the MACA Act, more tightly integrating that legislation with others that it is intended to influence (eg the RMA and conservation legislation). At its most extreme (and at the risk of becoming longer than something like the Income Tax Act), it could incorporate marine legislation beyond just that concerned with resource management, such as the Shipping Act and Maritime Security Act. A more integrated Act has been created in the United Kingdom (see spotlight).

A spotlight on oceans legislation in the United Kingdom

The United Kingdom's curiously named Marine and Coastal Access Act 2009 does much more than what its title suggests. It creates an integrated system for marine planning, marine licensing and the establishment of marine conservation zones. The Act's geographical ambit includes both the territorial sea and EEZ. In the Aotearoa New Zealand context, this is similar to combining the marine parts of the RMA, the EEZ Act, the Fisheries Act and the Marine Reserves Act. One might call it an integrated oceans statute.

Arguably its most significant feature is that it treats protected areas as an integral part of the system, around which other decisions of resource management (including fisheries) are to be made. The Act was passed with cross party support. Unusually, it does not set out a purpose for marine management, but the objective of "sustainable development" appears within various sections.

The Act provides for the promulgation of a "marine policy statement" to state general policies "for contributing to the achievement of sustainable development in the UK marine area".¹⁵⁰ In other words, it provides for a legislated concept of an oceans policy, and a legal framework for marine spatial planning as discussed in Chapter 10.

Marine plans and policy statements apply to all activities in the marine area and public authorities making consenting or enforcement decisions must do so in accordance with these documents "unless relevant considerations indicate otherwise".¹⁵¹ An exception to this requirement applies to decisions taken under the Planning Act 2008 where the consent authority must

only "have regard to" the marine policy documents.¹⁵² This includes nationally significant infrastructure projects such as offshore energy generation.

Under the Act, government is required to designate "marine conservation zones". These areas, in combination with marine sites established under the Habitats and Birds Directives, are to form a network of marine protected areas which achieve objectives set out in the legislation. Within two months of the passage of the legislation, the Minister is required to prepare a statement setting out how the Ministry intends to achieve this obligation, and he or she must periodically report on progress to achieve it (in 2012 and then every two years).¹⁵³ This is quite different to the approach we have in Aotearoa New Zealand, where marine reserves are optional and regarded as a tool to be used when considered desirable. However, it is more in line with the requirements proposed by the Randerson Panel to identify and map important areas under the proposed NBA.

The Marine and Coastal Access Act also created an integrated licensing system for certain marine activities including construction, dredging, removal or deposit of substances and scuttling of vessels. The licensing process is undertaken by the Marine Management Organisation and marine licences cover the entire life of the project to enable redundant structures to be removed.¹⁵⁴ Significantly, the Act also sets out a management system for inshore fisheries.¹⁵⁵ Overall, this example shows that a more integrated framework for oceans that incorporates resource management, protected areas and fisheries is possible. Whether it is desirable in the context of Aotearoa New Zealand remains debatable.



There are various options for what a more integrated Oceans Act could encompass, ranging from the simple integration of the marine parts of the RMA and EEZ Act, through to combining the marine components of conservation legislation, the Fisheries Act, the Biosecurity Act, the Maritime Transport Act and potentially others.

In Aotearoa New Zealand, the core features of an Oceans Act could include those set out in Figure 11.16.

Overarching purpose and principles	• To provide a consistent management approach across the oceans regime • Would need to include a range of principles (see Chapter 7) including those relating to te Tiriti (and a separate te Tiriti clause)
Development of a national oceans policy and national oceans plan	• To be overseen by the Minister of Oceans and co-developed by Ministerial-appointees and iwi – perhaps through the establishment of an Oceans Commission¹⁵⁶ • Could be a mandatory requirement • Would need a monitoring and review requirement, linked to environmental reporting • Could also be provision for local oceans policies, although these could be folded into marine spatial plans (which would operate at a more local/regional scale)
Establishment of an Oceans Agency ¹⁵⁷	• Could have a statutory basis with a clear purpose and functions (like the Department of Conservation in the Conservation Act) to ensure continuity • Could be at arm's length from government or part of a government agency (each option has advantages and disadvantages; for example, the Australian Oceans Agency was quite separate and arguably became too disconnected from government; but Ministries/departments can become overly subject to Ministerial control)
Establish an independent oceans watchdog/ governance entity ¹⁵⁸	• Could be the Parliamentary Commissioner for the Environment with an expanded role, an Oceans Commission, or similar • Would recognise that the public are not as engaged in matters in the sea as those on land, particularly when far out at sea, and there therefore needs to be a body to represent the public interest in healthy oceans • Could provide an institutional vehicle – perhaps at a national level – for iwi involvement in oceans governance • Could be constituted as a national oceans co-governance body with iwi • Could have a strong role in the development of national policy and planning documents
Purpose and framework for marine spatial planning	We describe this in Chapter 10
Purpose and framework for iwi/hapū marine management tools and approaches	Could include modernised indigenous spatial management tools based on mātaítai, taiāpure and rāhui and develop emerging concepts such as Ahu Moana

Framework for local marine management arrangements	To incorporate the Hauraki Gulf, Kaikōura and Fiordland legislation and provide for future local/regional collaborative models to be developed Could make specific provision for co-governance arrangements with iwi/hapū
Purpose and framework for species protection	If included in the Act eg marine mammals, seabirds, threatened species
Establishment of marine regulations	Could cover marine pollution, shipping, vessel licencing, fishing activities (including setting the TAC and TACC) Would need different types of regulations tailored to different activities and functions
Establish environmental consenting regime for marine activities	Would apply to all activities in the marine area (including fishing and shipping) unless expressly excluded Would be undertaken within the framework of the national oceans policy and relevant marine spatial plan (and potentially a zoning plan similar to a regional coastal plan)
Establish marine biosecurity regime	Would need to include shipping regulations on ballast water, hull fouling, movement of vessels around the country as well as regular biosecurity monitoring, incursion response plans and pathway management plans
Monitoring and reporting	Would need a mandatory requirement for regular monitoring and reporting
Compliance and enforcement	Would need to provide for a graduated range of enforcement tools and a rigorous penalty regime

Figure 11.16: Potential elements of an integrated Oceans Act

Raewyn Peart



Akaroa harbour

Irrespective of what it included, an integrated Oceans Act would have some benefits, including that it:

- Creates an integrated legislative framework within which interactions between different activities (and their effects) could be better addressed.
- May be more likely to remain coherent and durable for longer; there is a risk that amending statutes individually, as silos, can lead to them growing apart and forming less of a coherent whole over time.¹⁵⁹
- Creates a common legislative purpose (if that were possible with the variety of measures contained in it).
- Enables the legislation to be targeted to the challenges of managing the marine area.
- Enables marine spatial planning to be directly implemented through regulatory and funding mechanisms (including the close alignment of non-regulatory measures like restoration projects and citizen science initiatives).
- A dedicated Oceans Agency could develop a critical mass of expertise in oceans management and help ensure a dedicated focus on marine issues (a question of institutional design we are continuing to give thought to).
- Could provide a more generalised framework for iwi and stakeholder involvement in regional and local marine management, thereby avoiding a proliferation of local Acts.

Integrating existing marine legislation into an Oceans Act may have a number of benefits including enabling the legislation to be specifically targeted at the challenges faced when managing the marine area.

Another interesting possibility is that an Oceans Act could provide a more considered and consistent approach to allocative decisions across different resources. At the moment (other than through the framing of the Tiriti o Waitangi)¹⁶⁰ there is no real coherent framework for thinking about how or why we allocate resource rights (to fish, minerals, coastal space and so forth) in any principled way.¹⁶¹

This would not necessarily mean that we would override existing rights – such as through an overhaul of the QMS – or that we would have the same system for allocating different resources that have different physical and ownership features.¹⁶² But it would provide the chance to consider some general, overarching principles for what a fair and efficient distribution of non-private resources in the oceans looks like (see Chapter 8).



An integrated Oceans Act could provide a set of common, high-level principles for allocating rights to marine resources.

However, a highly integrated act would have downsides too. For example:

- It would involve extensive legislative change, and could be quite disruptive and take some years to bed in.
- Wherever the boundaries of the marine area to be managed are placed (ie at mean high water springs, or three nautical miles from land) there would be a difficult boundary to address (as land based activities have significant impacts on the marine area and the marine area itself is very fluid and interconnected).¹⁶³
- The tools deployed under the various pieces of legislation can be quite different (eg resource consenting, fisheries ITQ, maritime safety, protected areas), begging the question as to how much integration would actually be achieved other than stitching together different frameworks.
- The legislation could become quite complex, long and user-unfriendly, especially if it were to subsume legislation like the Maritime Transport Act.
- No existing agency has the skill sets required to manage all these areas so would require the development of a new agency from parts of the old ones (which could create the difficulty of melding very different cultures – a problem the Department of Conservation encountered when it was first established).
- It would potentially make it easier to defund marine management – through reducing budget allocations to a dedicated Oceans Agency (as happened with the Department of Conservation).

There are also questions about whether a common purpose for all aspects of oceans management is realistically possible, and therefore whether an integrated framework could ever create normative alignment. For example, we impose controls over both blue cod and dolphins, but the purpose for doing so is very different (one to eat, one for its intrinsic value). It is equally possible to see a *hierarchy* of purposes (eg that harvesting fish must not harm dolphins), which does not mean everything needs to be in one Act.¹⁶⁴

In fact, there is a strong case that an Act needs to be reasonably clear and coherent in its purpose – and therefore quite focused – so that decision-makers (including the courts) and the public know what is expected of them under it. For example, the breadth of the RMA's purpose meant that, for much of its history, it was interpreted as requiring balance rather than environmental limits.³² This could be particularly problematic if a framework that engaged in balancing the benefits and costs of activities under a general purpose was also responsible for the creation and defence of place-based protected areas (as opposed to having more focused MPA legislation). However, the United Kingdom experience and the Maritime Transport Act suggest that a lack of clear purpose *may* not be a fatal problem, and integration has benefits.

In summary, extensive integration risks creating a lack of focus/mandate/clear purpose, objective overload and paralysis, with tensions being played out behind closed doors. Contests and conflict – checks and balances – can be positive because issues become more visible. That is a benefit of (for example) having a Conservation Act conferring a mandate on the Department of Conservation that is different from that of other departments. Such concerns have been echoed elsewhere, too:¹⁶⁵

although fragmentation and duplication clearly present challenges for regulators seeking integrated or ecosystem-focused outcomes, it is characteristic of responses to 'wicked problems', which are 'complex, multifaceted, and resistant to resolution because they are ever-changing and because our knowledge about the problem is incomplete or contradictory'. The study revealed that attempts to replace marine regulatory complexity with 'one-stop shop' approaches may have political appeal, but they are simplistic, may risk the abandonment of existing environmental or social 'wins', and have typically proved problematic in practice by failing to solidify trust and cooperation between competing interests.

Finally, integrating marine focused matters by looking at a particular *space* – the oceans – could weaken the very important links between land and

sea and between the management of cross cutting outcomes. This could be because some *threats* to be managed span this boundary (eg pollutants from catchments, biosecurity risks, climate change), or because some things we are seeking to *protect* span the boundary (eg seabirds).

The fragmentation of species protection across marine and terrestrial focused legislation could be particularly problematic. Many species cross the marine divide with, for example, the wrybill breeding in braided rivers of the South Island but then migrating to northern marine areas such as the Firth of Thames and Manukau Harbour to feed during winter.¹⁶⁶ Many of our freshwater fish species are diadromous and either grow to adulthood in freshwater then breed in seawater (such as eels) or breed in freshwater, spend time at sea, and then grow to adulthood in freshwater (such as galaxiids).¹⁶⁷ Seabirds breed on land, and so what happens at their breeding sites (such as human disturbance and predator activity) can have as much impact on their survival as what happens at sea (in terms of harvesting impacts on food supply and capture in fishing gear). This cross-over between spaces suggests that integrated conservation legislation may make more sense than integrated *oceans* legislation. We are exploring such options in our parallel project on conservation system reform.¹⁶⁸

There may be considerable downsides and risks of “over-integrating” legislation into an Oceans Act.

11.6 Legal personhood and legislative design

One broader point should be made about legislative design. In Chapter 8 we discussed human rights (eg to a healthy environment) and rights for nature as potential tools to add to the toolbox. These could be implemented through a number of different legislative settings. Not all of these would involve changing statutory boundaries, only amending the content of existing statutes. And many of these would be ones not necessarily thought of as being part of the oceans management system.

For example, rights for people or the ocean itself could be enshrined in a document with a constitutional flavour, like the New Zealand Bill of Rights Act, which could set out oceans rights that legislation must be consistent with. A similar mechanism to that Act's “justified limitations” could be used, meaning that while the ocean's rights are not absolute, there must be compelling reasons to override them. This has the advantage of not requiring complete legislative overhaul – we already have a mechanism

by which fundamental human rights are recognised. We would simply be inviting nature to share in them.

However, a disadvantage with using this mechanism, is that it does not impact on existing legislation (other than as an aid to interpretation). It is more orientated at influencing the content of future statutes, with the Attorney-General tasked with bringing attention to any provisions in bills before the House that are inconsistent with the rights and freedoms specified in the Act.¹⁶⁹ It would therefore need to be complementary to other, more targeted, change.

Alternatively, as a statute concerned with institutional arrangements, the Environment Act could be amended to create personhood for the ocean and establish the architecture around it. For example, it could create an office or department of the Parliamentary Commissioner for the Environment which investigates potential breaches of ocean's rights. Specific rights could be distributed across a wide range of other legislation, including the Property Law Act, Human Rights Act and Electoral Act.

Another mechanism could be an integrated Oceans Act, which could outline the fundamental rights and personhood of te moana. This would have the advantage (depending on how that Act was designed) of having a clear legal link to management frameworks in which tangible regulatory controls were imposed (eg setting catch limits, creating MPAs, restricting land-based pollution and land uses). But it would miss the opportunity for deploying legal personhood at a wider scale (eg for "nature" as a

whole). Rights for nature (including the ocean) could even be embedded in a written constitution for Aotearoa New Zealand, which could be a higher form of law (other legislation could be struck down on the grounds of inconsistency), or elevated in other ways (eg by being entrenched or double entrenched).

If legal personhood were to apply, not to the entire ocean but to special or significant areas (eg MPAs), it could follow a similar approach to the Whanganui River and Te Urewera. New legislation could be created for each area to declare its legal status, establish the board/body to represent it and lay out principles etc. It could also clarify how the legal person and associated legislation would interact with other processes and legislation. That would have the advantage of tailoring the characteristics of legal personhood, not just to the place (where it would have its own purpose, for example), but to the values and tikanga of mana whenua having authority over the sea in that area.



Legal personhood for te moana (or parts of it) could be provided for in a variety of statutes. One option would be for the moana to be granted personhood in an umbrella act like an Oceans Act or the Environment Act, and for its more specific rights to be conferred under more targeted legislation.



Bethells Beach, Auckland

Raewyn Peart

11.7 Concluding comments

It is not immediately clear which division of the statute book makes most sense in the marine space. Some might legitimately say that, if something is not broken, it does not need to be fixed. Others might contend that, at the very least, there is unnecessary complexity that should be tidied up given the opportunity. And rethinking some of boundaries between primary legislation in a more fundamental way might make a significant difference to outcomes. It is reasonably clear that fragmentation across the system – be it spatial, sectoral, or other – is problematic, and connections and alignment between legislative silos are often weak and require strengthening. The options presented in this chapter provide only a snapshot of what might be possible. We welcome a conversation about other ways in which boundaries could be redrawn.

Of course, fundamental legislative changes warrant caution. Aside from being expensive, time consuming and disruptive, fundamentally overhauling whole statutory frameworks risks opening up debates that can derail an entire reform process. For example, the enormity of the task ahead to resolve the hundreds of claims made under the MACA Act means there may be little appetite for interfering in that statute in a significant way. Even a highly integrated Oceans Act may leave well enough alone.¹⁷⁰

Legislative redesign is not a silver bullet. Reshuffling boundaries may address issues caused *by* legislative fragmentation (eg by making the

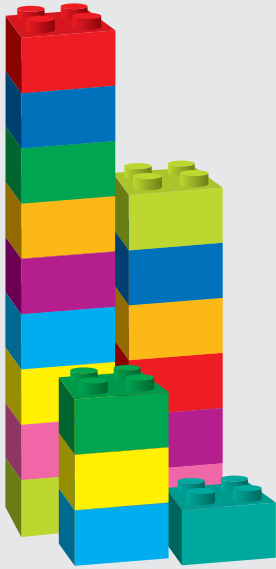
existence of gaps more obvious, or harmonising purposes and principles), but it cannot be a solution to problems that arise elsewhere and require substantive changes. It could provide a more solid platform for those things to happen, but it must go hand in hand with changes to the toolkit, or risk being an expensive act of symbolic importance only. It may also need to be complemented by a degree of institutional change, which we turn to in Chapter 12.

Finally, some might argue that it is the boundary between primary and *secondary* legislation (ie tools) that is the more important thing to address. For example, might the Fisheries Act be made more agile and less complex if some of the mechanics of the QMS were to be located in regulations rather than primary legislation? Could the RMA/NBA and Maritime Transport Act be simplified in the same kind of way? Similarly, could a new framework for marine spatial planning be relatively high level, with the detail parked for subsequent regulations? We need to be wary of legislative “overdesign” and making the system so top heavy and complex that it collapses or stagnates. On the flipside, however, there may be a case for transferring some provisions currently in policy instruments like the NZCPS,¹⁷¹ or non-statutory instruments like the Harvest Strategy Standard, into primary legislation. Here, there is a tension to be resolved between the need for stability/certainty and agility/flexibility. Critical features guiding decisions and likely to be subject to legal challenge should have a strong statutory home.

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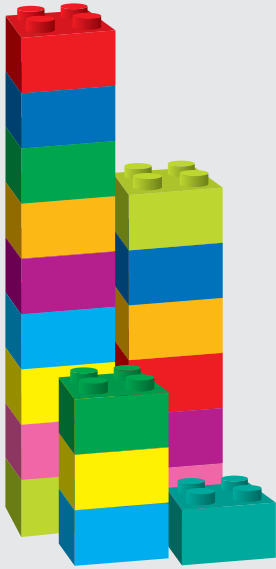


Mana Island, Wellington



Summary of options for reform: Legislative design

- The boundary between the Maritime Transport Act and EEZ Act could be refined, so that the latter includes management of discharges from ships. “Environmental” jurisdiction under the Maritime Transport Act for things like oil spills could also be moved to the RMA and EEZ Act.
- The boundary between the RMA/EEZ Act and Fisheries Act could be clarified by clearly shifting responsibility for the incidental impacts of fishing activity on the marine environment to the former. The Fisheries Act could be left as a means to allocate and manage fish stocks themselves.
- A sectoral Fisheries Act could remain as a home for the QMS and other allocative mechanisms like a TACC, but with all sustainability measures (including the TAC) being set under an expanded NBA (at a central or regional level).
- A future system could clarify the relationship between the Fisheries Act and “domain” based legislation like the Wildlife Act and Marine Mammals Protection Act. This could be done by making it clearer that tools under the latter statutes are to be used in an integrated way to achieve domain-based outcomes like the protection of threatened species, rather than relying on tools deployed under sectoral frameworks.
- The management of some fish stocks, such as those that have collapsed or breached a “limit”, could switch from the Fisheries Act to a revamped Wildlife Act.
- The scope (ie the kinds of outcome) sought by statutes like the RMA, EEZ Act and Conservation Act could be expanded to include more specific and proactive objectives for the marine environment, including those relating to a sustainable blue economy, the defence of strict environmental limits, and the allocation of resources (or the distribution of value from their use).
- Other layers of legislation could be expanded in a future system. This could see the enactment of more place-based legislation to protect particular areas, tool-based acts to create new types of MPAs, or new sectoral statutes for tourism, offshore energy, or ecological infrastructure.
- Some legislation within a sectoral layer could be integrated, such as by merging the Continental Shelf Act with the Crown Minerals Act or the Fisheries Act 1986 with the largely redundant Fisheries Act 1983.
- Maritime transport legislation could be integrated into a single Maritime Transport Act. Greater integration between terrestrial and maritime transport legislation might also be possible.
- The EEZ Act could be integrated within an expanded RMA/NBA, so that the latter encompassed all the country’s marine jurisdiction.



Summary of options for reform: Legislative design (*continued*)

- The boundary between the RMA and EEZ Act could be redrawn at a line that arguably makes more ecological sense. This could make the RMA a statute concerned with the land-sea interface (eg out to around three nautical miles) and the EEZ Act about the deeper sea environment.
- The RMA and EEZ could be split into an “Environmental Limits Act” and another act concerned with making trade-offs and allocative decisions through value-based plans.
- The Wildlife Act and the Marine Mammals Protection Act could be combined.
- Marine conservation statutes, along with ones that include land and new MPA legislation, could be integrated into a new Protected Areas and Species Act that spans land and sea.
- Marine spatial planning could be provided for under the proposed Strategic Planning Act, or an umbrella Marine Spatial Planning Act (which could be called an Oceans Act) could be created.
- The legislative arrangements in a future system could be fundamentally reimagined by changing the primary lens through which statutes are split up. This could be shifted to a sectoral or spatial lens.
- There are various options for what a more integrated Oceans Act could encompass, ranging from the simple integration of the marine parts of the RMA and EEZ Act, through to combining the marine components of conservation legislation, the Fisheries Act, the Biosecurity Act, the Maritime Transport Act and potentially others.
- An integrated Oceans Act could provide a set of common, high-level principles for allocating rights to marine resources.
- Legal personhood for te moana (or parts of it) could be provided for in a variety of statutes. One option would be for the moana as a whole to be granted personhood in an umbrella act like an Oceans Act or the Environment Act, and for its more specific rights to be conferred under more targeted legislation.



Kawau Island

Endnotes

- 1 Legislation Act 2012, s 3(e).
- 2 Others are, perhaps, less justifiable – such as the continued existence of the Fisheries Act 1983.
- 3 See Chapter 12.
- 4 Geoffrey Palmer “Law-making in New Zealand: Is there a better way?” (2014) 22 Wai L Rev 1 at 5.
- 5 For example, place-based Acts undercut general legislation, and the Fisheries Act manages marine resources and activities separately from their environment. On the constant erosion of the RMA’s coherence and carve outs from it, see Simon Berry, Helen Andrews and Jen Vella “The death of the RMA by a thousand cuts: The next two incisions” (April 2017) Resource Management Journal 3; Simon Berry and Helen Andrews “The final straw for the RMA? Some shortcomings of the Resource Legislation Amendment Bill 2015” (September 2016) Resource Management Journal 1; Martin Jenkins A “blue skies” discussion about New Zealand’s resource management system (Local Government New Zealand, December 2015) at 41.
- 6 Parliamentary Commissioner for the Environment *Setting course for a sustainable future: The management of New Zealand’s marine environment* (Office of the Parliamentary Commissioner for the Environment, Wellington, November 1999), preface.
- 7 Stephanie Behrens and Rochelle Constantine *Large Whale and Vessel Collisions in Northern New Zealand* (Report for consideration by the Scientific Committee of the International Whaling Commission, SC/60/BC9, Chile, 2008)
- 8 Raewyn Peart *Bryde’s whale voluntary protocol case study* (report prepared for the Sustainable Seas National Science Challenge, Environmental Defence Society, 2017).
- 9 Raewyn Peart *Bryde’s whale voluntary protocol case study* (report prepared for the Sustainable Seas National Science Challenge, Environmental Defence Society, 2017).
- 10 Such as the Biosecurity Act and the RMA, or the RMA and the Fisheries Act.
- 11 *Attorney-General v The Trustees of the Motiti Rohe Moana Trust* [2019] NZCA 532.
- 12 Shane Geange and others “Integrating conservation and economic objectives in MPA network planning: A case study from New Zealand” (2017) Biological Conservation 210 at 136–144, as cited in Office of the Prime Minister’s Chief Science Advisor *The Future of Commercial Fishing in Aotearoa New Zealand* (February 2021).
- 13 Bill Ballantine “Fifty years on: lessons from marine reserves in New Zealand and principles for a worldwide network” (2014) 176 Biological Conservation 297 at 300.
- 14 See for example Kendall Hutt “Okura community calls for council action on ‘sediment stressed’ marine reserve” *Stuff* (online ed, 11 July 2018); and Michael Neilson “State of the Gulf: Auckland Council report finds estuaries choking in sediment, shellfish dying” *The New Zealand Herald* (online ed, 29 June 2020).
- 15 Bill Ballantine “Fifty years on: lessons from marine reserves in New Zealand and principles for a worldwide network” (2014) 176 Biological Conservation 297 at 301.
- 16 Seachange Stakeholder Working Group *Sea Change Tai Timu Tai Pari Hauraki Gulf Marine Spatial Plan* (Hauraki Gulf Forum in partnership with others, April 2017) at 119.
- 17 The NZCPS talks about sediment, but it does not talk about the impacts of sediment on fish stocks.
- 18 Raewyn Peart *Voices from the Sea: Managing New Zealand’s fisheries* (Environmental Defence Society, Auckland, 2018).
- 19 See Jean Bell “Rangitoto channel dredging: Move to reject submissions ‘extraordinarily undemocratic’” *RNZ* (online ed, 12 June 2020).
- 20 Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation - Synthesis Report* (Environmental Defence Society, Auckland, December 2018), ch 8.
- 21 Compare Merriam Webster Online Dictionary “Coherent” (date unknown) with Legislation Act 2012, s 3(e)(i).
- 22 Complicated or uncertain boundaries with other legislation or the common law should be minimised: Legislative Design and Advisory Committee *Legislation guidelines: 2018 edition* (March 2018).
- 23 Legislation Act 2012, s 3(e).
- 24 Legislation Act 2012, s 3(e)(ii).
- 25 See generally Simon Berry, Helen Andrews and Jen Vella “The death of the RMA by a thousand cuts: The next two incisions” (April 2017) Resource Management Journal 3; Simon Berry and Helen Andrews “The final straw for the RMA? Some shortcomings of the Resource Legislation Amendment Bill 2015” (September 2016) Resource Management Journal 1; Martin Jenkins A “blue skies” discussion about New Zealand’s resource management system (Local Government New Zealand, December 2015) at 41.
- 26 See Chapter 9.
- 27 See Greg Severinsen *Reform of the Resource Management System: A model for the future* (Environmental Defence Society, Auckland, December 2019). On EEZ reform, see Raewyn Peart, Kate Mulcahy and Kelsey Serjeant *Governing our Oceans: Environmental Reform for the EEZ* (Environmental Defence Society, Auckland, 2011).
- 28 See generally Raewyn Peart *Voices from the Sea: Managing New Zealand’s Fisheries* (Environmental Defence Society, Auckland, 2018), ch 2.
- 29 See Resource Management Act 1991, s 5(2)(a).
- 30 Although jurisdiction has recently been re-established under the RMA, it is still by no means clear what can or should be done through that mechanism other than broad considerations like low-emissions urban design.
- 31 See, for example, Barry Barton, Kimberley Jane Jordan and Greg Severinsen *Carbon capture and storage: Designing the legal and regulatory framework for New Zealand* (Centre for Environmental, Energy and Resources Law, University of Waikato, 2013)
- 32 See Brian Greene *The fabric of the cosmos* (Vintage Books, New York, 2004).
- 33 Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation - Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 124.
- 34 Even if some statutes (particularly older ones) do not have a specific purpose section, they still have a long title that outlines what the point of the legislation is and why it exists.
- 35 Reinforced by the fact that the nature of the resource is different in that there are private property rights in minerals and commercial fishing. They may not be absolute property rights, but they are distinct enough from rights to other things (eg time-limited rights to take water) to warrant different treatment. A different purpose for fisheries is also driven by international law framing under UNCLOS.
- 36 For example, the Biosecurity Act is as much about protecting industries from pests as it is about protecting the environment.
- 37 Similarly, when it comes to place-based statutes for Kaikōura or Fiordland, the need for targeted legislation reflects not just limitations in the toolkit of other acts (eg a lack of nuanced MPAs) but also limitations in their purposes (the purpose of marine reserves is about scientific research, and that of the RMA is arguably about balance, not strict protection).
- 38 The same thing can be seen more obviously in the EEZ Act, which has two distinct purposes combined into one section: sustainable management and pollution prevention.
- 39 For example, the Animal Welfare Act has a distinct purpose for most “parts” in the statute.
- 40 And the very specific purpose of the Environmental Protection Authority Act – essentially, to create the EPA – has resulted in a standalone act despite two quite different entities (the Parliamentary Commissioner for the Environment and Ministry for the Environment) being created within the same one (the Environment Act).
- 41 Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation -- Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 126.
- 42 New Zealand Productivity Commission *Better urban planning: Final Report* (February 2017) at 12.
- 43 With the notable exception of the EEZ.
- 44 The Marine Mammals Protection Act is arguably less spatial than it is “domain” based, as its focus is on particular species that can traverse the land-sea divide (eg seals).
- 45 Which applies to land-based aquaculture (as distinguished from “marine” fish farms). Some species managed by the Act live in freshwater for parts of their life cycles.
- 46 Some of these area-specific statutes were created due to more general frameworks failing to establish MPAs, making it necessary to establish them on a case-by-case basis.
- 47 A “sector” being generally a type of activity that is commercial in nature. The Maritime Transport Act is concerned with more than just “shipping”; it is also concerned with recreational boating and with activities that have potential for oil spills even if not “transport” related – eg oil and gas installations.
- 48 It is not immediately clear whether the Maritime Transport Act is better defined as a sectoral framework for shipping or an institutional framework providing a home for the responsibilities of Maritime New Zealand (in a similar way that the Local Government Act is an institutionally focused framework for councils to discharge their wide-ranging responsibilities across many sectors).
- 49 For example, due to roles of dozens of regional and district councils, the Environment Court, boards of inquiry, commissioners and so forth.
- 50 From a marine species perspective, climate is not just the “atmosphere” but also the water column.
- 51 Where freshwater mixes with salt water.
- 52 Which has been one criticism of the list of environmental limits in the NBA.
- 53 Particularly when it comes to “domains” like the coastal marine environment and biodiversity.
- 54 The Local Government Rating Act can be seen as a tool-based act as well.

- Of course, the Climate Change Response Act contains other tools too, such as strategic ones like emissions reduction plans.
- And to some extent, such as aquaculture biosecurity concerns, under the Fisheries Act.
- Although it used to have provisions relating to fishing in the EEZ, so its existence is also historical.
- On the other hand, the RMA is arguably longer and *less* user-friendly because of its inclusion of content that need not necessarily be there, such as provisions continuing the existence of the Environment Court.
- Sian Elias “Righting environmental justice” (Salmon Lecture 2013, the Northern Club Auckland, 25 July 2013) at 2.
- That said, Fisheries New Zealand effectively has responsibilities under other statutes already, eg where concurrence of the Minister is required for the establishment of population management plans under conservation legislation and, even more notably, for aquaculture under the RMA.
- More accurately, its continued existence.
- Although other tools are contained in other Maritime Acts administered by Maritime New Zealand, such as legislation for submarine cables and pipelines, the Port Companies Act, the Maritime Security Act, and the Shipping Act (which is largely just a skeleton act). However, the outer boundaries of all these acts are still effectively defined by Maritime New Zealand’s role.
- Although it covers broader matters too, not just related to mining.
- Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation - Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 130.
- Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation - Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 134.
- There is a spatial distinction between RMA and EEZ Act, however.
- More specifically, *wild* fisheries.
- This applies to installations as well, not just ships, and is not about “transport” per se. However, offshore installations can still be regarded as one or more sectors that require such planning above and beyond others managed under the RMA, as they give rise to additional risks and have complex international liability rules.
- Some aquaculture-specific provisions in the RMA are arguably anomalous.
- Although marine pollution regulations have done a similar thing under the RMA, translating the London Dumping Protocol.
- Although that is done largely under the Maritime Transport Act in the EEZ.
- It remains unclear the extent to which the EEZ Act could control fishing impacts on marine habitats, in light of both its similarities and differences when compared to the RMA.
- See the spotlight on *Motiti* later in the chapter. However, in practice, this has largely been treated as a carve out.
- Assisted by Biosecurity New Zealand and Fisheries New Zealand being business units within the same Ministry.
- Although, in keeping with its place as a secondary lens, the Fisheries Act in practice has been the location of most tools for addressing impacts where it is a result of fishing – eg bycatch of protected species and the impacts of fishing on their habitats.
- Ownership on land is generally accepted as being determined by the Torrens system. It is an interesting question as to why ownership of the foreshore and seabed was not resolved in the RMA, given that customary marine title has a strong interface with planning and consenting. The answer may be that the RMA generally shies away from issues of property rights; in light of that, it will be interesting to see whether a bespoke statute will be used to address the live issue of ownership rights in freshwater.
- For example, the emissions trading scheme and archaeological authorities.
- Along with, in some cases, the flaws in the tools available under other frameworks (arguably some location-based statutes would not be necessary if MPA tools were improved). Another explanation is that these place-based statutes are there to ensure that different outcome-based, sectoral and domain-based statutes work well together in a particular place. In other words, they seek to remedy the absence of marine spatial planning in places that would particularly benefit from a more integrated or at least coordinated system.
- Indeed, if anything, the anomaly is the continuation of the Environment Court in the RMA rather than its own Act or the Environment Act. That said, whether these institutional acts could all be combined *together* is a good question.
- Although there is nothing stopping regulations under the RMA from doing that kind of thing – eg with design of petroleum wells and closure requirements.
- It is interesting as to whether it should, however.
- Much of this background sources materials referred to by Steven Edward Farnworth “Liability for Pollution Damage from Offshore Oil Spills: The CLC and Fund Conventions, the EU’s Environmental Liability Directive and their implications for New Zealand Law” (PhD Thesis (Law), University of Waikato, 2017), ch 4.
- Ministry for the Environment *Managing our oceans: A discussion document on the regulations proposed under the Exclusive Economic Zone and Continental Shelf (Environmental Effects) Bill* (ME 1090, May 2012) at 5.
- Marine Legislation Bill 2012 (58-1) Explanatory Note, at pt 2.
- Part 2 of the EEZ Act was replaced by s 11 of the Exclusive Economic Zone and Continental Shelf (Environmental Effects) Amendment Act 2013, “Duties, restrictions, and prohibitions”.
- EEZ Act, s 158A; and Maritime Transport Act 1994, s 231.
- See Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation - Synthesis Report* (Environmental Defence Society, Auckland, December 2018)
- Attorney-General v The Trustees of the Motiti Rohe Moana Trust* [2019] NZCA 532.
- At [33].
- Attorney-General v The Trustees of the Motiti Rohe Moana Trust* [2017] NZHC 1429 at [8] and [9]. See also Sally Gepp and Madeleine Wright “Marine biodiversity and taonga species: slipping through the cracks” (2017) *Resource Management Journal* 15.
- See Enric Sala and others “Protecting the global ocean for biodiversity, food and climate” (2021) 592 *Nature* 397.
- Attorney-General v The Trustees of the Motiti Rohe Moana Trust* [2019] NZCA 532 at [72].
- Marine and Coastal Area (Takutai Moana) Act 2011, s 66.
- Minerals themselves – and their presence or absence – are not *usually* part of ecosystems, so their management does not comfortably fit with the purpose of the RMA. In contrast, the presence or absence of fish are intimately connected to ecosystems, so can be regarded as a carve-out rather than an additional layer.
- This would help avoid the inconsistency which occurred on the Chatham Rise with the Chatham Rock Phosphate mining proposal, where trawling of the seabed in the area was being undertaken without any consent required, but the seabed mining proposal was required to undergo a rigorous environmental impact assessment and consenting process, despite being very similar activities with comparable effects. See Environmental Protection Authority *Decision on Marine Consent Application: Chatham Rock Phosphate Limited: to mine phosphorite nodules on the Chatham Rise* (February 2015)
- See Resource Management Amendment Act 2020, ss 2 and 35.
- That said, one issue might be that measures taken under the RMA to protect marine biodiversity in an overall sense may not always be *enough* to ensure MSY (fish stocks rely on habitats for spawning, shelter and food), so even in this model, scope may still be needed under the Fisheries Act to impose *additional* protections. There is often an assumption that action under the RMA would be more protective than under the Fisheries Act, but that is not necessarily the case; there have been fairly questionable outcomes from applying sustainable management over the past three decades (including sedimentation from land), and by no means have they all been positive for fisheries.
- That in itself is not necessarily a problem; for example, the concept of stringency under the RMA (where regional plans can impose more but not less stringent regulations than national direction for defined reasons) is generally a workable one.
- Although, this would not be true if limits were set through national level instruments, for which appeal is not available.
- The QMS and TACC, as primarily allocative tools, are also arguably more akin to tools like the ETS and justifiably found in legislation focused on the particular resource being allocated. This begs the question, however, whether more complex tools for the allocation of other marine resources (especially the occupation of coastal space) should be carved off from outcomes-based frameworks like the RMA concerned with environmental effects.
- Waitangi Tribunal *The Priority Report concerning Māui’s Dolphin* (Wai 898, 2016) at 6-7.
- Raewyn Peart *Dolphins of Aotearoa* (2013, Craig Potton Publishing, Nelson) at 13.
- Elisabeth Slooten and Stephen M Dawson “Delays in Protecting a Small Endangered Cetacean: Lessons Learned for Science and Management” (2021) 8 *Front Mar Sci* 1 at 2.
- Department of Conservation “Threats caused by people” <https://www.doc.govt.nz/nature/native-animals/marine-mammals/dolphins/maui-dolphin/threats/threats-caused-by-people/>.
- Department of Conservation and Fisheries New Zealand *Protecting Hector’s and Māui Dolphins: Consultation on proposals for an updated Threat Management Plan* (Fisheries New Zealand, Discussion Paper 2019/03, June 2019) at 32.
- Department of Conservation “Threats caused by people” <https://www.doc.govt.nz/nature/native-animals/marine-mammals/dolphins/maui-dolphin/threats/threats-caused-by-people/>.
- Department of Conservation “Threats caused by people” <https://www.doc.govt.nz/nature/native-animals/marine-mammals/dolphins/maui-dolphin/threats/threats-caused-by-people/>.
- Northern Inshore Fisheries Management Co Ltd v Minister of Fisheries* [2002] BCL 360 (HC).
- Raewyn Peart *Dolphins of Aotearoa* (2013, Craig Potton Publishing, Nelson) at 250.
- The New Zealand Federation of Commercial Fishermen v The Minister of Fisheries* [2010] BCL 197 (HC).

- At [4].
- At [5].
- See David Carter's 2012 (then Minister for Primary Industries) decision on interim set net restrictions to protect Māui dolphins; "Minister's Decision Letter" available from <https://www.mpi.govt.nz/consultations/interim-set-net-measures-to-protect-maui-dolphins/>.
- Department of Conservation "Seismic Surveys Code of Conduct" <<https://www.doc.govt.nz/our-work/seismic-surveys-code-of-conduct/>>.
- Waitangi Tribunal *The Priority Report concerning Māui's Dolphin* (Wai 898, 2016).
- At 1.
- At 16.
- Between Cape Reinga and Maunganui Bluff, it extends to four nautical miles, between Maunganui Bluff and Waiwhakaho River 12 nautical miles, seven nautical miles from the river to Hawera, and four nautical miles continuing south until Wellington.
- Department of Conservation and Fisheries New Zealand *Protecting Hector's and Māui Dolphins: Consultation on proposals for an updated Threat Management Plan* (Fisheries New Zealand, Discussion Paper 2019/03, June 2019) at 32.
- Some chemicals found in pesticides and building materials can affect Māui dolphins via coastal runoff and can impact breeding success, in some cases causing sterility: see Department of Conservation "Threats caused by people" <https://www.doc.govt.nz/nature/native-animals/marine-mammals/dolphins/maui-dolphin/threats/threats-caused-by-people/>.
- Department of Conservation "Threats caused by people" <https://www.doc.govt.nz/nature/native-animals/marine-mammals/dolphins/maui-dolphin/threats/threats-caused-by-people/>.
- Elisabeth Slooten and Stephen M Dawson "Delays in Protecting a Small Endangered Cetacean: Lessons Learned for Science and Management" (2021) 8 Front Mar Sci 1 at 7.
- Department of Conservation "Departmental Briefing: Hector's and Māui Dolphin Threat Management Plan Review: advice following public consultation" (DOCCM 6060228, 14 October 2019) available from <www.doc.govt.nz>
- Or the Wildlife Act, which could deal with bycatch of an expanded range of protected species.
- Through conservation freshwater fisheries regulations, and via permits.
- Given that customary marine holders can influence the content of conservation plans and strategies.
- And one on which policy makers have received advice; see Barry Barton, Kimberley Jane Jordan and Greg Severinsen *Carbon capture and storage: Designing the legal and regulatory framework for New Zealand* (Centre for Environmental, Energy and Resources Law, University of Waikato, 2013).
- For example, directing or influencing the movement of tourists around the country in relation to tourist infrastructure and sensitive ecological areas. Other aspects of tourism management could remain in broader outcomes-based frameworks like the RMA (eg occupying the seabed), domain based legislation like the Marine Mammals Protection Act (marine mammal watching operations) and Wildlife Act (eg shark cage diving) and sectoral legislation (eg bag limits for recreational charter boats).
- Minister for Ocean and Fisheries "Fisheries Amendment Bill: Strengthening fishing rules and policies: landings and discards" (2 July 2021).
- Much is beyond the purpose of the Fisheries Act.
- Expanded in the sense that it would apply to the edge of the extended continental shelf. Some amendments would be required to recognise the distinction in international law, including revisiting the idea of "ownership" of minerals and therefore "royalties" in the EEZ, and the framework for payments to the international seabed authority for mining.
- For example, section 6 shellfish provisions could be placed under the Fisheries Act; section 7 application of civil and criminal law under the EEZ Act; and section 5A payment for use of the extended continental shelf under the EEZ Act.
- Although we do have a separate act for minerals beyond 12 nautical miles.
- See Jean Bell "Rangitoto channel dredging: Move to reject submissions 'extraordinarily undemocratic'" *RNZ* (online ed, 12 June 2020).
- For instance, international law grants coastal states sovereign rights over "natural" resources, whereas the RMA deals with "natural and physical" resources: UNCLOS, art 56(1)(a). Compare RMA 1991, pt 2.
- See the discussion of *King Salmon* in the spotlight in Chapter 3.
- Resource Management (Marine Pollution) Regulations 1998.
- There are significant questions as to what a "limit" would encompass, or whether they could even be set in the marine environment (see Chapters 6 and 8).
- See Chapter 8.
- See the discussion further below on an integrated Oceans Act.
- On the normative tension in the Wildlife Act, see Deidre Koolen-Bourke and Raewyn Peart *Conserving Nature: Conservation System Reform Issues Paper* (Environmental Defence Society, Auckland, 2021)
- Integrated conservation legislation would have implications well beyond the marine context, which we are exploring in our conservation law project. See Deidre Koolen-Bourke and Raewyn Peart *Conserving Nature: Conservation System Reform Issues Paper* (Environmental Defence Society, Auckland, 2021). This will be followed by Phase 2 looking at options.
- Although whether some, such as recreational fishing parks, should be in fisheries legislation is debatable. It would depend on their purpose, and whether outcomes-based legislation for conservation would be a primary lens vis a vis sectoral legislation for fishing.
- See Department of Conservation "Type 1 Marine Protected Areas: Marine reserves" <www.doc.govt.nz/nature/habitats/marine/type-1-marine-protected-areas-marine-reserves/>; and Department of Conservation "Type 2 Marine Protected Areas" <www.doc.govt.nz/nature/habitats/marine/type-2-marine-protected-areas/>.
- Deidre Koolen-Bourke and Raewyn Peart *Conserving Nature: Conservation System Reform Issues Paper* (Environmental Defence Society, Auckland, 2021). See also Greg Severinsen *Reform of the Resource Management System: A model for the future* (Environmental Defence Society, Auckland, 2019).
- For example, the Hauraki Gulf Marine Park Act.
- See generally Kelsey Serjeant and Raewyn Peart *Healthy Seas: Implementing marine spatial planning in New Zealand* (Environmental Defence Society, Auckland, 2019).
- See Barry Barton, Kimberley Jane Jordan and Greg Severinsen *Carbon capture and storage: Designing the legal and regulatory framework for New Zealand* (Centre for Environmental, Energy and Resources Law, University of Waikato, 2013).
- That is not to suggest that this option would be *desirable*.
- Marine and Coastal Access Act 2009 (UK), s 44(1).
- Section 58(1).
- Section 58(4).
- Sections 123 and 124.
- Marine Management Organisation "The future of marine licencing" <www.webarchive.nationalarchives.gov.uk/20110405233153/http://www.marinemanagement.org.uk/works/future.htm>.
- Marine and Coastal Access Act 2009 (UK), pt 6.
- For more on institutional settings, see Chapter 12.
- For more on institutional settings, see Chapter 12.
- For more on institutional settings, see Chapter 12.
- Legislative Design and Advisory Committee *Legislation guidelines* (March 2018) at 10. This can be seen in the dated norms still underpinning the Marine Reserves Act compared with the more modern purposes proposed for the NBA, or the distinction between the Crown Mineral Act's statutory support for oil and gas exploitation and the Climate Change Response Act's imperative to lower emissions.
- See *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122.
- The Crown tenders largely to the highest bidder for minerals, fish quota were distributed based on grandparenting and cutting out smaller fishers then-reliant on the market, and coastal space can be first in time or through a loose tendering process lacking any real guiding principles.
- For example, some might be through markets and property rights, others through permits, some through tendering.
- One option could be to map a boundary based on ecological and geological factors rather than an arbitrary line.
- In fact, it suggests that it should be done separately given the issues that have arisen under using the Fisheries Act.
- Elizabeth Macpherson and others "Hooks" and 'Anchors' for Relational Ecosystem-Based Marine Management" (2021) 130 Marine Policy (citations omitted).
- New Zealand Birds Online "Wrybill" <[www.https://nzbirdsonline.org.nz/species/wrybill](https://nzbirdsonline.org.nz/species/wrybill)>
- NIWA "NIWA Atlas of NZ Freshwater Fishes" <<https://niwa.co.nz/freshwater-and-estuaries/nzffd/NIWA-fish-atlas>>
- Environmental Defence Society "Policy work" <<https://eds.org.nz/our-work/policy/>>
- New Zealand Bill of Rights Act 1990, ss 6 and 7.
- Such debates played a large part in halting progress when oceans reform was contemplated two decades ago.
- Including, arguably, environmental limits and targets.

12 Institutional design



Mangawhai

12.1 Introduction

If legislation is the backbone of the oceans management system, institutions are the muscles that make it work. The two themes are closely connected, and changes to statutory boundaries could therefore be complemented by a similar degree of institutional change. For example, it might make sense for an integrated Oceans Act to exist alongside an “Oceans Ministry” and “Oceans Agency” with a similarly broad focus and mandate (see Chapter 13). Legislative and institutional change could, however, be alternatives. For example, highly integrated legislation might make institutional reforms less pressing, if something like an Oceans Act or even an overarching framework for marine spatial planning could coordinate how tools (eg MPAs and regional plan zoning) are used by separate agencies. On the flipside, institutional change could render legislative overhaul less pressing. For example, an Oceans Agency might take on core marine planning and regulatory functions under the RMA, MPA legislation and Fisheries Act, harmonising how those frameworks are implemented. A similar approach was taken in the creation of the Department of Conservation in the 1980s, which was designed to be the institutional “glue” that held disparate pieces of conservation legislation¹ together.

Institutional settings in the current system are complex (see Chapter 3). Some institutions are central, others are local; some are advisory, while

other make decisions or take action; some are directly accountable to voters while others are not. They include various Ministers, government departments (including the Ministry for the Environment, Fisheries New Zealand, Biosecurity New Zealand, and the Department of Conservation), regional councils, iwi/hapū (and affiliated entities like trusts and post settlement entities),² the EPA, the Environment Court, Maritime New Zealand, the Parliamentary Commissioner for the Environment, the Hauraki Gulf Forum, the Conservation Authority and conservation boards, various bespoke guardians,³ and many others. Institutions may or may not be creatures of statutes; iwi/hapū and some government agencies (eg Fisheries New Zealand and Biosecurity New Zealand) aren't but many are (eg the EPA, Ministry for the Environment and Department of Conservation). Even more so than legislation, institutions have evolved organically over the years. Some have been added, others reshuffled (especially within central government),⁴ while still others have been replaced.⁵ Recently, notable institutional changes have occurred within central government (eg a Minister for Oceans and Fisheries and an Oceans Secretariat hosted by the Department of Conservation).⁶

Faced with this complexity, and the need to be pragmatic, it is tempting to think primarily about how we might alter existing institutions. Here, reforms could be comparatively minor and targeted (eg an extension of an existing

Raewyn Peart



Oyster barge, Mahurangi harbour

organisation's functions or strengthening of its mandate, such as those of the EPA).⁷ However, within the spirit of a blue skies review, it is also worth asking broader questions about how and why we might fundamentally reimagine institutional boundaries and characteristics in the future. We could contemplate the creation of a new institution, the replacement of existing ones, and/or the merging or splitting up of some entities.

As with other themes, when considering institutional options for the future, it is essential to consider *why* we would do one thing and not another (or anything at all). Structural reform should not be pursued for its own sake. Of course, one important justification would be to create institutional settings that better address the biophysical, social and other problematic outcomes described in Chapter 2. That said, it is not immediately clear whether one type of institutional reform (eg having an apolitical Oceans Agency) would improve these more than another (eg strengthening resourcing for elected regional councils), or indeed whether foundational institutional settings are really responsible for those outcomes at all (and therefore whether we should content ourselves with improving the toolkit they use).⁸ The extent to which different institutional design measures, whether minor or major, would “fix” problems⁹ is ultimately a matter for readers to ponder and discuss, although we do offer some potential pros and cons in the discussion of options that follows.

Another reason to consider institutional reform is the range of issues with the current system itself (see Chapter 3). For instance, some might argue that the absence of true environmental limits (to the extent one regards that as a problem)¹⁰ stems partly from the relatively weak or non-statutory mandates of the institutions that may impose them, or that they are subject to the short-term thinking and changing political trade-offs of elected officials (see the spotlight on *King Salmon* in Chapter 3). Similarly, fragmentation in the current system is as much institutional as it is legislative, with a lack of clarity about who is responsible for what, causing things to fall between the cracks. Unclear stewardship and leadership for the moana as a whole (including stewardship for information and research) is also a fundamentally institutional issue. And a lack of strategy and agility in the system arguably speaks as much to the orientation, mandate and accountability of institutions as it does to the purpose and principles of the legislation under which they operate. In short, while institutional change is not necessarily a silver bullet solution, it provides fertile ground for a discussion about how problems might best be tackled.

Aside from addressing problems, changes to institutional design might simply reflect people's worldviews or desires for what the structural features of a future system should look like. For instance, some might

have an innate preference for localism, and therefore wish to see a strengthened role for councils. Others might want to hold government to account (irrespective of what outcomes are being produced) via an audit from an independent Oceans Commission or similar. And for some, co-governance with mana whenua may be important to recognise te Tiriti o Waitangi or the rights of indigenous peoples under UNDRIP, irrespective of the environmental or social outcomes. In short, it might be regarded as the *right* thing to do.

Still others may prefer options that involve the least institutional disruption or provide the most bang for one's buck. For example, partnerships and the sharing of resources between existing agencies could be formalised, roles and relationships could be clarified, and funding shortfalls addressed. Those might be alternatives to “grand plans” that seek to reconstruct institutional arrangements from the ground up.

A first principles rethink of institutional settings is warranted, not only because those settings may have contributed towards problems, but also because they might be better configured to achieve a future system's objectives or reflect its underlying ethics and principles. People may have different views as to what form of change is warranted and why.

12.2 Institutional characteristics

There is a potentially infinite array of institutional options available for a future system. We may decide to keep some that we already have (eg Fisheries New Zealand), others could be modelled on overseas examples (eg the United Kingdom's Marine Management Organisation), and some could be imagined out of thin air (eg an Oceans Commission). However, as with the system as a whole, it is worth considering how we frame a conversation about institutional design rather than just embarking upon a laundry list of possible options.

One way of doing this is by thinking about the characteristics that institutions can have, why we might want certain *combinations* of characteristics, and how those entities would interact with *each other*. In Figure 12.1 we set out what some institutional characteristics might be. We then explore each of them in turn and consider some of the options for institutional change that they may give rise to. As with other themes, this is intended to be a springboard for discussion, rather than a comprehensive account of all possible reforms.

1. The degree of an institution's independence

An institution can be independent of political influence (such as the Environment Court) or politically accountable (such as Ministers and regional councils).



2. The degree of an institution's centralisation

An institution can be central in that it functions across the whole country (such as a government department) or locally (such as a district council). Both central and local institutions can be accountable or independent.



3. The extent of an institution's subject focus

An institution can focus narrowly on specific resources or domains or have a wide focus (such as the Ministry for the Environment).



4. The extent of an institution's geographical focus

An institution can focus narrowly on a specific geographical area (such as the Fiordland Marine Guardians) or on a broad area (such as the Department of Conservation).



5. The nature of an institution's task

An institution can have different kinds of tasks. Among other things, it can create policy, impose regulation, or enforce decisions.



6. The formality of an institution's creation

Some institutions can be formally created (such as by statute), while others are created in a more informal way (such as by Cabinet decision).



7. The nature of an institution's mandate

An institution can have a protective mandate (such as the Department of Conservation), or it can have an exploitative mandate and seek to secure the benefits of resource use (such as the Ministry for Primary Industries). The word "exploitative" is not intended to have any negative connotations. It simply means driving resource uses that are considered to be in the public interest.



8. The extent of an institution's power

An institution can have binding powers (such as a Minister who promulgates an NPS) or a recommendatory power (such as the Parliamentary Commissioner for the Environment inquiring into an environmental issue).



Figure 12.1: Characteristics of institutions

The institutional characteristics outlined above usually exist on a spectrum. One commentator has pointed out that “independence is not a binary condition: institutions can be more or less independent in a range of ways”.¹¹ For example, a centralised entity can be set up as a government department, a Crown agent, an autonomous Crown entity, a state-owned enterprise, a judicial body, or an officer of Parliament. Similarly, an entity does not just need to be “central” or “local”. It can be somewhere in between (eg regional), or have hybrid features to achieve the same result (eg a governance board appointed by central and local entities). As an example of how institutional characteristics might change within an existing entity, we examine the current and potential future characteristics of the EPA in Figure 12.2.

As we explore various institutional characteristics (and some of the options they give rise to) below, it is also worth bearing in mind the roles a future system would be expected to play. In Chapter 6 we identified a number of distinct roles, including setting environmental limits, making trade-offs, allocating resources, implementing te Tiriti o Waitangi, and pursuing

positive outcomes. How we orient our institutions is particularly important here, because they will be the ones responsible for doing those things. That does not mean we should have separate institutions responsible for each role (eg one for setting limits, another for making allocative decisions etc), as there can be good reasons for combining more than one role in a single entity (eg where allocative choices are made based on who would produce the most positive outcomes). However, institutions will need to have combinations of characteristics that help them perform their range of roles effectively. That has arguably not been the case in the current system; for example, the Environment Court (an independent entity) has been left to determine value-based decisions around allocation, while Fisheries New Zealand (concerned with management of a specific subject) has lacked the influence to address impacts on that subject from other sources (eg sediment from land). In future, it may be that an institution charged with imposing environmental limits might have quite different characteristics (eg more independence, perhaps more centralised, and with a focused mandate) than one expected to make trade-offs that reflect the changing values of local communities.

Type of characteristic	Where the EPA currently sits	Future options for change
Independence	Semi-independent of the Crown (a Crown entity)	Make less independent by embedding as a business unit within a more “operational” Ministry for the Environment
Centralisation	Highly centralised	Make more devolved by establishing semi-independent branches focused at a regional level
Subject focus	Fairly diverse (eg focused on hazardous substance and new organisms, consenting in the EEZ, enforcement under the RMA)	Broaden by extending jurisdiction to consenting under RMA regional coastal plans
Geographical focus	Focused on the EEZ in the marine context	Broaden to include consenting in the coastal marine area
Breadth of task	Focused on regulatory, enforcement and operational tasks	Expand to include advocacy and regulation making (eg setting national standards under the RMA) and EEZ consenting (reclaiming this role from boards of inquiry)
Formality of creation	Created by a bespoke statute	Recreate the EPA as a business unit within a more “operational” Ministry for the Environment
Nature of mandate	Fairly vague, with mandates defined by different statutes under which it has functions	Give the EPA a strongly protective umbrella mandate in the EPA Act itself
Degree of power	Fairly weak to moderate	Increase its power to provide final decisions on consents in the EEZ or make regulations in the coastal marine area

Figure 12.2: Current and potential future institutional characteristics of the EPA

12.3 Independence and accountability

The independence of an institution generally refers to the degree to which it is free from control or influence by politically accountable institutions. There is a continuum from wholly independent (eg the Environment Court and Parliamentary Commissioner for the Environment) to very close to government (eg the Ministry for the Environment and Ministry for Primary Industries). The other side of this coin is accountability: the degree to which voters can choose to elect or remove members of an institution (eg councils, members of Parliament and, to some extent,¹² Ministers have a high degree of accountability).

Direct accountability is generally appropriate when decisions involve values, or at least where there is a significant lack of consensus over values. In the marine context, that arguably encompasses many different decisions. Accountability is most important where an institution has (or can have) regulatory powers to bind those who do not consent to being bound. That is why the courts do not legislate, and why environment judges are extremely careful to justify their appellate authority on the merits of a decision against the wording of the RMA itself – these are legal, not policy decisions.¹³

Directly accountable institutions in the current oceans management system are fairly limited in range; they are largely comprised of Ministers and councillors (albeit split across many different councils).¹⁴ That does not make the need for independent, expert and transparent *advice* to accountable institutions unimportant.¹⁵ That is essential to make sure that they frame the actual value-based questions to be addressed and do not stray into matters requiring objective legal or scientific assessment (eg decisions about undertaking enforcement action).¹⁶ There can be tensions within institutions when staff are charged with both providing free and frank advice and implementing the policy agendas of elected officials. We have a strictly apolitical public service in Aotearoa New Zealand, but institutional cultures and therefore the lenses through which advice is given, can still be quite different. That is by no means a bad thing, but it has risks as well as benefits.

However, there are also risks in having unaccountable persons determining value-based questions. Scientists and judges have no particular moral claim to tell us what we should do (unless clearly spelled out by the law) and are less accountable to communities for their decisions,¹⁷ as are unelected officials within government departments or councils. One commentator has observed that “most decisions on environmental matters have to be made based on political

considerations”.¹⁸ That rings particularly true in the highly contested marine space, where decisions about where MPAs are located, the distribution of rights between commercial and recreational fishing interests, and whether to allow deep seabed mining are highly politicised subjects. That said, while political considerations might be dominant, such decisions can still be translated into clear and transparent laws, at which point they become amenable to independent interpretation.

It is most appropriate to use accountable institutions for decision-making where values need to be determined rather than implemented.

As explored in our work on resource management reform, independent institutions have most significant value in four cases:

- where values are not at stake (eg a role is purely technical or expert, such as in the provision of scientific and cultural advice to inform decision-making),¹⁹ where there is broad and durable social consensus over values (eg freedom of access to beaches), or where value-based decisions have been clearly specified in law (eg MSY)
- where there is a need for stable and durable policy, in that long-term interests are at stake or predictable investment signals are needed (eg for emissions pricing and long-term rebuild of threatened species populations), even where political dynamics might fluctuate considerably
- where commercial independence is necessary for economically efficient management or to depoliticise operational decisions, but where the public interest is still sufficiently strong to prevent complete privatisation (eg when delivering infrastructure)
- where the independence of one institution would enhance the accountability of another one.

This last point is particularly important. Institutions are only truly accountable if the people they are accountable to (ie those voting) are informed about their performance. Thus, while a balance between accountability and independence can be achieved by blending those elements within a single institution (eg an autonomous Crown entity, which is ultimately answerable to Ministers but operates at arm's length), an institution can also be held accountable by separating the decision-

making of an elected body (eg a Minister) from the oversight or scrutiny of a completely separate independent one (eg a judicial body or a watchdog like the Parliamentary Commissioner for the Environment or Climate Change Commission).

Independent institutions have important roles in a number of situations, such as where value-based judgements are not in play, where long-term policy stability is important, and where they hold accountable entities to account.

So what does this mean for institutions in a future oceans management system? One thing to ponder is whether decisions currently taken by highly accountable institutions (eg Ministers supported by ministries)²⁰ should be shifted to more independent ones, or whether this balance should at least be recalibrated. For example, it is not abundantly clear why some things are determined by strongly independent decision-makers (eg coastal permits by the Environment Court) while others are left to political discretion (eg Ministers determining fishing sustainability measures and the deployment of MPAs). The appellate role of the judiciary is something for policy makers to consider in system reform.

A spotlight on the role of the courts under the Fisheries Act

Unlike under the RMA, there is no provision for merit appeals against decisions by the Minister of Fisheries on sustainability measures under the Fisheries Act. It means that those with property rights directly affected (quota owners) and those whose local/regional environment is affected (local residents and marine users) have no ability to challenge the merits of decisions on appeal. This has led to the use of judicial review as a way of resolving substantive issues, a tool that is poorly configured for the task, and which was never intended for such use. For example, in Chapter 10 we described litigation focused on the critically endangered Māui dolphin, where ministerial decisions to impose controls on fishing methods to protect the dolphin were successfully challenged via judicial review on the basis of technicalities. The legal challenge did not change the final decision but delayed it for several years.

Providing for a merits appeal within the Fisheries Act may provide a more considered check and balance on decision-making in the interests of achieving the best outcome. Alternatively, sustainability measures could be mandated under the RMA (or its replacement, the NBA), making use of that Act's existing machinery for merit appeals to the Environment Court.²¹

Either way, the question boils down to one key matter: is the sustainability purpose of the Fisheries Act sufficiently more value-based than the sustainable management purpose of the RMA to warrant less judicial oversight? Arguably a lot of fisheries decisions are *more* technocratic than RMA ones, in light of the framework's more specific and measurable objectives (eg determining MSY, including hard and soft limits under the Harvest Strategy Standard).²²

On the other hand, there are some decisions taken under the RMA that are *not* amenable to appeal. Notably these include decisions on national direction, including on the mandatory NZCPS. Moreover, the courts cannot overturn a decision by the Minister of Conservation not to approve a regional coastal plan. This suggests that the distinction is less about the judiciary's role under the RMA and Fisheries Act, as it is about the courts' oversight of central and local government. In other words, is independent oversight under the RMA needed as a check and

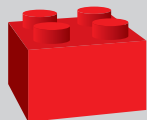
Raewyn Peart



Recreational fishing, Firth of Thames

balance on “unruly” local democracy, but not on the value-based decision-making of more sober minded Ministers where the national interest is at stake?²³

Of course, that raises other questions – like the extent to which either of these statutes (or others, like conservation statutes) *should* involve the exercise of discretion, or whether some of the outcomes sought should be specific and objective enough to enable determination by more independent authorities like specialist courts. For example, if the RMA/NBA were to have a specific purpose for the establishment of mandatory environmental limits (as is proposed), there might be potential for national level limits (eg standards for wastewater discharges to the marine environment) to be subject to appeal alongside council plans. Such things would no longer be about value-based trade-offs – they would be about implementation of a subjective judgement already made by Parliament through legislation. To the extent that value judgements remained (eg in determining the TACC and therefore the relative allocation of rights to commercial and recreational fishers), this could remain beyond an appellate jurisdiction.



The role of the courts could be expanded in a future oceans management system to include appellate authority over the merits of some fisheries decisions and some national direction under the RMA/NBA.

The courts are not the only independent decision-makers in the system, and they only determine disputes that are brought before them. More proactive decision-makers could also be made more independent in the future. For example, the practice of councils using independent commissioners to determine consent applications in the coastal marine area could be formalised or required. That would align the powers of councils with that of Ministers, who can call in consents to be determined by a board of inquiry but have no power to determine them themselves.²⁴ A consenting function in the coastal marine area could even be given to the arm’s length EPA, or a new Oceans Agency (into which the marine parts of the EPA could be merged). In the EEZ, the more independent EPA could reclaim its consenting function from the ad hoc boards of inquiry

appointed by the Minister (since amendments to the EEZ Act) or be subsumed into an Oceans Agency which would perform that function.²⁵

However, there is a potential wrinkle in such options if consenting processes continue to perform an allocative function. For example, value-based decisions may still need to be made if attribute weighted tendering processes were applied to coastal occupation rights. Would it be appropriate for such calls to be made by an unelected EPA or a court on appeal? At present, it has been left to the judiciary to suggest, based on a creative reading of the largely silent RMA, that it might be able to allocate some resources to one applicant over another based on who would best achieve the purpose of the Act, not just who applied first.²⁶



Raewyn Peart

Snorkelling, Mokohinau Islands

This may suggest a need to separate more independent “environmental” decision-makers (and processes) from more accountable ones that deal with allocative issues.²⁷ One potential solution may be to ensure that *planning* processes, run by accountable entities, proactively engage with allocative issues (eg principles for allocating recreational and commercial catch, and policies concerned with allocation of occupation of coastal space). Consenting could then be done via more independent decision-makers.

A spotlight on allocation

It would be possible for many different kinds of institutions to allocate resources. Their ideal characteristics will, however, depend on what we think the allocative role is all about:²⁸ whether it is about determining values (requiring accountability) or simply applying them (allowing independence); whether it is about resolving private disputes or pursuing the public interest; and whether we see a public interest in the uses to which marine resources are put beyond just addressing the adverse impacts that they cause.

Objective allocative processes (eg auctioning to the highest bidder or a first in time consenting process) can be legitimately overseen by independent authorities (eg the Environment Court has determined rules about which application is in fact submitted “first”). However, value-based choices (eg setting a TACC to determine commercial and recreational shares of the TAC, allocating coastal space through an attribute weighted tendering process, negotiating rights through the Tiriti settlements, or spatially allocating areas to different types of activity in a spatial planning process) arguably require more accountability.

Institutional settings therefore depend heavily on resolution of the normative questions grappled with in Chapter 7: what are the aims of allocation and who should get what? To what extent should clear allocative objectives be set out in legislation or left to the discretion of decision-makers? For example, if environmental effects are acceptable, does it matter whether an area of the sea is used for aquaculture, offshore wind energy or fishing? If fish stocks are sustainable, does it matter whether they are frozen for export, processed and sold in local communities, or used to support the development of nutraceuticals? And if the Crown maximises its royalties, does it matter if petroleum remains in the ground, is refined for combustion or is used to create plastic products?

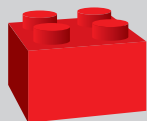
The degree of independence that institutions making allocative decisions should have, may depend on the extent to which the legal frameworks under which they operate, contain clear allocative criteria. Irrespective of what choices are involved, legislation could address them more directly (eg through clearer allocative principles or market mechanisms), in which case accountable institutions may be less important.

More independent decision-makers could even be charged with making a broader range of regulations, not just determining consents or implementing allocative choices. For example, an arm’s length Oceans Agency or strengthened EPA could be responsible for imposing sustainability measures to achieve the purpose of the Fisheries Act, or national environmental standards under the RMA/NBA. That might be feasible if, for example, accountable Ministers had responsibility for creating more specific strategy and policy in the marine space so that regulation making involved *applying* values, not *determining* them.

As it stands, the NZCPS is not likely to be clear enough to warrant independent regulation-making under it. In the EEZ Act and Fisheries Act there is little formal policy framework at all (see Chapters 3 and 8). This has meant that decision-making committees and courts determining applications for consent under the EEZ Act have been forced to unpick the wording of brief statutory principles (eg its approach to precaution) to an inordinate degree, given the lack of policy guidance created by central government. One could argue that the courts have had to step into the breach, to *determine* policy matters via a consenting process, because accountable institutions tasked with this role have failed to perform it. The response, in the context of the EEZ, has been to transfer consenting power from the EPA to (arguably) less independent ministerially appointed boards of inquiry, not to engage in the development of policy guidance that would assist the EPA in exercising the consenting power itself.

In a future system, value-based calls could be made more specific and directive up front through policies and plans, justifying a more independent and technocratic approach to setting regulatory environmental limits in the marine space.²⁹ It is telling that where there is a reasonably clear statutory vision, as in the case of the Waikato River, an arm’s length institution such as the Waikato River Authority (with board members appointed by iwi and the Crown) can wield substantial powers under the RMA.³⁰

Moreover, the proposed use of a targeted, separate and uncompromising purpose for environmental limit setting under the proposed NBA might enable the use of an independent agency to translate that into regulation (eg limits on pollutants like sediment and nutrients entering the marine environment). In addition, if clear ecological criteria were set for the identification of MPAs, it might even be left to an independent agency to establish a coherent MPA network. However, this is much more likely to require a discussion about values and trade-offs, warranting leadership by Ministers (and potentially councils and mana whenua) to at least determine where MPAs would *not* go.



Some regulation making powers could be shifted to more independent or arm's length institutions, including some sustainability measures for fisheries and a new class of environmental limits under the RMA/NBA. This would, however, require accountable institutions (or legislation itself) to provide clear and direct policy guidance (eg on bottom trawling or sediment) amenable to independent interpretation.

Instead of making a stark choice between independent or accountable decision-makers, particular processes can take a more nuanced approach where each type of institution has a role. For example, boards of inquiry are often used under the RMA to provide recommendations on national direction that must be considered by Ministers. Independent hearings panels have also been used in both formal and informal ways as a counterweight to the decision-making of elected councils.³¹ Sometimes their roles are advisory only, but in other cases they have more influence.

The use of an independent hearings panel to hear submissions and make recommendations to the council on Auckland's Unitary Plan offers an interesting example of the latter.³² There, the ability for people to appeal council decisions was dependent on the extent to which they departed from the panel's recommendations. This provided a strong incentive for the council to accept the independent recommendations, but at the same time, truly contentious value judgments made by an independent body (including in the marine space) could still be pushed back on by an institution that represents its community. A broadly similar model (which would apply in the coastal marine area), has

been proposed by the Randerson Panel under a future NBA, to reduce reliance on court appeals.

A similar approach could even be applied to planning under conservation laws and the Fisheries Act, or when preparing "marine plans" under an integrated Oceans Act. For instance, independent hearings panels on fisheries sustainability measures or proposed MPAs could be populated from (or appointed by) an independent Oceans Commission.



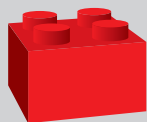
Independent hearings panels with stronger legal influence over final decisions on planning and regulatory instruments could be rolled out in a future system. This has been proposed for combined plans under the NBA but could be extended to planning processes under other marine legislation, like the Fisheries Act and conservation statutes.

Even if regulatory decision-makers remain towards the accountable end of the scale, another key question is how independent expert *advisory* institutions should be. Government departments already have obligations to provide free and frank advice, alongside their role of supporting Ministers, and they represent important hubs of expertise and resources. However, in recent times there has been a trend towards formalising more independent streams of information and advice. For example, the New Zealand Conservation Authority provides advice directly to the Minister of Conservation as well as the Director-General of Conservation. The Guardians of Fiordland and the Kaikōura Marine Guardians create a direct conduit of information from communities on the ground to the Ministers of Fisheries and Conservation.

This trend could be continued in the future, not just through the creation of community led guardians with direct access to Ministers, but also through more systemic institutional arrangements. For instance, the National Fisheries Advisory Council, which the Minister of Fisheries can establish under the Fisheries Act, has never been constituted. It could be made a mandatory part of the system rather than something to be created on the whim of government. This would bring it in line with the Conservation Authority, which is established by the Conservation Act itself.³³ A similar institution could be established under the RMA to support implementation of a refreshed NZCPS (a Coastal Advisory Council, akin to the recently created Chief Freshwater Commissioner).

The Māori Advisory Committee model under the EEZ Act could also be replicated in other legislation like the RMA, Fisheries Act and conservation legislation. However, advice on mātauranga Māori cuts across the whole system (te ao Māori is not siloed into legislative boundaries), so serious thought could be given to establishing a cross-cutting independent body like a Tikanga Commission to feed advice into all statutory processes (including integrative ones like marine spatial planning). Although this would likely create some synergies and efficiencies, it is important to note that the work of the Commission would not obviate the need to consult with individual iwi/hapū in any particular case. Mātauranga requires interpretation in its specific cultural and geographical context by mana whenua themselves.

Such institutional questions need to be explored within a broader constitutional context, including considering the recommendations in *He Puapua* and *Matike Mai*, and ultimately be resolved by Māori and the Crown.³⁴ We explore more systemic power-sharing options later in this chapter.



More independent advisory institutions could be established in a future system, whether through a place-based guardians model or domain-based entities. A Tikanga Commission could be established to provide advice into all statutory processes (including integrative ones like marine spatial planning).

Going even further, the Parliamentary Commissioner for the Environment's role could be expanded to be a more structured source of advice in statutory processes (eg to be involved in the preparation of instruments related to the oceans, including regional plans, fisheries plans, and marine spatial plans, and to provide recommendations on sustainability measures). Adequate resourcing would be required to support such an expanded role. We could even contemplate the creation of a bespoke Oceans Commission, akin to the Climate Change Commission, to take on that role (see spotlight further below).

The provision of advice requires robust information, which is not always easy to come by in the marine environment. It can also be fragmented across different agencies having different responsibilities and mandates. Irrespective of where advice comes from, it is important that sufficient data and information is available to support it, and this requires appropriate institutional settings.

A spotlight on an Environmental Research Council

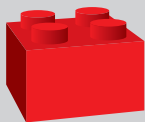
The Parliamentary Commissioner for the Environment, in his review of funding and prioritisation of environmental research, suggested that “central government needs to speak with one voice and it should do that through a regularly updated environmental research strategy led by the Ministry for the Environment.”³⁵ He also proposed a reform option that “seeks to embed the necessary expert skills within an Environmental Research Council – a dedicated funding agency”.³⁶

This proposal to separate environmental research priorities (which would be set by an accountable institution) from research funding (which would be dispensed by an independent institution in accordance with the research priorities) is an interesting one. It might be possible to create a focus for oceans research within such a structure, through a Marine Research Division operating under the auspices of a broader Environmental Research Council (or independently as a *Marine* Research Council).

Such a marine-focused entity could make recommendations on priorities for marine research (therefore informing the broader environmental research strategy led by the Ministry for the Environment), foster collaboration between tertiary institutions, crown research institutes and independent research organisations to meet priority marine research needs, and oversee the curation of marine information. It could include a branch focused on the strengthening and incorporation of mātauranga Māori.

The Marine Research Division/Council could bring together relevant sources of “trusted” information in an integrated way including evidence accepted in Environment Court proceedings. If fisheries research were integrated into a broader environmental research initiative, this could serve to expand the ambit of its scope to include a wider range of ecologically focused information on the marine environment. In the project's working paper we looked at changes that could be made to fisheries assessment working groups to include more sources of information.

A degree of independence in making decisions about the funding of marine research is a particularly interesting prospect (if we had the right tools) given increasing financial pressures on marine scientific research in recent times.³⁷



An independent entity focused on supporting marine research could be established, either as a marine division of an Environmental Research Council or as an independent body (Marine Research Council). It could include a branch focused on strengthening mātauranga Māori.

An independent Oceans Commission mentioned earlier could play a role well beyond just the provision of advice to relevant government departments and councils. It could also act as a constitutionally significant check and balance in the system by being a watchdog focused on the marine environment. While the Parliamentary Commissioner for the Environment is an important institutional pillar, the Climate Change Commission provides a domain-based example of why a more structured and specific role for independent institutions can be valuable in holding government to account, and a marine-focused Commission could perform a similar role. The focus of elected institutions needs to be watched closely by an independent body that is not on a short term political cycle.

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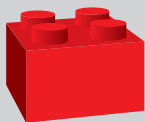
Tokerau Bay

A spotlight on the Climate Change Commission model

In order to set targets for greenhouse gas reduction, both the Climate Change Commission (which is independent) and the responsible Minister (who is accountable) have important roles. The Commission recommends carbon budgets (maximum emissions allowed over a period) and the Minister sets them, thereby reducing politicisation of the budget setting process while retaining ultimate public accountability for decisions. Each institution has characteristics that are complementary – the independent Commission has recommendatory powers, while the accountable Minister has binding powers. The Minister must provide reasons for rejecting the Commission's recommendations. The interplay between the institutions is crucial here, and would not be achieved by creating a single institution that combined elements of each. Nor does the Parliamentary Commissioner for the Environment model provide the structured approach needed.

Although climate change is a uniquely cross-cutting problem, and affects all other areas of government policy, there has been a noticeable move towards designing various commission models to provide similar checks and balances within the system. This can be seen in the establishment of a Chief Freshwater Commissioner with roles in freshwater plan making, and in the creation of an Infrastructure Commission. The oceans could see a similar model, especially given that marine management is currently more fragmented across legislation and agencies than freshwater, and would therefore particularly benefit from a more cross-cutting statutory watchdog.

An Oceans Commission could take different forms (eg an Officer of Parliament, an autonomous Crown entity, or its own novel status). It could even have some regulatory or appellate powers (eg it could be the place in which appeals on the NZCPS, EEZ regulations or sustainability measures were heard), or advocacy roles (eg by having legal standing to appeal a TAC or a rebuild plan for fish stocks). But its essence would be some form of independent oversight or watchdog body with a clear mandate to defend the interests of the moana.



An independent Oceans Commission could be established to fulfil a similar place in the system as the Climate Change Commission. Alternatively, both could be combined into a broader Futures Commission (potentially an expanded Parliamentary Commissioner for the Environment) to cover the whole environment.

12.4 To whom should institutions be accountable?

When thinking about the “accountability” of institutions, there may be a tendency to think about accountability to *voters*. However, non-elected institutions can still be accountable, just to other constituents. For example, *mana whenua* are not “independent” *per se*; leadership is accountable to Māori communities, not to the broader public. Māori have their own internal processes for decision-making and leadership based on *mana* and consensus rather than Western style elections and voting. Such things are not often visible on the face of legislation, sometimes creating uncertainty about the authority to speak on behalf of Māori. This raises the question as to whether accountability mechanisms *within* *iwi* and *hapū* should be more formally defined, especially if significant powers are to be shared with the Crown in the future through co-governance mechanisms, customary marine title, or the transfer of statutory authority. Here, Māori would be acting as public authorities rather than stakeholders. Accountability intersects with another important characteristic – an institution’s formality of creation – and we discuss this further below under that heading.

There is also a live question as to the extent to which fisheries management decisions should be devolved to quota holders and operators or retained by the Minister. This is not just about who would be most effective in achieving the desired outcomes under legislation (MSY) but also who decision-makers should be accountable to (owners of a shared stock, or the public more broadly?). We discussed this in Chapter 8 when exploring the role of property rights as a tool, but it can equally be regarded as a question of institutional design.

When developing policy (eg a National Planning Framework or a National Oceans Policy) Ministers could be made accountable in a more structured way to Parliament itself. For example, provision could be made for scrutiny of policy by select committees, to obtain cross party consensus where possible and (hopefully) avoid policy swings across changes in

government. Some have suggested increasing oversight by requiring government agencies to provide an annual report to Parliament on things like MPA designation and management.

A more radical way of thinking about accountable institutions is that there could be some which are accountable to future generations. Institutions that might be commonly thought of as “independent” may in fact be better thought of as reflecting a different type of democracy in action, where the constituency is quite different to those alive today. Wales provides an interesting example of this.

A spotlight on the Future Generations Commissioner in Wales

In Wales, a “Future Generations Commissioner” has been appointed who acts as a guardian for the future generations in Wales and is also tasked with encouraging public bodies to take greater account of the long-term impact of the things they do.³⁸ The Commissioner has advice, research and recommendatory roles not unlike that of the New Zealand Parliamentary Commissioner for the Environment. However, the Commissioner also has the power to review public bodies and they must take all reasonable steps to follow the course of action recommended by the Commissioner, unless there is a good reason not to do so. The Commissioner is also required to publish a “future generations report” before each general election.

This Welsh Act represents a new generation of sustainability legislation and is something that Aotearoa New Zealand could take inspiration from.³⁹ In our work on resource management reform, we looked at the similar concept of a Futures Commission, and this could be tailored to the marine environment (eg by having one commissioner responsible for the interests of future people in the *moana*). What the “interests” of future generations would have to be considered closely, and the Commission’s mandate drafted with great care. It would not necessarily be limited to protective concerns. For example, future generations might arguably benefit from the technology that comes from selective mining of rare minerals, or the deployment of some forms of marine development (eg offshore wind and aquaculture). Much comes down to what objectives should underpin a future system, and how we approach the principle of inter-generational equity (see Chapter 7).

Institutions can be accountable, not only to different degrees, but also to different people. Notable are institutions that are accountable to mana whenua. It can sometimes be unclear exactly who institutions should be accountable to, including when decisions are delegated to industry (self-management). What initially looks like institutional independence can sometimes take the form of accountability to other groups, including future generations.

In Chapter 8 we also discussed a rights for nature approach, under which legal personhood could be established for the moana (or parts of it). This requires careful thought when it comes to institutional design, because we cannot simply declare that the ocean is a person and consider the job done. It requires human representation.

Although this goes well beyond normal conversations about what “accountable” institutions look like, it is convenient to consider at this juncture, because it expands the question of who institutions should be accountable to (in this case, the moana itself). Nature can’t vote, of course. But then neither can children, and that does not prevent the system providing mechanisms by which children can hold adults accountable in other ways.⁴⁰

There are a number of options for how institutions could support legal personhood. The fact that existing examples of personhood in Aotearoa New Zealand have been designed to effect te Tiriti settlements means that they provide useful ways in which personhood could reflect a partnership with mana whenua. If we were to grant legal personhood to the moana more generally, we would need to tailor these models to quite a different context (and with a range of quite different interests involved).



Piritahi Marae, Waiheke Island

A spotlight on the Whanganui River and Te Urewera

The Te Awa Tupua (Whanganui River Claims Settlement) Act 2017 establishes legal personhood for the Whanganui River and the roles of those who act on its behalf. This is achieved by a declaratory provision:⁴¹

Te Awa Tupua declared to be legal person

- (1) Te Awa Tupua is a legal person and has all the rights, powers, duties, and liabilities of a legal person.
- (2) The rights, powers, and duties of Te Awa Tupua must be exercised or performed, and responsibility for its liabilities must be taken, by Te Pou Tupua on behalf of, and in the name of, Te Awa Tupua, in the manner provided for in this Part and in Ruruku Whakatupua—Te Mana o Te Awa Tupua [settlement agreement].

The Act establishes “Te Pou Tupua”: the “human face” of the river. Te Pou Tupua must act and speak for and on behalf of Te Awa Tupua, and uphold a set of principles (see Chapter 8). Other decision-makers outside this framework (for example, local councils) who impact on the river must have particular regard to those principles.

As shown in Figure 12.3, the framework of the legislation splits up the institution that represents Te Awa Tupua as a legal person (Te Pou Tupua) from the institution that manages it (Te Kōpuka). Te Kōpuka develops Te Heke Ngahuru (a management strategy) for Te Awa Tupua. It must have particular regard to the Te Awa Tupua status and Tupua te Kawa (the intrinsic values that represent the essence of Te Awa Tupu and which are set out in the Act). Other decision-makers outside the framework must also have particular regard to the strategy. The framework is funded by Te Korotere, a Crown contribution made as part of the settlement agreement. It is a lump sum of \$30 million that must be managed by Te Pou Tupua.

Te Urewera has a comparatively simpler institutional framework than Te Awa Tupua (see Figure 12.4). Under Te Urewera Act 2014, the Te Urewera Board both acts on behalf of and in the name of Te Urewera and provides governance for Te Urewera in accordance with the Act.⁴²

The Board is responsible for preparing and approving the management plan. The plan's purpose is to identify how the purpose of the Act will be achieved through management, and to set objectives and policies for Te Urewera.⁴³ Additionally, the Board gives advice on the implementation of the plan. The chief executive of the Board must prepare an operational plan with the Director-General of Conservation, which seeks to implement the management plan by identifying funding; projects, activities and contracts; and opportunities for members of Tūhoe to participate in management activities.

Comparing the two systems, Andrew Geddis and Jacinta Ruru have commented that the areas' previous regimes have influenced the new ones.⁴⁴ Te Urewera was managed by the Department of Conservation, which had to consult with Tūhoe – so it was relatively straightforward to place the guardianship of Te Urewera with a body in which the Crown and Tūhoe work together.⁴⁵ Conversely, the Whanganui River had multiple users with differing and potentially conflicting interests (including surrounding landowners), which were managed and balanced by local councils.⁴⁶ Providing input for these various interests resulted in a far more complex governance structure which separates the advocate and management bodies.⁴⁷

Interests of Te Awa Tupua and Tupua te Kawa (statutory)

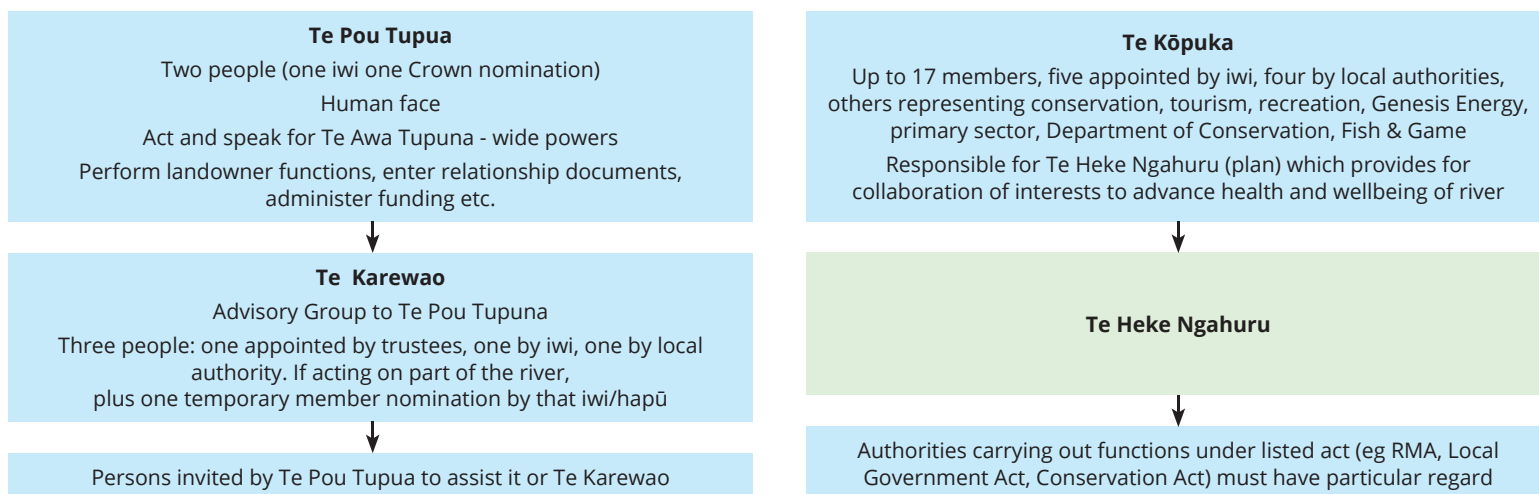


Figure 12.3: Institutional framework under Te Awa Tupua Act (simplified)

Principles for implementing the Act, activity permit and concession requirements

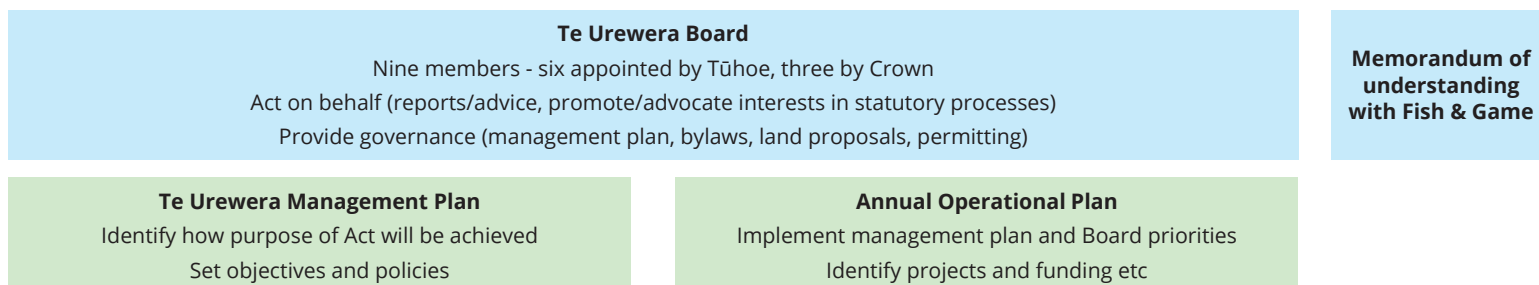


Figure 12.4: Institutional framework under Te Urewera Act (simplified)

The above examples suggest that if a legal personhood framework were to be applied to the ocean on a large scale (eg all of Aotearoa New Zealand waters, or whole biogeographical regions), it would likely require a relatively complex model to account for all existing interests, so the Te Awa Tupua model may prove more useful than Te Urewera. That said, the moana likely requires an even more complex governance arrangement, given that *all* New Zealanders (including *all* Māori) have an interest in it. How mana whenua could be represented (and in what measure) at a national level would be a challenging question, including whether coastal iwi and hapū should have a greater degree of influence. Lessons could potentially be drawn from the fisheries settlement (including the role of Te Ohu Kaimoana), although that is in some ways a simpler context (it essentially apportions well defined property rights rather than ongoing governance responsibilities).

Other institutional options to support legal personhood at a broad scale can be seen overseas. A 2012 law in Bolivia, for example, has authorised the creation of institutions to support the rollout of rights for nature: a Mother Earth Ombudsman's Office (which has not yet been created) and a Plurinational Mother Earth Authority, which oversees climate policy.⁴⁸ That kind of thinking could transform existing independent entities like the Parliamentary Commissioner for the Environment or shape the design of new ones (eg the Oceans Commission described earlier).

However, the Urewera model may provide a more useful starting point for the institutional arrangements underpinning legal personhood for specific MPAs, given that it is also a protected area (a former national park). At a broader scale, an interesting possibility is for multiple MPAs or biogeographical regions, as legal persons in their own right, to be able to come together to form a national advisory body or advocate for oceans health: a council of MPAs.⁴⁹ A layering of institutions based on personhood for nature could be a good way forward.

It is not obvious who should get to speak for the oceans. On the one hand, institutions representing the moana could be accountable to human communities. For example, a governance entity could be comprised of Ministers holding relevant portfolios, enabling decisions to be made in a more integrated way. Seats could also be appointed by regional councils and mana whenua, supporting inter-agency collaboration. However, this would be primarily about democracy for people and integrated management, not giving the ocean its own voice. It would pay lip service to ecocentrism. It may also run the risk of decisions being dominated by some agencies more than others, given cultural differences between (for example) government departments.

There would be benefits in having, instead, a reasonably independent institutional arrangement at the core of governance, irrespective of the scale at which personhood is applied. A guardians model could be deployed, as in Kaikōura or Fiordland, where members of the community could come together to defend their own backyard. This would allow people who do not usually have a strong voice in the system to have a say, although it may be risky to assume that local communities will always act in the interests of nature (as has been seen with issues in some councils).

An Oceans Ombudsmen could be created, not to act on behalf of the ocean, but rather to review government actions to make sure they aligned with its statutorily defined interests. This role could be performed by the Parliamentary Commissioner for the Environment. However, this would be a reactive framework, in that it would be about preventing infringement of rights rather than actively exercising them. Alternatively, an expert board, appointed by a mix of government, mana whenua and potentially others (eg the Parliamentary Commissioner) and with a reasonably long tenure, could provide governance oversight. This could make the board less susceptible to shifts in politics driven by stakeholder interests or the changing economic fortunes of local communities. An interesting example is a proposal for the Wadden Sea.



Point Chevalier Beach, Auckland

Raewyn Peart

A spotlight on the Wadden Sea

Earlier, we shone a spotlight on a proposal for giving legal personhood to the Wadden Sea in the Netherlands, via legal “natureship”. This status would grant the Wadden sea the rights and ability to act as a legal person. But there would be a careful institutional framework behind it.

A board would be charged with making decisions under a clear statutory purpose, but would have to cooperate with two previously responsible ministries, and with the national government. However, it would ultimately make its own decisions. The board would be independent to ensure policy-making is solely based on the natureship’s interests and not on the wider policy concerns the ministry or government may have. However, there is the option of having a council within the natureship which is composed of the cabinet ministers most involved – their portfolios would continue but under the new governance framework of the natureship.

A similar approach could be taken in Aotearoa New Zealand for MPAs. But it is interesting that this proposal is to apply to a relatively *degraded* part of the environment, in order to halt and reverse decline. That is quite different to this country’s approach in the Marine Reserves Act, which is designed to protect *pristine* areas almost as a natural museum or laboratory.

If the moana (or parts of it) were to be given its own legal rights and personhood, careful thought would be needed on how institutional arrangements around it would work. There are many potential options (including those building on Te Urewera and the Whanganui River, or the development of guardians or an Oceans Ombudsman), but such institutions would need to be ultimately accountable to the environment itself.

12.5 Centralisation

When, and to what extent, should institutions in the oceans management system be centrally or locally controlled? Ultimately, the answer to this question is determined by recourse to the principle of subsidiarity, which assigns responsibility according to where the relevant community of

interest lies. The concept of a community of interest is, however, a slippery one. It can be interpreted in many ways, particularly in a space like the ocean, where interests overlap and few people live.

There has long been an expectation that the oceans have a strong national community of interest. The moana is one of the things that defines us as a country. This is reflected in the strong role of the Minister of Conservation in approving regional coastal plans and the mandatory nature of the NZCPS, the relative lack of local government influence over fisheries decision-making, and direct central government control in the EEZ and for shipping.

There are practical reasons for this too. The marine environment is very fluid, and it is hard to define meaningful boundaries. That is particularly the case when it comes to management of mobile resources like fish, where (despite being broken into management units through quota management areas) there is centralised oversight over all fish stocks. It is also the case with marine conservation, where the Department of Conservation is responsible for management and protection of species that can often cross boundaries (land-sea, inter-regional, and territorial sea-EEZ-high seas). And it is equally true of shipping, which by its very nature involves the movement of people and goods across boundaries.

However, there are also significant local communities of interest in the health of the moana, and how it is used. The Productivity Commission states as a general principle that “unless there are good reasons not to do so, decisions should be taken at lower levels of government close to the people affected”⁵⁰ and “in most cases local governments are in a better position to take account of local preferences and circumstances, especially where the effects of planning are also local”.⁵¹ In the marine space, impacts are very often felt locally. But when are there “good reasons” to centralise control? And why not change the starting point and require “good reason” to devolve control?

Take wastewater and stormwater discharges, for example. From an environmental perspective, these are still considered to be the preserve of regional decision-making, and we lack national standards.⁵² After all, seldom does such pollution noticeably spill across regional lines, so what exactly is the national interest in it? Is it because the healthcare system, responsible for dealing with human disease generated from wastewater overflows, is largely funded nationally? Or is it about a shared value that New Zealanders hold, that no one’s health and access to amenities like beaches or kai moana should be impacted by preventable wastewater overflows or polluted stormwater? The answer is not clear, other than that a government with centralising tendencies might choose to get involved.

Part of the difficulty is that questions about devolution involve arguments over fairness. The costs of an activity are not always felt at the same spatial scale as the benefits (or to the same degree). For example, commercial fishing and aquaculture operations may impact on local communities (eg recreational fishers, residents) but they contribute to the wider regional and national economy. An offshore mining operation might provide valuable minerals from a national perspective, but to local iwi or surfers, that is by no means a worthwhile trade off. And this tension is not just between nationally beneficial use and locally valued protection. The costs of protection can be felt locally and its benefits achieved at a national level (eg the establishment of a marine reserve where people value customary and recreational take). At what point does local control amount to “nimbyism of the sea”, and central control amount to an ethically questionable theory of utilitarianism (the greatest good for the greatest number)? These things are hard to measure.

Because mana whenua are intrinsically “local” or place-based (including where there is a defined customary marine title area), this adds another dimension to the debate about subsidiarity. Centralised control can be seen as removing influence from mana whenua because central government is often far away and disconnected. But devolving responsibilities to institutions that cut across multiple tribal boundaries can equally have issues.

To some extent, in Aotearoa New Zealand we tend to shift powers when it becomes urgent to do so, not by having a conversation in advance about where dominant communities of interest *should* reside or how a balance between them *should* be struck. There is a notable divide between the RMA, defined by a strong presumption in favour of devolution in the coastal marine area,⁵³ and sectoral management for fisheries, mining and shipping, which are defined by almost total centralisation.⁵⁴ Central government jurisdiction under the RMA is by no means absent, but it is determined on a largely ad hoc and reactive basis (eg by the discretionary development of national direction,⁵⁵ intervention in local planning processes, call-in of proposals of national significance, and ad hoc contributions towards infrastructure that local government cannot afford on its own). Is this approach to subsidiarity justified, or something that should continue in a future system?

Such questions need to be asked proactively. That it took three decades after the RMA passed into law for the courts to clarify that regional councils (including in partnership with mana whenua) have *some* role in managing fishing activity for broader biodiversity purposes, is astounding.

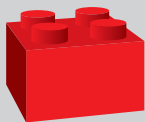
It is a question that, in our view, should have been clear since the inception of the Act. It has taken even longer for central government to contemplate national level regulations for estuaries or pollutants entering the marine environment. Aside from mana whenua forcing the issue around ownership of the foreshore and seabed, and in terms of fisheries and aquaculture rights, little progress has been made in terms of broader allocative issues (notably principles around occupation of marine space). And in the EEZ, where centralisation is total, the question of the extent of “local” mana whenua rights and interests remains contestable.

It is not clear what subsidiarity means in the marine space, and therefore the extent to which institutions for different domains, sectors and spaces should be centralised or devolved.

A discussion about centralisation gives rise to a number of options for institutional reform. One of the most significant questions is about the role of regional councils in a future system vis a vis central government. This is in two senses.

The first is whether regions should have less responsibility (and central government more) for marine management under the RMA. Some options here could involve relatively minor tweaks to existing institutions. For instance, central government could be required to take a stronger role in the development of national direction under the RMA for the coastal marine area, by (for example) creating regulations (one or more NESs) that give effect to the NZCPS. In fact, this is hinted at (albeit obliquely) in the latest proposals for the NBA, where mandatory limits must be imposed for the marine area and central government is anticipated to audit plans for compliance with national direction.⁵⁶

This responsibility could be given to the Minister for the Environment or, in line with existing responsibilities, the Minister of Conservation. It could include mandatory national direction (both policies and regulations) concerning wastewater and stormwater discharges, water quality in estuaries, sedimentation, and novel chemicals. It could even chart out policies and implementation provisions for establishing a regional network of MPAs that could be created using RMA/NBA tools. The time may have come for central government institutions to shed the baggage of the 1980s and be more proactive in identifying all areas in which there is a national interest, and in producing a single, integrated instrument grappling with them in an integrated way.



Central government could be tasked with a more proactive role in marine management under the RMA, including the mandatory production of regulatory provisions giving effect to the NZCPS and the spatial identification of areas for protection.

A more fundamental change could involve shifting the jurisdictional boundaries of regional councils landwards from the outer margin of the coastal marine area, with the balance of the space being placed under the jurisdiction of a central government agency (eg a strengthened EPA or an Oceans Agency).

Should regional councils be tasked with managing out to 12 nautical miles? Some factors suggest they should not. For one, boundaries *between* regions at this distance cease to make much sense, as the marine environment is much more fluid and less influenced by spatially fixed catchments than on land. Such a distance from shore raises practical issues too. Marine management is a specialised and expensive task, requiring the deployment of marine scientists and significant investment in marine science. Research and enforcement at sea requires the operation of costly vessels. Councils have, as yet, no direct source of funding for this work, apart from when they can piggyback on science undertaken by resource consent applicants and monitoring undertaken by consent holders.

Although there has been the ability to impose coastal occupation charges or tender aquaculture space to raise funds, these tools have not generally been deployed by councils (which have largely relied on land-based rates to fund whatever work is undertaken). Consistent national charging for occupation of the seabed, as part of a revamped allocation regime more generally, could help to address this gap.

As a result, not many councils have sea-going vessels and they have largely left the bulk of their vast marine environments to look after themselves. Even where a marine scientist is employed by a council, this does not enable the build-up of a critical mass of expertise within the organisation. When someone wants to do something new in the marine area, applications are largely considered case-by-case, based on the scientific information provided by the applicant.

The main exception is in areas where a significant aquaculture industry has established, and so the focus of the councils has been drawn into the marine space. Both the Marlborough District Council and Waikato Regional Council

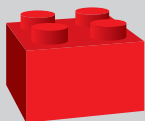
have invested in modelling in order to better understand the cumulative effects of aquaculture, and in the Marlborough Sounds the council has also undertaken work to identify important biogenic habitats and to protect them from further degradation.⁵⁷ In Auckland, despite the large size and capacity of the unitary council (thousands of employees and a rates revenue of nearly \$2 billion),⁵⁸ much of its marine area has yet to be fully mapped and many significant ecological areas in need of protection are yet to be identified in its planning documents. This begs the question: if Auckland Council has been unable to effectively manage its extended marine domain, what hope is there for other much smaller and less well-resourced councils?

The recent proposal to establish salmon farms in open ocean areas around the north and east coast of the South Island also highlights the difficulties faced by councils in effectively managing such activities. New Zealand King Salmon Limited made applications to multiple regional councils, none of which have particular expertise in this kind of activity. Does it make sense for each council to try to come up to speed on the impacts of deep-sea salmon farming for just one application? And what about other novel activities like carbon capture and storage, were an application to be made?⁵⁹

A spotlight on jurisdictional lines in the marine environment

Because of the fundamentally interconnected nature of the marine environment, it is difficult to draw hard jurisdictional lines that align management effort with ecological systems in the same way that largely spatially fixed freshwater catchments can be defined on land.⁶⁰ There is no scientific or ecological basis for the 12 nautical mile boundary between council and central government control. It was based on the political compromises honed through the multinational deliberations leading up to UNCLOS. One could argue, on one level, that this split happens to reflect a boundary where central and regional communities of interest diverge, but that is hardly a convincing argument.

There are many options for where a new jurisdictional line could be drawn. For example, council jurisdiction could include harbours and embayments and open coast out to around the three-nautical-mile mark. It could even be drawn at the mean high water springs mark.⁶¹ The balance of the marine area could be managed by the EPA or a better equipped and resourced Oceans Agency which can build up a critical mass of expertise in marine management.



In a future system, regional councils could continue to have jurisdiction over truly coastal matters, out to a three-nautical-mile boundary or similar. Alternatively, councils could have jurisdiction only to mean high water springs. In either case, other parts of the marine area could be managed by a well-resourced Oceans Agency.

A spotlight on an Oceans Agency

At the moment, the EPA has a relatively limited role with respect to the oceans, and a relatively constrained mandate. As our national environmental regulator, this role could be expanded in a variety of ways in the marine space. For example, a dedicated “Oceans Unit” could be established within the EPA, and its functions expanded to include marine consenting under both the EEZ Act and the RMA. This would have the advantage of building on an existing institution of a roughly appropriate character, and might remove such decisions from the politics and capacity constraints of some regional councils.

This unit could, over time, also form the basis for a more integrated oceans regulator – an Oceans Agency – which could also take on some or all of the marine functions currently undertaken by a range of other institutions, such as regional councils, Maritime New Zealand and potentially even the Department of Conservation. It could even subsume the activities of Fisheries New Zealand and part of the activities of Biosecurity New Zealand (business units of the Ministry for Primary Industries).

An Oceans Agency could be the operational agency for the Oceans Act explored in Chapter 11, and operate at arm’s length from government to ensure that it is seen as politically independent and retains high public regard.⁶² Such an entity would be as much about questions of accountability and independence as it would be about questions of centralisation and devolution. Government entities tasked with environmental management have often struggled with such matters, with allegations that the former Ministry of Fisheries was captured by the industry it was charged with regulating,⁶³ and the Department of Conservation resiling from its statutory advocacy role under political duress and budget cuts.⁶⁴ We have also

seen the EPA stripped of a key decision-making role under the EEZ Act, in favour of ministerially appointed boards of inquiry, after it declined two consent applications for marine mining.⁶⁵ And although the Fisheries Act enables action in relation to environmental and ecosystem issues, the relevant provisions (including the Act’s purpose and environmental principles) remain underutilised.⁶⁶ A stronger agency mandate or duty to use them is arguably required, and could be delivered through the more integrated mandate of an Oceans Agency.

Independence could be achieved through establishing this as a statutory Crown entity, as well as providing oversight of its decision-making by an Oceans Commission (eg in reviewing key planning instruments). There are three types of such entities which are legally separate from the Crown and operate at arm’s length from the responsible Minister, each with a different level of independence:⁶⁷

- *Crown agents*, which must give effect to government policy when directed by the responsible Minister. They include the Energy Efficiency and Conservation Authority, the EPA and Maritime New Zealand.
- *Autonomous Crown entities*, which must have regard to government policy when directed by the responsible Minister. They include Heritage New Zealand Pouhere Taonga.
- *Independent Crown entities*, which are generally independent of government policy. They include the Health and Disability Commissioner, the Human Rights Commission and the Climate Change Commission.

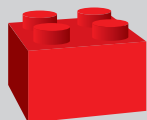
The best institutional form for an Oceans Agency might depend on the range of functions it is tasked with performing, some of which may require greater independence and others a closer relationship with Ministers. An appropriate choice may be an autonomous Crown entity, rather than a Crown agent. This means that an Oceans Agency would only need to have regard to government policy. However, “policy” here simply means the policy priorities of the government of the day. There would also be a robust legislative framework within which different institutions, including the Minister, could exercise influence through due process (eg by creating formal policy instruments for the oceans, like the NZCPS and fisheries plans).

The Oceans Agency could absorb staff from existing marine agencies, and build on their expertise, but would need to develop specialist marine science, marine spatial planning and environmental assessment capacity. Māori input into the Oceans Agency's decisions could be supported through a strengthened Ngā Kaihautū Tikanga Taiao model (building on the EPA's statutory Māori Advisory Committee).

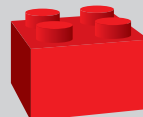
An integrated Oceans Agency may have similar benefits and risks as an Oceans Act. For example, it could cause fragmentation across the land-sea divide (especially if it were to take on the marine functions of the Department of Conservation concerning species protection), and the organisation may lack a clear purpose or mandate because it tries to achieve too much. There is something to be said for a sharp institutional purpose. However, centralising and integrating marine responsibilities could help to coordinate the use of tools that are (or are not) currently wielded by distinct institutions with different mandates, budgets, processes and chains of accountability

Another option would be for regional council seaward boundaries to be based on ecological factors (rather than 3 nautical miles). An ecologically based boundary might make particular sense in situations like the Hauraki Gulf, where a largely confined parcel of ocean is dominated by the influence of the land (or where there are inhabited islands to be managed), and therefore where splitting marine management between different entities across an artificial line might cause more problems of fragmentation than it would solve. Drawing such boundaries would require a national effort to fill gaps in scientific knowledge. But such an exercise would be valuable, not just in drawing jurisdictional lines, but also in supporting substantive ecosystem-based decision-making.

At workshops, we even heard some support for the *extension* of regional council boundaries beyond the coastal marine area. That would require a significant injection of new resourcing (and likely novel funding mechanisms, as land-based rates would not increase) as well as a generous interpretation of a regional community of interest. Should managers of the oceans around Rangitāhua/Kermadec Islands be accountable to the residents of Northland? Yet some extension of council jurisdiction might have the advantage of using existing partnerships between councils and mana whenua in the management of the EEZ, as well as breaking down the artificial barrier between marine zones.



A dedicated Oceans Agency could operate at arm's length from government and be the implementing agency for the Oceans Act. Alternatively, a strengthened EPA could take on this role. Māori input into the Agency's decision-making could be supported through a strengthened Ngā Kaihautū Tikanga Taiao model.



The seaward boundary of regional council jurisdiction could be redrawn, based on the approximate boundaries of ecological systems, including potentially expanding it beyond 12 nautical miles.

The second question about the role of regionalism is whether councils (or others at a local level) should have *greater* jurisdiction for other aspects of marine management, notably fisheries. This is a subtly different question than those about legislative design (whether the RMA should have a role in fisheries). This is because the RMA could see a *greater* role for *central* government (through national direction), not just regional councils (through regional coastal plans).

If the RMA *were* to be used to manage the impacts of fishing (to protect wider biodiversity), should regional councils take on this role? Or should other central government entities with roles under the RMA, like the Ministry for the Environment and Department of Conservation, be responsible? At the more modest end of the scale this could see councils protecting particular features (eg defined reefs) from some



Seafood truck, Monganui harbour

fishing methods (eg trawling), but it might conceivably extend to broader measures like setting regional biodiversity-based catch limits for stocks vital to the stability of ecosystems.

On the one hand, the impacts of fishing can be highly localised. Local depletion of stocks has implications for the health of spatially fixed habitats and related species as well as culturally important areas for mana whenua (including where recognised in a customary marine title). Fishing methods and gear also impact on local marine environments. Those things are the concern of local communities for whom the sea is their backyard, not just an abstract idea of biodiversity. For some, it might be the reason they vote for particular councillors over others.

However, as with management of the coastal marine area beyond (say) three nautical miles, resourcing and expertise would be an issue. Councils may struggle to deal with decisions about fisheries management other than in very tightly defined locations where the links between fishing and biodiversity are relatively well understood (eg around Motiti). This issue might be resolved to some extent by funding and structuring councils to undertake such roles, or by giving councils more input into decision-making, rather than total responsibility.

However, efficiency and consistency of management might suggest that national responsibility is appropriate, so that a consistent approach to (for example) gear requirements, fishing methods and spatial protections are imposed across an industry that frequently crosses regional boundaries. While sharing of resources and information between councils is possible (eg through fora like the Coastal Special Interest Group), fisheries expertise should arguably be concentrated to avoid duplication (or shortages) across multiple entities such as councils. As we have said elsewhere:⁶⁸

even where communities of interest are arguably local, and local values are at stake, it can make sense for reasons of efficiency and resourcing for institutions to make decisions at a spatially wider level.

This is not to suggest that the Fisheries Act is necessarily the best place to achieve controls on fishing activity for broader biodiversity reasons. Central government could do so under the RMA. Indeed, to some extent the conversation about *Motiti* is not so much about subsidiarity (there is a strong national community of interest in both fisheries and marine ecosystems), but more about the failure of central government to implement the right tools at the right spatial scales, notably MPAs. If central government partnered with mana whenua in the creation of more nuanced MPAs across the moana (whether under national direction or

conservation legislation), one can legitimately wonder whether a regional community of interest in fisheries management would still be so obvious. It's not that *regions* have to do it; it is that *someone* has to do it.

That said, arguments can be made that some fishing controls should be available to councils (eg to manage spatial conflicts with other activities, to protect wāhi tapu, or to safeguard regionally significant ecosystems). The RMA is reasonably well set up to deal with overlapping communities of interest here, including by setting national standards and allowing regional instruments to be more “stringent” in certain circumstances.



Regional councils could be given more jurisdiction over fishing activity for biodiversity purposes, embracing *Motiti* and taking it even further.

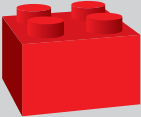
If some institutions in a future system are to remain highly centralised, that begs a further question: to what extent can or should Māori institutions be centralised? There have been efforts to do so for some things (eg the Iwi Chairs Forum or Te Ohu Kaimoana). However, these do not speak for mana whenua. Indeed, it may be challenging to centralise both independent and accountable Māori institutions. Mana whenua have their own tribal areas of authority, and tikanga and mātauranga are place-specific and cannot easily be translated at a national level through an objective or “expert” entity.

That raises questions with much broader constitutional resonance: is it possible or desirable to create a national level co-governance entity through which Māori and the Crown partner for issues like fisheries, mining and biosecurity? Or should partnership occur at a regional level (iwi/hapū and Crown/councils)? There is the question of whether the Tikanga Commission described earlier in this chapter would be a feasible and desirable option, and whether there is need for a more representative, national-level Māori body with which the Crown partners (a form of national Māori executive or even branch of Parliament) for matters including oceans governance. Ultimately, this is a question for Māori to resolve, and rich conversations have been prompted by documents like *He Puapua* and *Matike Mai* (see Chapter 4).

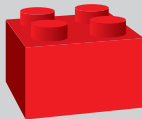


An oceans co-governance entity between Māori and the Crown could be established at a national level and/or regional co-governance partnership bodies could be established at a regional level.

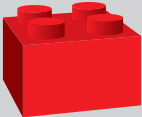
We cannot cover every option that might emerge from a discussion about centralisation of institutions, but we flag that these could be wide ranging. For example:



Three waters services (including wastewater and stormwater which can have significant impacts on the marine environment) could continue to be managed by territorial authorities and council controlled organisations, or there could be greater centralisation via co-governed national entities or state owned enterprises.



An independent Oceans Commission or arm’s length Oceans Agency could have semi-autonomous regional branches.



If we were to give rights to nature, the “moana” as a person could be centralised (a single person) or have ecologically defined regions (different parts of the same body) that can speak for their own interests (or both, where branches come together in an Oceans Congress).

This is a broader conversation being had at the moment in the context of three waters reforms, and we have noted in previous work that a more centralised model (and the economies of scale and ability to socialise costs that come with it) may drive better environmental outcomes (including in the marine environment).⁶⁹

The degree to which institutions in a future system should be centralised or locally controlled raises a number of other questions that could be explored by policy makers.



Nelson wastewater treatment works

Raewyn Peart

12.6 Geographical and subject focus

To what extent should institutions focus their attention on particular geographical areas in the marine space? This is a slightly different question to how central or local institutions should be. It is about whether particular areas should be treated differently from the rest of the country in terms of their institutional arrangements.

Some place-based interventions may require more than just targeted legislation that places obligations on existing institutions. They may create entirely new ones that are tailored to the needs of an area. These can be carve outs (eg Auckland Council has its own institutional arrangements in special legislation quite different from others) or they can be additional institutional layers (eg marine guardians in Fiordland and the Hauraki Gulf Forum in the Hauraki Gulf). Te Tiriti settlement legislation has provided a rich source of geographically specific institutional and governance arrangements, because it is often targeted within the tribal boundaries of mana whenua.

There are risks in taking this approach too far. Complexity, accessibility and predictability are some. Efficiency is another. In a small country, can we really justify a proliferation of different kinds of institution in different places? It is challenging enough navigating the differences in how institutions with a nationwide spread, like councils, create and implement planning instruments, without having to contend with alternative kinds and layers of institutions in some places.

So what does this mean for the moana? We could consider which existing place-based institutional frameworks could usefully be rolled out on a wider basis. Should we, for example, create guardians for all inshore marine areas across the country, resembling the role of guardians in Fiordland or Kaikōura? Or for each new MPA or group of MPAs? The point of that might be to provide an alternative stream of information and advice to decision-makers from those on the ground with a mandate to protect a particular place, or it might be to provide a more integrative forum in which the activities of other institutions (eg for fishing, marine protection, catchment impacts, biosecurity) can be aligned and coordinated. Such arrangements might be particularly useful in biogeographical regions that are the focus of marine spatial plans. For example, some have bemoaned the poor implementation of the plan agreed as part of the non-statutory Seachange Tai Timu Tai Pari initiative in the Hauraki Gulf, and in a future system (if marine spatial planning was rolled out across the country) guardians could be established to monitor and oversee progress after the actual planning process has been completed.

A spotlight on local marine management legislation

Local marine management area legislation has taken the form of the Hauraki Gulf Marine Park Act, then the Fiordland (Te Moana o Atawhenua) Marine Management Act and, most recently, the Kaikōura (Te Tai o Marokura) Marine Management Act. These cross-agency local area pieces of legislation establish iwi, sector and community representation groups (ie the Hauraki Gulf Forum, the Guardians of Fiordland and the Kaikōura Marine Guardians respectively). As earlier indicated, the latter two create a direct conduit of information from local communities to the Ministers of Fisheries and Conservation.

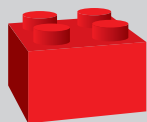
This approach is arguably cheaper and more locally representative than running individual sector liaison groups (eg for fisheries management). However, such groups run the risk of becoming disconnected from their community base over time. A mandatory review of their structure and inclusiveness can therefore be helpful. One example is the cross-agency review of inclusiveness, community representation, process, and structure of the Kaikōura Marine Guardians.⁷⁰



Motuora Island, Hauraki Gulf

Raewyn Peart

That said, the point of spatially targeted institutions is not necessarily to represent those living or operating in an area or community. It might be to recognise and defend the unique values of a place from a national or even international perspective (eg Fiordland and surroundings form a world heritage area),⁷¹ even where it conflicts with local priorities (eg for economic development). It is more about giving a laser sharp focus to management in a particular place. One interesting possibility is to confer legal personhood and rights, not on the moana as a whole, but on particular places warranting special management (eg Rangitāhua/the Kermadec Islands). Here, the purpose might not be about people's interests at all, irrespective of whether they form a nation, a local community, or a sector. Instead, a geographical area is conceived of as having its *own* interests, and therefore warranting its own institutional champion.



Place-based institutional arrangements could be rolled out more broadly across the moana, reflecting existing guardian and advocacy roles performed in Kaikōura, Fiordland and the Hauraki Gulf. For example, every new MPA could have its own guardian.

The role of regional councils in the marine space raises questions, not only about devolution (whether central government should take over), but also about councils' geographical focus. In particular: should the boundaries *between* regional councils be shifted so they are set as much on the ecological dynamics and characteristics of the moana as they are on catchment boundaries?



Deep Cove, Doubtful Sound

A spotlight on inter-regional boundaries

For management under the RMA, the territorial sea has been divided up into regional council management areas, usually based on a simple extension of the land-based council boundaries out to the 12-nautical-mile limit. Such boundaries are typically based on water catchments and fail to reflect the biophysical realities of the sea. This has resulted in some notable anomalies where the Kaipara Harbour is divided between two regional councils (Northland and Auckland) as is the Hauraki Gulf (Auckland and Waikato). Horizons Regional Council manages only a small sliver of the south-east coast of the North Island. Where smaller unitary councils have been established, the fragmentation has been even greater. In Tasman Bay, Nelson City Council manages a narrow strip through the middle of the bay, with Marlborough District Council managing the eastern side and Tasman District Council the western side. These arrangements contrast starkly with those for the EEZ and extended continental shelf, which are managed by the EPA as one enormous, undelineated spatial unit under the EEZ Act.

This fragmentation of jurisdiction over the coastal marine area has had very tangible consequences, which can be seen in the particular difficulties (and, recently, effort) in the Hauraki Gulf where many different institutions need to cooperate to fix issues in the Gulf. Part of that is because of regionally defined boundaries.

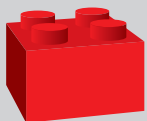
To help address this, one option would be for council boundaries to be redrawn, taking into account both catchment and marine ecological features (and potentially also informed by mana whenua boundaries and the evolving rollout of customary marine title areas under the MACA Act). Such an exercise could be informed by previous efforts to spatially divide the coast up into ecological units based on biophysical characteristics. For example, in the territorial sea, 14 biogeographic regions have been identified based on visible ecological patterns and physical characteristics. Nine of these surround the mainland coast and five cover different offshore island areas.⁷² These regions do not currently coincide with jurisdictional or management boundaries, but they have been used by the Department of Conservation as a basis for identifying MPAs.⁷³

In a future system, such biogeographical regions could be used to better align catchment and marine boundaries. Indeed, council boundaries are an open question at the moment with the

government's review of local government, and expanding them may be consistent with a drive towards fewer councils. Better aligning council jurisdictions with marine ecosystems might be particularly important if regions are to take on more marine functions as discussed above. It would also be helpful if regional council boundaries aligned with the boundaries of marine spatial planning exercises, which was not the case in the Hauraki Gulf.

It may be impractical to entirely align council boundaries with marine systems. One can foresee a reluctance, for example, to revisit the "regionalisation" of the Auckland super city along fundamentally different lines. The driver at the moment (eg under the proposed NBA) seems to be more towards regionalisation of local government based on current regional boundaries, rather than redrawing those boundaries or integrating multiple regions. However, the Randerson Panel's mandate did not include considering local government reform. There is also the relationship between regional councils and territorial authorities to consider. If local communities of interest do not fit neatly within regions defined by ecological factors, that could complicate integrated planning on land (eg through combined planning committees) envisaged under the NBA.

Another option would be to have a separate, marine focused layer of local government ("maritime councils") whose boundaries would be defined by marine ecology, not catchments or communities of interest. Existing inter-regional boundaries would remain intact, with the marine jurisdiction carved off to separate entities. However, that would lose the valuable integration between catchments and coast currently existing within a single regional institution, and would beg the question: why not just create an Oceans Agency to do the same thing and get rid of inter-regional boundaries altogether?⁷⁴ After all, it is not clear that there is a stronger regional than national community of interest when it comes to the health of large scale marine ecosystems, calling into question why maritime councils would be elected by regional constituents at all.



Inter-regional boundaries could be shifted so that they better reflect the ecological characteristics of the sea. Alternatively, a separate layer of maritime councils could be established with jurisdiction over biophysically defined parts of the moana.

The "geographical" focus of marine institutions is closely related to their "subject" focus. This is because a focus on a single defined space – the marine area – can often be an alternative to focusing on a "subject" that spans land and sea. We can split institutions along quite different lines here depending on where the stronger connections are. For example, Biosecurity New Zealand is focused on the cross-cutting topic of biosecurity that spans land and sea, not just *marine* biosecurity. In a future system, institutions could be reconfigured to focus more on oceans as a space (integrating all or most marine management topics into a single institution) rather than focusing on topics that span land and sea.

This institutional focus on the moana could be achieved in different ways. For example, the marine focused parts of the Department of Conservation, the EPA, and Biosecurity New Zealand could be merged with Fisheries New Zealand and Maritime New Zealand to form a single Oceans Agency.⁷⁵ This could be complemented by transferring the marine jurisdiction of regional councils as well, creating a jurisdictional boundary at mean high water springs. Here, one set of institutions would manage the land, and another would manage the sea.

Such an agency could bring together a critical mass of expertise related to marine management and make it easier to make links between related areas and tools (eg fishing, MPAs, species enhancement, coastal occupation and so forth). It would provide a much clearer champion for marine spatial planning, and a more direct line of sight between the creation of a spatial plan and its implementation (the same institution would do both). An integrated agency could even be an alternative to the creation of an Oceans Act, as it could coordinate its activities across fragmented frameworks like the Fisheries Act, conservation legislation, the Maritime Transport Act, the Biosecurity Act, the RMA and the EEZ Act (as the Department of Conservation has done across multiple pieces of conservation law). An agency focused on the oceans as a space could also provide a more powerful and focused voice in other decision-making fora, such as catchment management, land use, climate change and waste regulation.

However, there are compelling reasons for regional councils to retain some role in marine management, especially in inshore environments. This is because what happens on land (and in water catchments draining into the sea, in particular) impacts on estuaries and inshore coastal environments, including via sedimentation, nutrient runoff, contaminated stormwater flows and point source pollution (such as from wastewater outfalls).⁷⁶ Regional councils should be well placed to manage this land-sea interface and can deploy regional level strategy (eg regional policy

statements, which have as their purpose to provide “an overview of the resource management issues of the region and policies and methods to achieve integrated management of the natural and physical resources of the whole region”).⁷⁷ Ideally, management targets and objectives set by councils for the marine area (especially estuaries) could drive management effort and regulatory controls further up the catchment (eg for agriculture, forestry and earthworks). It is questionable whether a marine-focused agency could achieve that as effectively. For example, the Parliamentary Commissioner for the Environment has suggested that estuaries make more sense as freshwater management units under the NPS on Freshwater Management (a land-based instrument), and are not something to be dealt with in the NZCPS.⁷⁸

Integrated management across the land-sea interface is also important when it comes to sea level rise, coastal hazards and urban design. Regional councils have oversight of land use across a region, and can address urban growth and design through a regional policy statement. How cities expand, and the activities that are authorised near the coast (eg industry, roads, infrastructure, reserves and nature areas), can have significant impacts on the moana. In short, it makes a great deal of sense for regional councils, responsible for and aligned according to freshwater catchments and with oversight of land use, to manage the coastal environment (ie the area of sea influenced by land) too. The caveat is that they need to have the funding and capacity to do so.

There are also good reasons for other institutions to be focused on cross-cutting subject areas rather than on the marine space. Climate change is a good example, where emissions need to be managed in an integrated way irrespective of the place where they are generated, and where subject focused institutions like the Climate Change Commission are needed. We would not have a *Marine* Climate Change Commission. In a practical sense, it may also be risky for an entity like Biosecurity New Zealand to be split between land and sea, especially if land and marine entities had to coordinate responsibilities under a single Biosecurity Act (eg overlapping jurisdiction over cargo ship inspections).⁷⁹ And even if that Act itself were to be split (eg its marine components placed in an Oceans Act), there still might be value in having a single *entity* responsible for delivering this particularly important type of outcome that has its own targeted toolkit.⁸⁰ Indeed, it is telling that international shipping standards (eg concerning ballast water and biofouling) have been translated, not through Maritime New Zealand’s Maritime Transport Act framework alongside other shipping standards, but rather through the Ministry for Primary Industry’s Biosecurity Act framework.⁸¹ That reflects where the concentration of expertise lies.

On the other hand, the integration of marine biosecurity with other marine matters within a geographically focused Oceans Agency could provide opportunities. For example, it might help in locating compatible activities together (and incompatible ones apart) when it comes to marine spatial planning (eg the location of ports, different aquaculture operations, recreational fishing areas, shipping lanes, and areas vulnerable to incursion due to climate-induced changes in species makeup). That would still be possible with multiple agencies working together at a strategic level, but it might be more effective if the powers to do something about it (especially to regulate and fund) were also located in a single entity. There would also be fewer points of engagement for the public to navigate.

Moreover, there may be benefits in integrating responsibility for marine biosecurity and other marine matters like shipping and aquaculture. The main way that invasive marine organisms enter New Zealand is attached to the hulls of vessels entering the country (or other equipment like oil rigs) or through their exchange of ballast water. Species are most commonly spread through the movement of vessels around the coast (both commercial and recreational) and the translocation of equipment and live marine organisms in the aquaculture industry. Surveillance is focused on the main ports and marinas around the coast. Marine biosecurity is thus arguably more closely related to shipping than other elements of biosecurity (which are more focused on air and shipborne cargo as entry points). Indeed, this is reflected in the current degree of structural separation between land focused biosecurity instruments and marine focused ones.

Institutional boundaries can be drawn so that they focus on subjects or topics that span land and sea (eg biosecurity, climate change and catchment pollution). This is noticeable in the current system. In the future, institutions could focus on different geographical spaces: some for land, some for sea. There would be benefits in having an integrated Oceans Agency focused on the latter, but also downsides given the complexity of the land-sea interface.



Future institutions could focus on different geographical spaces: some for land and some for the sea, with an integrated Oceans Agency focused on the latter.

Sharp jurisdictional boundaries between some institutions (eg drawing a line at mean high water springs) can in practice be softened by layering other institutions on top. This can be seen in the example of the Californian Coastal Commission. In Aotearoa New Zealand, an Oceans Agency's jurisdiction could end at the high tide mark where council jurisdiction could begin, but a Coastal Commission could have roles across both areas. Alternatively, an Oceans Agency itself could perform this role by ensuring that terrestrial plans and regulations complied with the requirements of marine legislation. For example, it could be given powers to amend a district or regional plan if it would fail to protect a MPA (eg due to sediment impacts) or have impacts on fish stocks or estuarine habitats.

Raewyn Peart



Muriwai Beach, Auckland

A spotlight on the California Coastal Commission

The California Coastal Commission, established in 1972 and operating under the California Coastal Act 1976, provides an interesting model of a dedicated agency that focuses on complex environmental challenges in a particular spatial area – the coastal zone. This includes land up to several kilometres inland and the coastal marine area out to three nautical miles (which is the extent of the state government marine jurisdiction). The Commission has 12 voting members, six of whom are locally elected officials and six of whom are appointed by the state government from the public at large. Three ex officio (non-voting) members represent state government agencies, serving to link the work of the Commission with other government initiatives.

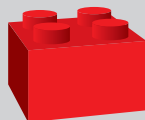
The Commission works with local government to assist with their long-range planning and to confirm that their plans conform with the Coastal Act and other state government requirements. Once a local plan (similar to a district plan under the RMA) is approved, local councils are authorised to approve coastal development permits. The Commission retains appeal authority over some significant local council decisions, and directly makes decisions over development applications within the coastal marine area and on public trust land.

The Commission is small – with a budget of around US\$20 million a year and just 145 employees. It is able to make decisions that are locally unpopular but are in the broader public interest. It provides a useful model for how an additional oversight layer can be provided over planning and consenting in sensitive areas under high development pressure, and how (in its focus on the coastal zone) institutional design can help integrate land and sea while retaining clear jurisdictional responsibilities.

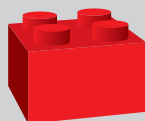
A range of other institutions could focus on the oceans as a space. For example, an Oceans Commission might perform a watchdog role similar to the Climate Change Commission (eg providing advice and evaluating performance of government), and focusing on the health of the whole marine space rather than individual siloes within it (eg fishing or species conservation). While this could be nested within an expanded Parliamentary Commissioner for the Environment or broader “Futures Commission”, a standalone entity would provide a dedicated focus on the moana that could hold fragmented agencies like councils, Fisheries New

Zealand, Maritime New Zealand and the Department of Conservation (if these were to remain separate) to account. An alternative mechanism might be to have a “Chief Oceans Advisor” similar to the position occupied by the Prime Minister’s Chief Science Advisor.

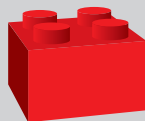
If a sharp boundary were drawn between marine and land focused institutions at mean high water springs, it could be softened by adding an additional institutional layer like a Coastal Commission. This may have other benefits too, including providing a hybrid governance model that could integrate central, regional and mana whenua representation in the coastal zone. Another option would be for an Oceans Agency to have additional jurisdiction to influence land-based decision-making, such as catchment pollution and coastal land uses.



An institutional overlay, in the form of a Coastal Commission, could be established to integrate management of land and the sea if a sharp division was created between land management (by councils) and marine management (by an Oceans Agency or similar).



An Oceans Agency could be given an integrating role by ensuring that terrestrial plans and regulations complied with the requirements of marine legislation.



An independent Oceans Commission could perform a watchdog function over all government responsibilities at sea, but it could equally be incorporated into an entity like a Futures Commission applying to the whole of Aotearoa New Zealand.

A finely balanced question of institutional design is whether the Department of Conservation should be split up, with its operational marine functions incorporated into an Oceans Agency. This mirrors the similar trade-offs discussed in the context of legislative design (whether conservation legislation should be integrated into an Oceans Act or remain

separate). Splitting off the marine functions of the Department could have some benefits, in that conservation concerns could be integrated into other facets of marine decision-making. It could, for example, ensure that protected areas were high in the minds of those thinking about the future of fishing and aquaculture, and that the impacts of all activities on marine mammals translated to action through the whole toolkit (from bycatch restrictions to sanctuaries to population management plans). As one interviewee has warned in the conservation context, “there needs to be more multi-agency collaboration to avoid iwi having to talk to 22 different agencies” as they progress different processes and deploy different tools.⁸² Fragmentation of marine agencies across conservation, shipping, pollution control, fishing and so forth can jar with the more holistic approach embedded in te ao Māori.

On the other hand, marine conservation efforts often rely on management of highly mobile species and their habitats. Many of these do not just live in the ocean; birds and diadromous fish, in particular, can be highly migratory, spanning land, sea and freshwater. An Oceans Agency separate from a conservation focused agency on land, could undermine one of the key outcomes sought by the system (integrated management of protected species). A similar problem would arise if the Department of Conservation’s role was split and a *marine* Conservation Authority established.

Whether marine agencies (an Oceans Agency or something else) or the Department of Conservation should be responsible for establishing and maintaining MPAs is not so obvious. That may depend on their purpose and the extent to which they need to link to other species-based protections (eg species’ feeding or nursery grounds at sea and on land) and land-based protected areas (eg coastal reserves).

It may also be difficult to reconcile the quite different cultures and mandates of conservation-focused and utilisation-focused institutions. The mandate of an Oceans Agency (and, if there were separation between them, an Oceans Ministry)⁸³ could be so broad as to mean all things to all people. There is the risk that, in practice, it could be dominated by one set of concerns over others based on leadership appointments. An alternative solution would be to retain separate institutions and focus on how they work together. Different entities with defined mandates can, for example, physically co-locate (eg in regional hubs). And they can come together in formalised groupings to provide more integrated advice and share ideas and resources.

One way to achieve this would be to give a formal statutory basis to the recently established Oceans Secretariat, which is comprised of multiple

agencies concerned with the marine environment. Presently, this could be disestablished at the whim of a Minister. Were it to be formalised, membership of the secretariat could even be extended to representatives from regional government and mana whenua.

As with the boundary between marine legislation and conservation legislation, it is not clear whether the Department of Conservation's marine functions should be incorporated into institutions focused on integrated management of the marine space (eg an Oceans Agency). While there may be benefits, there would also be considerable downsides. The Department could, however, work closely with other marine institutions, with such relationships formalised through giving a statutory basis to the Oceans Secretariat.



The Oceans Secretariat could be given formal statutory basis and its membership extended to representatives from regional government and mana whenua.

The subject focus of institutions is not just about whether they should focus on things that cross the land-sea divide. Even *within* the marine space, institutions can be targeted at the management of more specific subjects. For example, Fisheries New Zealand⁸⁴ and Maritime New Zealand

are focused on separate *sectors* within the marine environment. Whether that is desirable is debatable.

On the one hand, they have reasonably clear missions reflecting the quite different purposes of the legislation under which they operate. They can serve as a critical mass of expertise for management subjects that are highly technical. And sector-focused institutions can form good working relationships and build trust with the particular industries that they regulate. Excessive integration can lead to a lack of focus. People can get lost in a mega-ministry concerned with everything and everyone. Objective overload can lead to short-term prioritisation (seeking the “easy wins” rather than tackling the hard stuff), generalised policy-speak that seeks to balance objectives, and focusing on strategies rather than pointed action.

A spotlight on the International Maritime Organization and Maritime New Zealand

The International Maritime Organization was established in 1948⁸⁵ as a specialised agency of the United Nations. Its objectives include *inter alia* the creation of regulations for international shipping, maritime safety, the efficiency of navigation, the prevention and control of marine pollution from ships, and the consideration of a range of shipping matters including the effects of shipping on the marine environment.⁸⁶ It has adopted a wide range of measures to prevent and control pollution caused by ships and to mitigate the effects of any damage that may occur as a result of maritime operations and accidents. The Marine Environment Protection Committee is its senior technical body on marine pollution related matters.

Essentially, the International Maritime Organization is an international institution designed to regulate a particular sector in a highly detailed way (compared to many other aspects of international law). Institutional arrangements in Aotearoa New Zealand to some extent reflect the fact that it is much simpler to have a comparably focused institution – Maritime New Zealand – concerned with all (or at least most) aspects of shipping, and which can translate international standards and requirements into a domestic context. In other words, a sectoral lens makes some sense, even though it creates something of an artificial and overlapping boundary with the environmental jurisdiction of the EPA and regional councils when it comes to vessels at sea.



Moeraki

On the other hand, separation between sectoral agencies and those concerned with broader things can create issues. For example, the *Motiti* litigation demonstrates the unclear relationship between the broad role of regional councils in biodiversity protection and the narrower sectoral role of Fisheries New Zealand in fisheries management. No one quite knows what the other is meant to be doing. Similarly, the case of the Bryde's whale (see Chapter 11) shows the risks of multiple institutions (including councils and Maritime New Zealand) using (or failing to use) different tools at their disposal.

Such things might be less inclined to fall between the cracks if marine focused institutions were themselves integrated, creating clearer lines of accountability and a whole of system marine “steward”. As one commentator has said, we need a “lead agency responsibility to coordinate all efforts in this space, including providing clarity around the roles of local and central government, Treaty partners and kaitiaki in fisheries and biodiversity management”.⁸⁷ An integrated Oceans Ministry or Oceans Agency might be well positioned to perform that role. In particular, it is important that a holistic, or ecosystem, view be taken of marine environmental limits, which relate to a fluid environment that does not reflect management silos.

Conversely, a lack of sectoral focus can have negative consequences. For example, there is no institutional framework specifically for marine tourism in Aotearoa New Zealand. Tourism is managed by a raft of different bodies (at the central level): the tourism policy unit in the Ministry of Business, Innovation and Employment, Tourism New Zealand, New Zealand Māori Tourism and the Department of Conservation. Regional Tourism Organisations also operate around the country. The Tourism Strategy indicates that the government wants to improve coordination, sustainability and planning in the tourism system. A lack of data and information is recognised. Fragmentation does not help management of a sector where, in contrast to a direct action like fishing or mining, human actions (“tourism”) are harder to define and regulate.

An Oceans Agency could arguably help here, by making institutional responsibilities clearer and making strategic links between the purposes of tourism and conservation (eg MPAs, marine mammals), fishing (eg charter fishing expeditions) and pollution (eg the impacts of cruise ships). It could also highlight areas where gaps need to be filled. For example, no agency is responsible for how tourist numbers move around different parts of the country, putting pressure on those who have to address their adverse impacts (eg by funding infrastructure to prevent pollution of the marine environment through litter and human waste). Border closures due to

Covid-19 have seen some wondering whether it is time for a more holistic reset of international tourism, and whether a more proactive approach to management is required (including whether large cruise ships should be allowed in some places, or allowed at all). Such things depend on the system's objectives.

However, subsuming sectoral concerns within a broader marine agency could also cause something like tourism to fall between the cracks when “big ticket” items like MPAs and fishing are front of mind. There is also a need for tourism to be managed across land and sea. After all, tourists are never just *marine* visitors.

There can be benefits in institutions focused on particular sectors. However, a sectoral focus needs to be nested within a broader institutional framework looking at ecosystems in the round. The oceans management system needs a clear overall steward.

12.7 Tasks

Institutions can be tasked with taking different kinds of action. These “tasks” should not be confused with the “roles” the system performs as described in Chapters 6 and 7. In performing any given role, such as setting environmental limits, an institution can be charged with one or more tasks (eg policy, regulation and enforcement). While other tasks might be possible, core ones might include the following.

- Developing policy and providing advice (eg Department of Conservation advising the Minister of Conservation and developing an MPA strategy)
- Creating regulation (eg the Minister for the Environment creating an NES)
- Enforcing regulation (eg regional councils issuing an abatement notice for breaching the conditions of a coastal permit)
- Undertaking operational tasks (eg the Department of Conservation managing a marine reserve, or undertaking research)
- Funding (eg Fisheries New Zealand commissioning research on a fish stock and the Department of Conservation funding community groups)

- Advocacy and education (eg the Department of Conservation participating in Environment Court proceedings under the RMA, or the Ministry for Primary Industries advocating for primary producers in international fora)
- Dispute resolution (eg the Environment Court resolving an appeal on a plan or consent).
- Providing administrative support (eg the EPA supporting boards of inquiry under the RMA).

These are fairly discrete categories, but often institutions can be expected to perform more than one task. In other cases, there can be a conscious separation of tasks across different entities. The key question is the extent to which multiple tasks should be the responsibility of a single institution, or distributed across more than one.

The characteristics of existing marine institutions are interesting when looked at through this lens. Sometimes, there is no clear separation between tasks while in others it is quite deliberate. For example, the Ministry for the Environment is largely a policy shop. It advises the Minister and develops marine policy and high level regulation, as well as funding various initiatives. It does not manage the marine space directly (it does not set rules in regional plans), nor does it undertake enforcement action. The same is true of the Ministry of Transport. Operational, enforcement and dispute resolution tasks are instead undertaken by councils, the EPA (and related boards of inquiry and courts) and Maritime New Zealand.

In contrast, the Department of Conservation, Fisheries New Zealand and Biosecurity New Zealand have much stronger operational and enforcement roles alongside policy, funding and regulatory roles. They are much more than policy shops. The Environment Court is also an interesting case; it has a dispute resolution and enforcement task, but it is quite unique within the judiciary in that (effectively) it also has policy and regulatory tasks when making substantive decisions on regional coastal plans and coastal permits.⁸⁸

As we pointed out in previous work:⁸⁹

There are advantages in integrating multiple tasks within a single institution, especially aspects that can be considered part of a single policy or development cycle. Thus, it is desirable that the creation of policy (eg objectives and policies in a regional plan) closely informs what regulatory instruments look like (eg planning rules and standards and consenting conditions), which in turn are closely connected to

their enforcement. Having the relevant people sitting within the same offices can be helpful to make links and clarify intentions. ... Funding powers also need to be closely linked to operational decision-making (eg there is no point planning [something] unless it can be paid for).

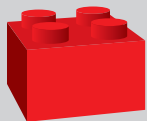
The separation between key policy and regulatory tasks under the RMA (central government creation of relatively vague policies in NPSs, and reliance on local government implementation through rules in plans) has caused some difficulties, such as the disjunct between sedimentation policies in the NZCPS and rules controlling land use in regional and district plans. While this may be partly a product of other institutional features (eg the politicisation of planning under elected regional councils), it has not been helped by central government being standoffish when it comes to overseeing implementation of national direction (eg failing to audit rules to ensure they give effect to policies, or create national level regulations). That is changing now in the freshwater context, and resource management reform may be a driver for a more systemic involvement of central government in the nitty gritty of RMA/NBA plans.⁹⁰

The separation of strategic and funding tasks can also be problematic in the marine environment. This can be seen in the Hauraki Gulf, where a collaborative group charged with creating a strategic spatial plan for the Gulf had no direct ability to fund (or regulate) to bring it into existence. Many operational actions require considerable resourcing (eg planting and restoration), but have to go through a variety of siloed agency processes in order to obtain it.

However, there are also advantages (and sometimes necessities) in separating tasks. For example, it is often desirable to separate operational responsibilities (eg building navigation infrastructure) from regulatory ones (addressing its environmental impacts) and enforcement ones (taking action if regulations are breached).⁹¹ As such, there are trends towards the use of independent commissioners for consenting decisions within councils (to depoliticise project-specific decisions),⁹² and the use of good practice guidelines in depoliticising enforcement decisions (ie delegating to expert staff).

Institutions can undertake a wide variety of tasks. These include policy, regulation, enforcement, funding, advocacy, operational tasks and administrative support. The key design question is the extent to which multiple tasks should be the responsibility of a single institution, or be distributed across more than one.

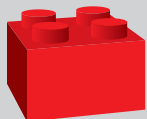
There is a rich conversation to be had here when it comes to options for a future system. Key options might include the following.



The “policy shop” advisory functions of ministries could be separated from their regulatory tasks.

For example, Ministers could be responsible for setting policy under the RMA/NBA (eg through the NZCPS or marine part of a national planning framework) but leave regulation-making to an expanded EPA or Oceans Agency. Similarly, Fisheries New Zealand could retain a policy advisory role to the Minister of Oceans and Fisheries (who would create fisheries strategies and plans), but devolve regulatory decision-making on sustainability measures (including catch limits) to an arm’s length Oceans Agency on the basis that they involve implementing values rather than determining them. Alternatively, regulatory roles could be shared with the judiciary (eg by enabling appeal rights for national direction and under the Fisheries Act).

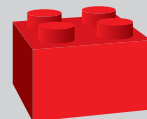
If we were to establish an Oceans Agency, this could itself be a policy shop, advising Ministers. In that case, one might call it an Oceans Department. Alternatively, its focus on regulatory, operational and enforcement tasks could be complemented by a separate policy-focused Oceans Ministry.



Regulatory tasks could be more clearly separated from enforcement tasks.

This could be done informally by creating divisions within institutions (expert enforcement branches). However, a more formal distinction could be made by moving the enforcement roles currently undertaken by regional councils and/or Fisheries New Zealand to a strengthened EPA. For councils, that might formalise best practice by removing enforcement decisions from political interference and concentrating expertise in compliance matters. It would also mean that potentially expanded central government direction (in the form of new NESs or mandatory environmental limits) would be enforced at a national level. However, it would create a greater separation between the enforcement task and plan making and consenting (which set the rules that need to be enforced), as well as between the enforcement agency and the regulated community.

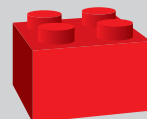
For other specialist and central agencies like Fisheries New Zealand, Maritime New Zealand and the Department of Conservation, it could dilute expertise (fisheries enforcement is by no means the same as other scenarios) and risk undue separation from expert operational functions (eg the Department of Conservation and Maritime New Zealand have experience and resources in the marine space, including practical things like vessels). Internal institutional divisions (or an escalation pathway whereby some enforcement matters are taken up or supported by the EPA) may be as effective.



Policy and regulatory tasks could be more clearly separated from advocacy.

This could involve an additional *layer* of institution (eg an Environmental Defender’s Office, with a dedicated branch for the marine environment, charged with taking legal action; or a broader public messaging and education role for an independent Oceans Commission, similar to the Energy Efficiency and Conservation Authority). Alternatively, it could involve the transfer of advocacy responsibility from existing institutions. For example, the Department of Conservation could retain its policy role but not be expected to engage in litigation (which would be the sole function of an Environmental Defenders Office with a secure funding stream). This could prevent peaks and troughs in departmental funding from affecting legal advocacy for nature, or political interference (in that the Conservation Act specifies clearly that the Department of Conservation “shall be under the control of the Minister”).

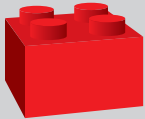
The advocacy function of the Ministry for Primary Industries in some contexts (eg trade negotiations, biosecurity, primary productivity) could be separated from its regulatory role in others (eg protecting the marine environment from fishing impacts).



Some funding responsibilities could be separated from other tasks.

For example, a dedicated national-level agency for funding marine environmental research could be established, to complement (and coordinate) the more focused funding roles of various ministries and departments. To some extent this could separate research funding decisions from policy and advocacy tasks.

In other contexts, the funding powers of an institution could be more closely linked to its policy responsibilities (as in the Sea Change Tai Timu Tai Pari context referred to earlier).



New institutions could be created, or existing ones reimagined, to perform innovative tasks.

For example, a new Crown entity, state owned enterprise or council controlled organisation could be charged with building a network of marine ecological infrastructure. This would shift an “operational” task from one of environmental enhancement and restoration (often seen as a nice to have) to one in which there is a business case and model for the efficient delivery of public goods (ecological services, that have a measurable monetary or social value).

Such an entity could be relatively independent (reflecting the common use of council controlled organisations and state owned entities for

infrastructure delivery, and the historical issues with leaving core services like water to politically determined funding)⁹³ and have powers to impose charges on “users” commensurate to the services provided. A narrow focus may, like Transpower or the New Zealand Transport Agency, encourage this institution to focus on its core business. And if ecological structures (eg reefs, shellfish beds or kelp forests) were treated as infrastructure, this might shift the debate from one of “environment” and “development” to one more akin to the protection of vital network infrastructure (eg power lines or undersea pipelines) from incompatible activities (eg trawling or mining). If we can justify expenditure on a national electricity grid, telecommunication cables and reticulated water supplies, why not the restoration of environmental goods that are, in the long-term, even more important for sustaining life?

A number of options could be pursued by integrating or separating various tasks across institutions.

Raewyn Peart



Kelp forest, Cavalli Islands

12.8 Mandate

Institutions can have very different mandates. What these are will be influenced by the broader objectives we have for the system (see Chapter 7). But the oceans management system is not just about protecting resources, nor just about using them. It needs to provide for both (although preferably in a synergistic manner). So how should we arrange our institutions to do so? A key question is whether we should organise institutions so that they have distinct, or combined, mandates.

On the one hand, marine resources need to be managed in an integrated way. Combining protective and utilisation or development mandates within a single entity can promote that. For example, a single institution like Fisheries New Zealand, which is focused on fisheries management can be well placed to understand the complex interactions between habitat protection and sustainable yield, and to achieve synergies between them. By the same token, separate and conflicting mandates can produce conflict, fragmentation, misalignment and confusion. That has arguably been the case in the fisheries context, where the mandate of regional councils still remains unclear to some extent, and where the respective roles of Fisheries New Zealand and the Department of Conservation in progressing spatial protections has arguably contributed to stalemate. A more integrated institutional landscape, such as an Oceans Agency or Oceans Ministry, could assist.

However, on the other hand, there are risks in combining quite different mandates within an institution. This can produce objective overload and a race to a meaningless policy middle – where neither mandate is fulfilled properly. As the Productivity Commission has noted, “a clear mandate can help promote accountability, compliance, focus, legitimacy and predictability.”⁹⁴ More dangerously, combining conflicting mandates or sweeping tensions under a vague direction may in practice see a non-transparent prioritisation of policy goals within the back rooms of an institution. After all, synergies are not always possible, and tough choices need to be made. They should be done in the open, not by invisible lobbying. There is also benefit in Ministers receiving conflicting streams of advice from institutions with different perspectives. That way, policy choices are made clear. Some commentators have warned that excessive integration can lead to a lack of focus, transparency and trust.

Integrating quite different mandates is arguably a risk even within current institutional arrangements. For example, there can be conflicts within the Department of Conservation between conservation and use/tourism (despite a statutory hierarchy, it is not always clear where the line is to be

drawn).⁹⁵ And the mandate of regional councils in the marine environment is largely driven by the purpose of the RMA,⁹⁶ which is filled with conflicting policy provisions and leaves significant room for political prioritisation.⁹⁷ This has led to calls for the EPA to be expanded, to take on some of the regulatory functions of regional councils, under a clearer statutory mandate than it or councils currently have. A future system could therefore include institutions with intentionally conflicting mandates – constructive tensions – but clarify how those are intended to work together.

Institutions can have very different mandates when managing marine resources, from protective to exploitative. Integrating mandates within an institution can promote synergies and integrated management. However, there are risks in combining quite different mandates within an institution, notably that one may get weakened in practice.

Sometimes it can be unclear what the mandate of an institution actually is, especially if it does not have a formal statutory basis. There could be value in revisiting or defining clearer statutory mandates for existing institutions when it comes to the marine environment, such as the Ministry for Primary Industries (and its various business units), regional councils (eg with respect to MPAs) and the Ministry for the Environment. Maritime New Zealand is also a creature of statute but, despite quite specific functions, it has a relatively neutral mandate in a normative sense.⁹⁸ Should it be given a stronger and more specific mandate to protect the marine environment in its decision-making above and beyond what international law requires? For example, should legislation give it a mission to decarbonise the shipping industry and provide incentives for improved environmental design and



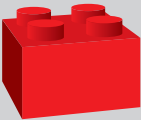
Ferry, Rangitoto Island

Raewyn Peart

methods? The EPA could also be given a stronger mandate in the marine environment. This may be particularly desirable if it were to embrace its full potential as an environmental regulator. And to the extent we create new institutions (eg an Oceans Commission, Oceans Agency, Environmental Defenders Office, or Oceans Ministry) careful thought would need to be given to their statutory mandate.

A spotlight on the Victoria Environmental Protection Authority

The Victorian (Australia) EPA began operating in 1971 under the Environment Protection Act 1970. More recently, legislative change established the objective of the EPA as being “to protect human health and the environment by reducing the harmful effects of pollution and waste.”⁹⁹ This can be contrasted with the current objective of the New Zealand EPA which is much vaguer: to undertake its functions in a way that “contributes to the efficient, effective, and transparent management of New Zealand’s environment and natural and physical resources; and enables New Zealand to meet its international obligations.”¹⁰⁰ The Victorian model demonstrates the success of an EPA which has a clear purpose and tight focus on dealing with serious environmental risks. It is generally regarded as the most successful EPA in Australia.

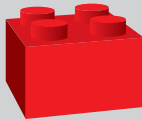


Existing institutions could be given stronger or more specific mandates than at present. These could be more directive (ie to take particular forms of action), to reflect a more outcomes-based management system.

The mandate of mana whenua is also an interesting thing to consider. The formal system intersects with tikanga, rather than integrating or seeking to change it. It would be inappropriate for iwi and hapū to have statutory mandates themselves, just as it may be beyond the pale to give the “Crown” a specific mandate outside specific statutory contexts.¹⁰¹ However, if mana whenua are to exercise significant powers in a future system, should they be directed to exercise them in the pursuit of particular goals? On the one hand, that may be overly paternalistic. But on the other, it may reflect the public interest in knowing what public authorities – including iwi and hapū – are trying to achieve. For example, legislation could potentially require that any revenue directed

to mana whenua from marine resource rentals be ringfenced for use in environmental enhancement or a kaitiaki role.¹⁰²

If mana whenua were to take on significant public powers in a future system, alongside other agencies, it raises questions about the extent to which Māori decision-makers should have statutory mandates to exercise them in particular ways. One option would be to include those in legislation. However, to do so may clash with tikanga and expectations under te Tiriti o Waitangi.



Mana whenua could be given statutory mandates when exercising significant public powers in a future system.

12.9 Formality of creation

Institutions can be created in different ways, on a spectrum from formal to informal. Their features and the way they operate can also be formally prescribed, or informally sketched out. The most formal way for an institution to be created is through targeted primary legislation.



Broad Bay, Otago Peninsula

Raewyn Peart

For example, the Ministry for the Environment, the Department of Conservation, the Parliamentary Commissioner for the Environment, the EPA and Maritime New Zealand are established by statute.

Other institutions have been created in less formal ways. For example, most government departments and ministries do not owe their existence to legislation (although legislation can specifically recognise their existence when assigning roles).¹⁰³ Sometimes legislation simply creates the ability to establish a particular kind of institution (and sets out how it must subsequently operate) rather than creating it directly. For example, the Minister of Fisheries can choose to establish a National Fisheries Advisory Council¹⁰⁴ and the Minister for the Environment can appoint boards of inquiry under the RMA.¹⁰⁵

A spotlight on our fisheries management agency

Frequent changes to Aotearoa New Zealand's fisheries management agency over the years highlight the problems which can occur when an institution has no statutory basis. Up until 1972, fisheries were managed by the Marine Department. The role was then passed onto the Ministry of Agriculture and Fisheries. In 1995, a Ministry of Fisheries was established to provide a strong sectoral focus. But in 2011 the Ministry was disestablished and fisheries management was absorbed into the Ministry of Agriculture and Forestry. In 2012, this whole ministry (including fisheries management) was absorbed into an even larger primary sector institution, the Ministry for Primary Industries. In 2018, Fisheries New Zealand was established as a business unit within the Ministry for Primary Industries, in order (once again) to provide a stronger sectoral focus on fisheries management. This regular institutional reshuffling resulted in uncertainty, high staff turnover and loss of institutional knowledge.¹⁰⁶ It might have been avoided, had our fisheries management agency had a clearer statutory basis.

As we have said previously:¹⁰⁷

there are two ... pressing rationales for enshrining an institution in legislation. First is where its specific position and durability in the system is important to achieve our long-term objectives. Second is where it is likely to require protection from outside pressure. Legislation can provide legal recognition for a strong and defensible

mandate, strengthening the will of those leading an institution to stand up to pressure across political cycles.

These measures are often associated with a desire to safeguard independence in our protective institutions; the Ministry for the Environment and Department of Conservation, for example, are (and need to be) close to an accountable Minister, but can still point to specific functions in statute to defend broader stewardship and advocacy work.

In practice, it would be necessary to establish new institutions like an Oceans Agency or Oceans Commission through legislation, because they would have defined mandates, functions and powers. That would be particularly the case if an Agency had its own regulatory powers to make decisions independent of delegation from Ministers. An Oceans Ministry, if adopted, would not necessarily require a statutory basis, but may benefit from one. That is because it could subsume part of the advisory roles of other statutory entities like the Ministry for the Environment and Department of Conservation, which have carefully defined mandates that would need to be incorporated into (and defended within) the broader mandate of the Ministry.¹⁰⁸

The formality with which an institution is created also affects its longevity. Some institutions might be project-based consortia of different interests and therefore are easily disbanded after their job is done. That has value when it comes to (for example) collaborative processes. However, it comes with risks.



Sandfly Bay, Otago Peninsula

Raewyn Peart

A spotlight on the Seachange Tai Timu Tai Pari initiative

The Sea Change Tai Timu Tai Pari project produced a non-statutory spatial plan for the Hauraki Gulf. This was developed by a collaborative grouping comprising four mana whenua and 10 stakeholder representatives (a “stakeholder working group”). The final plan was agreed by all members on a consensus basis and then adopted by a separate co-governance body.

However, once the plan was finalised (after three years) these two groupings were disestablished. This has contributed to difficulties in implementing the plan and the dissipation of the knowledge and social capital developed over the duration of the project.¹⁰⁹ This raises the question as to whether co-governance and collaborative groupings should be established on an ad hoc basis for specific projects or whether such entities should be institutionalised so that they can contribute to the entire planning cycle (plan preparation, implementation, review and adaptation). An integrated Oceans Agency might perform that role were it to be created but, if not, more focused project-based institutional arrangements might benefit from formal establishment and more defined, long-term roles.



Institutions or groups responsible for marine spatial planning could be given formal legal status in the future, to ensure they endure to oversee implementation.

Another pertinent question, related to the one above about institutional mandates, is the extent to which Māori institutions should be “formalised” within a Western system of legislation and institutions. Where complex co-governance and hybrid entities are envisaged (eg boards or guardians) this is likely to require a legislative foundation to clarify relationships between Māori and non-Māori representation. The same reasoning would apply to formal advisory entities like an Oceans Commission or Tikanga Commission, to ensure their legal standing and influence. However, there is the question of mana whenua entities themselves. Are these “institutions” to be enshrined in law?

A spotlight on iwi authorities

During the development of the RMA and Local Government Act, a parallel statute was also being developed: the Rūnanga a Iwi Act. This statute was to provide details for the structures, constitutions and operations of iwi organisations, and their formal connections and relations to councils and the RMA. The legislation was enacted and repealed on the same day, in 1991. Leaving aside the question of whether this would have been beneficial legislation for Māori, it would have clarified how local government should engage with iwi. In its absence, and the absence of any other comparable legislation, the nature of iwi engagement has been unclear and is often problematic, including in the marine context. The RMA definition of an iwi organisation is not helpful in this context.

In some areas there is little or no ambiguity about which is the relevant iwi to engage with (but even in those areas there can still be localised dispute). As customary marine title applications are progressed, this may assist as well. However, in other areas, it is very unclear and often highly contested. For example, in Northland there are hundreds of hapū, some with populations greater than many iwi. In practice, engagement with hundreds of entities is not usually possible. How should councils, and indeed the Crown, determine who to engage with? What criteria are relevant when deciding this? In the marine context, things can become even more blurred, because although the deep sea environment is of considerable spiritual importance to Māori, authority is less clear and is not likely to accord with Western management areas and lines drawn on a map (eg large quota management areas). Even though property rights in quota have been settled, what a meaningful co-governance framework for the EEZ or fisheries might look like is still unclear.

Raewyn Peart

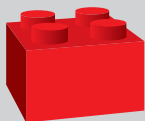


Seachange Tai Timu Tai Pari field trip

This is an area for which improved statutory definitions, processes and standards could be developed. In some places, such as Auckland City, the “mana whenua” recognised are those with Treaty settlements. While this ensures that the entities have a legal personality and constitutions providing for accountability to beneficiaries, a tikanga based solution is an alternative. A requirement that there are processes specific to RMA implementation agreed by iwi, which require the iwi organisation to ensure that beneficiaries are appropriately informed and included in relevant decisions, could be considered as a means of satisfying hapū anxieties.

Whatever the solution, the problem is a real one for both councils and tangata whenua in many regions and could usefully be addressed. However, it may be that efforts to draw sharp boundaries of this nature by developing new statutory definitions do not sit well with tikanga, and more nuanced solutions may need to be explored. For example, the courts have recently developed the idea of joint or overlapping jurisdictions in customary marine title areas under the MACA Act (“shared exclusivity”),¹¹⁰ reflecting historical relationships between different iwi and hapū. Yet seeking to define and pigeon-hole Māori identity and representation through a Western system is one that may run into problems.

Institutions can be created formally through statute or, especially in the case of central government, informally. Careful thought will need to be given to whether some institutions are formally framed in legislation, particularly if they require a clear statutory mandate that can be tested in the courts or where their continued existence is important to achieve an outcome. There are questions about the extent to which Māori institutions should be formalised and framed by statute, or whether their features should be determined by tikanga.



Māori institutions, such as iwi authorities, a Tikanga Commission, and a more nuanced layering of other entities, could be formalised through statute in a future system.

12.10 Power

Institutions can have varying degrees of power. Some make final, binding decisions (like the Environment Court or Ministers); others make decisions that can be appealed (like councils and other consent authorities); still others have only advisory or recommendary power (like the Parliamentary Commissioner for the Environment or various Ministries). The degree of power that an institution has is closely correlated with its other characteristics and cannot be considered in isolation of them. For example, as we have said previously:¹¹¹

First, the task an institution performs is relevant to its power. Imposing regulation inherently requires greater power than advocacy, for example.

Secondly, an institution's degree of independence or accountability is crucial to the degree of power it exercises. In fact, the most important tension is not between independence and accountability per se, but rather the degree of power that is given to independent and accountable institutions. It is generally appropriate for value-based decisions (policy and often regulation) to be ultimately determined by accountable institutions.¹¹² It is generally appropriate for other decisions (whether purely technical or the implementation/application of values) to be ultimately determined by independent and expert institutions.

Thirdly, an institution's degree of centralisation is significant. We do not always assign responsibilities to either central or local authorities; we frequently assign them to both. As with independence, the distinction is often not between central and local per se, but rather the relative degree of power that is assigned to central and local.

Checks and balances on power are extremely important. Sometimes that can be achieved by sharing power, or by creating a hierarchy of power. For example, decisions on regional coastal plans by regional councils can be appealed to the Environment Court,¹¹³ and regional councils and Fisheries New Zealand are both empowered to protect fish habitats.¹¹⁴ As discussed earlier, one option for the future would be for decision-making power (eg for regional plans and sustainability measures) to lie with more independent or arm's length institutions like an Oceans Agency or EPA (or Environment Court on appeal), if sufficiently clear policy guidance was enshrined in legislation or provided by accountable institutions like Ministers or councils.

Checks and balances can also be achieved by surrounding those in a position of power with watchdogs, even if they have little power themselves. This recognises that there is significant power, not just in institutions themselves, but in an informed and engaged electorate that can change their behaviours based on independent and trusted advice. In that sense, an expanded Parliamentary Commissioner for the Environment, Oceans/Tikanga Commission and Environmental Defender's Office, linked to requirements for clear and accessible environmental reporting, would wield significant moral power. They could also be given legal powers to back this up; for example, by conferring on them the legal standing (or duty) to appeal some decisions. At the most extreme end of the scale, if a written constitution were to be adopted, the courts could have the power to strike down parliamentary legislation for inconsistency with high level marine environmental principles.

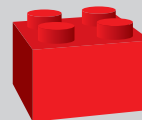
Our institutions can have varying degrees of power. Whether we want an institution to have a significant degree of power in any given situation will depend on its other characteristics (eg whether it is central or accountable). It can be valuable to have institutions that have no decision-making power, but which exist to hold those that do to account.

Perhaps the most significant question about power is the relative role of public authorities and mana whenua (and the extent to which mana whenua perform the role of public authorities). While norms reflecting te ao Māori are important, as are the deployment of tools consistent with tikanga, institutional design is really where the rubber hits the road. Of course, this is a constitutional conversation that has much broader application, and a rich debate is happening in the wake of *He Puapua* and *Matike Mai* (see Chapter 4). Much of this requires political resolution, but it is worth exploring options for what it might mean in the oceans.

Power sharing could lead to many different institutional forms. Some might lead to changes within existing institutions, which can be charged with protecting Māori rights and interests.¹¹⁵

Such directions are found in, for example, the provisions in the RMA concerning ancestral relationships, taonga, and wāhi tapu.¹¹⁶ In crude terms, that is about trusting institutions that are there for other reasons¹¹⁷ – whether Crown or local government – to protect Māori interests on behalf of Māori while performing those roles. Such directions could be strengthened, and to do so is consistent with the Crown's duty of active protection.

For example, the direction to councils and Ministers under the RMA/NBA could be strengthened to ensure the principles of te Tiriti are given effect to.¹¹⁸ The result of the *Ngai Tai* decision could be that the Department of Conservation develops a clearer prioritisation of allocative rights for Māori under conservation laws and ensures that MPAs allow for customary practices.¹¹⁹ Support could be provided to increase capacity within iwi and hapū entities (to engage with multiple agencies and processes, and to undertake their own functions such as research and monitoring), and public authorities like councils or regional branches of government agencies could bolster their own in-house capacity in tikanga matters (even through co-location or secondment arrangements).



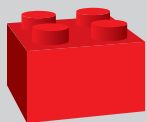
A future system could strengthen obligations on existing institutions to safeguard the interests of mana whenua.

Secondly, the structure of decision-making institutions themselves can be modified to be more reflective or representative of Māori interests. This does not necessarily give Māori agency, but ensures that their voice is heard – not just that their interests are considered by a benevolent Western authority. For example, Māori wards for regional councils could be made mandatory (rather than just preventing referenda from overturning their use).¹²⁰



Wharenuī, Orakei Marae

Advisory bodies could be rolled out on a more systemic basis, transforming more targeted entities like the EEZ Act's Māori Advisory Committee into a Tikanga Commission with roles across all marine legislation. A formal Tikanga Commissioner could even share a watchdog function with the Parliamentary Commissioner for the Environment or Oceans Commission rather than just being an expert advisor to it. It could formally assess *compliance* with te Tiriti rather than just making recommendations about it. And if we were to implement legal personhood for the moana, the human face or representative of that person could be co-governed.



A future system could provide for independent Māori advisory or watchdog institutions in a more systemic way, such as through a Tikanga Commission, that have the power and duty to assess compliance by public authorities with te Tiriti obligations.

More broadly, co-governance arrangements are as varied as institutions themselves, and could be clipped onto existing arrangements.

A spotlight on co-governance

There are many forms that co-governance could take in the marine context. At a national level this can prove challenging, although there are interesting and contentious possibilities for nationwide constitutional changes being floated.¹²¹ At a regional and local level there are a number of existing models that could be progressed.

For example, in contrast to the 50-50 split of appointees in an entity like the Waikato River Authority,¹²² the Hauraki Gulf Forum has only six tangata whenua representatives out of a total of 21 members (the other being from local and regional councils and government departments). Instead of being selected by iwi/hapū themselves, the tangata whenua representatives are appointed by the Minister of Conservation, although this is after consultation with tangata whenua and the Minister of Māori Affairs.¹²³ The Forum has no binding powers, but brings together iwi/hapū with local/ regional/ central government entities to share information and jointly consider management issues affecting the Hauraki Gulf.¹²⁴ It is therefore an integrating rather than a management body.

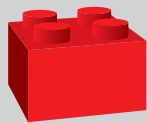
Despite no requirement in statute, it has recently adopted a co-governance leadership model with the appointment of co-chairs, one who is from and confirmed by its tangata whenua members.¹²⁵

Although it has done good work, one review has questioned the effectiveness of this model,¹²⁶ and there have been proposals to restructure it to be more in line with the Waikato River Authority (although with some modifications to incorporate community representation) together with a clearer vision and purpose.¹²⁷ This type of model, traditionally pursued via bespoke settlement processes, could be rolled out more broadly. Instead of adding layers of institutions (eg the Waikato River Authority does not replace the regional council)¹²⁸ we could reconsider co-governance in existing ones. Regional councils could have iwi appointees alongside elected representatives, or power could be transferred to an entity that does (eg the notion of joint planning committees under the proposed NBA). Crown entities and central government departments could even be reimagined so that their structures reflect co-governance. Rather than being a creature of the Crown, could we in the future have a Ministry of Oceans led by two Secretaries for the Ocean – one appointed by ministers and the other by mana whenua?

The structure of the non-statutory Sea Change Tai Timu Tai Pari project was novel in that it brought together co-governance and collaborative models for a specific project (developing a marine spatial plan). The 16-person governance body (“project steering group”) comprised eight mana whenua representatives selected through a tikanga Māori process and eight representatives of government entities. These included Auckland Council, Waikato Regional Council, Thames-Coromandel Council (representing territorial authorities more broadly), the Department of Conservation, Ministry for Primary Industries and Hauraki Gulf Forum. The stakeholder working group which prepared the plan itself included four tangata whenua representatives and 10 stakeholder representatives.

These models could provide a foundation for more systemic institutional arrangements in a future system, such as in the design of an Oceans Commission (which could be co-governed rather than sitting parallel to a separate Tikanga Commission). However, there is a significant difference between a non-statutory project steering group charged with developing a non-binding spatial plan and a co-governed entity with binding regulatory powers.

As customary marine title claims are progressed under the MACA Act, this provides another potential avenue for strengthening power sharing. For example, title holders could be conferred stronger rights to co-create regulation under the RMA and conservation legislation, or to establish locally specific sustainability measures for fisheries (eg binding rāhui within a customary marine title area) or bylaws (eg to address impacts of things like litter and tourist numbers). This could be significant, given the potential coverage of customary marine title claims across the moana. However, it is also important to remember that Māori interests exist outside the formal identification of customary marine titles and protected customary rights,¹²⁹ and many may contend that they should not be reliant on recognition by a colonial gatekeeper (Crown and courts).



A future system could provide various mechanisms for co-governance, including through Māori wards for regional councils, layers of bespoke location-based entities such as the Hauraki Gulf Forum and Waikato River Authority, or by strengthening powers for customary marine title holders to influence RMA instruments.

Arguably even the strongest co-governance approach fails to allow Māori to shape their own identity and destiny in a fundamental way, only enabling them to influence those who do. There have been calls to go beyond such models and instead recognise Māori sovereignty, kaitiaki responsibilities and tino rangatiratanga more directly, by transferring functions to iwi and hapū rather than creating hybrid institutions. Such models embrace Māori more as decision-makers than just as participants or the objects of decisions. It embraces the idea that “what we must guarantee for the future generations is not the preservation of cultural products, but the preservation of the capacity for cultural production.”¹³⁰ Tikanga evolves; it is not just an artefact to be protected.

For example, Robert Joseph has expressed a view that the RMA is “a right to culture model in that [it is] not aimed at granting political authority to Māori but rather focuses on stewardship, the ‘relationship’ of Māori with their environment, and effective participation in decision-making that may impact on them”.¹³¹ Despite the existence of mātaihai, taiāpure and the ability to formalise rāhui through temporary closures (as well as the significant quota and aquaculture space held by iwi through settlement legislation), the same could be said of the broader institutional framework under the Fisheries Act. And despite recent case law highlighting the strength of the obligation to give effect to the principles of te Tiriti,¹³²

marine conservation legislation in some senses remains insensitive to Māori cultural expectations (eg permanent no-take spatial protections through marine reserves). Work is ongoing in this space, and could inform future change.

One option, mentioned in Chapter 10, would be to clearly identify the circumstances in which section 33 should or must be utilised to transfer powers to mana whenua, and for similar provision to be made in other legislation. For example, that could be linked to the degree of ancestral connection, the presence of other existing rights, the strength of public interest or the existence of a recognised customary marine title.

Some have described this version of power sharing in terms of separate spheres: an enlargement of the rangatiratanga sphere of governance (Māori sovereignty), rather than a focus on hybrid arrangements (the confluence of rangatiratanga and kawanatanga – a “relational” sphere).¹³³ This can be understood as a fundamental rethink of the traditionally tripartite division of executive, legislature and judiciary in Western thought, not just another version of co-governance. Māori institutions are not just those to whom powers have been devolved by others, but rather a core element of our constitutional arrangements. At its most extreme, this could see a rethink about the shape of the legislature (eg a Māori upper house) or national executive, which would have significant implications for marine and resource management – ones that are hard to imagine in full.



Māori stone fish trap, Colville Bay

Raewyn Peart

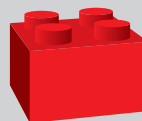
A spotlight on MPAs

There is an obligation for the Crown to allow for tino rangatiratanga over taonga under article 2 of te Tiriti o Waitangi. Tikanga has also been recognised as another legal regime that legislation must interact harmoniously with.¹³⁴ This arguably represents a new phase in the evolution of Aotearoa New Zealand law. It is particularly interesting to think about in the context of protected areas.

It would mean that institutional settings behind how MPAs are created, and by whom, would need to accommodate rangatiratanga, whether this is by devolving power, creating an interface between the kawanatanga and rangatiratanga “spheres”, or something else. As recognised by the Supreme Court, the ability to exercise kaitiakitanga is a corollary of the article 2 promise, so ongoing management tools within MPAs will also need to account for this.

Marine protection has been a sore point for Indigenous peoples and the exercise of their rights globally. Reform gives a chance to design a system that empowers rather than restricts, if it is done carefully and thoughtfully. A lot of this comes down to institutional design and power-sharing. Not only do MPA tools need to be sensitive to Treaty obligations, but mana whenua may require a place at the table in determining where they are located, and the nuance of restrictions contained within them. Ecological criteria may not be enough; cultural criteria are relevant too. However, a critical thing will be determining when cultural considerations and te Tiriti responsibilities morph into commercial and property interests, and how they interact with ecological and kaitiaki imperatives.

Questions about power are particularly important when it comes to the relationship between Crown and Māori institutions. A number of options are possible on this front, which go well beyond the oceans management system. Indeed, power sharing is at the heart of much broader conversations about the constitutional arrangements in Aotearoa New Zealand, which have been brought to the fore by initiatives like *He Puapua* and *Matike Mai*.



A future system could outline clear statutory principles by which some powers currently wielded by others (eg councils and various central government agencies) are to be transferred to mana whenua.



Deeper options for constitutional reform – to which institutions are central – could include foundational changes to the executive, legislative and judicial branches of government (eg a new Upper House of Parliament) where mana whenua institutions exist in parallel to Western style ones. These go beyond the oceans management system.

12.11 Common institutional characteristics

While there is value in having a suite of institutions with quite different and complementary characteristics, there are also some features that are common to all institutions. First, all require clear and predictable funding streams. Core funding is especially important for those having a degree of independence from politically accountable institutions (who quite rightly hold the discretionary purse strings), or where local institutions are reliant on central funding. That is particularly important when thinking about institutions having an advocacy role (such as the Department of Conservation or an Environmental Defenders Office) and those acting as checks and balances (eg a Parliamentary Commissioner for the Environment or Oceans Commission).

Capability is just as important as funding. Institutions rise and fall on the strength of the people within them. That is partly about technical expertise and experience, but includes capability in matters relating to te Tiriti o Waitangi and mātauranga Māori more generally. We need to be mindful that Aotearoa New Zealand is a small country, and a proliferation of institutions can affect our ability to staff them appropriately. Māori are under particular capacity constraints.

The culture and leadership within institutions is crucial to their performance.¹³⁵ That is hard to legislate for, as a lot will always come down to the people involved. This speaks to the need to think about our education, professional training and recruitment systems. For example, some at workshops suggested the need for a clearer career path for

dedicated oceans managers, including with respect to ecosystems-based management, rather than policy generalists. Some of the system's non-regulatory tools mentioned in Chapter 8, like the school curriculum and environmental reporting, are not only wielded *by* institutions but also *shape* the institutions (and leaders) of the future. They are formal interventions that can be taken today to shape the things we cannot so easily influence tomorrow.

Some characteristics are necessary for all institutions to have. Things like adequate funding, capacity and capability, and culture are essential.

12.12 Concluding comments

In this chapter we have considered potential options for institutional design in a future oceans management system (and see Figure 12.5 for a summary of them). These are by no means exhaustive. They are intended as a starting point for discussion. While many specific options are possible, and we have covered some of them – ranging from small scale changes to existing entities (eg strengthening the mandate of the EPA) or refinements of the boundaries between them (eg clarifying the respective roles of Fisheries New Zealand and regional councils), to the removal, replacement or addition of others (eg merging multiple agencies into an Oceans Agency) – it is useful to think about institutional design in a structured way.

It may be useful to frame this conversation in terms of (1) the different characteristics institutions can have (such as their independence, centralisation, specificity of task and subject, and mandate), and (2) how the entities defined by those characteristics interact with each other.¹³⁶ Those two considerations are inextricably intertwined, but the latter may prove the more important driver from a system perspective. For example, it would not be advisable to reform the EPA (eg extending its jurisdiction) without also thinking about how it would relate to the jurisdiction of regional councils, government departments and mana whenua.¹³⁷ Similarly, the mandate of one institution (eg the Department of Conservation) cannot be defined without thinking about how it would complement or otherwise be designed to work with that of another (eg the Ministry for the Environment). And we cannot contemplate an Oceans Agency, Oceans Ministry or Oceans Commission without thinking about the challenging boundaries to be managed between them and with terrestrially focused institutions.

In short, policy makers cannot progress piecemeal reforms of individual entities in isolation of what their broader place in the system is seen to be. Changes to one will have cascade effects on others, and risk uncertainty and added complexity. Of course, this speaks to the need to think about how a future system – including its institutions, but also its legislation, tools and overarching norms – could operate as a whole. We look at various starting points for what that whole of system reform might look like in Chapter 13.

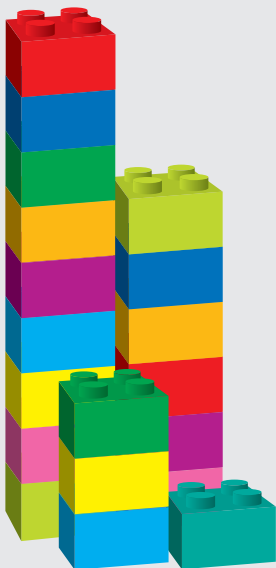
Raewyn Peart



Ngārunui Beach, Raglan

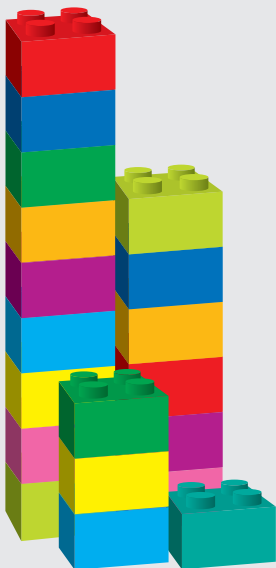
An Oceans Ministry	A future system could combine all the marine elements of existing government departments into an integrated Oceans Ministry. This would create a greater focus on marine issues and go beyond the integrated ministerial portfolio for Oceans and Fisheries and the current Oceans Secretariat.
An Oceans Agency	An integrated, arm's length oceans regulator could be created, which could take on some or all marine functions of regional councils, the EPA, Maritime New Zealand and potentially even the Department of Conservation. This could, however, cause fragmentation across the land-sea divide and the organisation may lack a clear purpose or mandate.
Strengthening and expanding the role of the EPA in the oceans	At the moment, the EPA has a relatively limited role with respect to the oceans, and a relatively constrained mandate. As our national environmental regulator, this role could be expanded in a variety of ways. It could even become an Oceans Agency.
A greater role in fisheries management for regional councils	Regional council jurisdiction could be expanded beyond that confirmed in the <i>Motiti</i> decision (eg by allowing councils to set measures like TACs in local areas). ¹³⁸ That could also be devolved to communities and iwi/hapū in partnership.
More integrated arrangements for councils and iwi/hapū to work together in plan creation	This has been proposed by the Randerson Panel in the notion of a joint planning committee for regional plans under the NBA and for regional spatial strategies under the Strategic Planning Act. ¹³⁹ This could potentially be extended to fisheries decision-making too.
A greater role in oceans and fisheries management for iwi and hapū	Exploring institutional arrangements goes deep into questions of mana or governance jurisdiction for Māori (including the broader discussion around <i>He Puapua</i>), ¹⁴⁰ and could take many forms (eg transfer of powers to iwi/hapū, co-governance, Māori wards at council level, novel mechanisms like legal personhood for nature).
An Oceans Commission	This entity could take different forms (eg it could have some regulatory powers), but in essence would be some form of independent oversight or watchdog body with a clear mandate to defend the interests of te moana. It could be designed to resemble the Climate Change Commission, the Māori Advisory Committee under the EEZ Act, or it could even be a vehicle through which te moana is given legal personhood (with the Commission being the voice of te moana).
The creation of a regionally-specific "guardians" model	This could see the replication of the guardians that have been created on a bespoke basis already (eg in Fiordland and Kaikōura), ¹⁴¹ and rolled out across the country. It would be one way to allow local involvement and integrated place-based oversight across multiple other institutional jurisdictions (eg conservation, resource management, fishing).
A national Māori advisory body for oceans	This could take the form of an independent Tikanga Commission with a branch focused on te moana, or it could be a vehicle for a more representative, national-level Māori body with which the Crown partners. The extent to which this would have decision-making power depends on a broader conversation about Māori sovereignty.
A more structured role for the Parliamentary Commissioner for the Environment	The Parliamentary Commissioner could have a stronger mandate (and resourcing) to be involved in the preparation of instruments related to the oceans, including regional plans, fisheries plans, and marine spatial plans.
A role for the Environment Court in hearing merits appeals under the Fisheries Act and Marine Reserves Act (or its replacement)	The Environment Court has an important role with respect to coastal plans under the RMA, but not with respect to fishing or marine protection. Its role could be expanded to provide greater oversight with respect to fisheries management and the creation of marine protected areas.
An independent science agency to conduct core oceans research or to guide/direct research needs ¹⁴²	This would not necessarily be focused only on marine research, but that would be a core component of its mandate.

Figure 12.5: A selection of institutional design options for a future system



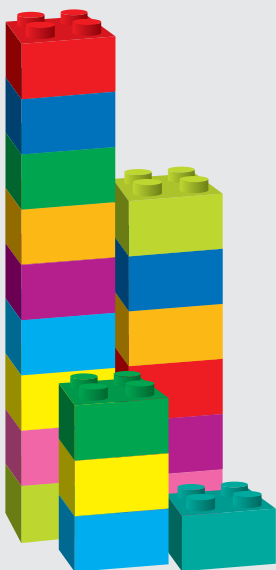
Summary of options for reform: Institutional design

- The role of the courts could be expanded in a future oceans management system to include appellate authority over the merits of some fisheries decisions and some national direction under the RMA/NBA.
- Some regulation making powers could be shifted to more independent or arm's length institutions, including some sustainability measures for fisheries and a new class of environmental limits under the RMA/NBA. This would, however, require accountable institutions (or legislation itself) to provide clear and direct policy guidance (eg on bottom trawling or sediment) amenable to independent interpretation.
- Independent hearings panels with stronger legal influence over final decisions on planning and regulatory instruments could be rolled out in a future system. This has been proposed for combined plans under the NBA but could be extended to planning processes under other marine legislation, like the Fisheries Act and conservation statutes.
- More independent advisory institutions could be established in a future system, whether through a place-based guardians model or domain-based entities. A Tikanga Commission could be established to provide advice into all statutory processes (including integrative ones like marine spatial planning).
- An independent entity focused on supporting marine research could be established, either as a marine division of an Environmental Research Council or as an independent body (Marine Research Council). It could include a branch focused on strengthening mātauranga Māori.
- An independent Oceans Commission could be established to fulfil a similar place in the system as the Climate Change Commission. Alternatively, both could be combined into a broader Futures Commission (potentially an expanded Parliamentary Commissioner for the Environment) to cover the whole environment.
- Legal personhood for the moana could be supported by institutional arrangements like guardians, an Oceans Commission, an Oceans Ombudsman or the kinds of models developed for Te Urewera and the Whanganui River.
- Central government could be tasked with a more proactive role in marine management under the RMA, including the mandatory production of regulatory provisions giving effect to the NZCPS and the spatial identification of areas for protection.
- In a future system, regional councils could continue to have jurisdiction over truly coastal matters, out to a three nautical mile boundary or similar. Alternatively, councils could have jurisdiction only to mean high water springs. In either case, other parts of the marine area could be managed by a well-resourced Oceans Agency.



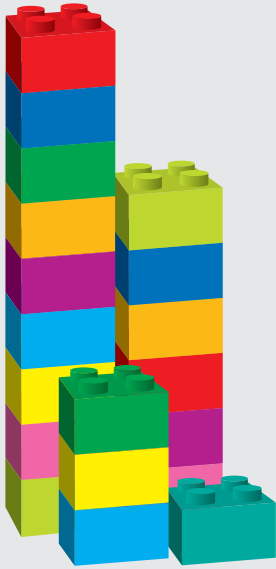
Summary of options for reform: Institutional design (*continued*)

- A dedicated Oceans Agency could operate at arm's length from government and be the implementing agency for the Oceans Act. Alternatively, a strengthened EPA could take on this role. Māori input into the Agency's decision-making could be supported through a strengthened Ngā Kaihautū Tikanga Taiao model.
- The seaward boundary of regional council jurisdiction could be redrawn, based on the approximate boundaries of ecological systems, including potentially expanding it beyond 12 nautical miles.
- Regional councils could be given more jurisdiction over fishing activity for biodiversity purposes, embracing Motiti and taking it even further. However, that may not be necessary or desirable if other central government agencies took a stronger role in exercising powers under the Fisheries Act, RMA or reformed conservation legislation.
- An oceans co-governance entity between Māori and the Crown could be established at a national level and/or regional co-governance partnership bodies could be established at a regional level.
- Three waters services (including wastewater and stormwater which can have significant impacts on the marine environment) could continue to be managed by territorial authorities and council controlled organisations, or there could be greater centralisation via co-governed national entities or state owned enterprises.
- If we were to give rights to nature, the "moana" as a person could be centralised (a single person) or have ecologically defined regions (different parts of the same body) that can speak for their own interests (or both, where branches come together in something like an Oceans Congress).
- Place-based institutional arrangements could be rolled out more broadly across the moana, reflecting existing guardian and advocacy roles performed in Kaikōura, Fiordland and the Hauraki Gulf. For example, every new MPA could have its own guardian.
- Inter-regional boundaries could be shifted so that they better reflect the ecological characteristics of the sea. Alternatively, a separate layer of maritime councils could be established with jurisdiction over biophysically defined parts of the moana.
- Future institutions could focus on different geographical spaces: some for land and some for the sea, with an integrated Oceans Agency focused on the latter.
- An institutional overlay, in the form of a Coastal Commission, could be established to integrate management of land and the sea if a sharp division was created between land management (by councils) and marine management (by an Oceans Agency or similar).



Summary of options for reform: Institutional design (*continued*)

- An Oceans Agency could be given an integrating role by ensuring that terrestrial plans and regulations complied with the requirements of marine legislation.
- An independent Oceans Commission could perform a watchdog function over all government responsibilities at sea, but it could equally be incorporated into an entity like a Futures Commission applying to the whole of Aotearoa New Zealand.
- The Oceans Secretariat could be given formal statutory basis and its membership extended to representatives from regional government and mana whenua.
- The “policy shop” advisory functions of ministries could be separated from their regulatory tasks.
- Regulatory tasks could be more clearly separated from enforcement tasks.
- Policy and regulatory tasks could be more clearly separated from advocacy.
- Some funding responsibilities could be separated from other tasks.
- New institutions could be created, or existing ones reimagined, to perform innovative tasks.
- Existing institutions could be given stronger or more specific mandates than at present. These could be more directive (ie to take particular forms of action), to reflect a more outcomes-based management system.
- Mana whenua could be given statutory mandates when exercising significant public powers in a future system.
- Institutions or groups responsible for marine spatial planning could be given formal legal status in the future, to ensure they endure to oversee implementation.
- Māori institutions, such as iwi authorities, a Tikanga Commission, and a more nuanced layering of other entities, could be formalised through statute in a future system.
- A future system could strengthen obligations on existing institutions to safeguard the interests of mana whenua.
- A future system could provide for independent Māori advisory or watchdog institutions in a more systemic way, such as through a Tikanga Commission, that have the power and duty to assess compliance by public authorities with te Tiriti obligations.



Summary of options for reform: Institutional design (*continued*)

- A future system could provide various mechanisms for co-governance, including through Māori wards for regional councils, layers of bespoke location-based entities such as the Hauraki Gulf Forum and Waikato River Authority, or by strengthening powers for customary marine title holders to influence RMA instruments.
- A future system could outline clear statutory principles by which some powers currently wielded by others (eg councils and various central government agencies) are to be transferred to mana whenua.
- Deeper options for constitutional reform – to which institutions are central – could include foundational changes to the executive, legislative and judicial branches of government (eg a new Upper House of Parliament) where mana whenua institutions exist in parallel to Western style ones. These go beyond the oceans management system.

Endnotes

- 1 We were left with separate legislation for marine mammals, wildlife, marine reserves and land-based things like reserves and national parks, but the idea was that such things would matter less with a new Department coordinating them.
- 2 See New Zealand Government "Implementation - after a settlement is complete" <www.govt.nz/browse/history-culture-and-heritage/treaty-of-waitangi-claims/implementation/>.
- 3 See Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, s 12; and Kaikōura (Te Tai o Marokura) Marine Management Act 2014, s 6.
- 4 See Greg Severinsen, Raewyn Peart and Bella Rollinson *The Breaking Wave: A conversation about reforming the oceans management system in Aotearoa New Zealand* (Environmental Defence Society, August 2021), ch 8.
- 5 For example, since 1995 we have had the Ministry of Agriculture and Fisheries, Ministry of Fisheries, Ministry of Agriculture and Forestry, Ministry for Primary Industries, and now Fisheries New Zealand (an agency within the Ministry for Primary Industries) as the country's fisheries manager. On this, see the spotlight later in Chapter 12.
- 6 David Parker, Minister for Oceans and Fisheries "Oceans and Fisheries: Our vision for healthy and productive oceans" (speech to the Forest and Bird Conference, 26 June 2021).
- 7 Which could, for example, have a more protective mandate in the EPA Act, or have stronger regulatory functions under the NBA (eg creating rules necessary to give effect to national direction).
- 8 For example, the investment uncertainty for activities like offshore aquaculture, wind generation and mining does not arise because of the existence or features of regional councils or the EPA per se, but rather because their toolkit (eg the NZCPS and regional plans) has gaps. Similarly, it is arguable that the lack of MPA deployment is less to do with the characteristics of the Department of Conservation than it is due to shortcomings in the Marine Reserves Act.
- 9 And, indeed, the extent to which particular outcomes identified in Chapter 2 as sub-optimal are problematic. This depends on the worldviews, principles and objectives that underpin a future system: see Chapter 7.
- 10 Some might see the notion of a "limit" in the marine environment as practically unattainable (see Chapter 7).
- 11 New Zealand Productivity Commission *Low-emissions economy: Final Report* (August 2018) at 181. The Commission cites different ways to secure independence within institutions, such as "the ability to adjust the regulatory settings and rules (regulation independence); the ability to undertake functions without interference (operational independence); funding arrangements that protect the regulator from external pressure (budgetary independence); and formal distance from the Executive and security of tenure for governors and senior management (institutional independence)."
- 12 "To some extent" because Ministers are not directly elected.
- 13 And the policies and rules created by elected authorities.
- 14 As well as unitary authorities, comprising both regional councils and territorial authorities.
- 15 That in itself has institutional design implications. For example, judicial review is an institutional safeguard – the High Court can strike down decisions for failing to consider relevant information, for considering irrelevant things, or for unreasonableness.
- 16 It is also not always easy to disentangle value-based judgments from technical questions, and some fluid institutional arrangements reflect this. For example, there is a real, but not total, separation between Ministers and ministries, and between councils and their staff. On the importance of independence in enforcement action, see Greg Severinsen *Reform of the Resource Management System: A model for the future* (Environmental Defence Society, Auckland, December 2019) at 139.
- 17 David R Keller (ed) *Environmental Ethics: The big questions* (Wiley-Blackwell, Chichester (West Sussex), 2010) at 379.
- 18 Elli Louka *International environmental law: Fairness, effectiveness, and world order* (Cambridge University Press, Cambridge, 2006) at 19.
- 19 Setting aside the more fundamental arguments around ontology and the objectivity of science.
- 20 Or Ministries themselves, where delegated by Ministers.
- 21 Or the more nuanced system proposed under the NBA, resembling the Auckland Unitary Plan process, where appeals are available but constrained.
- 22 See Chapter 7.
- 23 A view supported by the fact that there are no appeal rights on central government decision making under the EEZ Act, where councils do not have roles.
- 24 Resource Management Act 1991, pt 6AA.
- 25 See Resource Legislation Amendment Act 2017, s 227 (which replaced s 52 of the EEZ Act).
- 26 *Central Plains Water Trust v Synlait Ltd* [2009] NZCA 609, [2010] 2 NZLR 363.
- 27 Which can be done under the RMA using Part 7A, where authorisations to apply for consent – an allocative mechanism – must be obtained before submitting a consent application.
- 28 See Chapter 7.
- 29 In a conceptually similar manner that the independent Reserve Bank is charged with setting monetary policy primarily through the official cash rate, which has a clear statutory goal (inflation) largely independent of other policy concerns that could be balanced against it.
- 30 See Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010. The vision and strategy developed under the Act is deemed to be part of the Waikato Regional Policy Statement, and prevails over most instruments made in the RMA if they are inconsistent, as well as triggering reviews of resource consents (see ss 10-17).
- 31 For example, urban design panels in Auckland.
- 32 See Ministry for the Environment "Resource Management Amendments 2013: Fact Sheet 4 - Auckland Unitary Plan" (August 2013) <www.environment.govt.nz>
- 33 Conservation Act 1987, s 6A.
- 34 See Chapter 4.
- 35 Parliamentary Commissioner for the Environment *A review of the funding and prioritisation of environmental research in New Zealand* (December 2020) at 4.
- 36 Parliamentary Commissioner for the Environment *A review of the funding and prioritisation of environmental research in New Zealand* (December 2020) at 5.
- 37 Andrea Vance "Cash-strapped DOC forced to cut subantarctic science" *Stuff* (online ed, 6 February 2022) <<https://www.stuff.co.nz>>
- 38 Well-being of Future Generations (Wales) Act 2015, s 18(a).
- 39 Interestingly, the Welsh government took inspiration from the Aotearoa New Zealand system when developing its natural resource management structure. See Victoria Jenkins "Sustainable management of natural resources: Lessons from Wales" (2018) *Journal of Environmental Law* 1 at 9.
- 40 For example, through a Children's Commissioner and the paramouncy of the interests of the child in Family Court proceedings. See Oranga Tamariki Act 1989/Children and Young People's Well-being Act 1989, s 4A.
- 41 Te Awa Tupua (Whanganui River Claims Settlement) Act 2017, s 14.
- 42 Te Urewera Act 2014, s 17.
- 43 Section 45.
- 44 Andrew Geddis and Jacinta Ruru "Places as Persons: Creating a New Framework for Māori-Crown Relations" in Jason Varuhas (ed) *The Frontiers of Public Law* (Hart Publishing, London, 2019).
- 45 At 17.
- 46 At 17.
- 47 At 17.
- 48 Framework Law of Mother Earth and Integral Development for Living Well 2012 (La Ley Marco de la Madre Tierra y Desarrollo Integral para Vivir Bien) (Bolivia).
- 49 Not dissimilar to Local Government New Zealand.
- 50 New Zealand Productivity Commission *Better urban planning: Final Report* (February 2017) at 57.
- 51 New Zealand Productivity Commission *Better urban planning: Final Report* (February 2017) at 68.
- 52 Health standards apply, but these are designed to trigger warnings for people to avoid contact and food gathering rather than trigger enforcement.
- 53 The NZCPS is mandatory, but no other national direction for the marine area has been forthcoming (other than pollution and dumping at sea regulations, which are primarily a vehicle for translation of international law under the London Dumping Protocol – see Chapter 3).
- 54 Although biosecurity functions are shared between Biosecurity New Zealand and regional councils.
- 55 Other than the NZCPS, which can be as weak or strong as Ministers see fit.
- 56 It is unclear what those limits must include, and the extent to which they must be regulatory or simply a firmer iteration of policies in the NZCPS. See Ministry for the Environment *Natural and Built Environments Bill* (Exposure Draft, 2021), cl 7; Ministry for the Environment *Natural and Built Environments Bill Parliamentary Paper on the Exposure Draft* (June, 2021).

- 57 Raewyn Peart *Farming the sea: Marine aquaculture within resource management reform* (Environmental Defence Society, Auckland, 2019).
- 58 Department of Internal Affairs “Local Government in NZ” <<https://www.localcouncils.govt.nz/>>
- 59 There would be extremely complex issues to grapple with here; see Barry Barton, Kimberley Jane Jordan and Greg Severinsen *Carbon capture and storage: Designing the legal and regulatory framework for New Zealand* (Centre for Environmental, Energy and Resources Law, University of Waikato, 2013).
- 60 Noting that catchments are not the only meaningful way to divide land-based jurisdictions.
- 61 See the discussion on an Oceans Act in Chapter 11.
- 62 Public confidence in impartiality drives the need for independent institutions; see New Zealand Productivity Commission *Better urban planning: Final Report* (February 2017) at 240.
- 63 Raewyn Peart *Voices from the sea: Managing New Zealand's fisheries* (Environmental Defence Society, Auckland, 2018) at 116.
- 64 Nita Blake-Persen “DOC ‘nobbled’ by previous govt - environmental lawyer” RNZ (online ed, 8 November 2017) <www.rnz.co.nz>
- 65 Resource Legislation Amendment Act 2017, s 227 (which replaced s 52 of the EEZ Act).
- 66 Compare Raewyn Peart *Voices from the sea: Managing New Zealand's fisheries* (Environmental Defence Society, Auckland, 2018).
- 67 Crown Entities Act 2004, s 7
- 68 Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 167.
- 69 Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 180.
- 70 See Kaikōura Te Tai o Marokura Marine Management Act 2014, s 8.
- 71 UNESCO “Te Wahipounamu – South West New Zealand” <<https://whc.unesco.org/en/list/551/>>
- 72 Ministry for the Environment “Science and data at MfE” <<https://environment.govt.nz/facts-and-science/science-and-data/>>
- 73 See Department of Conservation and Ministry of Fisheries *Marine Protected Areas Policy and Implementation Plan* (Department of Conservation and Fisheries New Zealand, Wellington, 2005).
- 74 Or regionalised branches of an Oceans Agency.
- 75 As explored further below, that could be limited to the operational components of those organisations, rather than their policy advice roles (which could remain in separate ministries or combined into an Oceans Ministry).
- 76 Especially where wastewater overflows into stormwater system, where the systems are combined such as in parts of Auckland.
- 77 Resource Management Act 1991, s 59.
- 78 Although the NZCPS itself is not just marine focused; it includes the whole coastal environment.
- 79 Although different institutions do have roles under it, so there isn't total institutional integration.
- 80 In that biosecurity incursions are legitimately treated as emergencies.
- 81 Ministry for Primary Industries *Craft Risk Management Standard: Biofouling on Vessels Arriving to New Zealand* (Ministry for Primary Industries, CRMS-BIFOUL, 15 November 2018).
- 82 Deidre Koolen-Bourke and Raewyn Peart *Conserving Nature: Conservation System Reform Issues Paper* (Environmental Defence Society, Auckland, 2021).
- 83 See the discussion further below regarding the separation of policy and regulatory tasks across institutions.
- 84 Fishing includes some freshwater species, so is arguably about a focus on a subject that crosses the land sea divide.
- 85 The IMO was enacted on 6 March 1948 by the Convention on the International Maritime Organization 289 UNTS 48 (opened for signature 6 March 1948, entered into force on 17 March 1958) [IMO Convention].
- 86 IMO Convention, art 1.
- 87 Elizabeth Macpherson and others “‘Hooks’ and ‘Anchors’ for Relational Ecosystem-Based Marine Management” (2021) 130 Marine Policy 104561.
- 88 In making decisions on planning objectives, policies and rules, as well as resource consents, under the RMA.
- 89 Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 170.
- 90 See Resource Management Review Panel *New Directions for Resource Management in New Zealand* (2020).
- 91 That said, the actual risk may depend on other things: the effectiveness of internal divisions within an institution, whether regulatory and operational mandates are conflicting, and the availability of review or appeal rights.
- 92 As well as the ability for an applicant or submitter to require an independent commissioner to hear an application: Resource Management Act 1991, s 100A.
- 93 On the issues arising from management of some council-controlled water assets, see Government Inquiry into Havelock North Drinking Water *Report of the Havelock North Drinking Water Inquiry: Stage 1* (May 2017); Local Government New Zealand *Improving New Zealand's water, wastewater and stormwater sector* (September 2015).
- 94 New Zealand Productivity Commission *Low-emissions economy: Final Report* (August 2018)
- 95 See generally Deidre Koolen-Bourke and Raewyn Peart *Conserving Nature: Conservation System Reform Issues Paper* (Environmental Defence Society, Auckland, 2021).
- 96 The Local Government Act does not itself provide much guidance.
- 97 See generally David Young *Values as law: The history and efficacy of the Resource Management Act* (Victoria University of Wellington Institute of Policy Studies, Wellington, 2001).
- 98 Under section 430, the objective of Maritime New Zealand is to undertake its safety, security, marine protection, and other functions in a way that contributes to the aim of achieving an integrated, safe, responsive, and sustainable transport system. Its functions include the “protection of the marine environment in New Zealand”, and membership of its board is influenced by what the “Minister considers will represent the public interest in maritime matters”.
- 99 Environment Protection Act 2017 (Vic), s 6(1).
- 100 Environmental Protection Authority Act 2011, s 12.
- 101 The government is elected to pursue the mandate given it by voters and must be free to do so.
- 102 That may be difficult, as it is difficult to separate an environmental role from other roles in te ao Māori. Who would get to decide?
- 103 For example, the Ministry for Primary Industries and its business units are not creatures of statute, nor is the Ministry of Transport.
- 104 Fisheries Act 1996, s 276 and following.
- 105 Resource Management Act 1991, s 149j.
- 106 Raewyn Peart *Voices from the Sea: Managing New Zealand's fisheries* (Environmental Defence Society, Auckland, 2018) at 112-113.
- 107 Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 172.
- 108 See Environment Act 1986, s 31; Conservation Act 1987, s 6.
- 109 Raewyn Peart *Turning the tide: integrating marine planning in New Zealand* (Environmental Defence Society, Auckland, 2018).
- 110 See *Re Edwards (Te Whakatohea (No 2))* [2021] NZHC 1025.
- 111 Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 173.
- 112 Albeit informed by independent advice and made in a transparent and well-considered way. Generally, see New Zealand Productivity Commission *Better urban planning: Final Report* (February 2017) at 390.
- 113 And require approval by the Minister of Conservation.
- 114 See *Attorney-General v The Trustees of the Matiti Rohe Moana Trust* [2019] NZCA 532.
- 115 Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation Synthesis Report* (Environmental Defence Society, Auckland, December 2018) at 187.
- 116 Resource Management Act 1991, s 6(e).
- 117 For example, to set environmental limits, make trade-offs or allocate resources.
- 118 Indeed, this is proposed in the proposed NBA, cl 6.
- 119 *Ngāi Tai ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122.
- 120 On moves to prevent such proposals for wards being overturned, see Local Electoral (Māori Wards and Māori Constituencies) Amendment Bill 2021 (6-1).
- 121 For example, the idea of an Upper House of Parliament: see Claire Charters and others *He Puapua: Report of the Working Group on a Plan to Realise the UN Declaration on the Rights of Indigenous Peoples in Aotearoa New Zealand* (Te Puni Kōkiri, 1 November 2019).

- 122 Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010, s 22(1); see also Ngāti Tuwharetoa, Raukawa, and Te Arawa River Iwi Waikato River Act 2010, s 23(1).
- 123 Hauraki Gulf Marine Park Act 2000, s 16(2)(e).
- 124 Section 17.
- 125 Auckland Council “Co-Chairs to Lead Hauraki Gulf Forum” Our Auckland (media release, 14 May 2020) <<https://ourauckland.aucklandcouncil.govt.nz/news/2020/05/co-chairs-to-lead-hauraki-gulf-forum/>>
- 126 See Nigel Brady *Review of the Hauraki Gulf Forum* (Envirostrat Consulting Ltd, Wellington, 2015).
- 127 Paul Beverley, Vaughan Payne and Mark Maloney *Hauraki Gulf Forum governance review and recommendations* (report to the Hauraki Gulf Forum, 2016).
- 128 Instead, they interact and share power. The regional council nominates one member of the board. The vision and strategy is deemed to be part of the Waikato regional policy statement, and prevails over most instruments made in the RMA if they are inconsistent, as well as triggering reviews of resource consents. The document must also be given effect to under other legislation such as the Conservation Act.
- 129 On the rights conferred by customary marine title and protected customary rights, see Appendix 1.
- 130 See Robert Joseph and others “The Treaty, Tikanga Māori, Ecosystem-based Management, Mainstream Law and Power Sharing for Environmental Integrity in Aotearoa New Zealand – Possible Ways Forward” (Ko Ngā Moana Whakauka and Te Mata Hautū Taketake – the Māori and Indigenous Governance Centre, Waikato, 2019) in Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation – Working Paper 3* (Environmental Defence Society, Auckland, September 2018) at 27.
- 131 See Robert Joseph and others “The Treaty, Tikanga Māori, Ecosystem-based Management, Mainstream Law and Power Sharing for Environmental Integrity in Aotearoa New Zealand – Possible Ways Forward” (Ko Ngā Moana Whakauka and Te Mata Hautū Taketake – the Māori and Indigenous Governance Centre, Waikato, 2019) in Greg Severinsen and Raewyn Peart *Reform of the Resource Management System: The Next Generation – Working Paper 3* (Environmental Defence Society, Auckland, September 2018) at 33.
- 132 *Trans-Tasman Resources v Taranaki-Whanganui Conservation Board* [2021] NZSC 127 [SC].
- 133 Margaret Mutu and Moana Jackson *Whakaaro Here Whakaumu mō Aotearoa* (Matike Mai Aotearoa, Independent Iwi Working Group on Constitutional Transformation, January 2016)
- 134 *Trans-Tasman Resources v Taranaki-Whanganui Conservation Board* [2021] NZSC 127 [SC] at [154] and [162]–[172].
- 135 New Zealand Productivity Commission *Better urban planning: Final Report* (February 2017) at 51.
- 136 For example, an operational entity like Maritime New Zealand with a specific geographical focus (the oceans) and sectoral focus (shipping) might be complemented by policy entities like the Ministry of Transport with broader geographical concerns (transport across the whole of Aotearoa New Zealand).
- 137 The EPA is a particularly good illustration of the importance of looking at the system as a whole, because it is not clear what its structural position in the system is meant to be. Its roles have ebbed and flowed over its decade of existence. Is it a strong and independent environmental regulator for Aotearoa New Zealand, and a legitimate alternative to decision-making by regional councils or even ministers? Is it a specialist agency concerned with chemicals and large-scale deep-sea projects? Is it an administrative body that supports substantive decision making by others like boards of inquiry? Or is it an enforcement entity? An institution needs a broad identity – a place in the system – before its characteristics can be pinned down.
- 138 *Attorney-General v The Trustees of the Motiti Rohe Moana Trust* [2019] NZCA 532.
- 139 Resource Management Review Panel *New Directions for Resource Management in New Zealand* (2020), at 238.
- 140 Claire Charters and others *He Puapua: Report of the Working Group on a Plan to Realise the UN Declaration on the Rights of Indigenous Peoples in Aotearoa New Zealand* (Te Puni Kōkiri, 1 November 2019).
- 141 Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, s 12; and Kaikōura (Te Tai o Marokura) Marine Management Act 2014, s 6.
- 142 See also Parliamentary Commissioner for the Environment *A review of the funding and prioritisation of environmental research in New Zealand* (Office of the Parliamentary Commissioner for the Environment, Wellington, December 2020).

13 Visions for the future



Ōrere Point, Auckland

13.1 Introduction

In previous chapters we have looked at various options for reforming the oceans management system according to a number of themes. Every system – including the current one – must make decisions about these themes in *some* way. A system needs to have a sound normative basis (the ethics, principles and objectives at its heart), structural features (legislation and institutions) and a toolkit (the actual interventions that seek to achieve its objectives).

It will therefore be important for policy makers to think, not just about which reforms are desirable (eg whether we merge the RMA and EEZ Act, create an Oceans Commission or amend the QMS), but also about how multiple changes might work together. That does not necessarily mean that everything about the current system needs to change. Many things might usefully be retained, and reforms could be quite targeted. But it

does mean that close attention needs to be paid to how new or different elements will interact. In particular, a system will need to be normatively consistent (for example, addressing tensions between a general direction to give effect to the Tiriti and deploy no-take marine protected areas), and procedurally coordinated (eg to plan where different activities like aquaculture can/should go relative to protected areas). It should be designed so that an effort to address one problem does not cause or exacerbate another.

However, it is not just norms, structures and tools that will need to work well together. Another particularly important cross-cutting element of a future system will be how *information* is created and used. This, alongside funding (see Chapter 8), can be regarded as a dynamic network that flows across the whole system (legislation, institutions and tools), giving it life and allowing its processes to operate effectively. Without information, the system does not work.

Raewyn Peart



Fish packing plant, Leigh

13.2 Approaches to whole of system reform

Some of the options we have explored in this report could be pursued in isolation. For instance, significant benefits could come just from the integrated environmental research strategy described above. It would also be possible to create a new framework for marine spatial planning that would overlay existing frameworks and use existing tools (see Chapter 10), and for some that might address a number of problems (eg issues arising from the fragmentation of the current system). A number of more surgical changes might also work well *together* and be pursued as smaller packages. Indeed, that is already happening with a range of reforms to fisheries and the RMA (among others), but could be extended (for example) to focus on creating a more fit for purpose framework for MPAs. In short, people's appetite for reform might be limited to targeted interventions to "fix" what they see as being broken at the moment. There are indeed risks with throwing the baby out with the bathwater.

However, it is also worth thinking about what might result if we were to tackle the whole oceans management system at once. Some may see the deep issues with the status quo as requiring a transformation. Instead of making "changes" to the current system, we could work towards creating a new one by combining various building blocks. This would not require every single facet of the system to be different, but the very question changes the orientation of the reform process from one of amendment to one of replacement.

In the remainder of this chapter, we therefore outline four quite different starting points for what whole of system change might look like. They are designed to test how far people might be willing to go, and what broad directions they might want to go in. In short, these can be described as:

- (1) How we might build upon what we have now;
- (2) What deeper structural change might look like;
- (3) What features might be part of a system that recognises tino rangatiratanga; and
- (4) What a system based on legal personhood for nature might entail.

Characterising these as "starting points" or "approaches" is deliberate. While we are looking across the whole oceans management system as a single *concept*, we are not attempting to provide comprehensive or detailed "models" or off the shelf "blueprints" that could be used to

support drafting of legislation. Instead, we offer four quite different ways of approaching reform that could be developed further. As such, the four approaches described are quite different to each other, in terms of their focus, how they are described and their degree of detail. For instance, approach 1 is more focused on detailed changes (eg to the toolkit) because it is premised on working within most of the structures of the current system. Approaches 3 and 4 are more exploratory in nature, because they are looking at more foundational changes to norms and institutions as the starting point of reform. They do not necessarily assume that the detailed machinery of the current system will remain the same. That does not mean they require no nuts and bolts (eg resource consents, plans and property rights), only that those may be less important in giving a sense of what that approach is "about".

Indeed, all of the approaches have potential to overlap substantially (in that a tool or legislative design choice in one might also comfortably exist in another), and although we summarise their key features below, we do not seek to compare or evaluate every aspect of them at a granular level. Instead, we encourage readers to play around with them as one might clip Lego building blocks in and out.

It may well be that the "best" system is some kind of amalgamation of the key features of all the approaches described below, or something completely different. It might even be a careful transition from one approach to another over time. For example, there may be another model in which an enlarged tino rangatiratanga sphere is married up with some conferral of legal personhood, which could also embrace a toolkit containing marine spatial planning, an expanded NZCPS and an amended QMS alongside the creation of an umbrella Oceans Act. The less disruptive elements of approach 1 might even target some of the most urgent issues (eg regulations slowing habitat loss and climate change) and pave the way for deeper changes (eg some of the normative and institutional changes in approaches 2 and 3). Thinking of reform as a pathway rather than a single exercise is especially important given the potential cost and resourcing requirements (and consultation overload) in a system *already* facing significant change on a range of fronts.

Ultimately, we do not seek to resolve questions about which approach would be best (although we do identify some pros and cons of each to prompt discussion).¹ Instead, our intention is to keep the four approaches quite distinct to avoid a "race to the middle" or premature attempts to define an optimum system. For now, the idea is to expand the horizons of conversation, including discussing ideas that might seem radical to some. We therefore invite readers to consider which approach would,

in their view, best address the problems, challenges and opportunities articulated in Chapters 2, 3 and 4, and which provide starting points that best reflect their own mix of worldviews. In our view, all of them at least have the *potential* to improve things in the future, even though they may provide quite different framings through which that would happen.² And, of course, the devil will be in the detail.

We also note that we are anticipating a Phase 2 of this project that will select a single preferred way forward according to a carefully crafted set of criteria/objectives and problem definition. This will also consider how a preferred system could be implemented in a stepwise fashion over a number of years (to ensure the right things are tackled first, and to ensure a smooth and fair transition). We will also be considering the relative costs of potential reforms. We are seeking feedback on this report to shape our own views as to what a future system should look like. To that end, we are planning a series of workshops to discuss ideas with a wide range of stakeholders and to inform the next phase of the work (particularly in terms of what the objectives of reform should be). To support those discussions, we include a list of big picture questions at the end of this chapter. The approaches described below are by no means intended to signal which direction Phase 2 of the work will head in.

13.3 Approach 1: Building on what we have

In a nutshell

The basic starting premise of approach 1 is that the current system has much unrealised potential. This implies that it is possible to achieve better

outcomes without the upheavals associated with legislative, institutional or normative overhaul. The overall objective of the approach would ultimately be the same as others: to address the problems and challenges identified in Chapters 2 and 3 and to build a system that reflects modern values. But it would seek to do so with a relative minimum of fuss, and without fundamentally changing norms or objectives, other than those already contemplated by other reforms.

The basic ideas of sustainability, integrated management, species conservation, the principles of te Tiriti o Waitangi, environmental enhancement and efficiency would remain. Approach 1 would aim to reform the system so it actually lived up to those ideals (which it does not do at present), including through applying ecosystem-based management, developing a more strategic outlook focused on improvement to environmental indicators, and making any trade-offs clearer. It would recognise, at least conceptually, the need to have clear environmental limits or bottom lines beyond which trade-offs should not occur. And it would seek to improve integration within the system by linking together tools used under fragmented statutory frameworks (including through the use of a National Ocean Strategy and regional-level marine spatial planning). Fairness would be a stronger objective than currently, particularly with respect to how the value from using marine resources is distributed. Overall, the system would remain recognisable to those familiar with the current system, which would be part of the point. A summary of the approach can be seen in Figure 13.1. The key structural features of approach 1 are shown in Figure 13.2.



Auckland CBD

Raewyn Peart

Theme	Key features of approach 1
Overall description	Refining the existing system and “maxing out” its toolkit without structural overhaul beyond what is currently envisaged through other reform processes. More change would happen to the toolkit than in other approaches, with the caveat that planned reforms already envisage significant structural change that would be reflected in the approach.
Legislative design	The RMA would be replaced by the NBA, Strategic Planning Act and Climate Change Adaptation Act, as envisaged by the government’s resource management reforms. Most existing statutes would remain separate, such as the Fisheries Act, Wildlife Act (reimagined as a Protected and Threatened Species Act), Conservation Act and Marine Mammals Protection Act. The Biosecurity Act, Maritime Transport Act and MACA Act would also remain separate. The Marine Reserves Act would be replaced by a new more fit for purpose MPA Act, which would incorporate the protected areas aspects of bespoke legislation (eg for Fiordland, the Sugar Loaf Islands, Kaikoura and anticipated legislation for the Hauraki Gulf). The Continental Shelf Act would be largely merged into the Crown Minerals Act. The EEZ Act would be merged into the RMA/NBA.
Norms (ethics, principles, objectives)	Norms are largely the same as in the current system (and planned reforms). Te oranga o te taiao would be embraced as a common normative thread across multiple statutory frameworks, but would be defined with reference to specifically marine-focused principles (building on those in the NZCPS). Differences in purposes could still remain for existing statutes, reflecting that they would be there for quite different reasons. The norms underpinning particular tools like MPAs would be modernised and made sensitive to te Tiriti and expectations of mana whenua. Principles for allocation would be made clearer, including as to when compensation would be payable for lost rights or expectations.
Institutional design	There would be no overhaul of institutional settings, but there would be some significant changes around the edges. Existing government departments would remain in their current form, but the Oceans Secretariat (a collective grouping of a number of separate agencies) would be formalised in legislation. A Minister for Oceans would also be formalised in legislation. Central government would take on a more proactive role in preparation of marine plans under the RMA/NBA. The role of the Environment Court would expand, including to have merits decision-making powers over some fisheries decisions (eg some sustainability measures) A National Fisheries Advisory Council, already possible under the Fisheries Act, would be made mandatory. Regional councils would remain with their current boundaries (pending the outcome of the forthcoming local government review), and would have clearer responsibilities and duties to protect the marine environment (including with respect to the impacts of fishing). An independent Tikanga Commission would be established to provide advice rooted in tikanga and mātauranga Māori alongside the Parliamentary Commissioner for the Environment. A public interest quota holder would be established to operate within the QMS to buy quota and lease ACE based on public interest factors. The role of the EPA would be expanded to take on both marine consenting functions in the EEZ and regulation making functions under the RMA/NBA where needed to give effect to national direction. Guardians would be established for regional networks of MPAs.

Theme	Key features of approach 1
The toolkit	Approach 1 would embrace (and tailor) reforms to the toolkit planned through existing reform processes, including: • Use of mandatory environmental limits under the NBA for particular domains (including marine elements). • Incorporation of revamped marine policies under the National Planning Framework, with gaps (eg for estuaries) filled. • Mandatory minimum standards for wastewater and stormwater discharges into the marine environment. • Mandatory targets for restoration of degraded marine habitats. • Regional spatial strategies with additional legal influence over marine frameworks beyond the NBA (including fishing and conservation). • Combined regional plans with planning committees including mana whenua and key marine agencies . • Regionally based fisheries plans. • Rules around discards and landings. • Rollout of cameras on boats. • More mixed species stock assessments.
	A national level, statutory Oceans Strategy would be created under the auspices of the Strategic Planning Act.
	Marine spatial plans would be created under the Strategic Planning Act on a regional basis, using a different process and along different regional boundaries, to regional spatial strategies on land. They would have legal influence over other legal frameworks (the NBA, fishing and conservation legislation).
	A modernised and expanded NZCPS, included in the National Planning Framework, would have greater legal influence across other frameworks (including conservation and fishing).
	Under modernised conservation legislation, all indigenous marine species would be protected by default. Management measures would be triggered automatically by a worsening threat status.
	Conservation management plans and strategies would be developed in partnership with Māori and would be structured more like RMA-style plans. Population management plans would be recast as species recovery plans.
	Provision would be made for binding rāhui under the Fisheries Act.
	There would be a stronger ability for Fisheries New Zealand and the Department of Conservation to influence the content of NBA plans on land where there was impact on the marine environment.
	The role of the Harvest Strategy Standard in setting catch limits would be formalised under the Fisheries Act.
	A number of sustainability measures would be made mandatory under the Fisheries Act.
	There would be some public buyback of commercial quota, which could be retired or leased out to achieve broader social and environmental outcomes.
	Resource rentals would be rolled out on a mandatory basis.

Figure 13.1: Key building blocks of approach 1

Feature 1: Already planned reforms would be tailored to the marine context

Approach 1 assumes that various measures proposed by government will proceed. That in itself would see some significant changes. For fisheries, it would include the continued development of regionally-based fisheries plans (eg including to implement aspects of the Seachange Tai Timu Tai Pari spatial plan in the Hauraki Gulf), changes to rules around discards and landings for fisheries, and the rollout of cameras on boats (with equitable sharing of cost). It would see further integration of mātauranga Māori into information gathering and decision-making processes, and continued moves towards mixed species stock assessment.

Another key element would be adopting the current resource management reform proposals stemming from the Randerson Panel's report. However, these would be moulded to fit the needs of the marine space. For example:

Purpose

- The purpose of the NBA would be transformed into one focused on *te ora* ngā o *te taiao*, a concept that includes the health of the *moana*. The purpose would explicitly identify the values that marine management under the Act would need to protect. This would be an opportunity to codify in primary legislation some of the most important norms underpinning the NZCPS.³ It would also change the orientation of the legislation from reactive management to the proactive pursuit of positive outcomes, including environmental restoration and synergistic forms of development/use relating to the marine environment specifically.⁴

Environmental limits

- A new legal category of environmental limits would be created, with which all people (users and regulators) must *comply*. These would have their own purpose, which would be protective and not allow balancing with other considerations. Limits expressed as policy (eg "avoidance") and regulatory bottom lines (standards or triggers for prohibited activities) would be mandatory for a variety of matters, and would be contained in a detailed schedule to the Act. They would include limits on land-based impacts on the marine environment. This would be a key mechanism to give regulatory teeth to strengthened NZCPS policies in the National Planning Framework. Because limits are uncompromising – they mean what they say – they would be a strong

legal driver for land use change in some catchments, and would not just affect marine activities.

- Environmental limits would be accompanied by a stronger ability for authorities to amend or extinguish existing use rights under the NBA, where necessary, to prevent limits being infringed. That is particularly important for activities on land that impact the sea (eg those generating sediment such as urban development and plantation forestry harvesting).
- Some limits might be spatially expressed (eg creating protected areas to "limit" impacts on biodiversity) or be focused on activities (eg prohibiting bottom contact fishing methods, freezing existing trawling and dredging footprints, or placing a formal moratorium on offshore petroleum exploration). For other activities (such as deep seabed mining), there might be a consenting process, but the activities could be deemed a non-complying activity (thereby creating a precautionary presumption against them).
- Alongside marine limits, targets for environmental enhancement would be mandatory under the NBA. That could include general targets for things like planting, reef restoration, the reduction of contaminants or biodiversity indicators (eg abundance of keystone species). Or they could include more specific marine policy goals around protected area coverage (eg 30 percent coverage by 2030, which could be achieved partly through protections under the NBA) or the phasing out of particular practices (eg bottom contact fishing methods like trawling). Where limits had already been overshot, there would be binding targets (and timeframes) for improvement to return to a safe space above limits.

National Planning Framework

- National direction under the NBA, in the form of an integrated National Planning Framework, would encompass the marine environment. This would subsume the NZCPS and link its revamped objectives and policies much more tightly to implementation mechanisms such as through national regulations (currently NESs) and stronger directions for councils.
- The National Planning Framework would make it explicit that there is a hierarchy of policies so that domain-based policies (such as for the marine area) could not be undermined by sector-specific policies (such as for forestry, aquaculture or urban development). A number

of existing components of national direction would (within the new National Planning Framework) get a facelift to better reflect the importance of the marine environment. Those would include the NES for Plantation Forestry, the NPS on Urban Development and the NPS for Renewable Electricity Generation.

- Inconsistencies between existing national policy statements would be addressed and gaps filled, such as the current policy lacuna for estuaries. Estuaries would be included as units within a much more detailed catchment-focused NPS for Freshwater Management (which would also be subsumed into a broader National Planning Framework), reflecting the need to manage this land-sea interface in a much more directive manner. Regulations and policy concerning offshore aquaculture and other emerging marine uses would be developed as would new regulatory provisions imposing limits on wastewater, stormwater and novel chemicals discharged into the marine environment.

In short, more integrated national direction in the form of a National Planning Framework, would enable policies in a revamped NZCPS to more directly influence other national level policies and standards that currently have unclear relationships and hierarchies. But the Framework would also more clearly articulate, subject to environmental protections, the benefits of various forms of marine activities, such as offshore wind generation, offshore aquaculture and sustainable tourism. It would highlight where synergistic outcomes would be possible and are to be encouraged.

Combined regional plans

- As suggested by the Randerson Panel, planning processes under the NBA would be different to those currently provided for under the RMA, including in the coastal marine area. In particular, joint planning committees would be charged with developing combined plans at a regional scale. These committees would include direct representation from mana whenua alongside regional and district councils and central government agencies. The Department of Conservation would be prominent in this process and would need to be funded accordingly. As in the Auckland Unitary Plan process, there would be a strong role for an expert independent hearings panel, which would need to include marine expertise (including conservation and fisheries). In line with the Act's focus on achieving positive outcomes, plans would be clearer and more directive about how change would be achieved (an action plan), not just how activities would be controlled to mitigate their adverse effects.

Regional spatial strategies

- There would be mandatory regional spatial strategies, created under a new Strategic Planning Act. These strategies would cover the coastal marine area within a region as well as land (as envisaged by the Panel). Both land and sea could be included in the same regional spatial strategy (although they may need to have different processes as outlined in Chapter 10). Alternatively, there could be separate marine spatial strategies which are progressed in parallel with terrestrial spatial strategies (and which could span multiple regions and have boundaries defined by marine ecological factors rather than just catchments).
- Regional spatial strategies would have legal influence over a number of marine statutes (which are not included in the current reforms) in addition to the NBA. Combined plans under the NBA (which would incorporate regional coastal plans) would have to "be consistent" with the more strategic and high level regional spatial strategies. But so too would fisheries plans and decisions on sustainability measures under the Fisheries Act. Spatial strategies would also have formal legal influence over decisions made under legislation for shipping (the Maritime Transport Act) and biosecurity (the Biosecurity Act), as well as statutes providing for spatial protection.⁵
- Spatial strategies would be future focused and action oriented. For example, they would outline where MPAs, AMAs and customary management tools (eg taiāpure and mātaītai) would be deployed over time, and how funding would be provided to support them. The strategies would essentially be action plans for how regulatory tools contained in separate legislation (including the NBA, Fisheries Act and conservation legislation) would be deployed at place, and enable multiple activities to be planned for in an integrated way. And they would not just be about environmental protection; they would provide clarity as to how different uses would operate synergistically over time in a defined space to achieve other forms of wellbeing.

Climate change adaptation

- A new statute for climate change adaptation, the Climate Change Adaptation Act, would be enacted. Although that would primarily deal with the difficult issues associated with managed retreat (eg insurance cover, an adaptation fund, and extinguishing existing use rights), it could also lay out any new tools necessary to transition marine activities towards a more resilient model (for example, to transition stationary aquaculture operations to mobile ones, or to subsidise restoration activities in areas particularly vulnerable to a changing climate).

- The Act would need to link closely to the regional spatial strategies prepared under the Strategic Planning Act, since many such measures would need to be expressed spatially. The law would also specifically require *marine* adaptation measures to be undertaken as part of a national adaptation plan and risk assessment, which could be achieved through provisions in the Climate Change Response Act.

Other matters

There are, no doubt, many other aspects of the Randerson Panel's report that could be mentioned here, and all should have the marine environment at their heart. However, other reform packages would progress as well, and would need to be coloured by marine concerns. For instance:

- The recently announced review of the Wildlife Act and conservation planning and concession processes would also have marine concerns at their heart. While it is too early to say what might come from this review, approach 1 would anticipate that all indigenous marine species would be protected by default with those able to be harvested specifically identified in a schedule to the Act; that active management measures would be triggered automatically by a worsening threat status (for those species for which such assessment was possible);⁶ that more protective measures would be applied to indigenous

versus non-indigenous species; that te ao Māori and te Tiriti principles would be prominent; and that there would be a strong hierarchical relationship between new protected species legislation and the Fisheries Act.⁷

- Conservation management plans and strategies would be developed in partnership with Māori and would be structured more like RMA-style plans, with activity status linked closely to a hierarchy of policies and objectives.
- Work on climate change would extend carbon accounting to the marine environment, including accounting for the emissions produced from the destruction of biogenic marine habitats and the release of carbon from bottom contact fishing methods.
- On the flipside, there would be financial⁸ and regulatory⁹ incentives to undertake regenerative activities that would sequester carbon (eg habitat restoration and some forms of aquaculture like shellfish and seaweed farming). Irrespective of the specific mechanism, there would be a clearer legal link between emissions reduction plans under the Climate Change Response Act and marine focused legislation that would implement them (eg by decarbonising the fishing and shipping fleets under the Fisheries Act and Maritime Transport Act and dealing with the emissions implications of fishing methods and aquaculture).

Raewyn Peart



New Zealand sea lion pup, Otago Peninsula

Feature 2: There would be relatively modest change with respect to legislative design

In approach 1, changes to legislative arrangements would primarily represent the “new” status quo already envisaged in the Randerson Report and other planned reform programmes, through which (among other things) the RMA is replaced by the NBA, and the Strategic Planning Act and Climate Change Adaptation Act are promulgated.¹⁰ But the approach would not see widespread changes to how other marine legislation is configured.

Most significantly, the Fisheries Act would remain separate,¹¹ as would the successor to the Wildlife Act (which is likely to be renamed to reflect the importance of threatened and taonga species). Te Tiriti settlement legislation would remain separate, with its connections to other legislation maintained, as would the MACA Act. The Maritime Transport Act would continue to stand apart, with a basically unchanged interface with provisions currently in the EEZ Act (ie shared jurisdiction over marine pollution from ships and installations). And the Biosecurity Act would remain its own legislative sub-system, recognising the need to integrate the management of biosecurity threats across both land and sea (and the ability to achieve integration with other frameworks through institutions like regional councils and the wider functions of the Ministry for Primary Industries).

Beyond the Wildlife Act, further structural changes to conservation legislation would await more holistic assessment of how the conservation system – spanning land and sea – should operate in the future. The government has signalled that this deeper review is forthcoming.¹² Prior to the conclusion of that work, we would therefore still have a separate Marine Mammals Protection Act, Conservation Act and (revamped and renamed) Wildlife Act. In other words, conservation legislation (including its application to the moana) would remain fragmented across a number of statutes with links being made through an institutional mechanism: the Department of Conservation.

Consistent with the long-standing policy intent of government, new and separate legislation would be introduced to create a more nuanced suite of MPAs (for convenience, an “MPA Act”). This would have modernised normative foundations in its purpose and principles (including ones reflecting tikanga and ancestral Māori relationships with te moana, as well as the need to protect representative ecosystems and indigenous biodiversity). It would replace the fundamentally defective Marine Reserves Act but occupy roughly the same space in the system. It would therefore not be a large change from a legislative design perspective.

Over time, bespoke frameworks for the Hauraki Gulf, Fiordland and Kaikōura (and, perhaps, legislation for Rangitāhua/the Kermadec Islands, if process and other issues can be sorted out) could be integrated into this new statute to simplify the regulatory landscape for protected areas.¹³ MPA legislation would not necessarily upset the spatial protection tools already contained in other legislation (eg for fisheries, the protection of cables and pipelines, or resource management legislation). Instead, it would fill gaps by creating new and more flexible classes of protected areas (see Chapter 9).

It may be appropriate for this new MPA Act to set a formal timebound target for deploying protected areas: an MPA strategy. On the other hand, a strategic plan for the rollout of spatial protections (including using tools under other legislation like zoning rules under the NBA) could instead be provided for under the Strategic Planning Act (through regional spatial strategies). The latter option may be preferable as it would identify where different types of protected areas should go (not just those enabled by an MPA Act), and consider them in relation to other human activities like fishing, shipping, catchment-based pressures, land-based spatial protections (eg adjoining reserves) and aquaculture.

That said, providing for a rollout of protected areas under dedicated MPA legislation would have the advantage of doing so under a clear and uncompromising environmental purpose, rather than treating it as a negotiation between different interests seeking to use the same space (an ever-present risk in integrated marine spatial planning).¹⁴ In short, it would see MPAs (located on the basis of biophysical characteristics) as the backbone of spatial planning around which other activities would be arranged.

Whether a statutory MPA strategy would be created separately in an MPA Act, or be integrated in a regional spatial strategy, we leave as alternative options. Either way, this strategy would coordinate the use of different kinds of MPAs (including those under an MPA Act and spatial protections and supporting tools under other frameworks like the Fisheries Act and NBA) to ensure the protections work well together, and to minimise complexity and overlap. In practice, not all of these tools may be needed in every place. Each network of protected areas would be supported by a guardians model similar to those in Kaikōura and Fiordland.

Some smaller scale legislative rearrangements would occur in approach 1 as well, partly to “tidy up” and simplify the statute book. The Continental Shelf Act would be subsumed primarily within the Crown Minerals Act. The Fisheries Act 1983 – now little more than a shell – would be repealed, with

any necessary amendments being made to the Fisheries Act 1996. It may be possible to incorporate the Submarine Cables and Pipeline Protection Act into the NBA (some provisions are conceptually similar to those preventing interference with designations already familiar to the RMA) or new MPA legislation (recognising potential synergies between pipeline protection and protection of benthic habitats around them).¹⁵

Going further, however, approach 1 would see the NBA merged with the EEZ Act, reflecting the ultimately artificial geographical boundary between these statutes from an ecological perspective. Any distinctions (such as different status and requirements of international law) could still be recognised within one statute having the same basic purpose and principles. But the basic new features of the NBA, such as environmental limits, targets and a mandatory national planning framework, would apply (with any necessary alterations) to the EEZ as well. The latter would therefore become a more robust and proactive management framework, rather than the somewhat skeletal, reactive (consenting-based) and policy-devoid framework we have today. In particular, inclusion of the EEZ within a mandatory suite of national direction (the National Planning Framework) would fill the significant gap in the Act: the lack of an EEZ policy statement.

Feature 3: Institutional arrangements would evolve rather than be replaced

Some change would occur to institutional arrangements, but familiar institutions would remain and their basic responsibilities and jurisdictions would not fundamentally change. However, some settings would be clarified and strengthened. For example:

- Regional councils would have a clearer statutory mandate to map and protect marine habitats, including from fishing pressures, thereby resolving some uncertainties left by the Court of Appeal in the *Motiti* decision.¹⁶ Mapping would be necessary to fulfil the stronger purpose of a new NBA and its obligation to impose mandatory environmental limits in the marine space. It would occur in collaboration with Fisheries New Zealand (to ensure that habitats of importance to fisheries are identified), the Department of Conservation and potentially others. Central government funding would be required to support the mapping exercise.
- Where a coastal system is divided by different regional council boundaries, the timing of the preparation of combined plans would be synchronised, so that combined plans impacting on a single marine system are considered together or at least over a similar time frame.
- Central government would have a much stronger and more proactive role in planning in the coastal marine area, not just in approving plans. This would be through close involvement of relevant agencies in the development of combined plans under the NBA, and a mandatory auditing role for the Ministry for the Environment and Department of Conservation prior to plan notification. The Ministry for the Environment would have a more proactive planning role in the EEZ (which would essentially become another “region” for the purposes of an NBA that would incorporate the EEZ Act).
- A national-level Māori advisory panel – a Tikanga Commission – would be established to provide advice to both central and local government across all marine statutes. This body, along with an expanded Parliamentary Commissioner for the Environment, would be charged with evaluating the performance of central and local government in terms of compliance with te Tiriti o Waitangi, defence of limits, and progress towards meeting mandatory targets for environmental enhancement. A Tikanga Commission would recognise that even though legislation is fragmented (for fisheries, resource management, protected areas, customary marine title), a te ao Māori and mātauranga perspective can provide a thread of normative consistency with the same institution(s) advising across multiple acts.
- The Parliamentary Commissioner for the Environment and Tikanga Commission would have stronger powers to propose measures that would *have* to be considered by the government (eg the establishment of MPAs under MPA legislation and measures like product stewardship schemes under the Waste Minimisation Act). The government could be required to give reasons as to why such things were *not* done, reversing the orthodox presumption and embracing the precautionary principle.
- A National Fisheries Advisory Council (already possible under the Fisheries Act) would be established to provide independent advice to the Minister. Its creation would be made mandatory. It could evolve over time and eventually be subsumed within a more thoroughly independent Parliamentary Commissioner for the Environment or Oceans Commission.
- The EPA would be given a firmer mandate with respect to its roles in the marine environment, including greater involvement in planning and regulatory decision-making under the NBA. It would regain its function as an independent consenting body in the EEZ. Another sub-option in the coastal marine area would be for the EPA to be

responsible for implementing the regulatory provisions necessary to implement the NZCPS components of the new National Planning Framework, shifting this “implementation” function away from regional councils in the coastal marine area (and instead leaving them to determine only those matters within the regional community of interest). The logic here would be that central policy should be implemented by a central agency, and could mean that the EPA had the power to create certain regulatory provisions directly within combined regional plans or influence councils to do so. Irrespective of that choice, the EPA would be the regulation making body in the EEZ (to implement policy created by the Minister) and would be strengthened in terms of resourcing.

- Responsibility for three waters services (or at least two of them: drinking water and wastewater) would be shifted from councils to new arm’s length water entities,¹⁷ leading to economies of scale, concentrations of expertise, and the socialisation of costs that would improve the infrastructure that can prevent harmful impacts of discharges to the marine environment (eg wastewater overflows and diffuse stormwater runoff). These entities would not just be operational; they would also become independent advocates for the whole water cycle (such as protection of the ocean as a drinking water source via desalination, and keeping catchments clean to minimise impacts on estuaries).
- Taumata Arowai (the new national water regulator) would take on the role of setting minimum regulatory standards for wastewater and stormwater discharges into the marine environment, and these would be incorporated into the National Planning Framework.
- A behavioural insights group would be formally instituted within government, and provide advice on how behavioural tools and incentives (including economic instruments) could influence people’s interactions with the moana using human psychology rather than regulatory tools.

At the central government level, existing departmental boundaries would not fundamentally change. The Ministry for Primary Industries (and its business units, such as Fisheries New Zealand) would retain their existing functions, as would the Ministry for the Environment, Ministry of Transport and Ministry of Business, Innovation and Employment. The Department of Conservation would remain as well, but would have a formal statutory division created within it to ensure a focus on (and advocacy for) the needs of the moana specifically. Budgetary apportionments between

investment in land and sea would be made clearer, including via a national environmental research strategy (with marine components).

However, the current integrated ministerial portfolio for oceans and fisheries would be formalised in legislation, as would the cross-departmental Oceans Secretariat (the purpose of which would be to ensure that coordinated advice¹⁸ was provided to the Minister of Oceans and Fisheries, and to provide a permanent forum for inter-agency cooperation). The Secretariat would coordinate central government participation in marine spatial planning under the Strategic Planning Act alongside councils and mana whenua. Councils and central government agencies would be obliged to give effect to the plan created (and there would be legal connections to budgeting decisions under the Local Government Act and Public Finance Act).

Feature 4: Improved connections would be made across the toolkit

While some structural features would evolve, the key changes in approach 1 focus on the better use of existing frameworks and tools, particularly through improving inter-statutory connections and normative consistency.

At the highest level, connections would be improved by providing for an overarching, formal National Oceans Strategy applying to the whole marine area. This could build upon the non-statutory vision already produced by government but would be more specific and structured. It would be mandatory, incorporate te ao Māori values and recognise the te Tiriti partnership. It would also have a clear legal status and ongoing influence over multiple other “implementation” statutes.¹⁹ This would shift the vision away from being a political manifesto for reform towards being a strategic document woven into the fabric of the system (a constitution of sorts for the oceans). For example, it would have strong influence over things as diverse as:

- urban planning under the NBA (eg to create an urban form that minimises runoff to the marine environment by adopting nature based filtration solutions like wetlands and rain gardens);
- building standards under the Building Act (to minimise the impact of building materials, such as those incorporating heavy metals, on the sea);
- tools under the Waste Minimisation Act (to ensure stewardship of products that pollute the marine environment);

- infrastructure design under the Local Government Act (eg diverting some stormwater into wastewater systems).

Aside from the creation of national and regional strategies, other measures would be put in place to clarify the relationships between statutes. For instance:

- The NBA and Fisheries Act would both clarify that measures to protect marine biodiversity and habitat from fishing activities are mandatory under *both* frameworks. This would recognise that the orientation and purpose of each act is different even though there is overlap in subject matter.²⁰ This would go further than the Court of Appeal in the *Motiti* decision, in recognising that councils *must* discharge such functions rather than merely having the jurisdiction to do so. There would also be safeguards around any transfer of jurisdiction from councils. For example, a strengthened EPA or marine unit within the Department of Conservation could be geared up to take on such NBA planning jurisdiction where delegated.
- With the jurisdiction of the NBA to manage fishing activity for broader biodiversity reasons clarified, customary marine title holders under the MACA Act would have a strengthened ability to influence fishing activities indirectly (through their influence on the content of combined regional plans). That might even extend to spatial exclusions implemented through the NBA – protected areas of sorts – as well as restrictions on the use of particular gear or methods.
- The Department of Conservation under a new MPA Act would have the mandate to impose limits on land-based pollutants in catchments and coastal environments impacting on the values of protected areas. It would do so through the review of combined plans.²¹
- There would be a strengthened ability for decision-makers under the Fisheries Act to influence some regulation and policy made under the NBA. This could be in terms of policies and rules for managing sedimentation harming fish stocks (particularly benthic species) and habitats necessary for stock health. For example, the Ministry for Primary Industries could be charged with developing environmental limits under the NBA on catchment-sourced sediment and other contaminants necessary to protect fish stocks and nursery grounds.
- The National Planning Framework would operate directly in the EEZ (by virtue of the EEZ Act being combined with the NBA)²² and would also be given more direct legal weight in *other* legislation – notably conservation legislation, waste minimisation legislation, the Biosecurity Act and the Fisheries Act. It would, for example, have policies and objectives directly addressing the environmental impacts of fishing,

Raewyn Peart



Talley's fisheries plant, Nelson

waste (especially plastic) and biosecurity threats on marine biodiversity and habitats (including protected species), and require decisions and tools under those other frameworks to be consistent with them. Essentially, this would mean that national policy under the NBA would perform a more integrating policy role across resource management, conservation, waste and fishing frameworks, not dissimilar to how a regional policy statement performs an integrating policy role across regional and district council functions under the RMA.²³

There would be more normative consistency between the purposes and principles of different pieces of legislation under approach 1. That could include multiple statutes adopting common principles at their heart, like *te oranga/mana o te moana* (building on the ideas behind *te mana o te wai* and *te oranga o te taiao*). However, the NBA would also include a distinct second purpose relating to the prevention of or limits to pollution (including marine pollution), reflecting the dual purpose of the current EEZ Act and the need to comply with international commitments.

A common set of principles would also be created (potentially through the National Planning Framework), outlining when it would be appropriate for powers to be transferred to *mana whenua* under multiple pieces of legislation, including the NBA, Fisheries Act and conservation legislation. While this transfer of powers would not be about “ownership” or “title”, it would be closer to the spirit of the MACA Act (providing more certainty and predictability as to when and what powers are shared). In the RMA context, that would essentially put a policy framing around when powers should be transferred from councils to Māori under section 33.

Under approach 1 there would be greater clarity around when compensation would be forthcoming for any impacts of regulatory restrictions on existing property rights, resolving a key uncertainty in the current system about the relationship between property rights under the QMS and public interest restrictions under the Fisheries Act, RMA and bespoke conservation legislation (eg for protected areas). This would create a reasonably high bar, reflecting the similar approach in the RMA for land use (eg compensation could be forthcoming when rights were incapable of reasonable use or where there was a derogation of grant). Alongside principles relating to compensation, there would be principles about what assistance (eg subsidies, buyback of outdated gear, investment in research) would be provided to help industry transition over time where it was needed to meet environmental limits or desired outcomes.

Aside from the need for tools to be better connected to each other, approach 1 would also make more pointed changes to the toolkit.

Other tools under the NBA

- AMAs would be reinstated (and include *te Tiriti* settlement areas). These would be planned through broader marine spatial planning processes, reflecting a more proactive and strategic approach to using marine space. Aquaculture would be better accommodated within AMAs by softening the test for allowable impacts on fishing activity, and providing for more flexibility for occupation rights (to encourage mobile operations).
- A nationally consistent attribute-weighted tendering process for occupation of marine space (including by aquaculture operations) would be instituted, building in an expectation that any proposals for using areas that are not privately owned will enhance the environment and social wellbeing and not just be awarded to the highest offer in monetary terms.

Conservation and climate

- Population management plans would be reconfigured under the Marine Mammals Protection Act and revamped Wildlife Act. In the first instance, they would be renamed “species recovery plans”, to reflect their true purpose. Aside from updating the legal provisions around the development and content of the plans themselves, the legislation would provide for their creation to be triggered automatically by negative changes in the status of protected species. The plans would directly create fisheries sustainability measures to reduce mortality (such as gear and spatial exclusions) rather than requiring a separate decision by the Minister of Fisheries under the Fisheries Act. Such plans would be decided by the Minister of Conservation, based on best ecological evidence, rather than through a balancing of different interests (eg its impact on quota owners or fishers).
- Sanctuaries under the Marine Mammals Protection Act and Wildlife Act would be deployed in the service of a broader marine spatial strategy, and these would be integrated with the deployment of other protected areas (to be given regulatory teeth under a new MPA Act).
- Blue carbon would be integrated into the accounting framework of the Climate Change Response Act, potentially through the emissions trading scheme. That would include liability for greenhouse gas emissions from seabed disturbance (if modelling made that feasible) and the carbon benefits of restoration (including protected areas).

Fisheries tools

- Fisheries plans would be made mandatory, strategic and place-based (as is being progressed in the Hauraki Gulf). They would have wide public participation in their development, and be developed in partnership with mana whenua. There would be merits appeal rights to the Environment Court on these plans, allowing a broader range of evidence (including mātauranga Māori) to be formally tested. Fisheries plans would have to give effect to a broader NZCPS (within the new National Planning Framework). A national Fisheries Policy Statement would be mandatory, to inform place-based fisheries plans alongside national direction under the NBA.
- In the same spirit, the Harvest Strategy Standard (and its concepts of limits) would be formalised in the Fisheries Act as a mandatory guide to setting catch limits. There would also be statutory provision for the development of other fisheries policies. The concept of MSY in the Fisheries Act would be softened to refer to harvest “targets” that are broader in purpose, including retention of a higher proportion of biomass where needed to achieve the range of outcomes contemplated in the Act (ie “conserving, using, enhancing and developing fisheries resources to enable people to provide for their social, economic, and cultural wellbeing”).²⁴
- The QMS would remain, but there would be buyback of some quota by the Crown on a willing buyer-willing seller basis (excluding settlement quota). Buyback quota could either be retired, or wielded by a new and arm’s length “public quota holder” which would lease out ACE based on environmental and social considerations (eg which fishers would produce the best public interest outcomes). This would reflect the idea that the Crown is already a significant holder of property on land, where it is actively used for the public benefit rather than just awaiting privatisation, and the marine context is not necessarily different.
- There would be a more agile process for changing quota management area boundaries to reflect biophysical characteristics, habitats, biological stocks and the impacts of climate change, as well as more fine-grained units within them to manage the risks of local depletion in coastal areas.
- Aggregation limits for quota would be strengthened. Licensed fish receiver locations would be dispersed around the country to support coastal communities, particularly those with limited economic opportunities.
- Some sustainability measures would become mandatory under the Fisheries Act, reflecting the similar approach to environmental limits under the NBA. Sustainability measures and limits would be exercised for different purposes under the different acts, so the more stringent controls would apply to marine activities.²⁵ Under the Fisheries Act, controls would still be focused on management of healthy stocks, including the protecting nursery grounds and other important fish habitats. It would be made clear that quota rights were *contingent* upon meeting these conditions (in the same way that interests in real estate on land are subject to covenants), recognising that property rights come with associated responsibilities.
- There would be clearer principles around when the imposition of rāhui by mana whenua would be translated into an enforceable fisheries closure. The onus could be reversed, so that a closure was presumed in the event of a rāhui being laid down, unless good reason could be shown to do otherwise.
- Recreational fishing would remain subject to different kinds of controls (eg bag limits rather than a hard overall cap), but fishers would need to report their catch to allow closer monitoring of the recreational catch and to inform future decisions.
- There would be clearer principles in the Fisheries Act to guide the Minister when setting proportional catches for commercial and recreational fishing (ie where to set the TACC relative to the TAC for one or more shared stocks).

Funding, information and incentives

- A sliding scale of resource rentals would be gradually introduced for the use of marine resources, including taking marine life, sand and minerals and occupation of coastal space. A portion would be returned to mana whenua, with the balance hypothecated into research and other measures to protect the marine environment, providing a secure and independent source of funding to support marine management for relevant institutions like the Parliamentary Commissioner for the Environment, a new Tikanga Commission, regional councils, and the marine focused unit of the Department of Conservation. This could be separate to research levies, which are imposed for different (albeit overlapping) reasons.

- Financial assistance would be provided to emerging industries with potential to make more efficient use of the marine space and improve environmental outcomes, such as some forms of seaweed and shellfish farming and eco-tourism. There would be a framework whereby cost-benefit analysis of such investments would give significant weight to the ecological interests of nature and future generations.
- A national level, integrated database for marine environmental information, monitoring results and research would be created, with all agencies sharing information with each other and the public through a common digital platform. This would become a trusted source of wide-ranging information about habitats, biodiversity, and pressures from which multiple statutory processes would be expected to draw (“best available information”), including for fisheries decision-making. Expert evidence accepted in court proceedings would be integrated into this.
- A public messaging campaign about the importance of the marine space and threats to it would be instituted, embedding this in the public consciousness in the same way as climate change. Non-regulatory tools (behavioural nudges and economic instruments) would be deployed in a more strategic way at a national level, driven by the behavioural insights group mentioned earlier.

There are many other specific interventions that could be used in this approach to improve the toolkit, and we invite readers to add to the list above (or subtract from it). In particular, it may be that the development of a marine spatial planning framework could provide significant benefits if spatial plans had meaningful legal influence over other statutes, even without the further changes outlined above (and this could be one “simpler” sub-option to consider).



Raewyn Peart

Dolphin viewing vessel, Bay of Islands

Brief assessment of approach 1

Below, we consider the potential benefits and downsides of approach 1. We invite readers to consider whether the pros would outweigh the cons.

Some potential benefits of approach 1	Some potential downsides of approach 1
Changes could be staggered and targeted, without the need for overhaul of entire legislative frameworks.	It arguably does not tackle the root cause of systemic problems, notably the fragmentation across multiple legislative frameworks.
The approach piggybacks on, and makes more targeted, many of the changes already envisaged for the resource management system.	There is no fundamental normative reimagining of the system, such as one based on te ao Māori or ecocentrism.
A focus on strong environmental limits, a national oceans strategy and regional marine spatial planning would provide more certainty for users (including to prevent the impacts of landbased activities on marine sectors like aquaculture and fishing) as well as establish clear bottom lines to prevent cumulative harm.	Additional complexity is added to the system, by creating a new layer of marine spatial planning and a National Oceans Policy.
The system would become more future-focused through the use of mandatory targets and consideration of where beneficial/synergistic uses of the marine environment can go (eg offshore wind energy, offshore aquaculture).	Specific environmental limits might be hard to set and measure in an information-poor environment, and would raise difficult issues about how to “claw back” existing rights where limits have been overshot.
The retention of a separate Fisheries Act would avoid the difficulties associated with merging it with a quite different management framework.	Regional councils may struggle to discharge significantly larger responsibilities to map and protect the coastal marine environment.
Boundaries and gaps between legislation would be clarified and filled, with some rationalisation of statutes.	Some uncertainty may result from expanding the role of the EPA in regulation-making vis a vis regional councils.
New MPA legislation would allow a more culturally sensitive approach to spatial protections in the toolkit.	It is unclear whether formalising the Oceans Secretariat through legislation would make much difference in practice.
Connections between different statutes and their tools would be strengthened in a way that would minimise cost and disruption, and retain key case law.	Some may object to the use of compensation or financial assistance to transition away from environmentally harmful practices.
Property rights would not be extinguished, avoiding the practical and ethical difficulties of extinguishing them.	Some may argue that the approach does not have a clear enough normative vision or objective for the future.

Figure 13.3: Brief assessment of approach 1

13.4 Approach 2: Redesigning the structural features of the system

In a nutshell

Whereas approach 1 is about building on what we already have, approach 2 is transformational in a structural sense. In particular, it would be highly integrative in legislative design terms, and get to the heart of the many issues caused by the fragmentation and complexity of oceans management across multiple statutes, processes and institutions. It would be a different, more far reaching way to address the problems and challenges described in Chapters 2 and 3. Again, we invite readers to

consider whether this framework would provide a *better* springboard to do so than others.

Its centrepiece would be a new “Oceans Act”, which would subsume a number of existing acts (or the marine parts of them). It would also involve some fundamental shifts in terms of the toolbox and institutional design. Essentially, it begs the question: if we were to go further than the more targeted changes in approach 1, what could that look like? While the focus here is on deeper structural change, a number of the changes to the toolkit envisaged in approach 1 could also potentially be deployed. A summary of the approach’s key features can be seen in Figure 13.3 with the key structural elements of the approach depicted in Figure 13.4.

Theme	Key features of approach 2
Overall description	Deeper structural change. The main focus of the approach would be on changing statutory boundaries, reinventing institutions, and undertaking deeper changes to the toolkit.
Legislative design	A single Oceans Act would be created, which would apply on the seaward side of mean high water springs.
	Most existing statutes with marine components (or relevant parts of them) would be integrated into an Oceans Act, including the RMA, Fisheries Act, Biosecurity Act, Maritime Transport Act, Wildlife Act, Marine Mammals Protection Act, EEZ Act, Marine Reserves Act (albeit heavily amended and modernised), Undersea Cables and Pipelines Protection Act, Territorial Sea, Contiguous Zone and Exclusive Economic Zone Act, and bespoke marine legislation (eg for Fiordland, the Sugar Loaf Islands, Kaikōura, the Hauraki Gulf). The “terrestrial” components of legislation (eg the RMA, Biosecurity Act and Wildlife Act) would remain separate.
	The MACA Act and te Tiriti settlement legislation would remain separate.
	Relevant parts of the Continental Shelf Act would be integrated into the Crown Minerals Act and the Oceans Act.
Norms (ethics, principles, objectives)	Norms would build upon what we already have, but would be made more consistent across frameworks (eg for fishing and resource management). There would be no large scale normative shift, and worldviews would remain pluralistic.
	A more modern purpose statement would underpin a new Oceans Act, tailored to the marine context (there are various options). There could be multiple purposes existing in a hierarchy (building on the concept of te mana o te wai).
	There would be a single/consistent expression of te Tiriti or its principles in the Oceans Act.
	There would be a consistent set of allocative principles across all marine resources.
Institutional design	There would be significant institutional change.
	Regional councils would no longer have jurisdiction over the coastal marine area. Instead, jurisdiction would be conferred on semi-autonomous regional branches of a single Oceans Agency (a Crown entity). Regional councils would retain jurisdiction over catchments and coastal land. The Oceans Agency would audit regional plans to ensure their consistency with oceans policy.

Theme	Key features of approach 2
Institutional design <i>(continued)</i>	An Oceans Agency would be co-governed, via appointments of members to its governance authority by mana whenua. Some regional representatives would be appointed by regional councils, safeguarding aspects of local democracy and making links between land and sea.
	An Oceans Agency would have a strong statutory mandate focused on the health or oranga/manā of the moana. It would receive hypothecated funding to discharge its core functions, removing reliance on politically determined budgeting decisions.
	An Oceans Agency would have consenting functions in the coastal marine area and EEZ, as well as regulation making functions to give effect to national policy, and operational functions currently held by the Department of Conservation, Maritime New Zealand and Fisheries New Zealand. There would be joint jurisdiction with the Department of Conservation for matters that crossed the land-sea boundary.
	A single Ministry for Oceans would be established as a policy advisory entity to a formally established Minister for Oceans. The Ministry would integrate existing relevant advisory functions of Fisheries New Zealand, the Ministry for the Environment, Department of Conservation, Ministry for Primary Industries and Ministry of Transport.
	An independent Oceans Commission would be established (including a Tikanga Commission or Tikanga Commissioner) and would play a similar structured advisory and watchdog role as the Climate Change Commission.
	An Environmental Defender's Office would be created and granted standing and resourcing to undertake public interest litigation for various marine matters under the Oceans Act.
The toolkit	Many of the more granular tools in approach 1 could be deployed in approach 2.
	Mandatory marine spatial planning would be provided for in an Oceans Act and exist at the top of the planning hierarchy. Greater clarity would be provided as to where different forms of development could go and where they would be encouraged for public interest (eg desalination, offshore wind).
	Clear statutory links would be made between marine spatial plans and other mandatory tools such as a national planning framework for oceans (ie national direction), place-based fisheries plans and regional marine plans.
	Regional marine plans would integrate many forms of planning, including under RMA/NBA, fisheries, shipping, biosecurity and conservation.
	The concept of mandatory environmental limits would be expanded, from being confined to the NBA, to applying to all things managed under the Oceans Act including fishing and conservation.
	A common set of allocative principles would be included in the Oceans Act, providing more certainty as to why rights/value should be given to some over others. Attribute weighted tendering would be more proactively provided for within spatial allocations provided for in a marine spatial plan.
	Mandatory legislated targets would be provided for, including for the rollout of MPAs over defined timeframes
	Regional plans on land would be strictly subject to the Oceans Act (ensuring that marine limits would not be infringed by land-based pressures).

Theme	Key features of approach 2
The toolkit (continued)	Over time, the QMS <i>might</i> be replaced (or partially replaced) by a permit-based system under the Oceans Act, treating commercial fishing as an activity more like others under the NBA. That could occur through the gradual and willing buyback of some quota.
	Recreational fishers would be required to be licensed, with fees used to fund the activities of an Oceans Agency and Oceans Commission.
	Resource rentals would be charged on a principled and predictable basis across all forms of marine resource use, with a proportion returned to mana whenua for use as kaitiaki.

Figure 13.4: Key building blocks of approach 2

Feature 1: A new integrated Oceans Act would be created

In a purely regulatory sense, a new Oceans Act (see Chapter 11) would “apply” to activities on the seaward side of mean high water springs. The RMA (or its replacement, the NBA) would be split geographically at this point, along the same line that currently exists between the land use functions of territorial authorities and regional council coastal marine area functions under the RMA. The EEZ Act would be subsumed into the Oceans Act as well, and the purposes and principles of the two former statutes would be modernised and (in the case of the RMA) tailored to the marine context. It could be built around a concept like te mana o te moana, or have dual purposes like the EEZ Act (some version of sustainability alongside the prevention of marine pollution). It would incorporate some of the principles at the heart of the NZCPS.

The Fisheries Act would also be included in an integrated Oceans Act. Other legislation would be merged into it as well, such as the Maritime Transport Act, Marine Reserves Act, Marine Mammals Protection Act, Undersea Cables and Pipelines Protection Act, and special legislation for the territorial sea and contiguous zone.²⁶ Bespoke place-based marine legislation (eg for Kaikōura, Fiordland and the Hauraki Gulf) would be integrated, and modernised where necessary, with their regional overlays retained through inclusion in schedules to the Act.

The Biosecurity Act would be split as well; marine biosecurity (management of vectors such as ships, as well as management of pests once established) would come under the auspices of an Oceans Act. Terrestrial biosecurity threats would be dealt with under the Biosecurity Act. Similarly, aspects of the Wildlife Act would be transferred to the Oceans Act (eg protections for marine species and wildlife sanctuaries in the marine space) and made fit for purpose in the context of a climate and indigenous biodiversity crisis.²⁷ While the Crown Minerals Act would remain separate, it would subsume most provisions of the Continental Shelf Act.²⁸

Te Tiriti settlement legislation and the MACA Act would also remain separate from an Oceans Act, with cross-references carefully made to a new legislative landscape. The logic here is ultimately pragmatic. While it may happen in the future (and it may be another sub-option to consider), opening up discussion about the foreshore and seabed and questioning the complex, intensive and now well-underway process of recognising customary marine title and protected customary rights for the sake of legislative integration risks delaying or complicating a broader reform effort (a lesson learned in previous attempts at marine reform). Instead, processes under the MACA Act would be better resourced and customary marine title would be better linked to decisions made under frameworks for fishing and waste minimisation.

There would be no need for a separate marine spatial planning piece of legislation, as a spatial planning process (and a national oceans strategy) could be subsumed within an integrated Oceans Act. In the same way, there would be no need for separate MPA legislation. The ability to make clear vertical intra-statutory links (all the way from high-level strategy through to bespoke tools) for the whole marine space would be the approach’s strength. However, marine strategy and spatial planning would need close procedural and institutional links to the spatial planning process on land, which would remain under the separate Strategic Planning Act envisaged by the Randerson Panel. Linking such processes across the land-sea boundary, and in the coastal zone especially, would be an important challenge to meet.

Feature 2: There would be significant institutional change

Alongside legislative change, there would be significant institutional change in approach 2 (see Chapter 12). Regional councils would no longer have jurisdiction over the coastal marine area. Instead, semi-autonomous regional branches of a national marine regulator would be established, with inter-regional boundaries reflecting not just catchments but also

the bio-geographical characteristics of the marine environment and the rohe of iwi/hapū. As far as practicable, there would be alignment between revised fisheries management areas and these regions, to form broader marine management units.

This new oceans regulator, which could be called an Oceans Agency, would be tasked with managing the entire marine area (including the coastal marine area, EEZ and extended continental shelf) under the new Oceans Act. It would have a co-governance structure at the national board level, and also potentially at a regional level (where regional governance boards would provide oversight, not unlike the conservation board and Fish and Game regional structures), although the details of that would need to be worked through very carefully.

An Oceans Agency would be robustly independent from both central and local political influence (in the nature of an autonomous Crown entity, if meaningful co-governance arrangements could be achieved through this mechanism) and would need to develop a high degree of public credibility. The Agency could have regional offices, with provision for councils, mana whenua, the Crown and an Oceans Commission to appoint advisors. There would be different options for how a national-regional split within the agency could be achieved (eg regional boards having specified functions) and this requires more detailed exploration. In any case, members of the regulator at national and regional levels would need to be suitably qualified experts.

The Oceans Agency would have a clear statutory mandate (more so than the current EPA)²⁹ and would need to be properly resourced. It would have a secure, hypothecated funding stream secured by statute (eg through charges on consents and marine resource rentals), not at the discretion of Ministers through appropriations of general funds. (Alternatively, an Oceans Unit could be created within a strengthened EPA, particularly if the latter were to grow into a more expansive role as an environmental regulator and enforcement agency on land (eg under the NBA)).

Ministers would continue to set marine environmental policy under an Oceans Act. This would be done through a national oceans planning framework (which would subsume an expanded NZCPS, and integrate policies concerning the impacts of and opportunities for fishing, shipping and other activities). In some ways, this planning framework would be much broader than that contained under the proposed NBA, given the number of other statutes to be integrated (including for maritime transport, fishing and biosecurity). It would encompass the kinds of provisions currently in RMA national direction, the fisheries Harvest

Strategy Standard, pest management strategies and conservation general policy.³⁰ However it would also fill important gaps, such as the current lack of a national fisheries environmental policy, maritime transport policy and biosecurity policy.

A national policy framework for the sea would need to give effect to the environmental limits and outcomes specified much more clearly in a new Oceans Act itself. Having a single Act would allow for the cross-cutting concept of limits to span things traditionally thought about in silos: bottom lines under the NZCPS, catch limits and other sustainability measures under the Fisheries Act, and biodiversity limits (which often need to be expressed spatially) through multiple types of protected areas. Similarly, it would allow cross-cutting outcomes to be pursued in more integrated ways, such as fairness in the allocation of resources (the Act could have a common set of allocation principles), efficiency in the use of marine space (through marine spatial planning) and increasing resilience to climate change across multiple sectors (eg eco-tourism, aquaculture, fishing). The Act would include limits and outcomes that reflected mātauranga Māori. It would also require targets to be set for environmental enhancement and restoration. Mandatory and timebound targets would include the deployment of MPAs with the express purpose of safeguarding biodiversity. High level targets for coverage could even be established in the Act itself.

Within the policy framing set by Ministers, an Oceans Agency would then be responsible for setting regional policies and regulatory controls through mandatory regional³¹ marine plans and assessing consent applications. There would be transparent criteria for devolving some functions to mana whenua to exercise in accordance with tikanga – a more proactive, directive and wide ranging mechanism than under section 33 of the RMA. Appeal rights to the Environment Court would exist for regulatory decisions (in both the coastal marine area and EEZ), but generally speaking public participatory opportunities would be focused at the higher levels of decision-making (strategy and planning) rather than on individual consents.

The Oceans Act and an Oceans Agency would have jurisdiction over activities occurring below mean high water springs (ie those actually in the marine environment). Regional councils would retain jurisdiction, subject to national level mandatory environmental limits, for making plans and consenting decisions on land (including within catchments and the coastal environment). However, an Oceans Agency would have strong powers to influence land-based impacts on the marine environment in that council planning and consenting decisions could not be inconsistent with marine plans (including regional level policies) created by the Oceans Agency.

The Agency would also be responsible for auditing regional plans (including plan changes) on land prior to public notification, thereby ensuring that marine environmental outcomes drive what happens there. No longer could slow burn land use impacts like sedimentation undermine the values of protected areas such as marine reserves or valuable fishing nursery grounds. In other words, the Agency would have a close oversight role when it came to the performance of local government, something that has been missing under the RMA in a variety of contexts (eg ensuring that national direction is adequately implemented by councils).

An Oceans Agency would also take on the operational role of the Department of Conservation in the marine space (both the coastal marine area and EEZ), including research and responsibility for MPAs and protected species. It would be charged with implementing a strategy to deploy MPAs, and the Minister for Oceans would be required to create such a strategy to achieve the targets required under the Act. This strategy would form part of the wider strategic framing for oceans in the national planning framework mentioned earlier. The Oceans Agency and Department of Conservation would have joint responsibility for conservation issues that spanned the land-sea boundary, such as for some marine mammals, seabirds, shorebirds and species that cross the fresh-saltwater boundary to spawn.

The Oceans Agency would take on the marine operational roles of Maritime New Zealand under the Maritime Transport Act, the Ministry for Primary Industries (Biosecurity New Zealand) under the Biosecurity Act and Fisheries New Zealand under the Fisheries Act, corresponding to the functions merged into an Oceans Act. Being arms-length from government, it would also be well placed to conduct and commission broader scientific and social science research to inform oceans management in the long term, including with a mātauranga lens, rather than being at the beck and call of short-term ministerial direction or industry priorities. It would be an independent regulatory, operational and scientific body which would not be concerned with supporting or advocating for those it regulates.³²

The Oceans Agency would not have a direct ministerial advisory role, however. This would be performed by a new Ministry for Oceans, which would subsume the marine policy elements of the Ministry for the Environment, Department of Conservation, Ministry for Primary Industries and potentially the Ministry of Transport. The new ministry would be created by statute, like the Ministry for the Environment and Department of Conservation.

While an arm's length Oceans Agency would not have a policy advisory role, it would take on more regulatory functions that have hitherto been the preserve of government departments. For example, departments would advise on policy for marine environmental protection and fisheries, and Ministers would make such decisions, but the actual translation of policy into regulation, and its application on the ground would be done by an Oceans Agency with close oversight by an Oceans Commission (see further below). Regulatory decisions could even include the specific delineation of MPAs and establishment of controls within them, restrictions on activities currently managed under the RMA, and setting sustainability measures like catch limits and controls on fishing locations and methods currently undertaken under the Fisheries Act. However, Ministers could retain decision-making power over value-based allocative decisions (eg the setting of a commercial catch limit vis a vis allocation to recreational and customary take). It may be that determining the location of protected areas and values to be protected would be left to ministers in partnership with mana whenua, with the Oceans Agency tasked with translating those decisions into regulatory provisions. It may depend on how value-based such decisions are seen to be.

One option would be for councils to retain *some* jurisdiction to establish environmental controls in the inshore coastal marine area that were *more* stringent than those set by the Oceans Agency (recognising that communities still have significant interests in inshore environments, especially where they connect to land-based features), but these would not be able to weaken those set by the Oceans Agency and would not be relied upon as the default or comprehensive mechanism by which oceans were managed and protected.

An Oceans Agency could have a strong advocacy role, including a clear statutory mandate to engage in processes under separate legislation having an impact on the marine environment (including climate change, waste minimisation, offshore mineral exploration and non-marine conservation legislation). As mentioned above, it would have secure core funding to allow it to discharge this function, which it would take on from the Department of Conservation. Alternatively – and perhaps more appropriately – an advocacy role could be consciously separated from a regulatory role by giving the former to other entities (eg the Parliamentary Commissioner for the Environment or a new Oceans Commission). A separate Oceans Commission would have other benefits than an independent advocacy role – for example, it could (like the Climate Change Commission) be charged with providing an independent stream of expert advice to government, and reviewing or auditing the performance of the Ministry of Oceans and the Oceans Agency. Performance would be measured against statutory metrics as well as compliance with te Tiriti o Waitangi, and could see

the Commission issue various public entities with triennial report cards evaluating their progress and recommending any remedial action. It could be a standing body that assesses the adequacy of proposed regulation and policy, similar to how ad hoc boards of inquiry make recommendations on proposed national direction under the RMA. An Oceans Commission would need to have expertise in tikanga and have the confidence of mana whenua, who could be responsible (through some national level vehicle) for appointing one or more commissioners who would be well placed to channel the concerns and tikanga of local Māori with mana moana.

Feature 3: Changes to the toolkit would complement legislative and institutional change

While structural change would be its overriding concern, approach 2 would also see significant changes made to the toolkit. Marine environmental limits would be mandatory under the Oceans Act (see Chapter 8), and the legislation would specify what these needed to cover and what they would aim to achieve (this would be more specific than the general direction under the proposed NBA).³³ Comprehensive policy – a national oceans policy or strategy – would need to be created by Ministers, which would expand upon and modernise the NZCPS as well as extend it to the boundaries of the EEZ and extended continental shelf. It would better reflect tikanga than the similar policy instruments we have now.

This policy would be required to include a no-nonsense approach to land-based stressors like sedimentation, chemicals and wastewater, and have strong legal influence over instruments and decisions on land use made by councils under the NBA (eg it would need to be “implemented” or “complied with”) as well as restrictions imposed under legislation like the Waste Minimisation Act. Overall, the system would reflect the idea that public authorities, including central government, should be obliged by law to deploy tools in the toolkit to actively achieve statutory goals rather than having them available to use if and when the trade-offs become politically palatable.

As mentioned earlier, more integrated national level policy under an Oceans Act would be implemented by the Oceans Agency through mandatory regional marine plans with much wider scope than existing regional coastal plans.³⁴ Provision for MPAs (see Chapter 9) and other protective conservation measures would be integrated into these plans, rather than through separate statutes. As such, the Marine Reserves Act and Marine Mammals Protection Act would be repealed and no new protected area legislation would be needed. The current conceptual distinction between protected areas in the coastal marine area (where marine reserves can be created) and the EEZ (where they cannot) would be removed, because regional plans would be created across both spaces.

Under approach 2, MPAs would therefore more closely resemble the active deployment of Significant Natural Areas under the RMA, rather than the separate “fixed” conservation estate that exists on land and is managed under separate conservation laws (eg the National Parks Act). In other words, the difference between “conservation” and “resource management” in the oceans would break down. This would provide an opportunity for more integrated management in a way that is sensitive to tikanga (providing for some use and some protection, but ultimately fostering the relationship between people and nature).

In terms of fishing, environmental limits (ie current sustainability measures) would become mandatory not just for things like catch limits but also for habitat protection and fishing methods having impacts on broader biodiversity (see Chapter 8). No distinction or boundary would be made between types of activities given the integrated nature of an Oceans Act, just as the RMA does not fundamentally distinguish between different industries on land. It is effects based. In other words, “sustainability measures” for fishing would not be a fundamentally separate tool.

One farther-reaching sub-option *might* be that the QMS could, over time, be undone and allocation rights decided on a different footing. If that were to be entertained, it would have to be done in a way that was acceptable to and co-designed with Māori, given the full and final settlement of fisheries claims. This element might therefore be better described as a process to be established with the consent of mana whenua rather than an inalienable feature of the approach itself. It could, if such consent could be obtained, see the Crown buy back existing quota and replace the market-based model with a permitting system (see Chapter 8). This warrants consideration as a sub-option, but is by no means a core part of the approach. It is not necessarily the case that an alternative to the QMS would produce better outcomes (environmental or otherwise), especially if regulatory tools (eg sustainability measures) surrounding the QMS were strengthened. Instead, the less intrusive measures in approach 1 (partial buy back and retirement of quota, or operation of a public quota holder within the market) could be deployed.

A catch limit would remain, but would be set for realigned ecosystem-based fishing management areas according to more eco-centric principles (including mātauranga Māori and the broader RMA-style principles around intrinsic value underpinning the Oceans Act).³⁵ Permits – whether they were to replace all quota rights or whether they were simply the mechanism by which publicly held quota were leased out³⁶ – would be issued based on a range of considerations (including environmental impacts and socio-economic factors). They would allow the fishing of

multiple stocks often caught together. These rights would not be granted in perpetuity and could be revoked for non-compliance with conditions. Permits would be closely tied to, and subject to, any controls (including spatial controls) established under the Oceans Act for environmental reasons, essentially integrating a permitting system for fishing with the planning and consenting approach familiar to the RMA.

Regional marine plans would integrate fisheries plan components, but these would be firmly linked to the broader policy framing of the plan.³⁷ While it may be impractical to provide for merits appeals with respect to fishing permits, there could be provision for a new public interest litigator (a statutory Environmental Defender's Office, or the Oceans Commission itself) to have standing to appeal to the Environment Court where it deems the purpose of the Oceans Act has not been met by a decision of the Oceans Agency.

A proportion of fishing permits in this new (or partially new) system could be set aside for Māori, and/or a proportion of resource rentals reserved for Māori (of a value proportionate to the previously held quota). Recreational fishers would also be required to be licensed (with revenue hypothecated to fund an Oceans Agency and Commission), and their catch would need to be landed and reported. Commercial operators of recreational fishing – such as those operating charter boats – would require commercial permits. Customary fishing settings, including taiapure and mātaihai reserves, would remain unchanged. At a strategic level, there would be a shift away from commercial fishing and towards ecologically sustainable offshore (and mobile) aquaculture. This could be facilitated through the buyback and retirement of commercial quota and parallel incentives for offshore aquaculture, or there could be a mechanism by which commercial fishing rights could be traded for equivalent aquaculture rights.

Other allocative issues would be resolved more proactively. Mandatory tendering processes would be established for the allocation of coastal marine space, within the broad parameters outlined in marine spatial plans (which would be done through collaborative processes closely involving the Oceans Agency, with a co-governance structure). Suitable space for aquaculture would be identified in those spatial plans, with rights allocated to Māori in accordance with the aquaculture settlement. Resource rentals for use of a common resource would also be required, although there could be rebates granted for ecologically beneficial activities (and rentals would not apply to those exercising protected customary rights or holding customary marine title). A set proportion of resource rentals could be returned to Māori to facilitate their kaitiaki responsibilities or regulatory functions recognised under the Oceans Act.

Feature 4: Careful normative change would occur

The normative core of an Oceans Act would need to be thought through carefully. It would need to be more focused on the oceans than the RMA and reflect a modern partnership approach to te Tiriti o Waitangi. It should give voice to the hitherto silent purpose of the Maritime Transport Act, and the defective normative foundations of the Marine Reserves Act. But it would subsume so many different pieces of legislation, that its purpose would be wide ranging and multifaceted. Because of that, it would be most sensible for the Act to have multiple purposes,³⁸ but existing in a clear hierarchy; while integrated management in the marine space is important, we manage that space for a variety of reasons and a purpose needs to reflect a hierarchy of values. Environmental wellbeing, the intrinsic value of the oceans and their taonga, and te ora o te moana would be at the top (building on the concept of te mana o te wai in the NPS for Freshwater Management).

Finally, robust research, monitoring and evaluation should be reflected in funding requirements and structured, time-series environmental reporting on the health of the marine environment. Indicators or trigger points will need to be set in advance to drive action, either through the deployment of tools under the Oceans Act, or through a review of the system itself. The system would need to be self-evaluative and self-correcting. There are a number of options for *who* would be responsible for information and evaluation. One would be that an independent Oceans Commission is charged with evaluating the performance of the system and actors within it (and making recommendations to an Oceans Ministry for any policy changes), but research, monitoring and information is managed by a well-resourced Oceans Agency (as the on the ground agency with practical resources and expertise). Alternatively, the Oceans Ministry (and Minister) could, as the more “accountable” entity, host or compile information and research and link it to a broader system of environmental reporting run through the Ministry for the Environment.³⁹

Alongside the more substantial changes in approach 2, many of the more surgical reforms described in approach 1 could also be implemented.

Brief assessment of approach 2

Approach 2 and its focus on deeper structural change to legislation and institutions has a number of potential pros and cons (again, depending on one's perspective). Ultimately, it aims to address the same issues as other approaches, but does so by focusing on the benefits of structural change and tackling the issues associated with fragmentation in the current system. Some benefits and downsides of the approach might include the following.

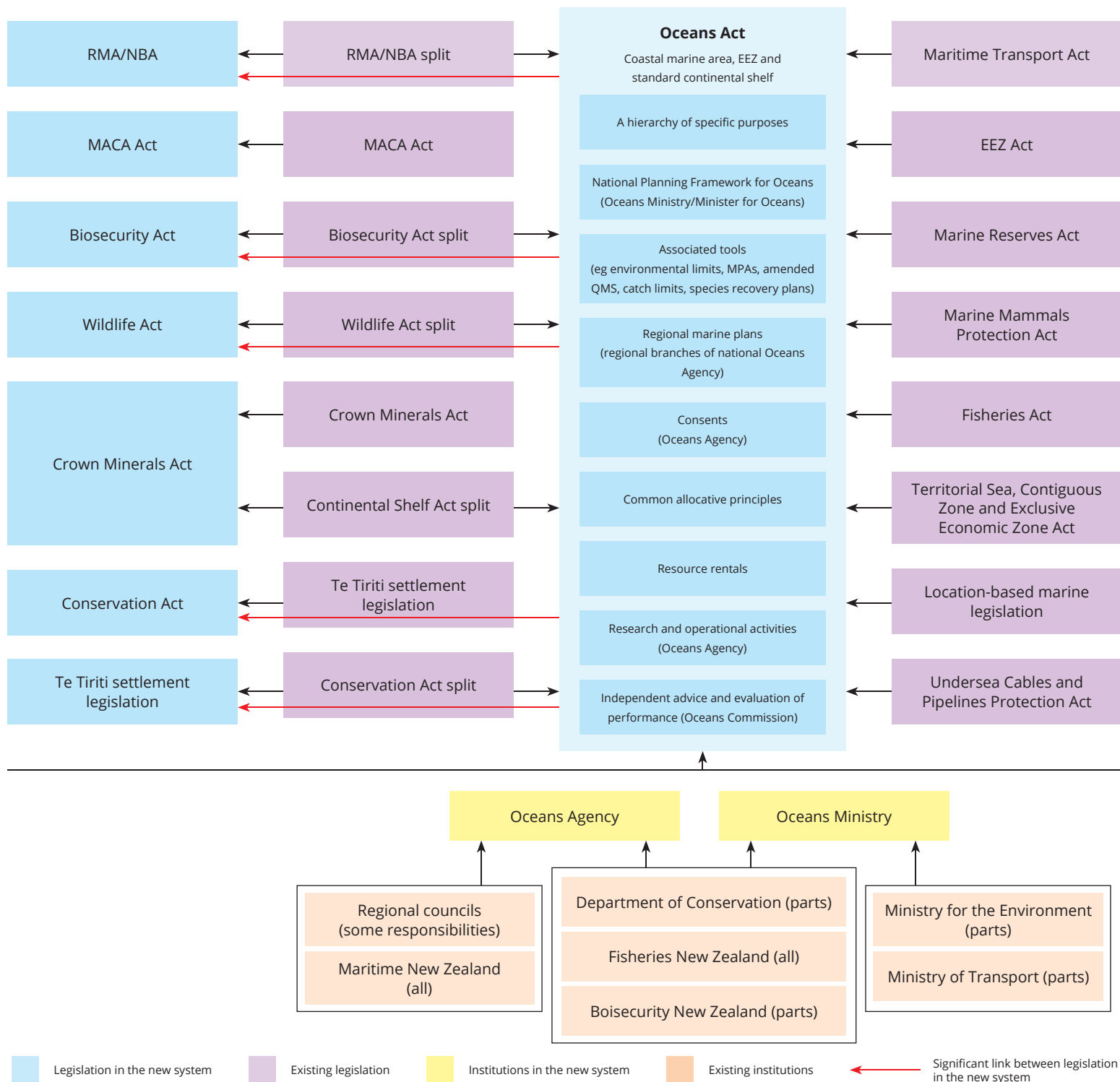


Figure 13.5: Key structural features of approach 2

Some potential benefits of approach 2	Some potential downsides of approach 2
Significant statutory integration could serve to better implement ecosystem-based management for the marine space, busting management silos characterising the current system.	Legislative integration in one domain has risks of fragmentation across others, especially where connections are needed across the land-sea divide (as for mobile species like shorebirds and mobile pollutants such as sediment).
An Oceans Act could provide a statutory home for a National Oceans Strategy and regional spatial planning.	It may create unnecessary disruptive statutory change when integrated tools could be equally housed under the proposed Strategic Planning Act.
Clearer links between tools would be possible under a single statutory framework.	The purpose of an integrated Oceans Act might not be targeted enough, as it will need to encompass many different facets of management.
A dedicated marine management focus could be achieved by locating most marine functions within an Oceans Agency, potentially making it more effective.	Additional complexity could be created by having marine management regions that look different to regions on land, and which may not correspond to fisheries management areas.
An Oceans Agency could have dedicated funding arrangements, making it less susceptible to the funding swings of departmental budgetary cycles.	An arm's length Oceans Agency with regulatory powers may lack the accountability to communities that regional councils/Ministers have and undermine local level working partnerships with mana whenua.
Some may see benefits in having regulatory powers exercised by an arm's length entity like an Oceans Agency, rather than government departments or councils, to avoid politicisation of decisions.	As in the context of climate change, it may be sufficient to have an independent Commission to oversee government, provide an alternative stream of advice, and hold it to account rather than also transferring regulatory powers to an arm's length Oceans Agency.
A single policy and regulatory framework could better integrate protection of the marine environment, the deployment of MPAs, the pursuit of sustainable development and the regulation of fishing.	An Oceans Agency with a broad mandate under an Oceans Act risks losing the conservation focus of bodies like the Department of Conservation.
There would be a clearer sense of how and why various powers would be held/shared with mana whenua across the moana.	It is unclear the extent to which wholesale integration of "operational" institutions (eg Maritime New Zealand) would provide efficiencies or better outcomes.
A permit-based approach to commercial fishing (wholly or partly replacing the QMS) might have benefits in more tightly tying rights to environmental responsibilities, allowing judicial oversight of key decisions and in changing incentives (eg resistance to regulation) that arguably arise from a rights-based system. It could also, arguably, allow for a fairer redistribution of some of the value that comes from marine resources.	Tampering with the QMS may prove extremely difficult in practice, risks undermining Te Tiriti settlements and the benefits of a property rights approach (eg efficiency and security of tenure), and would require significant compensation for loss of rights as well as raising issues of natural justice. It is not necessarily clear that a wholesale replacement of the QMS by a permitting system would provide better environmental or social outcomes than a refined QMS.
Stronger marine-focused institutions (eg an Oceans Ministry, Agency and Commission) could have a more powerful voice when it comes to addressing land-based activities having marine impacts, and this would enable a more holistic and ecosystem based view of the moana.	A single Oceans Ministry risks having a broad and vague mandate and losing the more focused and independent streams of advice from different departments concerned with (for example) fisheries, species conservation, transport and resource management.

Some potential benefits of approach 2	Some potential downsides of approach 2
Separating policy from regulatory functions might depoliticise difficult decision-making (in that it can be easier to create general policy than translate it to actual regulatory restrictions). ⁴⁰	There are potential risks in separating policy-making functions (in an Oceans Ministry) from regulatory functions (in an Oceans Agency), as close links are often needed to ensure the latter achieves the former.
Combining regulatory (and enforcement) and operational functions within an Oceans Agency could create efficiencies (eg knowledge, capability, resources such as boats and monitoring equipment).	There are potential risks in combining regulatory and operational functions in a single arm's length entity (an Oceans Agency), such as the potential problem of the fox guarding the henhouse. ⁴¹
Separating marine management (in an Oceans Agency) and catchment management (regional councils) could depoliticise some of the decisions currently made on land that have impacts on the marine environment.	Separating marine management from catchment management responsibilities could risk an adversarial rather than cooperative relationship between an Oceans Agency and regional councils, and undermine management of the land-sea divide (especially estuaries).
The arbitrary geographical line between coastal marine area and EEZ would be removed.	Deep structural change would be expensive and disruptive more generally.

Figure 13.6: Brief assessment of approach 2



Kayaker, Ōrere Point

13.5 Approach 3: Enlarging the rangatiratanga sphere

In a nutshell

Approach 3 is premised on the idea that the oceans management system has two core spheres – kāwanatanga (governorship by the Crown) and rangatiratanga (Māori sovereignty).⁴² These can overlap (giving rise to a third sphere – see Figure 13.7), in that:⁴³

[the] Rangatiratanga sphere reflects Māori governance over people and places. The Kāwanatanga sphere represents Crown governance. There is a large ‘joint sphere’, in which Māori and the Crown share governance over issues of mutual concern.

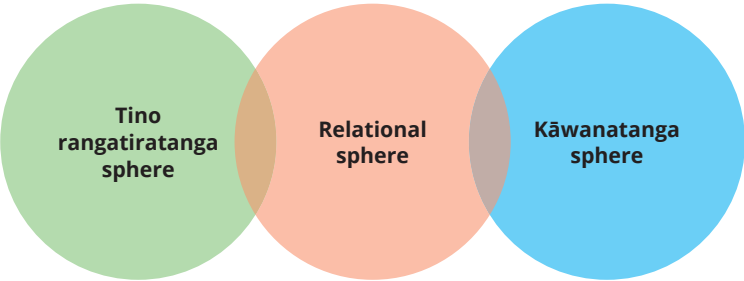


Figure 13.7: The relationship between different spheres of power/governance

Three key things would define approach 3 (see discussion in Chapter 4). First, the rangatiratanga sphere would grow relative to the kāwanatanga sphere. Secondly, there would be more overlap between the spheres in the “relational” component. Thirdly, the kāwanatanga sphere would remain open to interactions with the relational and rangatiratanga spheres. This is where some elements of the existing system may need to accommodate more than one source of authority. For convenience, one might call this a “tino rangatiratanga” approach. Its key features can be seen in Figure 13.8.



Ahipara



Pou, Tāpapakanga regional park

Raewyn Peart

Raewyn Peart

Theme	Key features of approach 3
Overall description	Embracing tino rangatiratanga. The key shifts here would be with respect to institutional design (eg co-governance) and norms (reflecting te ao Māori), but additional reforms suggested in other approaches (eg to the toolkit and legislative boundaries) would also be possible and potentially consistent as long as a rangatiratanga lens was put over them.
Legislative design	Legislative redesign is not the key driver of approach 3, and many options (including from other approaches, such as an Oceans Act) could be possible.
	A constitutionally significant piece of overarching legislation would be created to embed the partnership between Crown and mana whenua in law, including in the marine context.
	Legislative silos would be broken down, including by removing the arbitrary jurisdictional boundary between the RMA and EEZ Act and between fragmented pieces of conservation legislation.
	The MACA Act and te Tiriti settlement legislation would remain separate.
Norms (ethics, principles, objectives)	A key normative driver in approach 3 is more parity between Māori and Crown governance spheres. At its core would be a recognition of tino rangatiratanga rather than the principles of te Tiriti per se, but that would not exclude other norms (eg sustainability, resilience, ecocentrism, efficiency).
	At least parts of the system (those in the tino rangatiratanga and relational spheres) would be guided primarily by substantive norms at the heart of te ao Māori, such as whānaungatanga, wairuatanga, mana, tapu, noa, koha, utu, manaakitanga, aroha, mauri, hau and kaitiakitanga.
	A significant normative element would be the implementation of UNDRIP, which would go beyond the principles of te Tiriti o Waitangi.
	Ultimately the approach is less about what the normative substance of the system is (its principles) and more about by whom and how that gets decided.
Institutional design	Various specific institutional changes could be possible (including those in approaches 1 and 2), as long as they reflected a strong approach to co-governance.
	Deep constitutional level changes could be made (which would go well beyond the marine context), such as separate or hybrid parliamentary structures (eg an Upper House to scrutinise bills).
	Separate Māori institutions could be created as another layer of regulation-making or consenting authorities operating through a tikanga lens (eg transforming advisory bodies like the Māori Advisory Committee under the EEZ Act into a body that assesses compliance of applications or decisions with te Tiriti).
	Co-governance arrangements could be rolled out across multiple existing institutions (including Crown entities), reflecting the model of the Waikato River Authority. Operational entities could be recast as co-management entities (eg through decisions about staffing of institutions like local marine guardians who could be responsible for management of MPAs within a particular rohe moana).

Theme	Key features of approach 3
Institutional design <i>(continued)</i>	A Tikanga Commission could be established as an independent national advisory body to the Crown (and agencies) and councils, which could assess their performance against te Tiriti obligations.
	A Tikanga Commission could be reimagined as a form of national level representative body for mana whenua, which could be conferred some policy or regulatory powers currently held by the Crown.
	Māori wards could be made mandatory for regional councils.
The toolkit	Many of the more granular tools in approach 1 could be deployed in approach 3.
	There would be transparent triggers for power sharing or transfer of powers to mana whenua.
	MPAs would be rolled out in a culturally sensitive manner (continuing/enhancing ancestral connection through use) and subject to co-management.
	Sign off would be required from mana whenua (eg a national level executive body/Tikanga Commission) on any national level strategy/policy.
	Co-management agreements/mana whakahono a rohe under the RMA/NBA would be extended to cover a broader range of legislation and non-statutory decision-making,
	Sustainable and independent funding (eg a portion of resource rentals/koha for use of marine resources) would be apportioned to mana whenua in their role as kaitiaki or to fund work of a Tikanga Commission.
	Formal and legally binding rāhui would be provided, not just for fisheries, but also for other activities including under the NBA where a breach of limits is threatened.
	There would be express recognition of the importance of matauranga Maori as an input across all decision-making processes.

Figure 13.8: Key building blocks of approach 3

Feature 1: An enlarged sphere for tino rangatiratanga and te ao Māori norms

Ultimately, what an enlarged sphere for rangatiratanga looks like must be determined by Māori. We therefore offer some initial thoughts about what some features of this system could look like rather than seeking to describe its mechanics in detail (and many of the more detailed features described in approach 1 and elsewhere in the report may also be compatible with this approach). Even more so than other approaches, it is intended as a conversation starter and not a ready-made model. First, we outline the underlying normative basis of the approach, then we explore some of the key design features that *might* flow from that.

At a fundamental level, tino rangatiratanga challenges the notion that the Crown (or even a Western-style Parliament) is the sole source of authority over all peoples, in all circumstances. It suggests that the constitution of Aotearoa New Zealand is more complex and nuanced than that inherited from colonial days, and encourages a more direct reading of te Tiriti o Waitangi as a founding document that is not reliant on the evolution of case law in Western style courts. Much of the judicial interpretation of the Treaty/ Tiriti focuses on its principles, which some Māori scholars argue takes away from the text itself.⁴⁴ The principles can serve to downplay the importance and significance of tino rangatiratanga authority and perpetrate the idea of immutable Crown sovereignty and authority.⁴⁵ That arguably does not reflect the bargain made where kāwanatanga was granted in exchange for



Waka, Napier

the protection of tino rangatiratanga. The approach therefore is based on an underlying negotiation between two sources of power and authority.

Tino rangatiratanga is not alien to our legal and political system. It is constitutionally imprinted in Aotearoa New Zealand's founding document te Tiriti o Waitangi (see Chapters 3 and 4).⁴⁶ Te Tiriti and its principles have been incorporated into the Treaty of Waitangi Act 1975 and infused throughout certain statutes. Its legal status has been developed through case law. It is also supported by international indigenous jurisprudence.⁴⁷ Te Tiriti and tino rangatiratanga are inseparably linked, but the latter goes beyond the former due to its international law connection and political rather than just legal scope. Additionally, the chequered history between Māori and the Crown shows that the exclusion of Māori from partnership-based decision-making, combined with the lack of capacity to challenge Crown action, has produced significant tensions.⁴⁸ However, this relationship is evolving and some recognition of an enlarged tino rangatiratanga sphere has occurred in recent times.⁴⁹

The principles, ethics and practices of tikanga are the operational elements of tino rangatiratanga (see Chapter 7), and tikanga is increasingly finding a place in our legal and political system.⁵⁰ A rangatiratanga approach would see tikanga exercised under rangatiratanga authority rather than only within the confines of kāwanatanga governance.

A spotlight on key tikanga principles⁵¹

- Whānaungatanga – maintaining kin relationships with humans and the natural world, including through protocols of respect, and the rights and obligations that follow from the individuals place in the collective group;
- Wairuatanga – acknowledging the metaphysical world – spirituality – including placating the respective realms of the atua;
- Mana – encompasses intrinsic spiritual authority as well as political influence, honour, status, control, and prestige of an individual and group;
- Tapu – restriction laws; the recognition of an inherent sanctity or a sanctity established for a purpose – to maintain a standard for example; a code for social conduct based upon keeping safe and avoiding risk, as well as protecting the sanctity of revered persons, places, activities and objects;
- Noa – free from tapu or any other restriction; liberating a person or situation from tapu restrictions, usually through karakia and water;
- Koha – gift exchange;
- Utu – maintaining reciprocal relationships and balance with nature and persons;
- Rangatiratanga – effective leadership; appreciation of the attributes of leadership;
- Manaakitanga – enhancing the mana of others especially through sharing, caring, generosity and hospitality to the fullest extent that honour requires;
- Aroha – charity, generosity;
- Mauri – recognition of the life-force of persons and objects;
- Hau – respect for the vital essence of a person, place or object;
- Kaitiakitanga – stewardship and protection, often used in relation to natural resources.

Those exercising power in the kāwanatanga sphere would need to understand tikanga principles (see spotlight above for some key principles), so the negotiation and cooperation in the relational sphere can operate.

In short, approach 3 for a future oceans management system reflects the Tiriti promise of tino rangatiratanga over taonga. It is about shifting from the “right to culture” model embedded in frameworks like the RMA (see Chapters 3 and 12), which is focused on things to be protected *by* government, towards one of partnership and agency *with* or *alongside* government. This includes Māori rights to self-determination and the right to make decisions over ancestral land, communities and matters that relate to the preservation and advancement of culture (inclusive of language, practices, values and customs).⁵²

The specific content and institutional forms of rangatiratanga have been evolving and tested across different contexts, over time.⁵³ But approach 3 is less about describing the *substance* of tikanga — which can change over time, differs depending on place and context, and is ultimately for mana whenua to speak to. Instead, it is more about establishing a framework in which there is recognition of the relative power and influence of Māori to *determine, pronounce and enforce* what tikanga demands.

Feature 2: Deployment of power-sharing structures

A system rooted in tino rangatiratanga arguably does not require revolution – many foundations are already there in the present system. These could be built on.

Dr Nin Tomas offers two ways of implementing tino rangatiratanga:⁵⁴

...first by “greater tolerance and benevolence along a series of principled guidelines” and, second, as a “peoples-centred, enabling principle that allows Indigenous peoples to re-establish their social, economic and political institutions”.

Professor Margaret Wilson adds (drawing from Roger Maaka and Augie Fleras), that:⁵⁵

The principles and practice of tino rangatiratanga conjure up a host of reassuring images for restoring “independent Māori/iwi authority” to its rightful place in a post colonizing society (Mead 1997). The essence of Rangatiratanga is sovereignty driven: For some, this sovereignty prevails over the entirety of Aotearoa, for others, it entails some

degree of autonomy from the state, for still others, it consists of shared jurisdictions within a single framework.

Thus, there are many ways to approach the practical impact of tino rangatiratanga on a reformed oceans management system. It could manifest as partnership (eg co-governance and co-management arrangements with the Crown and local government), as separate spheres of influence for Māori (eg transfer of some powers), as greater influence for Māori over Crown decision-making (eg a requirement that a plan be consistent with iwi-led documents), or as a sharing of resources (eg distribution of shares of resource rentals or royalties, or return of ownership rights). It could be achieved through a combination of those mechanisms.⁵⁶

However, the key point is that the approach would be more than just a recognition of Māori principles or concepts in an otherwise Western system (eg a legislative requirement to have regard to kaitiakitanga as an ethic of stewardship) or a grievance-based settlement process (based on righting past wrongs). It recognises that Māori are a defined community of constitutionally important actors with a role in shaping a future Aotearoa, not a passive recipient of paternalistic or benevolent protections or the source of useful environmental principles to be adopted. Māori are involved in governing, not just being governed.

Of course, all of this involves deep constitutional conversations that extend well beyond the context of the oceans or even resource management. However, control of resources and stewardship of the environment are central theatres of the debate. At the more general or “constitutional” level of governance, several suggestions have been made for models that better reflect tino rangatiratanga (see Chapter 4 and spotlight below) which would have significant impacts on marine management.



Rangihoua Pā, Bay of Islands

Raewyn Peart

A spotlight on models that have been proposed to better reflect tino rangatiratanga⁵⁷

1. A three sphere model consisting of an assembly made up of iwi, hapū and other representation including Urban Māori Authorities (the rangatira sphere), the Crown in Parliament (the kāwantanga sphere), and a joint deliberative body (the relational sphere).
2. A multi-sphere model consisting of an assembly of iwi/hapū and other Māori representation (the rangatiratanga sphere) and the Crown in Parliament (the kāwanatanga sphere). It also includes a relational sphere which would have two parts – a constitutionally mandated set of direct iwi/hapū/Crown relationships to enable direct iwi/hapū-Crown decision-making plus a unitary perhaps annual assembly of broader Māori and Crown representation.
3. A unicameral or one sphere model consisting of iwi/hapū and the Crown making decisions together in a constitutionally mandated assembly. This model does not have rangatiratanga or kāwanatanga spheres. It only has the relational sphere.
4. A bicameral model made up of an iwi/hapū assembly and the Crown in Parliament. This model has distinct rangatiratanga and kāwanatanga spheres but has no provision for a relational sphere.

Such models could provide an overarching framework for a future oceans management system which could take many forms.⁵⁸ For example, it suggests there might be a higher, constitutionally significant piece of legislation outlining fundamental relationships between the Crown and Māori and between people and the moana as an ancestor. This could be an integrative or umbrella “Oceans Act” which would also outline principles for how more detailed decision-making could be shared under “operational” and focused legislation like the NBA, Fisheries Act and conservation legislation.

Triggers for power sharing or transfer of powers/influence (see Chapter 12) could come into operation where a particular Act refers to terms such as Māori, te Tiriti o Waitangi, tikanga Māori, Māori customs, cultural practices, wāhi tapu, sites of significance, ancestral connection, customary rights or title, and so forth. This is not a wholly radical idea, as there is already the

potential (largely unrealised) to transfer powers under the RMA, and agencies are still grappling with what the general te Tiriti clause in the Conservation Act means in terms of power sharing and rights to use resources. The MACA Act, and its concept of customary marine title, is also about sharing power. The distinction here is not that power sharing is not currently possible (it is under the RMA, for example), but that (aside from specific settlement legislation) there is little guidance in the current system as to when and to what extent it *should* happen. Approach 3 would make it more explicit.

Feature 3: Potential structural change

Capturing the spirit of this approach would not necessarily require overhaul or replacement of the structural pillars of the current system (see Chapters 11 and 12). The RMA/NBA could remain, as could the boundaries of existing government departments and agencies like the EPA and Maritime New Zealand (as long as there were durable mechanisms for them to work together, such as through formalisation of the Oceans Secretariat). Instead, there would be a rangatiratanga lens placed over the features of the current system to look at how each might evolve in response. Its thrust would be greater integration through allowing rangatiratanga and tikanga to be exercised across existing frameworks, rather than forcing those frameworks together in a Western sense.

For example, the recent *Trans-Tasman* decision now requires decision-makers under the EEZ Act to consider existing interests stemming from tikanga as well as aspects of tikanga as an applicable law.⁵⁹ Given the significant expertise this may require, should the existing Māori Advisory Committee be replaced with or turned into a separate assessment body? The body could assess whether a consent application is consistent with tikanga under its own decision-making criteria, while the application framework and process are largely retained. The two decision-making bodies could meet to concur or decline consent.

That said, the holistic approach of te ao Māori may support the greater integration of some legislation that does not work well together and struggles to allow effective connections to be made (see Chapters 3 and 11). Segmentation and siloed approaches are a problem from the te ao Māori worldview where all aspects of the environment are inherently interconnected.⁶⁰ For example, the RMA and EEZ Act might be combined, and marine conservation legislation like the Marine Mammals Protection Act and Marine Reserves Act could be integrated into more holistic conservation legislation spanning land and sea. There could be a separate new MPA Act, but it would provide a space for tikanga to be exercised through its toolkit (eg by allowing some use within protected areas to preserve the respect and relationship between people and the environment). Marine spatial planning (see Chapter 10) would be a

valuable integrative tool in which Māori could, alongside the Crown and other public authorities like councils, make high level decisions about the use and protection of all marine resources at place.

However, some new institutions may be needed, and others would be altered. For example, a national level independent advisory body on oceans – a Tikanga Commission – may be desirable to evaluate and contribute to government policy through a tikanga and mātauranga lens (see Chapter 12). Alternatively (focusing on the “relational” sphere) this could be a single Oceans Commission with dual commissioners – one appointed by Māori and one by the Crown. This would ensure Māori are involved in agenda-setting for policy and priorities rather than being consulted on or responding to a pre-determined government agenda.

This Commissioner model – with an independent watchdog angle – could be accompanied by an “accountable” or “representative” national level Māori body to which some powers could be transferred from the Crown (or at least as a vehicle through which iwi and hapū would engage on national-level policies and programmes). While that could be an institution of much broader competence (eg the iwi/hapū assembly, with legislative powers, floated by some) it might instead be a more focused “executive” body representing iwi and hapū views through a national level body.⁶¹ This could even have the function of jointly signing off on significant national level decisions taken by central government, including a national oceans policy and strategies for the allocation of marine resources. That would provide an incentive to work closely with Māori in their development.

Regional councils could retain jurisdiction over the coastal marine area, but representation within councils themselves could be altered through the use of Māori wards. Alternatively, powers could be recognised for iwi and hapū to exercise a separate layer of jurisdiction over decision-making in the moana. Other more nuanced models of co-governance (see Chapter 12), such as that established for the Waikato River, could be used for the oceans. Co-governance arrangements could be put in place across the board for regulatory and policy functions (eg in the proposed membership of planning committees under the NBA), for operational services impacting the moana (eg three waters service delivery entities), and for advocacy (eg in the governance of regional branches of an Environmental Defender’s Office charged with taking legal action to protect the mana of the moana). Co-governance arrangements could also be put in place for arm’s length commercial operations, such as if a public quota holder were established to lease out quota to achieve broader social and environmental benefits. Co-governance at a national level may prove challenging unless some form of representative body were established.

While institutional change could be focused at the governance level (sharing oversight and strategic decision-making responsibilities), it could also extend into co-management (doing on the ground mahi with adequate funding). While that might see existing and separate institutions (iwi and agencies) working together (and the Randerson Panel recommended expanding the co-management agreements reached under the RMA to a wider range of settings), it might also see the development of new institutions designed to bring them together in a more structured way (some kind of co-management agency). For example, if operational guardians were to be established to manage MPAs (see Chapters 9 and 12), the composition of these entities could reflect co-management. Even an Oceans Agency might be designed in a way that was sensitive to co-management, transforming it from regional branches of a “Crown” entity into something quite different (in which mana whenua were themselves embedded in regional offices reflecting the rough boundaries of rohe moana).

An approach based on an enlarged rangatiratanga sphere, or a more substantial relational sphere, would rely on mana whenua being resourced adequately to discharge their marine functions alongside the Crown (and other bodies).⁶² Although resourcing could be provided through funding from the Crown, that may not suitably reflect the idea of partnership inherent in the approach. Sustainable and independent resourcing for mana whenua, which is secured by the Crown and councils primarily through taxation (and which therefore relies on democratic representation), could instead be built into the system through more nuanced mechanisms, such as a share of the proceeds of green taxes designed to penalise destructive activities (but which are avoidable through behaviour change), or a share of resource rentals or koha charged to users for the use of marine resources (eg exclusive occupation, discharges, the taking of fish, royalties from marine minerals) (see Chapter 8).

Feature 4: Changes to norms and the toolkit

Other potential design features of approach 3 could include:

- Enacting consistent te Tiriti clauses across legislation that are based on giving effect to the principles of te Tiriti (such as under the Conservation Act). Such clauses could also recognise the importance of UNDRIP (having broader significance than the wording of te Tiriti itself) (see Chapters 3 and 10).
- Continued defence of te Tiriti settlement rights and interests, including rights in fisheries quota and aquaculture (see Chapter 3), but clarifying that sustainability measures and RMA/NBA restrictions imposed through co-governance mechanisms are not derogations from those rights.

- The establishment of a nuanced range of co-governed and co-managed protected areas that allow the exercise of cultural practices and are deployed in areas that are tailored, not just to Western ideas, but also reflect spiritual importance and cultural significance (see Chapter 9). This could build upon the nascent idea of ahu moana developed in the Seachange Tai Timu Tai Pari initiative, where mana whenua and local communities work together to manage a marine space.
- Amending the purposes and principles of a raft of marine legislation to include concepts at the heart of tikanga, such as whakapapa, whanaungatanga, kaitiakitanga, and the mana and mauri of the natural environment (see Chapter 7). This could build upon the conceptual core of the NPS for Freshwater Management (Te Mana o Te Wai), which arguably reflects the “relational” sphere when it comes to norms (in that it is a concept that speaks to multiple world views, not just te ao Māori).
- A clear process and statutory guidance for the transfer of powers to iwi and hapū (such as under section 33 of the RMA, for the establishment of protected areas, or for fisheries controls) (see Chapter 8).
- The inclusion of tools like rāhui having direct legal force, rather than having to go through a separate process to be enforceable (see Chapter 8).
- The recognition of mātauranga Māori as a valued source of knowledge and information, not just an expression of values, opinions or metaphysical belief, across multiple statutory frameworks. This could be supported by a national database recording mātauranga and integrating it with other frames of knowledge, as long as intellectual property and cultural concerns could be addressed. Monitoring activities by councils and government agencies, as well as citizen science programmes, could be informed by mātauranga or there could be a parallel system of monitoring led by mana whenua.
- Potentially revisiting “ownership” rights with respect to the moana (or elements of it, such as the foreshore and seabed or minerals) that flow from recognition of rangatiratanga.
- The conferral of legal personhood on elements of the moana, enabling co-governance mechanisms to operate in ways that recognise the agency of the natural world (similar to models for Te Urewera or the Whanganui River – see Chapter 8).

Many features described in other approaches may also be suitable for inclusion in this one,⁶³ particularly where they fill obvious gaps (eg the creation of an EEZ policy statement, the inclusion of estuaries within the freshwater NPS, or clarity around the respective roles of the RMA and Fisheries Act); improve deficient norms (eg the culturally and environmentally limited purpose of the Marine Reserves Act); or orient decision-making to the future (eg mandatory targets for enhancement and recovery, strategic plans for fisheries in particular places, a strategy for a principles-driven rollout of a culturally sensitive network of protected areas,⁶⁴ or including a specific “implementation” part in the NZCPS).

The list is potentially endless and deserves close consideration. However, the key point is that all these features would be coloured by the overarching theme of the approach – an enlarged rangatiratanga sphere. They would involve Māori as partners in decision-making, and recognise norms and ways of making decisions that are sensitive to tikanga (eg using protected areas to safeguard places of spiritual as well as ecological and instrumental value and significance) and that embrace synergies between te ao Māori and other worldviews (eg in the concept of te mana o te wai).

Many have commented that Aotearoa New Zealand’s unique advantage in environmental management is the existence of tikanga and the adaptability of the legal system to accommodate tikanga principles and the practices and structures that flow from them. This approach would embrace that point of difference by allowing tikanga to develop outside of, but in alignment with, a Western governance structure: a convergence of the spheres.

Brief assessment

Because approach 3 is described in a quite different way to approaches 2 and 3, it is in some ways more challenging to identify pros and cons neatly in tabular form. It is also fraught with difficulty because its core normative features are highly dependent on people’s worldviews and values. What may be a benefit for one person could be seen as a risk by others. The approach is, however, intended to be one that goes beyond just te Tiriti jurisprudence and makes it clearer what power sharing looks like in the future. Such clarity may have significant benefits as we move into a post-settlement environment focused less on grievance and more on partnership. The approach is also pluralistic in a normative sense; it contemplates a shared space where new concepts can evolve – the relational sphere – and may foster a “third way” where te Māori and Western concepts can meet. Many may also regard an enlargement of the tino rangatiratanga sphere as a benefit in its own right irrespective of

its form (eg the use of section 33 of the RMA, an iwi-led NPS on te Tiriti o Waitangi, or co-governance arrangements like for the Waikato River).

Others may see a system premised only on tino rangatiratanga as failing to reflect the plurality of worldviews held by society, or some forms of power sharing as altering the forms of democracy (including local democracy) they hold dear. No-take MPAs may be valued by some and anathema to others. There may be challenges in a system that introduces spiritual or metaphysical considerations (which may not, for example, be amenable to judicial resolution), or a system in which aspects of te ao Māori are cherry picked or co-opted by a system that retains Western structural features. However, aside from governance arrangements, the approach provides valuable opportunities to reconceptualise how people relate to the moana and broaden the toolkit for management.

13.6 Approach 4: Breaking the normative mould

In a nutshell

While approaches 1 and 2 represent a significant degree of change, they do not necessarily break the normative mould or represent a fundamentally different way of looking at the world. Approach 2 is

primarily about far-reaching structural change (legislative boundaries and institutional redesign) while approach 1 is primarily about expanding and making better connections across the system's existing toolkit. Approach 3, while it embraces the normative concepts inherent in te ao Māori and would see significant shifts on this front, is primarily oriented towards power sharing between human partners in the system – a reconceptualisation of the Māori-Crown relationship – rather than being rooted in a single overriding “idea”.

Approach 4, however, would seek to shift the ways in which the system conceptualises the relationship between people and the moana. This might in some ways be characterised as one (although by no means the only)⁶⁵ form of an ecocentric approach – a transformation in norms – but would go well beyond how we express the purpose and principles of legislation.

The approach is, at root, about giving nature the same kinds of multifaceted attention that we already give people in our society. That has potentially broader implications than one might initially think, given the complexity of human society and how our interactions with each other are managed. It provides some answers to the question: what would happen to the system if the ocean were one of us? The key features of approach 4 are summarised below in Figure 13.9.

Raewyn Peart



Wave, Hahei

Theme	Key features of approach 4
Overall description	Approach 4 is about reshaping the worldview upon which the system rests. This normative shift has significant implications for the toolkit and institutional design.
Legislative design	Legislative redesign is not the key driver of approach 4, and many options (including from other approaches, such as an Oceans Act) could be possible. The existing statute book could, however, remain largely unchanged.
	While the NBA and Fisheries Act could remain separate, environmental limits (including those concerning the impacts of fishing on the marine environment) would be found in the former and the latter would be concerned primarily with stock management and allocation.
	A new umbrella statute (eg an Oceans Act) may be needed to confer personhood on the moana (or aspects of it), although some rights could be conferred via the New Zealand Bill of Rights Act.
	Arbitrary legislative boundaries could be removed so as to better recognise the indivisibility of the moana as a “person”, such as the boundary between the RMA/NBA and EEZ Act, the Marine Mammals Protection Act and Wildlife Act, and Crown Minerals Act and Continental Shelf Act.
Norms (ethics, principles, objectives)	There is recognition that the moana and its living (and non-living) components are deserving of rights and respect, and are not just to be protected and used for instrumental value. The system could be founded upon principles like te mana o te moana or the voice of the ocean.
	There would be potential for synergistic expression of norms founded on te ao Māori and ecocentrism.
Institutional design	Institutional change would be focused on how the moana, as a person, would be represented by humans. This could add a layer of institutions, or amend existing ones, and may not require complete overhaul. Some options in approaches 1, 2 and 3 may be compatible with this approach.
	An independent and co-governed Oceans Commission would be created to speak for and act on behalf of the moana as a whole.
	Guardians would be created to speak for more granular places/aspects of the moana, such as species or MPAs. Personhood could be conferred at multiple scales and over multiple elements in the marine environment.
	An oceans councillor or observer could be made part of regional councils, if they were to retain jurisdiction over the coastal marine area, to ensure a strong focus on marine matters.
	The EPA would be given a stronger role in overseeing the performance of regional councils.
	Central and local government arrangements could remain largely unchanged, but their relationships with the moana as a legal person would need to be clarified and made judicially enforceable. Authorities would manage the oceans on behalf of the moana, not in their own right.

Theme	Key features of approach 4
The toolkit	Many of the more granular tools in approach 1 could also be deployed, but potentially recast in a more ecocentric mould.
	The ocean could hold property in its own right (eg quota, protected areas).
	The ocean could, through its agent, be empowered to enter into contracts and have the same rights as humans under common law (eg to take civil action in trespass or other torts like negligence).
	The ocean could impose constraints on the use of its property, eg through things like covenants and easements.
	Koha/resource rentals could be paid to the ocean itself for the harvesting of fish, the occupation of the seabed, marine mining and other extractive uses, as well as for land uses that could impact the marine environment.

Figure 13.9: Key building blocks of approach 4

Feature 1: Conferring legal personhood on the ocean

The centrepiece of this system would be legal recognition of personhood for the ocean (see Chapter 8). At its heart, this would be an institutional design measure – one or more new entities would be created – but it would influence a whole variety of other themes too. It reflects the idea that conferring personhood on nature is not just a “tool” like a plan or economic instrument, a principle like “sustainability”, or an institution like a new Ministry. It is, instead, a different way of seeing the world and ultimately subversive of what is arguably the dominant instrumentalist ethic in the current system.

Personhood is not just an intangible idea, however, it requires careful consideration of the legal machinery to make it happen. There are many different ways for the moana to be given personhood in practice, including at different scales. However, these are not necessarily alternatives. Just as collectives of people can be given legal personhood in overlapping ways (eg trusts, companies, statutory entities, charities, councils), so too could the natural world have many “people” operating in the system. Thus the ocean as a whole – perhaps in the personification of Hinemoana – could become a legal person in its own right, in the same way that businesses might choose to establish an umbrella company. But particular areas (eg biogeographical regions) could become legal entities as well (they may have different interests to each other) as would particular places of special value (eg protected areas or other areas of significance). Going further, the approach could give a voice to the particularly *vulnerable*. Just as we have a Children’s Commissioner and a Health and Disability Commissioner, so too could we have a human mouthpiece for threatened or vulnerable (or

protected)⁶⁶ species. As their threat status changed, they could slip in and out of this layer of personhood.

The ocean as a whole would need a human representative to give it a voice, to tell us what it is saying. It could be “spoken for” by an independent Oceans Commission (see Chapter 12), potentially a branch of a broader Futures Commission (into which the Parliamentary Commissioner for the Environment could morph), whereas the legal persons of particular regions and places (eg protected areas) or species could be represented by guardians appointed jointly by the Commission and mana whenua.

The national-level Commission itself – which could even simply be called “the Ocean” or “Hinemoana” to further emphasise the agency of nature – would be an independent entity (eg a Parliamentary body) but include partnership with mana whenua. For example, there could be half a dozen commissioners with some appointed directly by a national level Māori representative body. The underlying ethic of the Commission, reflected in legislation, would be founded in concepts that merge te ao Māori with Western thought (or be one that most could be “on board with” like Te Mana o Te Moana or the voice of the moana).

Proper scientific and planning expertise would be important, and the Commission – as the voice of the moana – would need to be properly funded to speak. Funding would need to be secure and predictable, either through a proportion of more general revenue linked to economic activity and ultimately to the use of our resource base (eg GST) or hypothecation of revenue obtained directly through the use of the *marine* environment (eg resource rentals) (see Chapter 8). This would be seen, not as a revenue

raising tool per se, but rather as a payment or koha to the moana for its services (in the same way that a human sells his or her labour and property). Such are the shifts of perspective that come with recognising nature as a person alongside ourselves.

Personhood would recognise that the moana needs a voice, not only in management regimes applying to the sea, but also in decisions on land that affect it. This is consistent with the Māori view that Tangaroa has the mana to move through freshwater and speak with the land, and that the atua are all connected to each other and to people through whakapapa. It also reflects how we treat humans – by stopping harm originating outside our own bodies. The approach would strengthen and transform the notion of “integrated” resource management, which under the RMA (at least in theory) includes the connection between land uses (eg forestry, urban development) and the health of the marine environment.

For example, if sediment flows from agricultural, urban or forestry activities were impacting on the ability of an estuarine environment to maintain its ecological stability or populations of key species (including fish upon which human communities rely), the moana could simply say “no” – and those activities would need to stop. Such things would upend the strong ideas people have about terrestrial imperialism – that a peculiarly intelligent land-based primate is somehow entitled to colonise the sea simply by virtue of its ability to do so – which is still implicit in many of our laws. Whether homo sapiens would be entitled to compensation for the emancipation of the sea – such as for widespread land use change – is an intriguing question that may depend on how genuinely people accept that life in the ocean deserves to be a person, or whether it is simply a useful management tool to improve the environment.⁶⁷

But legal personhood would not limit the voice of the ocean to management decisions under the RMA. Hinemoana – if that were the term adopted – would have the ability to intervene and influence more systemic settings, such as controls on the creation of potential waste streams (eg plastics), the content of the school curriculum, the social responsibilities of corporations and the emission of greenhouse gases.⁶⁸ In short, the sea would have a broad ability to influence any decisions that affected it. The purpose and principles of all relevant legislation would recognise this, which would be configured to embrace concepts such as te mana o te moana or the voice of the oceans, just as the anthropocentric concept of sustainability recognises the importance of people providing for their own wellbeing.

All of the above suggests that it would be important for legal personhood to be meaningful, via the conferral of actual powers and responsibilities (or at least real influence), rather than just legal recognition or conferral of a general advocacy function (see Chapters 8 and 12). After all, human people do not just have the right to *speak* for their own interests; they also have specific rights that can be legally defended and obligations that can be legally mandated. So too could the ocean.

For example, management authority and operational responsibility could be conferred on the ocean itself in some situations, such as active management of protected areas (transferred from the Department of Conservation). The ocean would be in charge of looking after its own health in such areas (where the imperative is for conservation), just as people have the agency to make decisions about their own health.

Of course, the internal structure of legal persons would need to be thought through carefully, as ultimately (even with the most ecocentric statutory mandate in the world) they are still matters decided by human beings on its behalf. Who should such representatives be accountable to, and appointed (or removed) by? A Minister? Parliament? Mana whenua? The higher courts? All – or none – of the above? All are potential options. And what would the ocean want? Ecological integrity? The satisfaction of giving humans what they need? Or a rest from interaction with people? There is a rich discussion to have here (see Chapter 7), but the starting point of the approach is a recognition that the ocean might have *some* wishes of its own. General statutory principles about the ocean's interests need not be exhaustive, and could leave some room for interpretation by the Commission, guardians and the courts. By comparison, the interests of children are frequently determined by the courts in context, without a definitive list of what they are.

Feature 2: Powers and rights would be conferred on the ocean

If the ocean (or parts of it) were to be a person like a human being, close consideration would need to be given to what specific rights or powers it would have (see Chapter 8). Of course, individual human rights (in the broader sense, including property rights and statutory rights) are not absolute – the public interest frequently overrides such things.⁶⁹ The same could be recognised for the moana as a person, in that the public interest (eg food security, ecological integrity) is not necessarily the same as or subservient to what the ocean might “want” (which might, for example, include a simple desire to be left alone by people).

As for humans, recognition of personhood is not necessarily a recognition of sovereignty or control. It is about giving nature a voice, a right to

participate, enjoyment of natural justice, and protection from the most egregious behaviours of others. For example, just as a resident of Tāmaki Makaurau/Auckland would not be expected to give up their health to allow the emission of toxic fumes next door, so too might an ancient coral be allowed to prevent its own destruction.

That said, the system could go further and consider the moana to be not just a “person”, but also more akin to a public institution or even a constitutionally significant branch of government. In that approach to personhood, the ocean’s ability to defend its rights might extend to the proactive exercise of public powers. To the complex balance of legislature, executive, judiciary and mana whenua we could even add another actor: nature itself. A broader constitutional rethink – which may occur in the future – may even be more achievable at sea (see Chapter 8 on how this has been done in other jurisdictions), because it is not defined by private human ownership in the same way as on land.

Just as people appoint learned legal professionals as judges, elect councillors to local government and install experts as advisors within public authorities, so too could the ocean (through representatives with the appropriate legal mandate) have a role in doing those things. There could be a commissioner representing the moana in resource management proceedings, an “oceans” ward contributing a councillor to local government, and independent advisors (eg from an oceans commission) installed in various ministries and operational departments. Would it be beyond the realms of possibility for the ocean to be installed as a *judicial* body, subject to appropriate representation of mana whenua and allowances for the exercise of tikanga?

With this large grey area ripe for debate, some rights or powers for the moana could include the following, and range from minor to transformative.

- The power to approve (or decline) regional coastal plans (or the marine and catchment component of regional combined plans) as well as final sign off on marine spatial plans, catch limits,⁷⁰ and/or conservation strategies.
- The ability or mandate to issue the government with a scorecard measuring its progress in achieving targets relevant to the health of the moana, and even the ability to set what those targets are.
- The power to require the creation of product stewardship schemes or regulations under the Waste Minimisation Act, and sustainability measures under the Fisheries Act, even if it doesn’t have the final say as to what they look like.

- The power to have a say about the allocation of resources based on the degree of risk or benefit to the oceans. This would apply across all resources – fish, minerals, coastal space, discharges to catchments and so forth. For example, it might be that the Commission, as representative of the moana, or guardians representing other parts or aspects of the marine environment, would offer advice to the relevant Minister on the release of acreage for minerals exploration that would need to be given “particular regard” to. Instead of owning minerals and expecting a return through royalties, the Crown might be transformed into the trustee of the oceans and expected to manage trust property in the interests of its beneficiaries – including making payments for restoration.

Legal personality has implications for many facets of system design. We would be embracing nature as an actor in human society, which could go well beyond just questions of how the sea is “managed” or who “owns” it (see spotlight).

A spotlight on the implications of legal personality for system design

- The ocean could hold property in its own right. That might even include quota in fisheries (an ecocentric version of a public interest quota holder),⁷¹ perhaps to the extent that it could buy out existing (and willing) quota holders. It may well choose to retire such quota, just as a human might choose to expend less time in earning money through selling his or her labour in the interests of his or her health and longevity.⁷² The extent to which the ocean itself could be a property holder in other senses (where rights have not already been privatised, such as with most coastal/marine occupation rights) may depend on ethical questions. For example, would it still be ethically wrong for there to be property interests in a space that some regard as a common or shared space (noting that mana whenua may contest the idea that the ocean *is* a commons), even if such rights were held by the moana itself and were inalienable?
- As mentioned earlier, the ocean could require payment for its services (seen as a koha to an ancestor), rather than a resource rental to the Crown. This would then be used *by* the ocean in order to further its own interests, for example by paying human scientists to undertake research about its own ecology or to fund agencies to monitor its health. Charges

could be differentiated according to the kind of use (eg minerals, fish, occupation) and some non-consumptive services could be provided gratis (eg navigation, coastal access, ecosystem services). But these would be set through a consistent lens (what is a fair price to the moana) rather than just reflecting historical human ownership structures (eg Crown ownership of minerals), existing expectations (eg that quota holders fund research relevant to the health of a particular stock) or characteristics of particular resources (whether something is publicly or privately owned).

- The ocean could enter into its own contracts, and be authorised to seek judicial action to cancel oppressive agreements or conditions of them.
- The ocean could, subject to the same kind of public interest constraints imposed on human landowners, exclude activities from parts of its own estate. It could even provide permanent protection through familiar “property” based tools like covenants (which could form one basis for bespoke MPAs).
- The ocean could be a participant in wider human systems of justice, by (for example) having the standing and resources to contest people’s actions not just in environmental legislation (eg appeal rights for fisheries decisions) but also in civil courts (based on trespass, nuisance, negligence and so forth).
- The concept of personhood also vastly expands the possibilities of traditionally anthropocentric legal tools; for example, instead of just relying on regulations and plans to prevent and then manage marine biosecurity incursions, might we not rely on the ocean itself to take action in trespass to force agencies to eject or manage pests? Or to claim compensation for unauthorised entry of human generated contaminants from catchments or coasts, just as a landowner can take civil action for intrusion from neighbours.
- The ocean could also influence, in consultation with the Ministry of Transport and Maritime New Zealand, where shipping lanes could be located, in the same way that private landowners have legal rights to test decisions around regulatory takings for public projects. Any “taking” of oceans space that infringes the basic interests of the oceans itself might attract compensation as a compulsory acquisition.

- A marine spatial planning process could be framed as the oceans getting its own house in order and pursuing its own interests – a portfolio of investments – rather than a scramble for resources or an effort to defuse spatial human conflicts.
- The ocean could be given rights under the New Zealand Bill of Rights Act. Although this is subject to infringements that are justified in a free and democratic society,⁷³ it would at least impose a requirement for legislators to consider the extent to which the oceans’ rights are being infringed and for them to be demonstrably justified.
- The ocean could hold legal responsibilities and obligations as well as rights and powers. While some, such as the ability to sue the moana for damage to land and property, may be disingenuous, others present interesting possibilities. For example, the ocean itself could potentially be registered as a participant in the emissions trading scheme, providing incentives to encourage human projects that sequester carbon and, through regulatory powers, discourage those that emit greenhouse gases (eg bottom trawling).

Of course, many of these suggestions lie at the radical end of reform, and are intended as a prompt for debate rather than as a ready-made system. But perhaps the most radical end point of an ecocentric approach is also the most interesting to ponder: humans unquestioningly manage marine populations like fish stocks for their benefits to people, but if the ocean is a person, should it not also have a say about human populations? If we have the concept of MSY, or acceptable mortality, let’s flip that around. What is a maximum sustainable human population? The oceans might give quite a different answer to what people might say.

Feature 3: An evolution in institutional design

Many existing institutions could remain in approach 4 (see Chapter 12), with changes being primarily about their new relationship with the oceans as a legal person. For example, various government departments and agencies could remain separate (eg the Ministry for the Environment, Department of Conservation, Ministry for Primary Industries, Ministry of Transport), reflecting the need for the land-sea interface to be managed in an integrated way when it comes to government policy. Integration would come through a formalised oceans secretariat comprised of all relevant marine departments, and statutory recognition of a ministerial portfolio

for oceans. A focus on oceans specifically would also come from the input and advocacy of an Oceans Commission, which would act as a watchdog to ensure the interests of the moana were being placed front and centre in any decision-making.

Similarly, local government could remain largely unchanged, reflecting the existing and valuable integration between catchments and coast within the jurisdiction of regional councils. That said, the approach would be consistent with any shift in how councils are configured, including their regionalisation/unitisation (which would see land use and coastal-marine functions integrated into a single entity). There would need to be close collaboration between councils (in terms of policy and timing) that manage connected marine areas, such as in the Hauraki Gulf and Kaipara Harbour. If council boundaries remained fragmented, this could be mitigated by assigning legal personhood to marine areas that span multiple local authority units. The EPA would remain as the agency responsible for managing the EEZ, but would be strengthened in resourcing and mandate and take a stronger role on overseeing the marine performance of local government. Maritime New Zealand would also continue to exist, as would operational units within the Ministry of Primary Industries (such as Fisheries New Zealand and Biosecurity New Zealand). However, all of these could be reimagined as *agents* of the ocean, rather than *managers* of it. The moana itself, through an Oceans Commission, would form an institutional watchdog alongside them, making sure its interests were being served.

Feature 4: Legislative design implications

An approach framed around legal personhood would not necessarily demand any particular approach to legislative design (see Chapter 11). After all, individual people and companies have to engage with multiple legislative frameworks on a day to day basis too, so recognising the oceans in the same way does not immediately lead to an Oceans Act. The integrative mechanism would instead be the creation of legal personhood for the oceans as a whole, and other layers of personhood for biogeographical regions or particular areas, which could reach out into many different statutory frameworks.

As such, the RMA (or the NBA as its replacement) would remain, embracing the connection between land and sea. The Fisheries Act would remain as a home for tools that specifically manage the taking of fish and management of stocks, although it would be made clear that such measures could not undermine mandatory protections and limits imposed through the planning and consenting mechanisms of the RMA/NBA. And these would include many of the things currently expected to happen through sustainability measures under the Fisheries Act.

The Biosecurity Act would be separate, recognising both the connection between marine and terrestrial biosecurity risks and the efficiency of treating this as statutory a sub-system in its own right. Similarly,

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Castlecliff Beach, Whanganui

the Maritime Transport Act would remain intact as a collection of responsibilities and functions assigned to Maritime New Zealand, many of which lie beyond the marine aspects of the resource management system.⁷⁴ The MACA Act would also keep its existing place in the system, although to the extent there was buy in from mana whenua there could be room to reimagine its approach to “ownership” of the coastal marine area (as interests vested in the moana itself as a legal person), similar to legislation for te Urewera and te Awa Tupua. Legal personhood provides a potential “third way” in which Māori, Western and other traditions might be reconciled.

However, the approach may necessitate some changes to legislative boundaries, including the creation of a higher level, constitutionally significant, piece of legislation in which legal personhood would be conferred, in a way consistent with the principles of te Tiriti. Because it would be a concept spanning many other frameworks (including many aspects of the common law), no existing act provides a suitable place for this to happen (although some specific rights could be conferred on the moana under the New Zealand Bill of Rights Act). It could see the enactment of a kind of “umbrella” statute – an integrative Oceans Act, under which many other pieces of legislation could continue their separate existence. This Oceans Act would provide a home for mandatory marine spatial plans at a regional level (with regions defined in a biogeographical way, equating with the boundaries of various legal persons).

That said, although there are valid reasons for separating statutes (not least the need to recognise the land-sea relationship and the need to have focused purposes and subject matter), recognising the ocean as a legal person would suggest that greater integration would be desirable in some ways. The artificial boundary between the RMA and EEZ Act would therefore disappear – that is inconsistent with the idea of the oceans as a single person – with the latter incorporated into the former (with necessary distinctions made within a reformed RMA/NBA).⁷⁵ The Crown Minerals Act and a new Oceans Act would subsume the relevant parts of the Continental Shelf Act and the Territorial Sea, Contiguous Zone and Exclusive Economic Zone Act.

A more integrated approach to protected areas would be achieved through a single act with a single purpose (an MPA Act), which would subsume spatial protections under other legislation (eg marine wildlife sanctuaries) and would need to be recognised under other frameworks (eg by using the RMA/NBA to prevent land-based impacts on protected areas or their protected values). Alternatively, there could be a more integrated conservation framework more generally through a single Protected

Species and Areas Act, which would subsume current marine conservation legislation (the Marine Reserves Act, the Marine Mammals Protection Act) alongside more general statutes focused on land or spanning land and sea (eg the Conservation Act, Wildlife Act, Reserves Act, National Parks Act). That would recognise *nature* or *te taiao* as a person, not just the ocean.

Feature 5: Expanding the toolkit

When it comes to tools (see Chapters 8-10), legal personhood would also primarily be about changing the orientation of the system rather than recreating its basic fabric. For example, it is by no means clear that the ocean, as a person, would fundamentally object to the existence of the NZCPS or an NES for the seas (even if they might be transformed to reflect a more ecocentric purpose, be more explicit about the need for things like limits, or be crafted using processes in which the moana itself had a voice).

Under fisheries legislation there would still need to be limits set on fish stocks, and sustainability measures taken to prevent harm to ecosystems, but these might be set in different places (not just to maximise yield) and be made mandatory. Similarly, MPAs would be reimaged as the ocean's choices about how to manage its own estate, not just a tool to further scientific study, to protect representative areas of biodiversity, to increase fish stocks, or to offset impacts sustained elsewhere. The starting point would be that the sea would have agency to pursue its own interests, not just to protect ecosystem services for people.

Tools would also be oriented to reflect the primacy of the interests of the moana. Plans would become more strategic – outlining plans of action to reach a different future rather than just “managing” stocks or resources. For example, fisheries plans would become mandatory, place-based and designed to achieve the more ecocentric purpose of a revised Fisheries Act; the NZCPS would contain targets and implementation provisions (more akin to the more recent NPS for Freshwater Management); conservation legislation would chart a pathway towards achieving a network of protected areas (not just a tool to impose them if the ministerial will exists) and would have a requirement to set limits (eg on species mortality) with which other decisions (including on fisheries management) would be obliged to comply.

The QMS as an allocative tool would remain, but rights would be recast more firmly as privileges and contingent upon responsibilities for the health of the marine environment. The idea is that human use would be with the consent of the oceans, and consent could be withheld if its basic interests were no longer being met. In this spirit, koha/resource rentals would be paid to the ocean itself for the harvesting of fish, the occupation

of the seabed, marine minerals and other extractive uses, as well as for land uses that could impact the marine environment. This last point is important – the polluter pays principle is often talked about, but seldom do people ask: to *whom* should the polluter pay? Could it be the ocean itself?

Revenue raised would be hypothecated and funds managed and distributed by the independent Oceans Commission, including for monitoring, research and enforcement. It would also provide incentives for more efficient use of marine resources and to internalise land-based impacts (to prevent contaminants from reaching the marine environment).

Of course, legal personality does not provide a foundation for every single design choice in a new system. Some are thoroughly anthropocentric questions – such as the extent of people’s and communities’ rights to participate in planning and consenting decisions, or questions about which groups of people get rights to take resources (and who misses out). There will be thousands of specific choices that do not require the lofty concept of the ocean as a person to be invoked.⁷⁶ Many of the more granular features of approach 1, for example, may be compatible with this approach too. To some extent, such details may not matter hugely in the short term. This is because personhood could be seen as an initial catalyst for change – a new layer to the system – from which point the ocean itself could be a powerful actor in *future* waves of law reform.

Brief assessment

As with approach 3, approach 4 is something of an exploratory exercise and does not lend itself to a mechanistic or technical list of pros and cons. However, some thoughts can be ventured to stimulate conversation. For instance, recasting the oceans as a legal person may have the potential to improve biophysical outcomes (see Chapter 2) not just by strengthening regulation, but also by changing how users perceive relationships with the moana. An upside relative to other approaches (which retain many potentially conflicting objectives)⁷⁷ is that there is a clear organising concept or paradigm – a worldview – that underpins reform and and this could provide a clearer reference point to guide choices.

The approach could also provide a mechanism for greater integrated management by focusing on the marine environment itself (and stipulating its own interests), rather than the interests of sectors or legislative frameworks within it. Personhood has a great deal of flexibility and agility too, in that it could be applied at different spatial scales or to different things (eg regions, MPAs, species or the moana as a whole). And it opens up the toolbox in novel ways, by granting powers and rights to non-human

entities (eg human rights, property rights and standing in civil litigation) that have traditionally existed well beyond “resource management” frameworks. Finally, although additional complexity might be created in some ways (eg new institutions), the approach would not necessarily require overhaul of the system’s existing structures. Existing statutes and institutions could remain – in the same way that legislation for te Urewera has not completely reinvented the machinery of management – with an overlay of personhood implemented across them all (eg new rights and powers for the moana within existing laws). While the courts would likely have a greater role (to interpret the nature of rights and resolve disputes), and that could exacerbate the adversarial nature of the system, that is not necessarily a bad thing if they are suitably resourced. Standing for the moana in the courts might also bolster the stretched resources of civil society advocates.



Supreme Court, Wellington

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On the other hand, some may dismiss personhood as an artificial construct and distraction from the more tangible measures needed to create change. Recognising nature as a legal person will not by itself make a difference. It may, for some, also be too subversive of cherished anthropocentric concepts like capitalism, property rights, and deliberative democracy, with fears that powers for the moana would erode human freedom and rights (see Chapters 6 and 7). By creating a separate entity, it could also potentially pit development interests *against* the environment – fighting with the ocean in court – rather than emphasising everyone’s stewardship responsibilities to look after it. And despite being a mechanism of choice for some te Tiriti settlements, legal personhood is not itself a feature of te ao Māori and some may see it as falling short, or masking the importance, of true partnership between Māori and the Crown at the human level (there is also a risk it may resurrect debates about ownership of the foreshore and seabed, although as te Urewera shows, personhood can be compatible with “non-ownership” models). Much may depend on who gets to speak for the oceans.

Perhaps most fundamentally, the approach would represent a significant change in the system’s orientation and create potential disruption, uncertainty and litigation if rolled out at a systemic level. That said, the approach lends itself towards gradual or partial implementation, by conferring some powers but not others, by defining the moana’s interests relatively narrowly (eg as the defence of environmental bottom lines), or by granting personhood at only some scales (eg for particular MPAs). Elements of it could therefore be compatible with other approaches, and be strengthened over time.

In some senses, an approach based on legal personhood is a radically different way of thinking about our relationship with nature. But in other senses it does not require a complete revolution in norms, only another *layer* or *lens*. For example, the system already recognises the importance of principles like environmental justice, inter-generational equity and property rights. They can prompt much debate, but as concepts they are by no means new. In this approach, we would be inviting the moana as a participant into these human concepts rather than replacing them with different ones. As such, the oceans would be deserving of justice, future generations of marine life would see their interests safeguarded, and the marine environment could, just like other legal fictions such as corporations, enjoy property rights and expect to be paid.

At least in spirit, all of this is not too far distant from the notion of te mana o te wai, which has been successfully “legalised” through the NPS for Freshwater Management under the RMA, or te oraanga o te taiao, which is

proposed as the purpose of the NBA. These show the stirrings of system-wide recognition of the rights of nature in a way that embraces cultural synergies. It could be taken much further in a future system that explicitly recognises the moana as a person with agency, not just rights and mana. It may not be as revolutionary as it sounds. And while here we have presented it as a starting point for a whole new system, it may be possible for other approaches to incorporate elements of legal personhood (eg personhood for MPAs) by laying it over other design features (eg changes in legislative design and the toolkit).

13.7 Concluding comments

The purpose of this report is ultimately to stimulate debate about our oceans management system and the extent of reform needed. Most of the ideas and options presented are not new. Our intention is not to present an “answer”, or to present earth-shattering insights. Many positive ways forward are known already, and the starting points for change described in this chapter reflect that.

The important thing, in our view, is to locate all of these options within a system-wide way of thinking about oceans management. They are pieces of a puzzle that will not necessarily work well if they do not dovetail together. They are complementary. We cannot reform fisheries management without thinking about our approach to climate change adaptation. We cannot look to establish a network of protected areas without addressing the impact of land-based pollutants. And we cannot focus just on redrawing legislative boundaries without thinking about the deeper economic and behavioural incentives that regulatory and non-regulatory tools have on people’s interactions with the sea and its resources. Rearranging legislation can be an alternative or a complement to institutional reform; new tools may require new institutions to support or deploy them; different worldviews may encourage the use of some tools and not others. Just as the moana is connected, so too are the parts of the system that manage it.

In this report we have approached the oceans management system by splitting it up into cross-cutting themes. We have looked at these in turn: norms (what the system should be aiming for), tools (the ways in which the system intervenes to achieve its aims), and structures (how legislation and institutions are configured).

But while change is needed, it is by no means clear what form it should take. None of the approaches presented in this chapter are necessarily the “right” starting point. Each would attempt to address the challenges

outlined in Chapters 2 and 3, but would do so in quite different ways. They have pros and cons, risks and opportunities.

Most fundamentally, oceans are not like climate change, where we have a clear normative end point (or at least milestones) to set our sights on. In the oceans, many value-based drivers remain contested. At the root of the reform conversation are our worldviews, ethics and assumptions about what the system should be aiming for, and how we diagnose and articulate problems. Different worldviews, including te ao Māori, can give quite different answers. The normative challenge is not just about drafting a set of principles in legislation – for example, revisiting the idea of sustainable management or sustainable utilisation – it is also about how, as a people, we relate to the moana. The role of te Tiriti o Waitangi and te ao Māori is central in thinking about future institutional settings, and that is a rich conversation that is evolving at pace.

Yet gone are the days where we can be content to just “manage” things. A new system needs to be strategic and both drive and pre-empt the process of change. Change – in its environmental, climatic and social manifestations – is upon us whether we like it or not. We cannot afford to treat different things as management silos.

There are also questions about how we get to a new future. To some, the status quo may be broadly appropriate, and what we need to do is focus on using what we have better. Outlaying huge amounts of time, money and resources overhauling the system requires a sound justification, particularly in the context of a system that is already in a state of significant stretch and flux. What might be a perfect system on paper for some, might be prohibitively expensive, politically unachievable or practically difficult to others. Replacing an entire system might even divert attention away from the things that require most urgent and targeted change. We have outlined a number of ways in which the toolkit could be reformed or used in a more proactive and coordinated way. It is not clear that will be enough, however. Options for more fundamental legislative redesign and institutional change deserve to be considered.

The moana and all that it contains are taonga, our watery backyard, and to some degree a shared space both inherited from our ancestors and held in trust for future generations. What do they want? If we stop to listen, what does the voice of the ocean tell us? And how will we, as kaitiaki and stewards of our vast oceans, answer? It is worth a deep conversation. Reforming the oceans management system is a kōrero that all New Zealanders need to be a part of. Below, we outline some high-level questions that will need to be discussed as part of it. There will, of course, be many others.

High-level questions for reform of the oceans management system

- What are the key problems and challenges that will need to be addressed by a future system, and what are their relative urgency?
- What do we want the system to achieve in an environmental, social, economic and spiritual sense, and what mix of worldviews and ethics should underpin it? Do we need a revolution in norms?
- To what extent, and by what means, should a future system be able to change or erode existing rights and interests in the marine space? On what grounds would it legitimately seek to do so?
- What aspects of marine management should be managed centrally, and what should be managed locally?
- What does a te Tiriti (or UNDRIP) compliant system look like in the marine space?
- Should fisheries, resource management and conservation be managed as separate silos with different purposes? Is legislative and institutional fragmentation a fundamental issue?
- Should we focus on improving regulatory tools, making the system more strategic and integrated, or providing economic and behavioural incentives? Are all of those things needed?
- To what extent would a legal framework for marine spatial planning address most problems?
- Should the current system be reconfigured from the ground up, or changed through surgical amendment to what we already have? Is it fundamentally broken?
- Does everything need to happen at once, or can it be staggered?
- How important is a desire to minimise cost and disruption in a reform process?



Wharf, Motuihe

Endnotes

- 1 Noting that whether the pros outweigh the cons is a subjective judgement.
- 2 We have not designed the different approaches so that each looks to tackle different problems and challenges. Rather, each would provide different *ways* of tackling the same problems, and we invite readers to consider whether those would be more or less effective or desirable.
- 3 Such is its seven objectives, including safeguarding the integrity, form, functioning and resilience of the environment.
- 4 For instance, see proposed list of outcomes in the draft NBA; Ministry for the Environment *Natural and Built Environments Bill* (Exposure Draft, 2021), cl 8.
- 5 Including the Marine Reserves Act, Marine Mammals Protection Act and Wildlife Act.
- 6 It may be impractical to require a comprehensive assessment of the threat status of all species (particularly small organisms and benthic species), but the model would contemplate that such information would be expanded over time.
- 7 For example, that controls would not require concurrence of the Minister of Fisheries and would be determined by biological factors rather than potential economic impacts.
- 8 For example, tax relief.
- 9 For example, a smoothed pathway to consent through controlled activity status; preferential weighting in applications to occupy coastal space in an attribute weighted tendering process; or specific areas set aside for an activity though marine spatial plans.
- 10 As well as any other legislation necessary for things like three waters reform.
- 11 Albeit influenced by marine spatial plans (with which decision would need to be consistent).
- 12 We note that the government has announced that such a review is forthcoming and would provide a further opportunity to make the conservation system fit for purpose at sea.
- 13 Although some provisions may need to be incorporated elsewhere or continue to stand alone, as they are not about MPAs per se.
- 14 This is significant, and analogous to national parks: if we were to consider where to put protected areas on land today, would be put national parks in the same places they currently exist? From an ecological perspective, the answer would likely be no.
- 15 For example, pipelines are protected from fishing activities. However, there is a fundamental normative disconnect too, in that pipelines require maintenance that can itself damage benthic ecosystems.
- 16 See discussion in Chapter 11.
- 17 Exact governance arrangements for these entities would need to be worked through carefully. At the time of writing, such matters are in flux.
- 18 That is not to say that there would be a single perspective from the Secretariat, since independent departments would retain their own distinct mandates and perspectives.
- 19 The relationship between a National Oceans Strategy, regional spatial strategies and the National Planning Framework under the NBA would need to be thought through carefully. It might, for example, be that a National Oceans Strategy would be one thing to have particular regard to when creating regional spatial strategies, providing a bigger picture national level view when it came to (for example) the best places for offshore wind or MPAs.
- 20 There could be “flag” provisions in each, akin to the explanatory provisions in the EEZ Act outlining its relationship with the Maritime Transport Act.
- 21 The importance of doing so would also be recognised through policies in the National Planning Framework.
- 22 Alternatively, there could be a mandatory EEZ policy statement that built upon relevant aspects of the NZCPS, recognising that not all parts of the NZCPS (eg inshore elements) would be relevant to the deep sea.
- 23 Indeed, regional policy statements within combined plans would have to give effect to a revamped NZCPS, meaning that regional policy statements would also have influence over regional or place-based fisheries plans, waste minimisation measures like product stewardship schemes, and pest management/pathway management plans.
- 24 Fisheries Act 1996, s 8(2).
- 25 Not dissimilar to how the RMA and National Parks Act apply within national parks.
- 26 The Territorial Sea, Contiguous Zone, and Exclusive Economic Zone Act 1977.
- 27 For instance, it would have a focus on indigenous species and vulnerable or threatened species, and a clear purpose statement and vision for the future.
- 28 Some provisions in the Continental Shelf Act are not related to mining or minerals and may be better located in an Oceans Act.
- 29 How that would be worded would need to be considered carefully, as the Agency would not necessarily be just “protective” in its focus, although it would need to ensure any broader mandate was exercised within the parameters of environmental limits or bottom lines.
- 30 There would be challenges in integrating these tools into a single “instrument”, as they are currently of quite different natures, have different purposes, and have distinct processes and timeframes. However, they could form a more integrated ecosystem of tools within a single Oceans Act. There may be advantages in integrating them into a single framework; for example, conservation planning and concessions could be approached with some of the rigour of regional plan and consenting processes under the RMA.
- 31 These would not necessarily reflect existing regional boundaries.
- 32 Advocacy would be for the oceans, not commercial or extractive activities within it.
- 33 Under the exposure draft of the NBA, the proposed direction is to set limits for overlapping domains, such as “biodiversity, habitats and ecosystems”, “coastal waters” and “estuaries” and the purpose of doing so is to protect “ecological integrity” and “human health”. While there are many options for what greater specificity could look like here, one would be for limits to be mandatory for a range of known pressures on the marine environment (eg sedimentation, loss of sensitive habitat, wastewater quality) and for purposes to be more targeted to these things within the umbrella of ecological integrity (eg to prevent future decline in conservation status, to retain food producing capacity, to ensure resilience to climate change). The NPS for Freshwater Management takes a more specific approach to some limits, an approach that could be replicated in the NBA itself for the marine environment (eg the hierarchical concept of *te mana o te wai* and the idea of management units). Indeed, some have proposed that estuarine environments be folded into this NPS.
- 34 Although narrower in one sense, as they would only apply on the seaward side of mean high water springs.
- 35 Including the need to maintain the ability of trophic networks to sustain marine mammals and other valued or threatened species.
- 36 In other words, if a public quota holder were to buy back some quota and distribute it based on public interest rather than market considerations.
- 37 See Chapter 8 on what a broader fisheries plan could look like.
- 38 Not dissimilar to the RMA, which manages both urban development (the design and growth of cities for its benefits) and the impacts of urban development (on rivers, air, sea and soil).
- 39 A similar tension as to where information and expertise resides can be seen in the climate change context, where two entities (the Climate Change Commission and the Ministry for the Environment) could be well placed to fulfil this role.
- 40 As can be seen when it comes to implementation of national direction by councils.
- 41 That said, the Department of Conservation performs both regulatory and operational functions, and although that has been criticised by some, other checks and balances (eg the model of a Conservation Authority or an Oceans Commission) and a strong legal mandate can ameliorate such concerns.
- 42 See generally Margaret Mutu and Moana Jackson *Whakaaro Here Whakaumu mā Aotearoa* (Matike Mai Aotearoa, Independent Iwi Working Group on Constitutional Transformation, January 2016); and Claire Charters and others *He Puapua: Report of the Working Group on a Plan to Realise the UN Declaration on the Rights of Indigenous Peoples in Aotearoa New Zealand* (Te Puni Kōkiri, November 2019).
- 43 Claire Charters and others *He Puapua: Report of the Working Group on a Plan to Realise the UN Declaration on the Rights of Indigenous Peoples in Aotearoa New Zealand* (Te Puni Kōkiri, November 2019) at 11.
- 44 See generally Ani Mikaere *Colonising myths – Māori realities: He Rukuruku Whakaaro* (Huia, Wellington, 2013) at 91 and following.
- 45 Ani Mikaere *Colonising myths – Māori realities: He Rukuruku Whakaaro* (Huia, Wellington, 2013) at 92.
- 46 Although debate continues as to its effect. See Jacinta Ruru “Legislative provision for Tino Rangatiratanga: A National park case study” [2005] NZYbkNZJr 24.
- 47 See generally United Nations Declaration on the Rights of Indigenous Peoples GA Res 61/295, A/Res/61/295 (2007).
- 48 Margaret Wilson “The reconfiguration of New Zealand’s constitutional institutions: The transformations of Tino Rangatiratanga into political reality?” (1997) 5 Waikato L Rev 17 at 17.
- 49 For example, in the co-governance of the Waikato River and legal personhood models for *te Awa Tupua* and *te Urewera*.
- 50 See *Takamore v Clarke* [2012] NZSC 116, [2013] 2 NZLR 733; *Trans-Tasman Resources v Taranaki-Whanganui Conservation Board* [2021] NZSC 127; and the use and recognition of *rāhui*.
- 51 Robert Joseph and others *Stemming the Colonial Tide: Shared Māori Governance Jurisdiction and Ecosystem-Based Management over the Marine and Coastal Seascope in Aotearoa New*

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- 52 Robert Joseph and Richard Benton *Waking the taniwha: Māori governance in the 21st Century* (Thomson Reuters, New Zealand, 2021); Margaret Wilson “The reconfiguration of New Zealand’s constitutional institutions: The transformations of Tino Rangatiratanga into political reality?” (1997) 5 Waikato L Rev 17 at 17.
- 53 Margaret Wilson “The reconfiguration of New Zealand’s constitutional institutions: The transformations of Tino Rangatiratanga into political reality?” (1997) 5 Waikato L Rev 17 at 24.
- 54 Nin Tomas “Indigenous peoples and the Māori: The right to self-determination in international law – From woe to go” (2008) NZ L Rev at 629.
- 55 Margaret Wilson “The reconfiguration of New Zealand’s constitutional institutions: The transformations of Tino Rangatiratanga into political reality?” (1997) 5 Waikato L Rev 17 at 23.
- 56 See for example the “spectrum of influence” concept discussed by the Waitangi Tribunal *Ko Aotearoa Tenei: A Report into Claims Concerning New Zealand Law and Policy Affecting Māori Culture and Identity* (Wai 262, 2011).
- 57 Margaret Mutu and Moana Jackson *Whakaaro Here Whakaumu mō Aotearoa* (Matike Mai Aotearoa, Independent Iwi Working Group on Constitutional Transformation, January 2016) at 10.
- 58 Waitangi Tribunal *He Whakaputanga me te Tiriti - The declaration and the Treaty: the report on stage 1 of Te Paparahi o Te Raki Inquiry/Waitangi* (Wai 1040, 2014). See also Margaret Mutu and Moana Jackson *Whakaaro Here Whakaumu mō Aotearoa* (Matike Mai Aotearoa, Independent Iwi Working Group on Constitutional Transformation, January 2016) at 7-11.
- 59 *Trans-Tasman Resources v Taranaki-Whanganui Conservation Board* [2021] NZSC 127.
- 60 See Waitangi Tribunal *Report on the Crown’s Foreshore and Seabed Policy* (Wai 1071, 2004).
- 61 Whether such a body could wield constitutionally significant executive powers (eg regulatory powers) without corresponding representation within the legislature requires close consideration.
- 62 This resourcing also includes capacity-building of skills, institutional knowledge, personnel, expertise.
- 63 And vice versa – aspects of a rangatiratanga model might be transplanted into others.
- 64 In that protected areas can allow use where important to maintain the cultural or ancestral connection with the moana.
- 65 Other ecocentric approaches might, instead of conferring personhood, recognise intrinsic value, human responsibilities to nature, or concepts like te mana o te wai (where the needs of nature come first).
- 66 For example, common dolphins.
- 67 The line is not always clearcut. For example, people often speak of corporations as if they were actually people (“Google took a lawsuit”) and animal welfare laws recognise many creatures have sentience, wants and needs.
- 68 Of course, personhood would not be the *only* way to influence those things. For example, influence could instead be exercised by an oversight body like an Oceans Commission with a strong statutory mandate.
- 69 For example, in the compulsory acquisition of land for public works under the Public Works Act, or in access arrangements under the Crown Minerals Act.
- 70 This is a reversal of the current situation, whereby concurrence is required from the Minister of Fisheries for some conservation measures potentially impacting on fisheries (eg population management plans). Here, approval would essentially be required from a conservation-oriented framework for fisheries measures.
- 71 Conceptually akin to the concept of an environmental water holder within the water trading regime in the Australian Murray-Darling Basin.
- 72 Requiring a potentially tricky mechanism by which catch limits were reduced by a comparable amount, given that quota are expressed as a share of total catch limit.
- 73 Rights “may be subject only to such reasonable limits prescribed by law as can be demonstrably justified in a free and democratic society” under section 5 of the Bill of Rights Act.
- 74 For example, sanitary and health and safety aspects.
- 75 Such as different treatment/requirements at international law.
- 76 That said, an approach based on personhood would be consistent with one that embraces the idea of strong participation across the board (eg recognising the public’s interest in decisions on fisheries) and non-economic approaches to allocation (eg an attribute weighted tendering process rather than relying on who can pay the most through auctioning or unfettered markets).
- 77 For example, an Oceans Act might be intended to address issues arising from system fragmentation, but would itself by no means easily resolve tensions and trade offs between use, protection, te Tiriti compliance and other objectives (like safety and health).

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EDS is undertaking a project which is taking a first principles look at the oceans management system in Aotearoa New Zealand and outlining various options for reform. This report looks at what is going wrong and how systemic change could occur on a variety of fronts, including worldviews and principles, the management toolkit, how we structure our legislative frameworks, and how we design our institutions. It is intended to frame a wide-ranging conversation, not to make hard and fast recommendations. It concludes by presenting four quite different starting points for what whole of system reform could look like for the moana.

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